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*of* America

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# *House of Representatives*

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. FLEISCHMANN).

## DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
*February 3, 2015.*

I hereby appoint the Honorable CHARLES J. FLEISCHMANN to act as Speaker pro tempore on this day.

JOHN A. BOEHNER,
*Speaker of the House of Representatives.*

## MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 6, 2015, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

## EXPAND AND IMPROVE ACCESS TO HIGH-QUALITY AFFORDABLE CHILD CARE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Massachusetts (Mr. MCGOVERN) for 5 minutes.

Mr. MCGOVERN. Mr. Speaker, too many people in our country—the richest country in the history of the world—are hungry, and it is a sad reality. Hunger has many faces: children, seniors, veterans, the disabled. One group that experiences hunger and is often overlooked is working families.

Millions of people who work for a living don't earn enough to ensure that their families have enough to eat. They don't earn enough to ensure that their kids have access to quality child care. For millions of working families, every single day is a struggle. We in this Chamber ought to do more to help.

In his State of the Union Address, I was pleased to see the President identify specific ways to support working families: tripling the child care tax credit; increasing the number of slots available and investing in high-quality, affordable child care programs. These are investments that are important to all families but especially working and poor families.

We know that the early years of a child's life are critical to shaping healthy cognitive, social, and emotional development. Ensuring that all of our young children have an opportunity to thrive in a safe, nurturing environment is one of the best economic investments that we can make. It is the right thing to do, and it pays huge dividends later on.

Families at all income levels know how expensive child care is today. In 2013, the cost of full-time care for an infant in a child care center was about $10,000 per year, more than the cost of instate college tuition in many States, and many of the best child care programs cost more than that.

For poor families, the cost of quality child care can be an untenable burden. For these families, it may mean being forced to choose between paying rent, getting medicine, or buying food.

No parent should find themselves in the difficult situation of having to drop their child off at a program that is unsafe or of poor quality just so they can get to their job. Parents shouldn't have to choose between safe child care and keeping their job to pay the bills. For poor families in particular, it is a daily struggle to balance everything and still make ends meet.

Mr. Speaker, last week, the Census Bureau released figures that showed that one in five children in this country received food stamps last year. Let me repeat that. One in five children relied on SNAP. That is 16 million children who relied on SNAP to keep them from going hungry last year, more than at the start of the Great Recession.

We know that our economy is improving slowly, but the gains aren't shared evenly among all Americans. Too many poor and working families are still struggling to make ends meet. We know that despite some of the false rhetoric, the majority of SNAP participants who are expected to work and are able to work, in fact, work.

Families with children have even higher rates of employment than other households on SNAP. More than 60 percent of families with children receiving SNAP have someone in the household working.

Mr. Speaker, these families have a working adult but still make so little that they qualify for SNAP. Without SNAP, these families would not be able to put enough nutritious food on the table for their children and for themselves.

Being poor is hard, and it is expensive. We should do everything we can to support working families. Expanding and investing in child care is an important step toward achieving that goal.

I urge the Republican leadership to support the President's initiatives to expand and improve access to high-quality, affordable child care programs. At the same time, I urge the Republican leadership—I plead with them—to refrain from cutting food and nutrition programs that are essential to a child's healthy development.

It is the right thing to do to support these families, to support food and nutrition programs, to support quality child care programs. It is the right thing to do for all American families. It is especially the right thing to do for our low-income families who have not



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shared in recent economic improvements and who face tough choices every day.

Families should not be forced to choose between good, safe child care and putting food on the table. That is a false choice; and, quite frankly, in this country, it is shameful that they have to make that choice.

I urge my colleagues to make a renewed commitment to end hunger now. We have the resources, we have the food, we have everything, but we lack the political will.

Hunger is a political condition. We can solve this problem in a bipartisan way if we choose to, if we make it a priority. There are millions and millions of our citizens who are depending on us to do more than we are doing now. I hope that we live up to that challenge. We can and we should do much better.

## DEFAULT PREVENTION ACT

The SPEAKER pro tempore. The Chair recognizes the gentleman from California (Mr. MCCLINTOCK) for 5 minutes.

Mr. MCCLINTOCK. Mr. Speaker, amidst all the controversies gripping Congress, certainly, we should all be able to agree that the full faith and credit of the United States should not hang in the balance every time there is a fiscal debate in Washington.

This Nation now staggers under $18 trillion of debt, nearly $7.5 trillion of it run up during this administration. The interest on that debt is one of the fastest growing components of the Federal budget.

If there is ever any doubt of the security or reliability of that debt owed by this government, interest rates would quickly rise, and our precarious budget situation could rapidly spin out of control.

Ernest Hemingway put it this way. He asked:

> How do you go bankrupt? Two ways. First gradually, then suddenly.

So it is with nations.

The debt limit is how we regulate the Nation's debt. It is the national equivalent of a credit card limit. That limit has to be periodically adjusted. It is appropriate for Congress to take responsibility when it is raised. When it is raised, it is also appropriate for Congress to review and revise the policies that are driving that debt.

The fundamental problem under both Democratic and Republican Congresses is that this process is fraught with controversy—the bigger the debt, the bigger the controversy; the bigger the controversy, the more credit markets are likely to be spooked into demanding higher interest payments to meet their greater risk. Given the size of our debt, that could produce an interest tidal wave that could sink our budget and our Nation along with it.

I am, today, introducing the Default Prevention Act with 43 cosponsors to guarantee that the sovereign debt of the United States Government will be paid in full and on time, under any circumstances, even total political gridlock.

It simply provides that if the debt limit is reached, the Treasury Secretary may continue to borrow above that limit for the sole purpose of paying interest and principal that is due. It is an absolute guarantee that the debt of the United States will be honored.

Most States have various laws to guarantee payment of their debts. Three years ago, in testimony to the Senate, Ben Bernanke praised these State provisions for maintaining confidence in their bonds.

This act passed the House in the 113th Congress, but it was never taken up by the Senate. Now, we are approaching the expiration of the government's current borrowing authority. We will soon have serious discussions over the level of our debt and the additional measures necessary to bring that debt under control. We all hope these discussions will go smoothly, but we all know that sometimes they don't.

The Default Prevention Act says loudly and clearly to the world that no matter how much we may differ and quarrel, the sovereign debt of this Nation is guaranteed, and their loans to this government are absolutely safe.

Last session, the Democrats opposed this measure, charging that it is an excuse not to pay our other bills. Do they actually suggest that all these other States—that have guaranteed their sovereign debts for generations, some for centuries—have ever used these guarantees as an excuse not to pay their other bills?

On the contrary—by providing clear and unambiguous mandates to protect their credit first, they actually support and maintain their ability to pay for all of their other obligations.

The most outrageous claim the Democrats made was that this measure paid China first. What nonsense. More than half of our debt is held by Americans, often in American pension funds. This act actually protects Americans far more than Chinese or other foreign investors.

Whether our loans come from China or Timbuktu, from Grandma's pension fund or Johnny's savings bond, without the Nation's credit, we cannot meet any of our other obligations.

Principled disputes over how the debt limit is addressed are going to happen from time to time. Just a few years ago, then-Senator Barack Obama vigorously opposed an increase in the debt limit sought by the Bush administration.

When these controversies erupt, as they inevitably do in a free society, it is imperative that credit markets are supremely confident that their loans to the United States are secure.

Providing such a guarantee could prevent a future debt crisis and give Congress the calm it needs to negotiate the changes that must be made to bring our debt under control before Congress authorizes still more debt.

I urge its speedy consideration.

## PRESIDENT OBAMA'S BUDGET

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. BLUMENAUER) for 5 minutes.

Mr. BLUMENAUER. Mr. Speaker, this is the week where the President submits his budget. We are seeing a great deal of conversation about many of the provisions. One area that I am pleased has been greeted with positive reaction is his emphasis on infrastructure, on rebuilding and renewing America.

This is a debate that is very important. It is long overdue to focus in on solutions. It is an area of potential agreement: the need to address the fact that America is falling apart while we are falling behind, somewhere on the order of 25th in the world rankings. Where once we had the finest infrastructure in the world, that is no longer the case.

The American Society of Civil Engineers gives us a grade of ''D.'' It is going to cost $2.2 trillion by 2020 to be able to bring us up to standard. The longer we wait, the worse the situation.

It is costing each American $323 a year, on average, in damage to their cars because of inadequate infrastructure, to say nothing of thousands of lives lost because of unsafe road conditions and the potential disruption of business and commerce.

Americans are spending millions of hours a year trapped in traffic. America's highways—which are how we deliver products to stores, to factories—are increasingly congested, causing increased costs due to delay.

The President's proposal is a bit complicated. It deals with other tax provisions that virtually everybody thinks are a long shot, at best, to be enacted.

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This is part of the pattern the administration has had in the past: offering up things that, in theory, would make a difference but that are unlikely. Usually they are pronounced dead on arrival. Likewise, the proposals of some of my Republican friends for their approaches, wrapping it into their version of tax reform, have been consistently declared not possible.

We have one, simple, commonsense approach that should be taken—it was highlighted again today in an editorial in The Washington Post. It has also been written about in The New York Times, in the LA Times, in USA Today, in Bloomberg View, in papers large and small across the country—to raise the gas tax. It has not been raised in 22 years, and in that time, it has lost a significant portion of the purchasing power while America's needs grow.

For 60 years, the gas tax has formed the backbone of how we deal with

America's infrastructure finance. The user pays—people who benefit the most pay the most—and it served us well for over half a century.

But over the course of the last 10 years, it is no longer adequate. The fixed amount that hasn't been increased, the erosion due to inflation, increasing the fuel efficiency of vehicles all combine to mean that we are falling short of the mark. We have been required to transfer over $60 billion from the general fund just to maintain our already inadequate levels of funding, and the current patch expires in May. The clock is ticking. There are opportunities to make a difference.

It is interesting. It is not just the newspaper editorial writers who focus on this as the simplest, most effective, commonsense approach. We are finding in the other body a number of Senators, including Republican Senators, who indicate that they are open to finally addressing and updating the gas tax.

My colleague on the Ways and Means Committee, JIM RENACCI from Ohio, wrote a very insightful article in a recent issue of Roll Call. He made the case for our moving forward with increasing the user fee to be able to maintain our roads and bridges, highlighting the costs and consequences.

Mr. Speaker, there is an opportunity for us to move forward. This does not have to be something that is complicated or partisan. This is something that Ronald Reagan in 1982 called upon the Congress to do, where he in his Thanksgiving Day address asked for the Congress to more than double the gas tax. Tip O'Neill and Ronald Reagan did it. We can do it today. I strongly urge my colleagues to address this simple, commonsense approach and help us rebuild and renew America.

## THE VALUE OF VACCINATIONS

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Texas (Ms. JACKSON LEE) for 5 minutes.

Ms. JACKSON LEE. Mr. Speaker, this morning, I feel compelled to speak again about the necessity of increasing the knowledge and the notice given by the FDA—the Food and Drug Administration—and the Centers for Disease Control on what seems to be a surge in the getting of measles by many across this country. The numbers have gone past 100. It is clear that measles is a disease that quickly spreads, and it is also clear that medical science affirms the value of vaccines.

So I believe it is extremely important today to again ask the FDA and the CDC, as I did yesterday in a letter, to raise the level of warning and concern to parents, schools, counties, and States in the entire Nation on being able to provide information to encourage vaccination, if that is what is the ability to have—if you are the age or if your child is of the age to be able to receive that vaccination and to do so.

Over the last couple of weeks, we have seen measles spread to enormous numbers. We have seen the numbers grow in California and then spread. We have heard of cases in which the measles started in an entertainment facility, and people moved around the country. One example, in particular, I think, is potent because the father of the children has been speaking out. He is a pediatrician, and he is calling upon families to vaccinate, particularly the MMR, which is the vaccination dealing with measles.

Unfortunately, an innocent visit to a clinic, which a child needs to do for pediatric services, exposed an 8-month-old to the possibility of measles and exposed his 3-year-old sister, who is suffering from leukemia. Now, as I understand it, they are in isolation. There is the thought of someone traveling on an airplane with measles. Unlike a number of other diseases, measles spreads extremely quickly. Stories have been told or examples have been given that if you have measles and if you are in a room and if you leave that room—and maybe you have coughed or done something—an hour later, someone comes in, and there is the possibility that you still may be exposed to it. When riding on an airplane, you may expose a whole number of persons to measles if you are, in fact, infected.

I think it is extremely important. Though we realize there are differences of opinion, I am glad to find in the political landscape that this is not a political football and that, in essence, we come together and recognize the importance of having this information and of encouraging vaccination.

I am asking for the State and city health departments and county health departments across the Nation to provide their own information to parents and schools. I wonder whether or not there is need to again reassess the importance of reinstating the obligation and the responsibility of all families who have children who are going into a public school system to have them vaccinated within the realm of their own health conditions and their own assessments by their pediatricians.

Mr. Speaker, this is an important issue. This is an issue of which we in a modern day, 21st century nation—and as an example of health care to those around the world—need to show the importance of preventative medicine and protecting our children. We have worked on these issues in many ways. We have fought for a vaccine for HIV. As has been said in the past, they are looking for a vaccine for Ebola because we understand how that can intervene and, in those instances, save lives. In this instance, in not knowing the condition of individuals, we know that this disease can be damaging.

It is important that we focus on educating the public. I believe an alert should go out that we have a problem and that we should be working with our local health facilities and disciplines and districts to be able to establish best practices and protocols, and that parents and others should be informed to make intelligent decisions.

More importantly, I think this is an issue that should be quickly assessed on behalf of the CDC and the FDA. Mr. Speaker, it is important for the children of America that we provide them the safety and security for their lives.

## FIFTY YEARS FROM SELMA

The SPEAKER pro tempore. The Chair recognizes the gentleman from South Carolina (Mr. CLYBURN) for 5 minutes.

Mr. CLYBURN. Mr. Speaker, in one of his great books, Martin Luther King, Jr., asked the question: Where do we go from here—chaos or community?

Mr. Speaker, today, 50 years after Selma, that question is still in need of an answer.

One area in need of aggressive action is persistent poverty, and I want to thank President Obama for sending us a budget that equalizes the Tax Code and that, if substantially enacted, will move us closer to what Dr. King often referred to as the ''beloved community.''

Statistics show that there are nearly 500 counties and thousands of communities in the United States that are classified by the Census Bureau as ''persistent-poverty areas.'' They are certified because 20 percent of their populations have lived below the poverty line for the last 30 or more years. They are diverse communities, including Caucasian communities in States like West Virginia, Kentucky, and Tennessee; Native American communities in States like South Dakota, Alaska, and Oklahoma; Latino communities in States like Arizona, New Mexico, and Texas; and African American communities in States like South Carolina, Alabama, and Mississippi. They are urban communities in States like New York and heartland communities in States like Missouri.

There are 139 of these counties that are represented in this House by Democrats, 331 by Republicans, and 18 are split between the two parties. Combating persistent poverty should matter to all of us regardless of party, geography, or race.

In early 2009, as we were putting together the Recovery Act, I proposed language to require at least 10 percent of funds in three rural development accounts to be directed to efforts in these persistent-poverty counties. This requirement was enacted into law. In light of the definition of ''persistent-poverty counties'' as having at least 20 percent poverty rates over 30 years, this provision became known as the ''10–20–30 initiative.''

In using the 10–20–30 formula, the Recovery Act funded a total of 4,655 projects in persistent-poverty counties, totaling nearly $1.7 billion. I saw firsthand the positive effects of these projects in my district. We were able to undertake projects and create jobs that would have otherwise languished. Among these investments were a $5.8 million grant and a $2 million loan to

construct 51 miles of water lines in the rural community of Brittons Neck in Marion County, South Carolina.

There are many other success stories. In Lowndes County, Mississippi, $17.5 million was spent to install a water line, elevator tank, and two wastewater pump stations, providing potable water to rural Mississippians and creating badly needed construction jobs.

In 2011, I joined with our former Republican colleague, Representative Jo Ann Emerson of Missouri, to introduce an amendment to the continuing resolution that would have continued 10–20–30 for rural development and would have expanded it to 11 additional accounts throughout the Federal budget to enhance economic development, education, job training, health, justice, the environment, and much more.

I want to make one thing clear about the 10–20–30 approach. It does not add one dime to the deficit. It simply targets resources from funds already authorized or appropriated.

Over the past 30 years, the national economy has risen and fallen multiple times. During these economic downturns, we have been rightly focused on getting our economy, as a whole, on track. We have not given adequate attention to these communities that are suffering from chronic distress and Depression-era levels of joblessness.

Mr. Speaker, I would hope that, as we undertake this budget, we will find ways to work together to move our Nation closer to Dr. King's dream of a beloved community.

## RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 29 minutes a.m.), the House stood in recess.

□ 1200

## AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

## PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Loving God, thank You for giving us another day.

All of Congress today remembers the heroic sacrifices and accomplishments of the First Special Service Force of World War II when Americans and Canadians formed for the first time a combined unit trained to be a small, elite corps capable of accomplishing the seemingly impossible.

May their story be an inspiration to the Members of this people's House where a similar cooperative effort toward a shared common goal appears all too often to be seemingly impossible.

We ask, O God, that all who populate these hallways this day be possessed of goodwill, appreciative of the great exploits of so many of our American ancestors.

And may all that is said and done this day be for Your greater honor and glory.

Amen.

## THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

Mr. HIMES. Mr. Speaker, pursuant to clause 1, rule I, I demand a vote on agreeing to the Speaker's approval of the Journal.

The SPEAKER. The question is on the Speaker's approval of the Journal.

The question was taken; and the Speaker announced that the ayes appeared to have it.

Mr. HIMES. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER. Pursuant to clause 8, rule XX, further proceedings on this question will be postponed.

## PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentleman from Pennsylvania (Mr. CARTWRIGHT) come forward and lead the House in the Pledge of Allegiance.

Mr. CARTWRIGHT led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

## ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

## PRESIDENT OBAMA'S BUDGET PROPOSAL

(Mr. SAM JOHNSON of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. SAM JOHNSON of Texas. Mr. Speaker, yesterday, President Obama released his budget. Unfortunately, it is right out of the liberals' tax-and-spend playbook.

Apparently, the President thinks that since he has already added $7.5 trillion to America's record $18 trillion debt, what is $8.5 trillion more?

As chairman of the Social Security Subcommittee, I am also concerned that President Obama has once again ignored the grim finances of Social Security, and that is a shame because we cannot keep kicking the can down the road. It is just not fair or right to the millions of hardworking Americans who have paid into Social Security.

Mr. Speaker, contrary to what Obama likes to say in his speeches, too many Americans are still struggling. The last thing this country needs is more taxes, more spending, and more debt.

Americans want, need, and deserve better.

## PRESIDENT OBAMA'S BUDGET

(Mr. SWALWELL of California asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. SWALWELL of California. Mr. Speaker, this week, the President put forward his budget. Now, this House has an opportunity to put forward one of our own that reflects the values of those we represent.

We have a choice. We can embrace and support the President's budget that lifts all Americans up, or we can pass another House Republican budget that keeps Americans down.

In California's East Bay, access to child care is going down while costs go up. Access to education has been reduced while costs go up for those who are lucky enough to get in. Paychecks are going down while everyday costs around us are going up.

With this budget, we can address and fix these problems for the families we represent. We can expand access to child care and cut taxes for families paying child care. We can pass and expand access to community colleges with tuition-free community colleges. We can see paycheck progress by making investments in transportation and infrastructure.

We have a choice. Pass the House Republican budget which will keep families down, or we can lift America up and provide more opportunity for everyone with this President's budget.

## PUNXSUTAWNEY, PENNSYLVANIA, CELEBRATES 129TH ANNUAL GROUNDHOG DAY

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, yesterday, the town of Punxsutawney, Pennsylvania, held its 129th annual Groundhog Day celebration.

Each year, I am honored to be a part of this celebration, being in the Pennsylvania Fifth Congressional District, but a snowstorm moving across the region forced me back down to Washington sooner than expected.

Punxsutawney Phil was awakened from his burrow yesterday at 7:28 in the morning and, despite overcast skies, saw his shadow and predicted 6 more weeks of winter.

Groundhog Day is not only about Phil's prediction of the future and how soon the next season will be upon us; it is a celebration of our past, the Commonwealth heritage, and a time for

communities to come together and carry on this great tradition for generations to come.

It is truly an honor to have this celebration take place in my home district, and I want to thank President Bill Deely of the Groundhog Club Inner Circle and everyone from Punxsutawney and the surrounding area for their hard work and planning to make this year's Groundhog Day such a special event.

## LET EPA DO ITS JOB AND PROTECT OUR WATER

(Mr. CARTWRIGHT asked and was given permission to address the House for 1 minute.)

Mr. CARTWRIGHT. Mr. Speaker, from the shores of the Delaware and the banks of the Allegheny, to the streams and the creeks that feed them, Pennsylvanians know that water is vital to our health, our recreation, and our wildlife.

Mr. Speaker, our waterways remain at risk. To protect them, the EPA is considering a rule to restore Clean Water Act protections to thousands of waterways in Pennsylvania and across the country. When finalized, this rule will mark the biggest step forward for clean water in more than a decade.

Unfortunately, polluters and their allies are now working to derail this clean water rule. They have even scheduled a rare, joint House-Senate hearing to set the stage for this dirty water attack.

I say it is time for Congress to get out of the way and let EPA do its job and protect our water, as is its charge.

## PRESIDENT OBAMA'S BUDGET

(Mr. YODER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. YODER. Mr. Speaker, I rise today to address the President's budget proposal which was released yesterday.

While I appreciate the President putting forth his vision for the future of our Nation, that vision is neither one that our Nation can afford, nor one that I can support.

Each year, the President brings us a budget that increases spending, raises taxes, and seeks trillions upon trillions of new debt upon our great Nation. If the Republican-led House had agreed to these budget requests, our Federal Government would be 20 percent larger today.

This year, the President's budget proposal proposes another $8.5 trillion in deficits that will push our debt to well over $26 trillion in the next 10 years, slowing our economy and leaving the next generation with the legacy of higher taxes and less opportunity.

Mr. Speaker, we must work together—Democrats and Republicans—to balance our budget by cutting wasteful spending, holding the line on spending increases, reforming programs, and reducing the size of government.

Kansans know and the American people know that a leaner, more efficient and effective government is critical to strengthening our economy and creating prosperity and opportunity for every American.

## IMPROVE THE QUALITY AND STATE OF OUR INFRASTRUCTURE AND PROTOCOLS AT PORTS OF ENTRY

(Mr. HIGGINS asked and was given permission to address the House for 1 minute.)

Mr. HIGGINS. Mr. Speaker, the Peace Bridge in my western New York district is the second busiest border crossing between the United States and Canada, making it essential that people and goods are able to move quickly and efficiently across the bridge. The second phase of a cargo preinspection pilot project at the Peace Bridge recently concluded and is currently under evaluation.

While I have confidence that the bill will call for expansion of preinspection at the Peace Bridge, the pilot revealed several challenges which create delays and require immediate attention.

Internet speeds on the Canadian side of the bridge exceed those on the American side, enabling faster screening. Radiation detectors on the American side are older and often inaccurate, resulting in false negatives that create delays. Finally, empty trucks are not required to provide a manifest, resulting in unnecessary secondary inspections for empty vehicles.

Last week, I wrote to Secretary Jeh Johnson highlighting the urgent need to rectify these issues. We must improve the quality and state of the infrastructure and protocols at ports of entry across the country.

## HUMAN RIGHTS COMMISSION

(Mr. PITTS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PITTS. Mr. Speaker, I want to thank Speaker BOEHNER for appointing me to serve as the Republican cochair of the Tom Lantos Human Rights Commission. It is a great honor to serve as a voice defending the rights of people worldwide to live free of repression and violence.

I have served as a member of the Commission since its establishment following the passing of our dear colleague Congressman Lantos. A Holocaust survivor, he understood what it was like to live under the thumb of a brutal and oppressive regime.

While we vowed ''never again,'' today, hundreds of millions of people worldwide live under governments that restrict the rights of free speech and religious expression—regimes that persecute minorities, women, and children.

We are blessed to live in a country where individual rights are protected and cherished. Despite our differences, Democrats and Republicans work hand in hand to protect these rights at home and expand them worldwide.

I am particularly honored to share the leadership of the Commission with Congressman MCGOVERN. We have worked together to promote human rights for many years now, and I think there is much we can accomplish together.

## REPEALING OF THE AFFORDABLE CARE ACT FOR THE 56TH TIME

(Mr. HIMES asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HIMES. Mr. Speaker, with all that we should be doing to help address middle class anxiety, to help the economy along, to help with student debt, to help with the challenges that all of our constituents face, what will we be doing this week? We will be repealing the Affordable Care Act for the 56th time—56.

I get it. The first couple of times, Mr. Speaker, I get it. The first couple of times, the Republicans believed that this was a government takeover of health care, that there were death panels, that it was unconstitutional, that it would raise costs in the health care section, that it would be a job killer. None of that turned out to be true.

In fact, the opposite turned out to be true. The Supreme Court said it was constitutional, it actually helped lower costs in the overall health care system, and we are now adding jobs in the private sector faster than we have added them in 10 years.

None of that was true.

What is true is that the Affordable Care Act has given 10 million or more Americans the security for the first time of having health insurance. It has cut the uninsured rate in my State of Connecticut in half.

Do you know what that means? It means that Ann Christman—51 years old, a single mother, could never afford health care insurance—now, she has it. She went to a doctor, and her breast cancer was diagnosed early. She said:

> The cancer has been detected at a very early stage, which, with a 98 percent survival rate, has saved my life.

Respectfully, let's leave it alone.

## AMERICA DESERVES AN EFFECTIVE GOVERNMENT THAT SOLVES OUR NATION'S PROBLEMS

(Mr. POLIQUIN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. POLIQUIN. Mr. Speaker, a huge congratulations to the New England Patriots for winning Super Bowl XLIX—surgical passes from quarterback Tom Brady, a thunderous spike by tight end Rob Gronkowski, and a

crucial goal line interception by rookie cornerback Malcolm Butler.

Although our Patriots earned a thrilling fourth Super Bowl title, I also congratulate the Seattle Seahawks and their fans for battling until the very end of their terrific season.

Maine is Patriots nation. We appreciate hard work and results. In this Chamber, Republicans and Democrats engage in passionate debate on issues critically important to American families. We have been sent here to move the ball down the field together, to put points on the board for hardworking taxpayers.

Patriots fans, Seahawks fans, and families coast to coast deserve an effective government that solves our Nation's problems. Then we will have a healthy, growing economy with more jobs, fatter paychecks, and more freedom.

Here in this Chamber, we are all Patriots, we are all Americans, and we work for the people.

□ 1215

## RICK ORLOV

(Ms. HAHN asked and was given permission to address the House for 1 minute.)

Ms. HAHN. Mr. Speaker, many of us have love-hate relationships with the news media and with various reporters, but today I wanted to rise and express my condolences for a reporter in Los Angeles whom we mostly had a love relationship with and very little hate.

Rick Orlov was a reporter for the Daily News, and he covered Los Angeles City Hall for almost 30 years. I served on the Los Angeles City Council for 10 of those, so I got to know him well.

Do you know what? He earned everyone's respect. Somehow, he made no enemies. Rick was a true newsman, and he focused on writing the news that mattered. He was not interested in gotcha reporting. His longstanding institutional knowledge allowed him to understand and tell the whole story.

Rick Orlov was not only a great reporter, but he was a great man. I considered him my friend, and he really was a piece of Los Angeles. His death is a huge loss for the city and for all of us who had a chance to know him.

## BALANCED BUDGET AMENDMENT

(Mr. TROTT asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. TROTT. Mr. Speaker, the President presented his budget yesterday, and I am disappointed to say that it is just more of the same tax-and-spend policies that we have seen over the past 6 years—$4 trillion of spending, $2 trillion in new taxes, and more deficits for the next 10 years.

I have only been in Washington for a month, but the prevailing message from the President seems to be that politicians know better than the people, that Big Government is the solution, and that huge deficits are just part of life. This experiment has failed and has hurt the hardworking taxpayers in my district, who built our economy. Since 2009, the debt has grown from $10 trillion to $18 trillion. The new budget has the debt at $26 trillion in 10 years, and interest payments alone on our national debt will quadruple in the next 10 years.

Now more than ever we need a balanced budget amendment to our Constitution. It is a simple concept: force the Federal Government to live within its means. Families do it; businesses do it; cities, counties, and States are doing it. I urge my colleagues to join me as cosponsors of House Joint Resolutions 1 and 2.

## FULLY FUND THE DEPARTMENT OF HOMELAND SECURITY

(Mr. ISRAEL asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ISRAEL. Mr. Speaker, this month, in a very short period of time, the Department of Homeland Security is going to run out of money. Our enemies, they plot, they plan to do us harm, and this Republican majority in this Congress refuses to give the Department of Homeland Security the full funding they need to keep us safe. What we will do this week is the 56th repeal of the Affordable Care Act.

Mr. Speaker, some in this Chamber may be willing to cater to their base for political reasons, but catering to our enemies in order to cater to the base is unacceptable.

Making it easier for our enemies to attack and do us harm by refusing to fund the Department of Homeland Security so you can score points with your base over a difference you may have with the President on an executive order is not what the American people want, expect, or deserve.

The contrast could not be more clear, Mr. Speaker. There is one party in this House that is willing to undermine our homeland security and to undermine the middle class' economic security. There is another that wants to strengthen both.

## OVERTIME

(Mr. TAKANO asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. TAKANO. Mr. Speaker, I rise today to show my support for America's middle class.

Currently, government rules allow for only 11 percent of salaried workers to be eligible for overtime pay. Contrast that to 1975, when the income threshold for overtime pay covered 65 percent of our salaried workers. This is because Department of Labor rules prohibit workers who earn more than $23,660 a year from earning overtime pay.

Recently, I was joined by more than 30 of my colleagues in calling for this administration to raise the income threshold to $69,000. At this level, we could cover the same number of workers who were eligible in 1975. For 35 years, American workers have increased their productivity, yet they have not been rewarded. Let's remember that it is a strong middle class that drives economic growth.

Be bold, Mr. President. Your administration can help middle class families. Raise the income threshold for overtime pay.

## A COLLEGE EDUCATION FOR ALL

(Mr. PALLONE asked and was given permission to address the House for 1 minute.)

Mr. PALLONE. Mr. Speaker, making higher education available to everyone has to be a top priority, and the President's budget makes a major commitment to increasing access to high-quality education from preschool through college, particularly at our Nation's community colleges. With the high cost of attending a 4-year institution, community college is often a viable option to so many driven students who are seeking a higher degree without incurring overwhelming debt.

In the President's addresses, he addresses the challenges that so many students face today. In his proposal, his budget makes 2 years of high-quality community college free to responsible students, saving 9 million students an average of $3,800 a year in tuition.

In my home State of New Jersey and across the Nation, community colleges offer educational opportunities to students just beginning higher education, to people already in the workforce who are looking to gain additional training, and for the unemployed looking to change careers. The President's proposal could benefit them all and countless others for whom higher education currently seems unattainable.

I would just hope that my Republican colleagues across the aisle will join us in making sure that a college education is an attainable goal for all Americans.

## GROWING OUR ECONOMY

(Mr. KILDEE asked and was given permission to address the House for 1 minute.)

Mr. KILDEE. Mr. Speaker, it is week five of this new Congress, and the American people are still waiting for action to create jobs. Instead of doing that, Republicans seem focused on appeasing and pandering to the most extreme voices in their party. Even some Republicans are appalled by this Republican agenda now that they control Congress.

One Republican Member told the National Journal:

Week one, Republicans had a Speaker election that did not go well; week two, Republicans got into a big fight about deporting children; week three, Republicans are now talking about rape and incest and reportable rapes and incest for minors . . . I just can't wait for week four.

Now we are in week five, and the new Republican Congress is still working. It doesn't look like we are going to see a jobs bill or an infrastructure bill. Instead, today, for the 56th time, we will see a vote on the floor of the House to take away health care for millions of Americans.

The Republican leadership needs to stop putting the politics of the extreme rightwing of their party in the fore and get back to the work of the American people.

## THE BUDGET

(Mrs. CAROLYN B. MALONEY of New York asked and was given permission to address the House for 1 minute.)

Mrs. CAROLYN B. MALONEY of New York. Mr. Speaker, it is time for Congress to admit what people with common sense all across America have known for years: mindless austerity just does not work. It doesn't grow the economy, it does not add jobs, and it doesn't unleash anything except misery.

The sequester was a bad idea from the start. The country needs to embrace its can-do spirit, and Congress has to stop saying: ''Sorry, we just can't.''

The President's budget is tailor-made to help hardworking middle class families get ahead. It will invest in education, strengthen workers' skills, provide tax relief for the middle class, and rebuild our infrastructure. This is exactly what we need to build on the record of the 58 months of job growth we are experiencing and to make sure that everyone shares in the gains of our growing economy.

## FLORIDA AGRICULTURAL AND MECHANICAL UNIVERSITY

(Ms. GRAHAM asked and was given permission to address the House for 1 minute.)

Ms. GRAHAM. Mr. Speaker, to celebrate Black History Month, I rise to recognize Florida Agricultural and Mechanical University, one of the oldest and most prestigious Historically Black Colleges in the United States.

The Florida Agricultural and Mechanical University, or ''FAMU,'' as it is more affectionately known in north Florida, was founded in 1887 with just 15 students and two instructors. Today, the university has grown to enroll nearly 10,000 students, and it was named by the U.S. News & World Report as the top public Historically Black College or university in the Nation for 2015.

I am proud to represent FAMU in the Second Congressional District of Florida. Their mission and the public service they provide is a benefit to north Florida, to our State, and to our Nation.

## OBAMACARE HAS WON

(Ms. SCHAKOWSKY asked and was given permission to address the House for 1 minute.)

Ms. SCHAKOWSKY. Mr. Speaker, the Affordable Care Act is working. Here is what I hear:

Women can afford to get pregnant because maternity is covered. Parents sleep better because their children are covered up to age 26. People with preexisting conditions are no longer terrified that they are going to be uninsured. Small businesses are saving money. Doctors and nurses are saving lives because patients can come to them. In Illinois, over 700,000 individuals are newly insured, and we are not even through with enrollment.

As the President said in this Chamber 2 weeks ago: ''That is good news, people.''

But, today, we have gone back to the Republican old song book—yet another vote to repeal ObamaCare. Let me warn them that they do this at their peril. Tens of millions of Americans, many insured for the first time and others who can finally afford insurance, will not give it up without a fight.

Let's hope the 56th time of a vote to repeal will be the last so we can get to the real work of raising wages and creating good jobs and passing equal pay and of comprehensive immigration reform and improving retirement security and passing a renewed Voting Rights Act. The war against ObamaCare is over, and ObamaCare has won.

## PROVIDING FOR CONSIDERATION OF H.R. 596, REPEAL OF THE PATIENT PROTECTION AND AFFORDABLE CARE ACT

Mr. BURGESS. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 70 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 70

*Resolved,* That upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 596) to repeal the Patient Protection and Affordable Care Act and health care-related provisions in the Health Care and Education Reconciliation Act of 2010, and for other purposes. All points of order against consideration of the bill are waived. The amendment printed in the report of the Committee on Rules accompanying this resolution shall be considered as adopted. The bill, as amended, shall be considered as read. All points of order against provisions in the bill, as amended, are waived. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto, to final passage without intervening motion except: (1) 90 minutes of debate equally divided among and controlled by the respective chairs and ranking minority members of the Committees on Education and the Workforce, Energy and Commerce, and Ways and Means; and (2) one motion to recommit with or without instructions.

The SPEAKER pro tempore (Mr. YODER). The gentleman from Texas is recognized for 1 hour.

Mr. BURGESS. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Massachusetts (Mr. MCGOVERN), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. BURGESS. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. BURGESS. Mr. Speaker, House Resolution 70 provides for a rule to consider the full repeal of the flawed and ill-conceived Affordable Care Act.

The rule provides for 90 minutes of debate, divided and controlled by the Committee on Energy and Commerce, the Committee on Ways and Means, and the Committee on Education and the Workforce. Further, the rule self-executes the Byrne amendment, which provides for a clean repeal of the entire Affordable Care Act. The rule further provides the minority with one motion to recommit with or without instructions.

This approach—a full repeal—will give the House, particularly freshmen from both parties, an opportunity to have an up-or-down vote on the Affordable Care Act.

More than just a full repeal, the legislation before us provides for a process whereby the committees of jurisdiction are tasked with coming up with a replacement for the flawed law now being implemented. We know what ideas don't work. Those are the ideas enshrined into law in the Affordable Care Act. Now let's look toward ideas that will work.

□ 1230

I do look forward to working with the Energy and Commerce Committee's chairman, FRED UPTON, to craft meaningful legislation that will actually help the American people instead of strangle them with more government regulation, which is what the Affordable Care Act actually does.

Americans should have the freedom to make their own health care decisions. In March of 2010, the Patient Protection and Affordable Care Act was signed into law. It was drafted quickly and behind closed doors. It included secret deals, loopholes, drafting errors, and funding cliffs that allowed Federal agencies to be created without congressional knowledge or oversight.

More and more of the Affordable Care Act's supporters are having to admit to

the American people that, in their rush to pass a bill, the same people who put their voting cards in the slot and helped the ACA become law didn't actually know what was in the bill.

Now people are finding out what is in the bill, and they are upset. So upset are the American people that in every election for the House and Senate since the passage of the Affordable Care Act, more and more Republicans were chosen to replace supporters of the flawed law.

Indeed, this past fall, President Obama, in no uncertain terms, declared:

> Make no mistake, my policies are on the ballot.

It is actually one of the few times I have ever agreed with this President. His policies were on the ballot, and the American people soundly rejected them, placing a historic majority of Republicans in the House and taking control of the Senate out of the hands of HARRY REID.

The bottom line: the drafting and passage of the Affordable Care Act was not the way to achieve meaningful reform. Many errors occurred through the language. This is why the Supreme Court this spring will be hearing a case that could upend the Affordable Care Act's subsidy structure. This case is entirely the fault of people who drafted and implemented the bill so poorly.

With the Supreme Court case looming, this body—this body—must be prepared to work for the American people and stave off the possible chaos which could ensue. The health care system in America needs reform and improvement, but the law that was passed will cost the American taxpayer millions of dollars, will not improve care, nor will it make it more affordable.

The bill that this House will vote on puts in place a procedure that will begin the process of crafting a replacement that could truly bring affordable access to health care to all Americans. The so-called Affordable Care Act does not accomplish that goal.

We need to start, and start fresh, and we need to address the issues with commonsense improvements that focus on the real issues at hand: creating a health care system that is focused on patients instead of payment, quality instead of quantity, affordability instead of cheapness, and innovation instead of stagnation. The first step is eliminating this bad legislation that simply does not work. That is why, today, I strongly support the repeal of the President's health care law.

I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I want to thank the gentleman from Texas for the customary 30 minutes.

I yield myself such time as I may consume.

Mr. Speaker, first of all, I rise in very strong opposition to this closed rule and to the underlying bill. Let me just say to my colleagues, to make it crystal clear, that this is an absolutely closed rule.

This bill had no hearings in any of the committees of jurisdiction; it was not reported out by any of the committees of jurisdiction; and the Committee on Rules decided last night that no Member, no Republican or Democrat, has the right to offer any amendments. This is a closed process.

Whatever happened to regular order?

So, Mr. Speaker, here we are again, back on the House floor with yet another pointless attempt by the Republican majority to repeal the Affordable Care Act. Today's exercise in time-wasting gamesmanship marks the 56th time that we have been down this well-traveled road.

Fifty-six. Let's see. That is two score and 16. It is 4½ dozen. But no matter how you add it up, it has to be some sort of world record in political futility.

So it is tempting to say that nothing has changed, but that is not exactly true because, in fact, a great deal has changed since my Republican colleagues first tried to repeal the ACA. Here are some of the things that changed:

The number of uninsured Americans has dropped by 10 million people; 3 million young adults have been able to gain coverage through a parent's plan; insurance companies can no longer discriminate on the basis of a so-called preexisting condition, like, say, being a woman; lifetime limits and caps on coverage have been eliminated; seniors have saved more than $11 billion in prescription drugs, an average of $1400 per Medicare beneficiary; copays and deductibles for preventive services for Medicare patients have been eliminated, and the solvency of the Medicare trust fund has been extended by 13 years; and the growth in health care spending in this country is the slowest on record, while health care price inflation is at its lowest rate in 50 years.

All that has happened thanks to the Affordable Care Act. If the Republicans get their way, much of it will disappear in an instant. If Republicans get their way, millions of Americans would lose their health care coverage, millions more would lose the subsidies they receive to purchase plans, millions of children would lose CHIP coverage, millions of seniors would lose benefits, and the deficit would increase.

So let's be crystal clear, Mr. Speaker: this is no longer a theoretical political exercise; this is very, very, very real. If this Republican bill were ever to become law, then real people would see real benefits taken away. That is why President Obama has said very plainly that he would veto this bill if it ever reached his desk.

There is something else new about this 56th version of Republicans banging their heads against a brick wall. For the first time, according to Politico:

> House Republicans want to postpone the full repeal of ObamaCare for 6 months to allow time to come up with a replacement plan.

I have to say, Mr. Speaker, when I read that, I actually laughed out loud. The health care crisis in this country has been happening for years and years—decades. How many studies have been done? How many reports issued? How many hearings and debates and news stories? But after all of that, my Republican friends still need another 6 months to come up with a replacement plan.

Here is an idea. Let's vote down this rule with the understanding that in 6 months—actually, I will give you 7, until after Labor Day—that in 7 months you will be back here with your magic replacement plan, which I assume will be flown in on a unicorn sliding down a rainbow.

I will tell you why, Mr. Speaker. Because Republicans have absolutely no intention of actually doing the hard work of health care reform. This is just a gimmick. It is a chance for their new freshmen to cast their symbolic vote against ObamaCare so they can put out a press release and act like they have accomplished something.

As the Washington Examiner reported:

> Republicans know that the repeal legislation isn't ever going to become law. ''We are just getting it out of the way,'' one GOP aide told the Examiner when asked about the repeal vote.

Just getting it out of the way, Mr. Speaker? What a cynical abuse of this House. It is a sham. It is a waste of everyone's time. It deserves to be defeated in this House, and if it ever makes it out of the Senate, it deserves the quickest veto President Obama can muster.

I reserve the balance of my time.

Mr. BURGESS. Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, at this time, I yield 1 minute to the gentlewoman from Michigan (Mrs. DINGELL).

Mrs. DINGELL. Mr. Speaker, I thank the gentleman for yielding.

I rise in opposition to the rule and the underlying bill. I may be new to this Chamber, but it sure seems like Groundhog Day around here to me. This is the 56th time my friends on the other side of the aisle have tried to repeal or weaken this landmark law, and the puzzle for me is that I know that they believe in so many of the provisions and support them.

Since the passage of the Affordable Care Act, millions of people who didn't have insurance now have it and have signed up for the marketplace plans; 299,000 in Michigan alone.

I know my friends on the other side of the aisle believe that nobody's health coverage should be dropped when they suddenly get diagnosed with cancer. I know my friends on the other side of the aisle don't want to tell 129 million Americans that they are going to be denied insurance because they have a preexisting condition. I know my friends don't want to kick young people off their parents' insurance plan, and I know they never want to go

back to the days of lifetime caps on health coverage or tell seniors they have got to start paying more for their medicine again. This is why I am totally perplexed, because if this bill were to pass, over 9.5 million Americans would be hurt and left behind without access to quality, affordable coverage.

The ACA may not be perfect. The last perfect law that there was agreement on was the Ten Commandments; and honestly, in today's climate, I am not sure we could get it through the Congress today. I urge my colleagues to work together with us on how to improve the law instead of constantly trying to do something they don't believe in.

Mr. BURGESS. Mr. Speaker, at this time, I am pleased to yield 4 minutes to the gentleman from Texas (Mr. SESSIONS), the chairman of the Committee on Rules.

Mr. SESSIONS. Mr. Speaker, I am delighted to rise on the floor today really for two reasons, perhaps three. First of all, to support and defend the Committee on Rules last night where we overwhelmingly are in favor of making sure that every Member of this body has an opportunity to vote up or down on this terrible piece of legislation that is the law that is known as the Affordable Care Act, or ObamaCare.

This last election the people of this country openly asked the question in many districts across this country: Are you for or against this terrible law that was put through this Congress without one Republican vote? So it is only obvious that every single new Member of this body would want to have an opportunity to vote up or down.

Secondly, I want to defend the gentleman, Dr. BURGESS, a member of our committee, who was attacked last night. I unfortunately had taken 2 or 3 minutes away from the chair to attend to some other matters of the committee and was not available to be in the chair.

Thirdly, I want to stand up for my State of Texas. In defense of the State of Texas, there has been a lot of talk about Texas lately, not just last night, but lately. So I want to make sure that people have a better understanding to know why Texans are being attacked, and that is because we reject big, liberal government that is embodied in the laws that are known as ObamaCare, or the Affordable Care Act.

In defense of our great State of Texas, we represent people of the State of Texas, and I strongly stand with my fellow Texan and fellow committee member, the gentleman from Lewisville, Texas, Dr. MICHAEL BURGESS. Dr. BURGESS is not just a proud member of our delegation and a proud Member who represents Texas, just as I do, born in Waco, Texas, but I stand today for why Texas is a great State.

Evidently we have got to defend our honor. It was done last night in the Committee on Rules; it is being done today on the floor of the House of Representatives. I stand in defense of Texas; although Texas I don't think really needs much defense.

Texans are proud people, and we have been a proud people since the days of the Alamo and San Jacinto. That is when we used to be our own nation. Texans are fiercely independent, and we, I think, lead to the very best not only for ourselves, but we are trying to do that also for America.

Texas is thriving, and the reason why we are thriving is because of economic growth, robust job creation, and overall quality of life. American families and businesses all across this country, I think, look to Texas as the leader in freedom and economic opportunity. That is what the Lone Star State is.

In our system of federalism, people can also vote with their feet. In the last 5 years, the Texas population grew by 1.8 million people. People from all over the United States, all 50 States, found a brighter future for themselves in Texas.

Over 1.6 million veterans call Texas home. These are men and women who fought for the freedoms that we enjoy and have today. Because of our communities, they support our veterans, and people know when they look to Texas, those people in Texas care about veterans and protecting our country.

□ 1245

Our churches, our schools, our hospitals, and our charities all lead the way in providing our citizens with things so that the government does not have to.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. BURGESS. I yield the gentleman an additional 30 seconds.

Mr. SESSIONS. Yesterday, in the Rules Committee, Dr. BURGESS was merely reflecting the views of our home State and the people who live there. Our Nation does better when we allow individuals to succeed, rather than look to government. We need to have a limited government, and people will then have more freedom.

While some people may think that limited government and empowering families is ''crazy,'' I disagree. I think the numbers prove it. Texas has been called the great American job machine because we are the State that leads the Nation and the world. In fact, if Texas were its own country, it would have the 13th highest GDP in the world.

Mr. MCGOVERN. Mr. Speaker, I yield myself such time as I may consume.

I want to thank the gentleman from Texas for the wonderful commercial for Texas. We all should visit Texas.

He said something that I thought was particularly interesting. He said: We're bringing this bill to the floor because every freshman deserves a vote on the repeal of the Affordable Care Act.

I guess I would ask the chairman: Does he believe that every freshman also deserves a vote on increasing the minimum wage or on comprehensive immigration reform or on adequate child care for our children in this country or on a whole number of other issues which we have routinely been denied the right to even have a vote on these issues on the House floor, which is supposed to be the greatest deliberative body in the world?

What he neglects to tell everybody, including these freshmen—some of whom are Republicans—is that under this rule, you can't amend anything. You have been totally locked out.

The committees of jurisdiction didn't hold a hearing. The committees of jurisdiction didn't hold a markup. Nothing was reported out of any of these committees, notwithstanding the fact that they have been constituted and organized—nothing.

It just shows up in the Rules Committee, and they bring it to the floor under a completely closed process. This is a lousy way to run a Congress.

With that, Mr. Speaker, I yield 2 minutes to the gentlewoman from California (Ms. MATSUI).

Ms. MATSUI. I thank the gentleman for yielding.

Mr. Speaker, I rise today in strong opposition to the rule and the underlying legislation.

Here we go again. This bill marks yet another attempt by the Republican majority to repeal the Affordable Care Act but the first time after implementation of many of the provisions that Americans have relied upon.

People think the ACA only provides the ability to buy health insurance on an exchange or marketplace. Yes, it is a new way to shop for health insurance in which you can compare plans apples to apples. Yes, it is a way to obtain subsidies to make that coverage more affordable. Yes, with all these benefits, people can join the system and cover themselves prior to a medical catastrophe.

However, the Affordable Care Act has also accomplished so much more than that. Repealing the law lock, stock, and barrel that has been in place for nearly 5 years is not in anyone's best interest.

As an example, the ACA created the prevention and public health fund, an unprecedented mandatory investment in States' public health systems. The need for this investment has become increasingly evident after public health emergencies in recent months—evidenced by Ebola and, today, measles.

Repealing the ACA today would mean 129 million Americans could again be denied insurance coverage for preexisting conditions. It would mean Americans would no longer have access to free preventive services such as vaccines, disease screenings, well-child visits, and tobacco cessation.

I heard from one of my constituents Lara who, as a freelance film producer with a former cancer diagnosis, found getting health insurance to be impossible. Thanks to the ACA, she now has

coverage and is able to have regular checkups to make sure that the cancer does not return.

Do you want to take away all of that? The health care providers, health plans, and consumer advocates in my district and across the country have worked hard to put these provisions in place and to make the ACA work.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. MCGOVERN. I yield the gentlewoman an additional 30 seconds.

Ms. MATSUI. We can't take this away now. It works.

I urge my colleagues to vote down the rule and the underlying legislation.

Mr. BURGESS. Mr. Speaker, I am pleased to yield 1½ minutes to the gentleman from Florida (Mr. BILIRAKIS), a member of the Energy and Commerce Committee.

Mr. BILIRAKIS. Thank you, Dr. BURGESS. You are doing an outstanding job with this course and health care in general. I appreciate it so very much. I know my constituents do.

Mr. Speaker, I rise today in support of the rule and the underlying bill to repeal and replace the President's health care law.

Health care reform should lower costs and increase access; instead, the President's signature piece of legislation didn't let people keep the plans they liked, raised health care premiums, and cut Medicare by $500 billion.

When the President said, ''If you like your plan, you can keep it,'' my constituents told me that wasn't true. On average, a 30-year-old woman in Pasco County, Florida, will see her prices increase over 30 percent. Costs haven't been lowered. It is as simple as that.

The Obama administration willingly cut Medicare to pay for a health care law that was poorly written and implemented.

Support H.R. 596, and repeal this law, and support a patient-centered, free market alternative that will lower costs and increase access to care.

Mr. MCGOVERN. Mr. Speaker, I thank the gentleman for his comments. There is no replacement here. All the Republicans want to do is repeal the Affordable Care Act and take away all these important benefits that people have received as a result of it.

At this point, Mr. Speaker, I yield 2 minutes to the gentleman from Colorado (Mr. PERLMUTTER).

Mr. PERLMUTTER. Thank you, Mr. MCGOVERN, for giving me a chance to tell a little personal story about the success of the Affordable Care Act and its impact on the Perlmutter family.

On election day, my wife, a teacher in the Jeffco school system in Colorado, who had hardly ever been to the hospital, had something that they thought was pretty devastating. She went into surgery on election day.

It turned out it was exploratory. A very rare condition was exposed which required a second surgery. Only a handful of surgeons across this country deal with that kind of condition. The surgeons who do it were outside of the network of the original insurance company that provided insurance for her.

Because of the Affordable Care Act, we were able to go into the exchange and find an insurance company through an outstanding insurance broker. Rocky Mountain Health Plans had a surgeon who could handle this kind of condition and was within their network.

It provided her with fantastic medical care and peace of mind that she was going to somebody who knew precisely what they were doing, and it was all because of the Affordable Care Act.

Under the Affordable Care Act, you cannot discriminate against people with a preexisting condition; so for her, she was able to have the peace of mind that is required for recovery. She got the best medical care possible through a coverage that was professional and prompt in its service.

Physically, mentally, and emotionally, the Affordable Care Act helped her find a physician equipped and qualified to help her condition.

The Affordable Care Act is a civil rights act, and it has got to be upheld.

Mr. BURGESS. Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I am proud to yield 2 minutes to the gentleman from Kentucky (Mr. YARMUTH), a member of the Committee on Energy and Commerce.

Mr. YARMUTH. I thank my friend from Massachusetts.

Mr. Speaker, today, we will take our 56th vote to repeal or undermine the Affordable Care Act.

In my home State of Kentucky—a nationwide success story of this law—521,000 Kentuckians enrolled in health coverage last year. That is more than a half a million people in a State with a population of just over 4 million. Seventy-five percent of those who signed up were previously uninsured.

These are maps of before and after uninsured rates in our 120 counties. The orange and red represent uninsured rates of 14 percent to more than 20 percent. The dark blue is less than 5 percent.

Today, after the Affordable Care Act, every single county has had a reduction in their uninsured rates. In some areas, uninsured rates have plummeted by more than 65 percent.

As we watch these uninsured rates drop, as the counties on this map go from red to green or blue, that is another person getting the care or treatment they need, a family's future transformed, lives saved.

This law is a success. The Affordable Care Act is working, and you need to look no further than the Commonwealth of Kentucky to see the proof.

Repealing the Affordable Care Act at this stage would be an absolute death sentence to thousands of people in the Commonwealth of Kentucky and throughout the country. We cannot let this happen.

I urge a vote against the rule and the underlying legislation.

Mr. BURGESS. Mr. Speaker, I continue to reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, can I inquire of the gentleman from Texas if he has any more speakers?

Mr. BURGESS. Yes.

Mr. MCGOVERN. I was just curious because it seems like there is no enthusiasm on your side for debating this for the 56th time.

Mr. BURGESS. I generally reserve my enthusiasm for closing.

Mr. MCGOVERN. Mr. Speaker, if we defeat the previous question, I will offer an amendment to the rule for consideration of legislation that would encourage schools to provide career education about local manufacturing jobs.

To discuss our proposal, I yield 2 minutes to the gentlewoman from California (Ms. BROWNLEY).

Ms. BROWNLEY of California. Mr. Speaker, instead of wasting time on bills that would strip health care away from millions of Americans, we should be focusing on legislation like my bill, the American Manufacturing Jobs for Students Act, which will help connect young people to highly skilled manufacturing jobs in their own communities. A strong middle class begins with early and effective career education.

Small business owners in my district have told me time and time again that they cannot find the workforce they need in the communities where they are located. Many high school graduates are underemployed and have trouble finding innovative and inspiring careers close to home.

My bill would bridge that gap by fostering connections between manufacturing jobs, small businesses, and schools. It will support student engagement and professional relationships with local businesses through workplace visits and hands-on learning experiences. It will strengthen the economy and help employers find the employees they need close to home.

By giving middle and high school students the opportunity to learn firsthand about exciting and innovative careers in manufacturing, we can strengthen our country's economic competitiveness. We can also encourage manufacturers to keep their production in the United States.

We should do all we can to ensure that job creators stay here to provide opportunities for our own constituents. We should be working together on bills like the American Manufacturing Jobs for Students Act and not on bills which are dead on arrival when they reach the President's desk.

I urge my colleagues to vote ''no'' on the motion on ordering the previous question on the rule.

Mr. BURGESS. Mr. Speaker, at this time, I yield 2 minutes to the gentleman from the Upper Peninsula of Michigan, Dr. DAN BENISHEK.

Mr. BENISHEK. Mr. Speaker, I rise today in strong support of the rule and the underlying bill.

I have been a doctor in northern Michigan for 30 years, and I have always put the needs of my patients first. I believe it is time for Congress to do the same thing today.

We need to get to work on finding bipartisan and commonsense solutions that will put the patient and their doctor back in control of health care decisions and help lower the cost of health care while maintaining the quality.

□ 1300

We need to focus on things like allowing people to purchase health insurance across State lines, just like we can already do with car insurance, making health insurance portable so you can take it with you from job to job, another simple change that would improve access to health care. A few of these simple changes would dramatically improve the quality of care available while lowering the overall cost.

Many of the patients that I have been talking to tell me their health insurance has gone up, their deductible has gone up. This is not bringing more health care to the American people. This is bringing less health care to the American people. They have less access to care now than they have had in the past.

I hope all my colleagues today will join me in voting ''yes'' on H.R. 596 so that we can finally pass patient-centered improvements to our Nation's health care system.

Mr. MCGOVERN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I am puzzled by what I just heard from the gentleman about all these alternatives to fix and improve our health care system.

Four years ago, the Republicans passed an identical bill like the one we are considering today in which they said they ordered their committees to report out alternative replacement language or their vision of what a health care reform should be. That was 4 years ago.

They have done nothing but demagogue this issue for 4 years, and here we are again today, playing political gamesmanship with a bill to repeal the Affordable Care Act and take away health insurance for millions of Americans, increase prescription drug prices for our senior citizens, raise taxes on middle class families, and they have nothing to replace it with. This is a waste of our time. This is an insult to the American people.

Mr. Speaker, I yield 1 minute to the distinguished gentlewoman from California (Ms. PELOSI), the Democratic leader.

Ms. PELOSI. Mr. Speaker, I thank the gentleman for yielding and for his leadership on this important issue, as important as the health of the American people.

I salute Congresswoman BROWNLEY for her alternative bill that we should be voting on, if we can defeat this rule, that helps students get manufacturing jobs, just what we have been asking for, a collaboration between business and education where kids are trained for good-paying jobs as they leave school.

Instead, the Republicans are putting forth this rule that would, once again, for the 56th time, repeal the Affordable Care Act.

We come together on the floor of the House right now, when we need to pass a homeland security bill to protect the American people. The Speaker said in December, when we didn't pass the appropriation bill for the year, we will do it after the first of the year.

In January, the world was alarmed by what they saw in Paris. The whole world was galvanized around the issue of fighting terrorism and protecting homeland security, except in this hermetically sealed House Chamber.

We still haven't done what we take an oath to do: support and protect the American people when we take an oath of office to uphold the Constitution of the United States. Instead, we have the Republicans continuing to bay at the Moon. They are baying at the Moon, something that is not going to work; and instead of proposing any, which we would be welcome to hear, good suggestions they may have to approve the Affordable Care Act, they are baying at the Moon—56 times.

We have important work to do for the American people. They want us here to create jobs. They want us here to protect them. We need to pass that homeland security bill. Instead, in our hermetically sealed world, oblivious to what is going on outside, we are taking this up.

They want to strip health security from America's families. They are willing to threaten what that means to our economy, willing to jeopardize the need for us to lower costs for businesses is what this bill does.

I have said over and over again, even if everyone loves his or her health insurance or his or her health care, even if that were the case in our country, we would still have had to pass the Affordable Care Act because the cost to individuals, to families, to businesses large and small, to governments—local, State, and national—the cost was unsustainable. That was one of the things the Affordable Care Act set out to do, and I am so pleased to show that the statistics show that the rate of growth of health costs is going at a lower rate than ever in our history—very important.

The CBO projected that this bill would save—what?—hundreds of billions of dollars, maybe up to $1 trillion over its projected life, the life that we have to account for when we put it before us.

So this is about the health of our people. It is about the health of our economy. It is about lowering costs.

It is important to know what is at stake, because families are seeing the full promise of the Affordable Care Act emerge, to make health care a right for all, not a privilege for the few:

8.2 million seniors have saved more than $11.5 billion on their prescription drugs since this bill passed, an average of $1,407 per senior;

105 million Americans no longer have a lifetime limit or an annual limit on their coverage. This is what you want to repeal today;

129 million Americans with preexisting conditions no longer have to worry about being denied coverage because of their health status. That is what you want to repeal today.

It is also important to note that, with the success of the Affordable Care Act and the 9.5 million people who are signed up in marketplaces, including Medicaid expansion, 19 million uninsured Americans will be covered in 2015.

In addition to that, the Affordable Care Act has pushed forth the solvency of Medicare for 13 years longer. That is what you want to repeal today.

Our Founders, how beautiful they were in all that they did and wrote and their courage and their optimism for the future. They wrote about life, liberty, and the pursuit of happiness in the Declaration of Independence. In that Declaration of Independence, that is the independence we want to give people: for a healthier life, the liberty to pursue their happiness without being job-locked because of a health care policy, free to be self-employed, to start a business, to change jobs, to pursue their happiness.

So this is about, again, the health of our country, not just the health care of our country. On our path forward today, and in the future, the Affordable Care Act will continue to rank up there with Social Security, with Medicare, a third pillar of economic and health security for the American people.

So I urge our colleagues to vote ''no'' on this rule. Enable Congresswoman BROWNLEY's education proposal to match kids up with skills and jobs, something that this country needs to move on to legislation to create good-paying jobs, to add bigger paychecks for America's working families, to stop the stagnation of wages, and to do so in a way that understands how important health care is to reducing the deficit in addition to improving the health of our country.

Again, by the way, the clock is ticking on the bill for homeland security. That is our responsibility: to support and protect. Let's get about the business that we take an oath to do instead of, for the 56th time, bay at the Moon. It is hard to understand why we would waste the time of this Chamber and the American people on this frivolous resolution.

Mr. BURGESS. Mr. Speaker, I yield myself 2 minutes for the purpose of response.

First off, I don't know. Maybe people weren't paying attention, but the House has passed a funding bill for the Department of Homeland Security. It awaits action over in the Senate. So if the minority leader is concerned, perhaps she can talk to people in the other

body about whether or not it might be a good idea for them to take some action, and that would be the correct way to proceed. The House acts; the Senate acts. I refer people who are unclear on that concept to ''Schoolhouse Rock,'' and it will tell you how a bill becomes law.

People talk about the 56th time we have had something on the floor. Obviously, I don't know that I can attest to the accuracy of that count, but what I can attest to the accuracy of is that 11 times the President of the United States has signed into law some action passed by the House of Representatives and the Senate and then subsequently signed by the President—11 times—modifying or changing his signature legislation, the Affordable Care Act. Probably what is more telling is the 28 times—28 times—that the President has simply set aside part of his law because it wasn't convenient.

If the other side wants, I can go through and delineate these one by one. I have, actually, a document prepared by the Galen Institute, and I would refer people to them if they would like to look at this.

But really, some of the things that the President himself has set aside—I mean, who can forget, in a blog post, the administration setting aside the employer mandate, the entire employer mandate. Not surprising, because when the President was a candidate and he came down to Texas and debated Hillary Clinton for the nomination in 2008, he was against the mandate, and then he was for it. So then he set it aside right before the Fourth of July in 2013. And for people who aren't paying attention, guess what? It actually started January 1 of this year.

Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, if only we were debating another subsidy for Big Oil or another tax break for some special corporate interest, my colleagues would be down here with great joy advocating for it.

But when it comes to a bill to ensure that millions and millions of our citizens get health insurance, they want to repeal it. When it comes to protecting our senior citizens who are seeing their prescription drugs being lowered because of this bill, they want to repeal it. When it comes to eliminating preexisting conditions, they want to repeal it. I mean, that tells you all you need to know about where their priorities are.

Mr. Speaker, I yield 2 minutes to the gentleman from Pennsylvania (Mr. BOYLE).

Mr. BRENDAN F. BOYLE of Pennsylvania. Mr. Speaker, I thank the gentleman from Massachusetts. Mr. Speaker, I also want to thank the Republican majority.

As a new Member, I haven't had the opportunity to speak on this issue on the House floor or vote on it. When I saw that the previous Congress had voted 55 times to repeal the Affordable Care Act, I was a little concerned that I would miss all the fun. So I am very happy that we now have a 56th vote on this issue, and it gives me an opportunity to say what a strong supporter I am of the Affordable Care Act.

This has worked. More than 10 million Americans have health insurance today that otherwise would not have it. More than 3 million children have been able to stay on their parents' plan who otherwise would not have had health insurance. And another 3 million, on top of that, have extra protections through State-affiliated agencies, such as CHIP, that would not have it today if not for the Affordable Care Act.

Now, with the rate of the uninsured at its lowest percentage in American history, you would think that with this success that maybe the downside would be that health care costs would have gone through the roof. In fact, quite the opposite has happened. We have just had a year in which health care costs rose by the lowest rate in 50 years—and this is something that all Americans can celebrate, Democrats and Republicans.

So, Mr. Speaker, for the 56th time, this Congress will attempt to repeal the entire Affordable Care Act. It is a mistake. I will join my colleagues in voting against it.

I would say sincerely to Members on the other side, if there are those who are willing to look openly at this issue and say, yes, it has largely worked but let's address those areas that could do better, I think you will find those, particularly new Members on this side of the aisle, who are open-minded toward that and want to address areas that can be improved. Look at all the times that Medicare has been improved since its initial passage in 1965.

Mr. BURGESS. Mr. Speaker, I yield 3 minutes to the gentleman from Iowa (Mr. KING).

□ 1315

Mr. KING of Iowa. Mr. Speaker, I thank the gentleman from Texas for yielding and for leading around this Nation on this issue. So far away from Texas as even Iowa, the gentleman from Texas has fought for the full 100 percent repeal of ObamaCare and laid out, I think, a good strategy for the future health care circumstances in America.

First, Mr. Speaker, I would say that, when this passed, many of us went through a long battle here on the floor of the House of Representatives and outside among the masses of people that came here and surrounded the United States Capitol to plead: Do not take our liberty. Let us manage our own health and our own health care, and let us purchase a health insurance policy that is right for us, not one that the government thinks is right for us, and let's do something that is constitutional.

Well, we watched as that drama unfolded and engaged in that drama. I have a number of scars left over from that. In the end, ObamaCare passed by hook, by crook, and by legislative shenanigan. History shows that. The litigation that has emerged and the litigation yet to emerge will shape this to some degree, but this Congress needs to resolve this.

What had happened was, in the election in 2010, 87 freshmen Republicans were elected into office here to come, and every single one of them ran on the full 100 percent repeal of ObamaCare. That was a transformative election. It shifted the majority from the Democrats to the Republicans, Mr. Speaker, a mandate to repeal ObamaCare. We acted on that mandate.

In fact, the morning after ObamaCare was passed, I was at the door—my staff was actually at the door. I had written a bill in the middle of the night to repeal ObamaCare. I had the first draft to repeal ObamaCare, a component of 40 words, and it applies to two sections of the bill. That bill was drafted March 24, 2010. It was filed March 25, 2010. I filed a discharge petition down here on the floor on the 16th of June 2010—it received 173 signatures—with Republicans in the minority, Mr. Speaker. It has been a long effort.

We voted on the full repeal of ObamaCare, H.R. 2 by the gentleman from Virginia (Mr. Cantor), on the 19th of January 2011; another repeal by Mr. Cantor on the 9th of July 2012, always with the 40-word King language in it; and again on the 16th of May 2013, H.R. 45.

We have been bringing the full repeal of ObamaCare here to the floor over and over again to give everybody an opportunity—even those who didn't have an opportunity to get involved in this debate—to go on record and tell us where you want to see the future of the health care circumstances here in the United States. Every Republican up to this point has voted to repeal ObamaCare.

Every Member of the House, with the exception of those that were sworn in for the first time this Congress, has had that chance. Now we give everyone that chance, and we will send a full repeal over to the Senate so the nine freshmen Republicans over there can clearly also go on record.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. BURGESS. I yield an additional 30 seconds to the gentleman.

Mr. KING of Iowa. I thank the gentleman from Texas.

Because we want to elect a President who will take the oath on January 20, 2017, to sign the repeal of ObamaCare at the podium on the west portico of the Capitol as the very first act of the next President of the United States.

So I thank the leadership for incorporating my language into this bill. I thank those all across this country who have stepped up to defend our constitutional liberties, our personal liberties. When this is done, we will get to work on putting together a good health insurance and health care delivery system in America in spite of all of the

time that we have lost fighting over this unconstitutional mess called ObamaCare.

Mr. MCGOVERN. Mr. Speaker, I just would remind the gentleman from Iowa that there was a Republican Presidential candidate named Mitt Romney who ran on the platform of total repeal of the Affordable Care Act, and he lost. And, by the way, Obama won Iowa by 51–46.

With that, I yield 2 minutes to the gentlewoman from Connecticut (Ms. DELAURO).

Ms. DELAURO. Mr. Speaker, yesterday was Groundhog Day. How appropriate that the Republican majority chose today for their 56th attempt to repeal or to undermine the Affordable Care Act. These futile, ideological gestures are getting old.

The vote I cast for the health care law is one of the proudest I have cast in my political career because the reforms that we put in place are helping millions of families across the Nation. Americans can no longer be denied coverage for a preexisting condition. Preventive screenings, maternity care, and pediatric care are now all covered. Seniors enjoy relief from high drug costs. Millions of low-income children have health care through the CHIP program. Women's health has been put on an equal footing. Insurers can no longer subject families to lifetime caps on coverage. Annual caps are being phased out.

According to the Congressional Budget Office, the Affordable Care Act has reduced the number of uninsured people by 12 million last year, 19 million this year. My Republican colleagues don't really care about that because they have health care as a Member of Congress. Why should they worry about people who do not have health care?

The CBO has also cut its estimate of the cost of rolling out coverage to millions of Americans, a saving of $140 billion compared to previous estimates. This is good news. It should be on the front page of every newspaper.

The Affordable Care Act has succeeded by putting people—not insurance companies—in charge of health care. It has given millions of families care that they can depend on. We are a better country because of it.

Let me say to my colleagues in the majority: Give it a rest. Get a life. The American people like this law. The Supreme Court has upheld it. We have had two elections around it. Stop trying to take away people's health care benefits.

Mr. BURGESS. Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, at this time, I yield 2 minutes to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Mr. Speaker, I thank the gentleman from Massachusetts for being astute in reminding us of the vast bipartisan support for the important Affordable Care Act. If I might add, the past Presidential candidate who lost was the same Governor, however, I understand, that supported it and succeeded in his support of it at that time.

But I think what is important is to again remind this Nation that we are now on the 56th annual trip to repeal what has been a lifesaver to Americans across the country. Let me simply share these very potent points:

People not having health insurance include 20 percent of the underinsured who delay receiving care when signs of illness appear; 15 percent of the underinsured had problems paying medical bills; 10 percent of the underinsured needed prescription drugs but could not afford them; 8 percent were hounded by collection agencies, many of them went into bankruptcy because of health issues—of course we have tried to reform that—6 percent did not seek treatment even though they needed it; and, of course, a report by the Congressional Budget Office, The Budget and Economic Outlook: 2015 to 2025 states that the actual cost of the Affordable Care Act is 7 percent lower than first calculated in 2010.

Let me tell you the real issues, the story of a lady written up in The Ledger, dated January 8, 2015, who was diagnosed with leukemia in 2013. She determined that her insurance at that time would not allow her to have health insurance. Her words are: ''I thought I was going to die,'' Ms. Gray said. In her scramble to try to get drugs, she was left holding the bag, yet she was able to get the Affordable Care Act starting on January 1, 2014. It gave her access to the recommended chemotherapy. Her cancer went into remission in the fall, and she is alive.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. MCGOVERN. I yield the gentlewoman an additional 15 seconds

Ms. JACKSON LEE. What about the situation of the measles? Why do we have this dead-end road again, repetitiously voting against the valuable Affordable Care Act that has saved lives?

Does anybody know about Medicare? It goes on and on and on. And many on the other side of the aisle opposed it in 1965.

I am going to stand on the right side of history and support the Affordable Care Act. Vote against this untimely bill.

Mr. BURGESS. Mr. Speaker, I yield myself 2 minutes for the purpose of a response.

First off, when Medicare passed, it was passed with a bipartisan vote in the House of Representatives, and that is a matter of historic record. In fact, that is one of the weaknesses of the President's takeover of health care in this country is that it passed only with Democratic votes in both the House and the Senate on final passage.

Mr. Speaker, I also went through the number of times that the President has unilaterally delayed, deferred, or simply dismissed parts of his own law. One of, perhaps, the most troublesome, one of the most curious, is when the President set aside entry into his own preexisting pool in January of 2013, they did that because they were worried that they were going to run out of money in the preexisting fund. But the reality was that for anyone who was hoping to get coverage under the preexisting pool beginning in January–February of 2013, they were told: Sorry. Window closed. Go somewhere else.

Then to add further insult to injury, when they couldn't get the Web site up and working at the end of 2013, they actually had to extend coverage in the Federal preexisting pool until March of 2014 so those patients would not be left out in the cold.

So the President has been deeply involved in delaying parts and deferring parts and repealing parts of his very own law.

I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, first of all, I ask unanimous consent to insert the text of the amendment that I intend to offer in the RECORD along with extraneous materials immediately prior to the vote on the previous question. This would be the amendment that Ms. BROWNLEY of California talked about, providing manufacturing training for our high school students.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Massachusetts?

There was no objection.

Mr. MCGOVERN. Now, Mr. Speaker, let me begin by talking about the process. Let me say two words about this process: it stinks.

We have a bill before us today on the House floor that bypassed all of the committees of jurisdiction. And I say to my colleagues, Republicans and Democrats alike, if you are on the Energy and Commerce Committee, on the Education and the Workforce Committee, or on the Ways and Means Committee, you should be outraged that legislation that is under your jurisdiction never went to your committees. It just showed up in the Rules Committee last night. And on top of all of that, no amendments are allowed; nobody can offer any ideas.

I have heard some of my Republican colleagues talk about they have ideas for making the Affordable Care Act better or for replacing it. They don't have the opportunity even to bring those ideas to this House floor.

Four years ago, we voted on a similar measure which said that the Republicans would have the committees of jurisdiction report out alternatives. It is 4 years later, and we are doing the same thing over and over and over again. It is a waste of taxpayer time. It is an insult to the American people.

And as far as the substance of what my Republican friends are trying to do, I just wonder if any of my friends on the other side of the aisle would have the courage to say to people face to face, ''I am going to take your health care away,'' because that is what this

bill would do. That is what this bill would do, and it is shameful.

When I first ran for office, I said to my constituents that one of the things I was committed to was to making sure that everybody in this country had health insurance. Health care ought to be a right. Nobody should have to worry whether or not they can afford to get the health care that, quite frankly, every American is entitled to and deserves. We have made a great stride forward with the Affordable Care Act.

Is it perfect? No.

Could it be better? Yes.

But to come up with bill after bill after bill, 56 times of repeal, repeal, it is getting old. It is getting boring. People are sick of this.

Let me just remind my colleagues about what this bill has accomplished, just because this is no longer a theoretical, abstract debate. These are some real things that have changed.

The number of insured Americans has dropped by about 10 million people. I mean, that is a good thing. I am sorry my colleagues have a problem with that. But I think most Americans, Democrats and Republicans, think that is a good thing.

Three million young adults have been able to gain coverage through a parent's plan. I think that is good.

Insurance companies can no longer discriminate on the basis of a so-called preexisting condition, like, say, being a woman. I think that is a great thing. I am sorry my colleagues have a problem with that.

Lifetime limits and caps on coverage have been eliminated. That is wonderful.

Seniors have saved more than $11 billion in prescription drugs, an average of $1,400 per Medicare beneficiary. That is positive. We knew that there was a flaw, the doughnut hole, in the Medicare prescription drug bill. This fixed it.

Copays and deductibles for preventive services for Medicare patients have been eliminated, and the solvency of the Medicare trust fund has been extended by 13 years. That is a good thing. Now, I know my friends on the other side of the aisle want to privatize Medicare or have no use for Medicare, but for those of us who want to see this program move well into the next century in complete solvency, this is a good thing.

□ 1330

The growth in health care spending in this country is the slowest on record while health care price inflation is at its lowest rate in 50 years. This didn't happen by accident. This happened because we passed the Affordable Care Act, and if Republicans get their way, all of these things will disappear.

This is a debate, I think, about values more than anything else. This is about whether or not we believe that everybody in this country ought to have health insurance, whether or not we ought to make the reforms that I have just mentioned part of the permanent culture of this country.

I think this is good. I voted for the Affordable Care Act. I am proud I voted for the Affordable Care Act. My friends, this issue about health care and access to health care has been around for decades and decades and decades, and my friends have done nothing.

Their prescription for health care reform has been: take two tax breaks, and call me in the morning. That is the total reform that they have advocated in the time I have been here and in the time I have been paying attention to what has been going on in this Congress.

Mr. Speaker, it is time for us to appreciate that this Congress did something positive in passing the Affordable Care Act, and we ought not to let extremists on the other side take the protections away from the American people.

We are going to fight you every step of the way because we believe that people in this country are entitled to health insurance.

Mr. Speaker, I urge my colleagues to vote ''no'' and defeat the previous question. I urge a ''no'' vote on the rule, and I yield back the balance of my time.

Mr. BURGESS. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, let me first address the question of process because the Affordable Care Act did pass in the 111th Congress. The Affordable Care Act, as it came to the 111th Congress under then-Speaker PELOSI, was not a bill that had been considered in any of the committees of jurisdiction. H.R. 3590 came to us from the Senate of the United States.

Now, in fairness, H.R. 3590 had passed the floor of the House, I believe it was July of 2009; but H.R. 3590, when it passed the floor of the House, was a bill dealing with veterans housing.

So it goes over to the Senate to await further work, and to be sure, in the meantime, H.R. 3200 and then a couple of follow-on bills were marked up in committees, and then the Speaker condensed things and introduced her own bill.

We heard it on the floor of the House; and, indeed, it passed in November of 2009. Mr. Speaker, that was the end of the line for that bill. No one has seen or heard from it again.

My friends on the other side may remember some parts of that bill. What about the Independent Payment Advisory Board? Was that included in the House-passed bill? No, it was not.

Well, there was a public option because the Democrats felt very strongly about having a public option. Really, they wanted a single-payer system, so a way to move to a single-payer system was to include the public option, but the public option wasn't in H.R. 3590.

Mr. Speaker, H.R. 3590, a House-passed bill dealing with veterans housing, went over to the Senate where, sometime between Thanksgiving and Christmas, it was pulled out of HARRY REID's desk and amended.

The amendment read ''strike all after the enacting clause and insert.'' All of the housing language was removed, and all of the health care language was inserted. This travesty was passed on Christmas Eve in 2009.

A big snowstorm was bearing down on Washington, D.C., Senators wanted to get home to be with their families before the airport closed, and so it was passed in the early hours of Christmas Eve in 2009.

Now, shortly after that, Massachusetts had a special election to fill the vacancy that occurred after the unfortunate death of Senator Kennedy. That vacancy was filled for the first time by a Republican from Massachusetts.

I think that was really the first time since the Earth cooled, the first time that a Republican had been elected from Massachusetts. The critical point on that was that HARRY REID no longer had 60 votes over in the Senate.

Prior to that, he had been pretty much impervious: I have got 60 votes. I am going to do what I want. Democrats can bust a filibuster on anything because they have got 60 votes.

After the loss of that 60th vote, H.R. 3590 could not be changed—or at least HARRY REID's assertion was that it could not be changed, and Speaker PELOSI would simply have to pass what he gave her.

Now, there was a lot of resistance here on the House to passing—even on the Democratic side—there was a lot of resistance to passing that bill that came over from the Senate because it was not a House product.

It had the Independent Payment Advisory Board in it. It didn't have a public option in it. Many of the Democratic Members were reluctant to engage on this. In fact, I think the quote from Speaker PELOSI that day was: I don't have 100 votes for this thing over on the House side.

Over the ensuing 3 months, they did convince and cajole enough of their Members to pass this by the slimmest of majorities in the early part of March of 2010, and that leads us to where we are today.

Mr. Speaker, it was the 111th Congress that passed this thing. I had 18 amendments to the Affordable Care Act that I dutifully took up to the Rules Committee when we were in the minority and said: Look, I don't like what you are doing, but let's at least keep it from being quite the problem that it is going to be.

Every one of those was rejected. I lost on a 9–4 vote. No surprise—it is the Speaker's committee, she held the votes on the committee, but don't tell me that this was a process of anything other than what was a very flawed and partisan process.

Now, several people today have referenced the Founders and the Declaration of Independence. The reality is,

Mr. Speaker, we are a country that was founded on the principle of government with the consent of the governed.

No one was asking for this thing. No one wanted this thing. Sure, 14 percent of people in this country have been helped, so they like it. Seventeen percent have been hurt, such as myself. I lost my health savings account under the Affordable Care Act. Seventeen percent of the country doesn't like it.

Most everyone else feels as if, ''I am basically unaffected, I may have a problem ideologically either pro or con, but I have not been affected.''

Mr. Speaker, I do recommend that people pay attention. The employer mandate actually became effective January 1 of this year. It won't really affect people until next year when medium-sized businesses begin to file their taxes and find that if they have not kept up with all of the laborious reporting requirements and paperwork requirements under the employer mandate, they are going to be in a world of hurt when they file their taxes for calendar year 2015.

Mr. Speaker, today's rule provides for the consideration of a bill to repeal the Affordable Care Act, a piece of legislation that the American people have time and again said they do not want.

I thank Mr. BYRNE for his legislation and for working on this matter. I urge my colleagues to support both the rule and the underlying bill.

The material previously referred to by Mr. MCGOVERN is as follows:

AN AMENDMENT TO H. RES. 70 OFFERED BY MR. MCGOVERN OF MASSACHUSETTS

Strike all after the resolved clause and insert:

That immediately upon adoption of this resolution the Speaker shall, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 645) to amend the Elementary and Secondary Education Act of 1965 to provide career education pathways in manufacturing. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Education and the Workforce. After general debate the bill shall be considered for amendment under the five-minute rule. All points of order against provisions in the bill are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions. If the Committee of the Whole rises and reports that it has come to no resolution on the bill, then on the next legislative day the House shall, immediately after the third daily order of business under clause 1 of rule XIV, resolve into the Committee of the Whole for further consideration of the bill.

SEC. 2. Clause 1(c) of rule XIX shall not apply to the consideration of H.R. 645.

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THE VOTE ON THE PREVIOUS QUESTION: WHAT IT REALLY MEANS

This vote, the vote on whether to order the previous question on a special rule, is not merely a procedural vote. A vote against ordering the previous question is a vote against the Republican majority agenda and a vote to allow the Democratic minority to offer an alternative plan. It is a vote about what the House should be debating.

Mr. Clarence Cannon's Precedents of the House of Representatives (VI, 308–311), describes the vote on the previous question on the rule as ''a motion to direct or control the consideration of the subject before the House being made by the Member in charge.'' To defeat the previous question is to give the opposition a chance to decide the subject before the House. Cannon cites the Speaker's ruling of January 13, 1920, to the effect that ''the refusal of the House to sustain the demand for the previous question passes the control of the resolution to the opposition'' in order to offer an amendment. On March 15, 1909, a member of the majority party offered a rule resolution. The House defeated the previous question and a member of the opposition rose to a parliamentary inquiry, asking who was entitled to recognition. Speaker Joseph G Cannon (R-Illinois) said: ''The previous question having been refused, the gentleman from New York, Mr. Fitzgerald, who had asked the gentleman to yield to him for an amendment, is entitled to the first recognition.''

The Republican majority may say ''the vote on the previous question is simply a vote on whether to proceed to an immediate vote on adopting the resolution . . . [and] has no substantive legislative or policy implications whatsoever.'' But that is not what they have always said. Listen to the Republican Leadership Manual on the Legislative Process in the United States House of Representatives, (6th edition, page 135). Here's how the Republicans describe the previous question vote in their own manual: ''Although it is generally not possible to amend the rule because the majority Member controlling the time will not yield for the purpose of offering an amendment, the same result may be achieved by voting down the previous question on the rule. . . . When the motion for the previous question is defeated, control of the time passes to the Member who led the opposition to ordering the previous question. That Member, because he then controls the time, may offer an amendment to the rule, or yield for the purpose of amendment.

In Deschler's Procedure in the U.S. House of Representatives, the subchapter titled ''Amending Special Rules'' states: ''a refusal to order the previous question on such a rule [a special rule reported from the Committee on Rules] opens the resolution to amendment and further debate.'' (Chapter 21, section 21.2) Section 21.3 continues: ''Upon rejection of the motion for the previous question on a resolution reported from the Committee on Rules, control shifts to the Member leading the opposition to the previous question, who may offer a proper amendment or motion and who controls the time for debate thereon.''

Clearly, the vote on the previous question on a rule does have substantive policy implications. It is one of the only available tools for those who oppose the Republican majority's agenda and allows those with alternative views the opportunity to offer an alternative plan.

Mr. BURGESS. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. MCGOVERN. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 and clause 9 of rule XX, this 15-minute vote on ordering the previous question will be followed by 5-minute votes on adopting House Resolution 70, if ordered, and agreeing to the Speaker's approval of the Journal.

The vote was taken by electronic device, and there were—yeas 242, nays 176, not voting 15, as follows:

[Roll No. 54]

YEAS—242

| | | |
|---|---|---|
| Abraham | Frelinghuysen | McHenry |
| Aderholt | Garrett | McKinley |
| Allen | Gibbs | McMorris Rodgers |
| Amash | Gibson | McSally |
| Amodei | Gohmert | Meadows |
| Babin | Goodlatte | Meehan |
| Barletta | Gosar | Messer |
| Barr | Gowdy | Mica |
| Barton | Granger | Miller (FL) |
| Benishek | Graves (GA) | Miller (MI) |
| Bilirakis | Graves (LA) | Moolenaar |
| Bishop (MI) | Graves (MO) | Mooney (WV) |
| Bishop (UT) | Griffith | Mullin |
| Black | Grothman | Mulvaney |
| Blackburn | Guinta | Murphy (PA) |
| Blum | Guthrie | Neugebauer |
| Bost | Hanna | Newhouse |
| Boustany | Hardy | Noem |
| Brady (TX) | Harper | Nugent |
| Brat | Harris | Nunes |
| Bridenstine | Hartzler | Olson |
| Brooks (AL) | Heck (NV) | Palazzo |
| Brooks (IN) | Hensarling | Palmer |
| Buchanan | Herrera Beutler | Paulsen |
| Buck | Hice (GA) | Pearce |
| Bucshon | Hill | Perry |
| Burgess | Holding | Pittenger |
| Byrne | Hudson | Pitts |
| Calvert | Huelskamp | Poe (TX) |
| Carter (GA) | Huizenga (MI) | Poliquin |
| Carter (TX) | Hultgren | Pompeo |
| Chabot | Hunter | Posey |
| Chaffetz | Hurd (TX) | Price (GA) |
| Clawson (FL) | Hurt (VA) | Ratcliffe |
| Coffman | Issa | Reed |
| Cole | Jenkins (KS) | Reichert |
| Collins (GA) | Jenkins (WV) | Renacci |
| Collins (NY) | Johnson (OH) | Ribble |
| Comstock | Johnson, Sam | Rice (SC) |
| Conaway | Jolly | Rigell |
| Cook | Jones | Roby |
| Costello (PA) | Jordan | Rogers (AL) |
| Cramer | Joyce | Rogers (KY) |
| Crawford | Katko | Rohrabacher |
| Crenshaw | Kelly (PA) | Rokita |
| Culberson | King (IA) | Rooney (FL) |
| Curbelo (FL) | King (NY) | Ros-Lehtinen |
| Davis, Rodney | Kinzinger (IL) | Roskam |
| Denham | Kline | Ross |
| Dent | Knight | Rothfus |
| DeSantis | Labrador | Rouzer |
| DesJarlais | LaMalfa | Royce |
| Diaz-Balart | Lamborn | Russell |
| Dold | Lance | Ryan (WI) |
| Duffy | Latta | Salmon |
| Duncan (SC) | LoBiondo | Sanford |
| Duncan (TN) | Long | Scalise |
| Ellmers | Loudermilk | Schock |
| Emmer | Love | Schweikert |
| Farenthold | Lucas | Scott, Austin |
| Fincher | Luetkemeyer | Sensenbrenner |
| Fitzpatrick | Lummis | Sessions |
| Fleischmann | MacArthur | Shimkus |
| Fleming | Marchant | Shuster |
| Flores | Marino | Simpson |
| Forbes | Massie | Smith (MO) |
| Fortenberry | McCarthy | Smith (NE) |
| Foxx | McCaul | Smith (NJ) |
| Franks (AZ) | McClintock | |

Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—176

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle (PA)
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle (PA)
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Larsen (WA)
Larson (CT)
Lawrence
Levin
Lewis
Lieu (CA)
Lipinski
Loebsack
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Yarmuth

NOT VOTING—15

Cárdenas
Chu (CA)
Davis, Danny
Duckworth
Gutiérrez
Langevin
Lee
Lofgren
Nunnelee
Roe (TN)
Rush
Smith (WA)
Tsongas
Wilson (FL)
Young (AK)

□ 1405

Messrs. CARSON of Indiana, CUELLAR, Ms. HAHN, Mr. COOPER, Mrs. TORRES, Ms. LORETTA SANCHEZ of California, and Mr. JOHNSON of Georgia changed their vote from ''yea'' to ''nay.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. MCGOVERN. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This will be a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 242, noes 178, not voting 13, as follows:

[Roll No. 55]

AYES—242

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emmer
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice (GA)
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Katko
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price (GA)
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (IA)
Young (IN)
Zeldin
Zinke

NOES—178

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle (PA)
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle (PA)
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Larsen (WA)
Larson (CT)
Lawrence
Levin
Lewis
Lieu (CA)
Lipinski
Loebsack
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Yarmuth

NOT VOTING—13

Chu (CA)
Duckworth
Gutiérrez
Langevin
Lee
Lofgren
Nunnelee
Roe (TN)
Rush
Smith (WA)
Tsongas
Wilson (FL)
Young (AK)

□ 1413

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

## THE JOURNAL

The SPEAKER pro tempore. The unfinished business is the question on agreeing to the Speaker's approval of the Journal, on which the yeas and nays were ordered.

The question is on the Speaker's approval of the Journal.

This will be a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 267, nays 148, answered ''present'' 1, not voting 17, as follows:

[Roll No. 56]

YEAS—267

Abraham
Aderholt
Allen
Amodei
Ashford
Babin
Barletta
Barr
Barton
Beatty
Becerra
Beyer
Bilirakis
Bishop (GA)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Buchanan
Bustos
Butterfield
Byrne
Calvert
Capps
Cárdenas
Carney
Carson (IN)
Carter (TX)
Castro (TX)
Chabot
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Coffman
Cohen
Cole
Collins (NY)
Comstock
Conaway
Cook
Cooper
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Davis (CA)
Davis, Danny
DeGette
DeLauro
DelBene
Dent
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Doggett
Doyle (PA)
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Emmer
Engel
Eshoo
Esty
Fattah
Fincher
Fleischmann
Fleming
Forbes
Fortenberry
Foster
Frankel (FL)
Franks (AZ)
Frelinghuysen
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (LA)
Grayson
Grothman
Guinta
Guthrie
Hahn
Hardy
Harper
Harris
Heck (WA)
Hensarling
Higgins
Himes
Hinojosa
Huelskamp
Huffman
Hultgren
Hurd (TX)
Hurt (VA)
Issa
Jeffries
Johnson (GA)
Johnson, E. B.
Johnson, Sam
Jolly
Kaptur
Keating
Kelly (IL)
Kelly (PA)
Kennedy
Kildee
King (IA)
King (NY)
Kline
Knight
Kuster
Labrador
LaMalfa
Lamborn
Larsen (WA)
Latta
Lawrence
Levin
Lieu (CA)
Lipinski
Loebsack
Long
Lowenthal
Lucas
Luetkemeyer
Lujan Grisham (NM)
Lummis
MacArthur
Maloney, Carolyn
Marino
Massie
McCarthy
McCaul
McClintock
McCollum
McHenry
McKinley
McMorris Rodgers
McNerney
Meadows
Meeks
Meng
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Moulton
Mullin
Murphy (PA)
Nadler
Napolitano
Neugebauer
Newhouse
Noem
Nunes
O'Rourke
Olson
Palmer
Pascrell
Payne
Pelosi
Perlmutter
Perry
Pingree
Pitts
Pocan
Polis
Pompeo
Posey
Price (NC)
Quigley
Ribble
Richmond
Roby
Rogers (KY)
Rohrabacher
Rokita
Roskam
Ross
Rothfus
Royce
Ruiz
Ruppersberger
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schiff
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Sessions
Sherman
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Speier
Stefanik
Stewart
Stivers
Stutzman
Takai
Takano
Thornberry
Titus
Tonko
Trott
Upton
Van Hollen
Vela
Wagner
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Webster (FL)
Welch
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Yarmuth
Yoho
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—148

Adams
Aguilar
Amash
Bass
Benishek
Bera
Bishop (MI)
Bost
Boyle (PA)
Brady (PA)
Brownley (CA)
Buck
Bucshon
Burgess
Capuano
Carter (GA)
Cartwright
Castor (FL)
Clawson (FL)
Clyburn
Collins (GA)
Connolly
Conyers
Costa
Costello (PA)
Cummings
Curbelo (FL)
Davis, Rodney
DeFazio
Delaney
Denham
DeSantis
Dingell
Dold
Duffy
Ellmers
Farenthold
Farr
Fitzpatrick
Flores
Foxx
Fudge
Gibson
Graves (GA)
Graves (MO)
Green, Al
Green, Gene
Hanna
Hartzler
Hastings
Heck (NV)
Herrera Beutler
Hice (GA)
Hill
Holding
Honda
Hoyer
Hudson
Huizenga (MI)
Hunter
Israel
Jackson Lee
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Jones
Jordan
Joyce
Katko
Kilmer
Kind
Kinzinger (IL)
Kirkpatrick
Lance
Larson (CT)
Lewis
LoBiondo
Loudermilk
Love
Lowey
Luján, Ben Ray (NM)
Lynch
Maloney, Sean
Marchant
Matsui
McDermott
McGovern
McSally
Meehan
Mooney (WV)
Moore
Mulvaney
Murphy (FL)
Neal
Nolan
Norcross
Nugent
Palazzo
Pallone
Paulsen
Pearce
Peters
Peterson
Pittenger
Poe (TX)
Poliquin
Price (GA)
Ratcliffe
Reed
Reichert
Renacci
Rice (NY)
Rice (SC)
Rigell
Rogers (AL)
Rooney (FL)
Ros-Lehtinen
Rouzer
Roybal-Allard
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schock
Schrader
Serrano
Sewell (AL)
Sires
Slaughter
Swalwell (CA)
Thompson (CA)
Thompson (MS)
Thompson (PA)
Tiberi
Tipton
Torres
Turner
Valadao
Vargas
Veasey
Velázquez
Visclosky
Walberg
Weber (TX)
Wenstrup
Woodall
Yoder

ANSWERED ''PRESENT''—1

Gohmert

NOT VOTING—17

Chaffetz
Chu (CA)
Duckworth
Griffith
Grijalva
Gutiérrez
Langevin
Lee
Lofgren
Nunnelee
Rangel
Roe (TN)
Rush
Smith (WA)
Tsongas
Wilson (FL)
Young (AK)

□ 1420

So the Journal was approved.

The result of the vote was announced as above recorded.

PERSONAL EXPLANATION

Mr. ROE of Tennessee. Mr. Speaker, I was unable to vote today because of a serious illness in my family. Had I been present, I would have voted: Roll Call #54—Yea; Roll Call #55—Yea; Roll Call #56—Yea.

## REPEAL OF THE PATIENT PROTECTION AND AFFORDABLE CARE ACT

Mr. PITTS. Mr. Speaker, pursuant to House Resolution 70, I call up the bill (H.R. 596) to repeal the Patient Protection and Affordable Care Act and health care-related provisions in the Health Care and Education Reconciliation Act of 2010, and for other purposes, as amended, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore (Mr. SIMPSON). Pursuant to House Resolution 70, the amendment printed in House Report 114–13 is adopted, and the bill, as amended, is considered read.

The text of the bill, as amended, is as follows:

H.R. 596

*Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,*

**SECTION 1. REPEAL OF PPACA AND HEALTH CARE-RELATED PROVISIONS IN THE HEALTH CARE AND EDUCATION RECONCILIATION ACT OF 2010.**

(a) PPACA.—Effective on the date that is 180 days after the date of the enactment of this Act, the Patient Protection and Affordable Care Act (Public Law 111–148) is repealed, and the provisions of law amended or repealed by such Act are restored or revived as if such Act had not been enacted.

(b) HEALTH CARE-RELATED PROVISIONS IN THE HEALTH CARE AND EDUCATION RECONCILIATION ACT OF 2010.—Effective on the date that is 180 days after the date of the enactment of this Act, title I and subtitle B of title II of the Health Care and Education Reconciliation Act of 2010 (Public Law 111–152) are repealed, and the provisions of law amended or repealed by such title or subtitle, respectively, are restored or revived as if such title and subtitle had not been enacted.

**SEC. 2. BUDGETARY EFFECTS.**

The budgetary effects of this Act shall not be entered on either PAYGO scorecard maintained pursuant to section 4(d) of the Statutory Pay-As-You-Go Act of 2010.

**SEC. 3. REPORTING REPLACEMENT LEGISLATION.**

The Committee on Education and the Workforce, the Committee on Energy and Commerce, the Committee on the Judiciary, and the Committee on Ways and Means of the House of Representatives shall each report to the House of Representatives legislation proposing changes to existing law within each committee's jurisdiction with provisions that—

(1) foster economic growth and private sector job creation by eliminating job-killing policies and regulations;

(2) lower health care premiums through increased competition and choice;

(3) preserve a patient's ability to keep his or her health plan if he or she likes it;

(4) provide people with pre-existing conditions access to affordable health coverage;

(5) reform the medical liability system to reduce unnecessary and wasteful health care spending;

(6) increase the number of insured Americans;

(7) protect the doctor-patient relationship;

(8) provide the States greater flexibility to administer Medicaid programs while reducing costs under such programs;

(9) expand incentives to encourage personal responsibility for health care coverage and costs;

(10) prohibit taxpayer funding of abortions and provide conscience protections for health care providers;

(11) eliminate duplicative government programs and wasteful spending; or

(12) do not accelerate the growth of entitlement programs or increase the tax burden on Americans.

The SPEAKER pro tempore. The bill shall be debatable for 90 minutes, equally divided and controlled by the chairs and ranking minority members of the Committees on Education and the Workforce, Energy and Commerce, and Ways and Means.

The gentleman from Alabama (Mr. BYRNE), the gentleman from Virginia (Mr. SCOTT), the gentleman from Pennsylvania (Mr. PITTS), the gentleman

from New Jersey (Mr. PALLONE), the gentleman from Texas (Mr. BRADY), and the gentleman from Michigan (Mr. LEVIN) each will control 15 minutes.

The Chair recognizes the gentleman from Pennsylvania.

GENERAL LEAVE

Mr. PITTS. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and to include extraneous material on H.R. 596.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Pennsylvania?

There was no objection.

Mr. PITTS. Mr. Speaker, I yield myself such time as I may consume.

I rise today in support of H.R. 596, sponsored by BRADLEY BYRNE of Alabama.

Today, the House acts, once again, to repeal ObamaCare. Millions of Americans continue to feel the harmful effects of the President's health care law in almost every corner of their lives.

Recently, I heard from a public schoolteacher who told me that many of our local schools are having trouble finding long-term substitutes for specialty classes such as art, music, and physical education. Under ObamaCare's new definition of full-time work, substitute teachers are strictly limited to 3½ days a week. Children are simply missing out on these important classes or are being pushed into packed, combined classes. Many of our local schools have already had to outsource cafeteria workers and other part-time positions. School districts are spending too much time worrying about Federal mandates rather than the best way to teach children.

Republicans have no shortage of good ideas with which to replace the President's health care law. Last session, there were hundreds of bills introduced to reform health care with more affordable choices. We will hear many of these good ideas and other reasons for repeal today, and I look forward to hearing from my colleagues. The American people continue to oppose the President's health care law, and, today, House Republicans will stand with them again.

I reserve the balance of my time.

Mr. PALLONE. Mr. Speaker, I yield myself such time as I may consume.

I have great respect for my colleague from Pennsylvania, but I just think more and more what I am hearing from my Republican colleagues is what I call ''fantasy land.'' This isn't the America we know.

In the past few years, since the Affordable Care Act has taken effect, so many Americans who didn't have health insurance now have it. Something like 19 million Americans who were uninsured now have health insurance. Millions of young adults have health insurance because they are able to stay on their parents' plans. There are 129 million Americans who can no longer be denied health insurance for having preexisting conditions. Seniors have saved so much money on the prescription drugs. I could go on and on, but I don't need to.

Americans like the Affordable Care Act. It is working. We cannot go back. We cannot turn over the health care system again to the insurance companies, which are going to have skeletal plans, not provide good benefits, raise premiums to whatever they want, and not actually have any help from the Federal Government. When you repeal ObamaCare, or the Affordable Care Act, you are basically giving Americans a tax increase because they are not going to be able to get the tax credits or the subsidies that help them pay for their premiums and make those premiums affordable. This is working. This is happening. This isn't something we can just throw away.

The Republicans say—what did my colleagues say?—that the GOP has no shortage of good ideas. What ideas? Four years ago, when they first took the majority in this House, the House Republicans passed a similar repeal bill and instructed the committees to come back with alternatives. It never happened, and it will never happen again. They might have a few good ideas here and there, but they have never come up with a comprehensive plan to provide Americans with low-cost health insurance and to insure most Americans.

That is what we have done with the Affordable Care Act. We are not going to go back. We are not going to repeal. This is fantasy. The President will never sign it, and I just wish that they would stop wasting our time and would get to things that are actually going to make a difference to the American people.

I reserve the balance of my time.

Mr. PITTS. Mr. Speaker, I am pleased to yield 2 minutes to the gentlewoman from Tennessee (Mrs. BLACKBURN), the vice chair of the Energy and Commerce Committee.

Mrs. BLACKBURN. Thank you, Mr. Chairman.

Mr. Speaker, talk about fantasy. I think that it finds its root in this comment from Jonathan Gruber, who was the architect of ObamaCare:

> If you had a law which said that healthy people are going to pay and sick people would get money, it would never have passed. Lack of transparency is a huge political advantage. Call it the stupidity of the American voter or whatever, but that was critical for the thing to pass.

Mr. Speaker, that is the fantasy on which this was based. It does not work. It has driven up costs. Indeed, we know that 70 of our Democrat colleagues have crossed the aisle and have voted with us to repeal different provisions of this law because it does not work. It is not making insurance more affordable. It is costing more.

One of my constituents is Emily. Her insurance was $57 a month before ObamaCare. After ObamaCare, with the subsidies, it was $373 a month. Another constituent, Jimmy, is saying he can't afford to offer the benefits now because of the way ObamaCare has driven up the cost of insurance. It is offer insurance or close his business. Those are the choices. That is why we are here. It does not work, and it is time to get this law off the books.

Yes, there are lots of ideas. Mr. Speaker, just for my colleagues to know, at Energy and Commerce, we have over 100 bills that have been filed that would repeal different provisions of this law, and we are doing it because the American people have said, We are tired of this. It is damaging health care. It is returning us to the day of the old major medical when you had higher premiums, when you had higher out-of-pocket costs, and when you had fewer benefits.

□ 1430

Now, our colleagues across the aisle, Mr. Speaker, may say that those are not suitable plans, but guess what? That is what ObamaCare plans are becoming. It is time to get it off the books and restore choice and option for the American people.

Mr. PALLONE. Mr. Speaker, I yield 1 minute to the gentleman from Maryland (Mr. HOYER), our Democratic whip.

Mr. HOYER. This bill is about restoring choice not to have insurance, not to have the assurance that if you get sick, you are going to be able to not go bankrupt. That is what this bill is about.

Mr. Speaker, this House is about to hold its 56th vote to undermine or repeal the Affordable Care Act, which came to us, by the way, by route of The Heritage Foundation, as I think probably most of you recall.

But this vote is different than the previously full repeal votes for one significant reason. Since the last repeal vote, the health insurance marketplace has opened and is working. Over 9½ million Americans have signed up through these marketplaces for health care coverage for 2015 so far. That means that with today's vote, Republicans are choosing to take away health care coverage from millions of Americans.

This vote will also remove patient protections and cost savings reforms. To make matters worse, today's vote would also defund the bipartisan popular CHIP program that helps States cover uninsured children. So it abandons children as well.

In 2011, when House Republicans voted to repeal the Affordable Care Act, they included language that said they would replace it with something else; and I say to my friend, Mr. PITTS, Mr. Speaker, notwithstanding that, they have not done so. However, they still have failed to give us an alternative.

I urge my colleagues to vote ''no.''

Mr. PITTS. Mr. Speaker, I am pleased to yield 2 minutes to the gentlelady from North Carolina (Mrs. ELLMERS), a member of the Subcommittee on Health.

Mrs. ELLMERS. Mr. Speaker, I thank the chairman for this very important discussion that we are having today.

Yes, I rise in support of H.R. 596, which aims to repeal the Patient Protection and Affordable Care Act, otherwise known as ObamaCare. ObamaCare has been a costly disaster to my constituents in the Second District of North Carolina and across this country.

I have heard numerous stories, ranging from young women to senior citizens, and they all touch on the same underlying problem: ObamaCare is unaffordable and results in severe consequences.

As a nurse, I know that repeal alone is not enough because the American people need high-quality, patient-centered health care. I am so proud to be standing with my Republican colleagues and many of the Democrats that we serve with who are now going to say to the American people, not only are we against this awful law, but we are for good, patient-centered health care, and we are going to provide that plan of action for the American people to see.

We need to stand with the American people, who overwhelmingly disapprove of ObamaCare.

Mr. PALLONE. Mr. Speaker, I yield 1 minute to the gentleman from Texas (Mr. GENE GREEN), ranking member of the Subcommittee on Health.

Mr. GENE GREEN of Texas. Mr. Speaker, I rise today to express my staunch opposition to H.R. 596, legislation to repeal the Affordable Care Act.

Yesterday was Groundhog Day, yet it is today's vote that really feels familiar. The House has now attempted to repeal or undermine the Affordable Care Act for 56 times. It is disappointing that the Republican leadership continues its partisan campaign to undermine the ACA and create barriers for millions of uninsured Americans having access to health insurance.

Based on the latest estimate from the Congressional Budget Office, 19 million Americans—and 20,000 in our Houston area district—would lose their health insurance this year if the ACA is repealed. These are people who would be without coverage today if it were not for the ACA.

H.R. 596 would take away critical benefits and health care coverage for hardworking families. Not only that, this bill would increase the deficit, repeal reforms that help slow the growth in health care costs, and undo basic protections that provide security for the middle class.

It is long past time to stop playing political games on health reform. We need to work to enact reforms that improve and build on the ACA for the good of the American people.

Mr. PITTS. Mr. Speaker, a lot of those people are on Medicaid and can't even see a doctor.

I am pleased to yield 2 minutes to an outstanding Member from Pennsylvania (Mr. ROTHFUS).

Mr. ROTHFUS. Mr. Speaker, I have sat here today listening both to the rule debate and the debate we are having right now, to my colleagues on the other side of the aisle who ridicule our relief efforts and joke about the number of votes that we have taken to repeal ObamaCare.

Mr. Speaker, my friends across the aisle may think this is funny, but it is no joke to the folks I represent back in Pennsylvania. It is not a joke to the mother who walked into a pharmacy and found out a drug that cost $40 under her old plan, the one that the President promised she could keep, now costs $700 because of the skyrocketing deductibles that she has. It isn't funny to people who have received a cancelation notice in the mail and have been forced onto plans with ridiculous out-of-pocket costs. A woman I spoke to who can't go to a doctor she has seen for 20 years definitely isn't amused by ObamaCare.

There wasn't one single Republican who voted to create the train wreck that is known as ObamaCare, and we made our opposition abundantly clear to voters before we went to the ballots last November.

I urge my colleagues to give Americans what they asked for and support this legislation. Do it for every American who was lied to about the real cost of this law. Do it for the millions who have been hurt by this law, and let's find a better way forward.

Mr. PALLONE. Mr. Speaker, I yield 1 minute to the gentlewoman from California (Mrs. CAPPS).

Mrs. CAPPS. Mr. Speaker, I thank my colleague for yielding.

It is not a joke. It is disheartening that here we are for the 56th time again considering a bill to repeal the Affordable Care Act.

This time it is different. This time repeal will do more than simply take away the important consumer protections that hold insurance companies accountable and make sure everyone is insurable.

This time it will actually take health insurance away from millions of families, plans they have both chosen and paid for. This time it will hit families where it hurts, raising their costs by erasing the benefits that make their insurance more affordable, as well as raising Medicare prescription drug costs.

This time small businesses who have received tax credits to make insurance affordable will lose them, leaving employees without coverage and few, if any, affordable options.

We all know that the Affordable Care Act is not perfect and there are clear areas where we could work together to build on and improve this law, but today's repeal vote would turn back time, reverting back to a system everyone agreed was broken. The American people deserve better than that from us. I ask for a ''no'' vote.

Mr. PITTS. Mr. Speaker, at this time, I am pleased to yield 2 minutes to the gentleman from Michigan (Mr. MOOLENAAR).

Mr. MOOLENAAR. Mr. Speaker, this is my first speech on the House floor, and today I am here speaking because we are voting to repeal the unpopular and unaffordable Affordable Care Act.

Our Nation has over $18 trillion in debt, and this law adds to it by spending more money we don't have. The cost of coverage subsidies alone is expected to quadruple over the next 10 years, according to the CBO.

The Federal Government is picking up the tab for Medicaid expansion, and it will eventually pass the enormous financial burden on to State budgets. In the last decade alone, Michigan has gone from one in eight residents enrolled in Medicaid to approaching one in four enrolled in this unsustainable government program.

What is more, this law has the effect of throwing a wet blanket on the economy. Small business owners say rising health insurance costs are their biggest concern, and the health insurance tax costs them $688 per employee. School districts have cut the hours of part-time employees, and businesses can't afford to hire more employees because of the costs of mandated coverage. We have even seen colleges and universities cut back hours for student workers, and now they earn less money to pay for their classes.

Individuals, families, and businesses all face continuing uncertainty over health care coverage and its costs. The administration, alone, has made 28 changes to the law, including delaying mandates, changing verification requirements, pushing back enrollment dates because the Web site wasn't ready, and expanding waivers to deal with the cancelation of millions of health care plans.

Five years after it was signed, the President's health care law is still changing, and last November the Department of Health and Human Services proposed 35 more revisions. It is time to permanently repeal the excessive spending, the economic pain, and the continuing uncertainty caused by this law and replace it with patient-centered alternatives with lower premiums that allow individuals to choose the coverage they want. It is time to empower patients to take control of their health care choices.

Mr. PALLONE. Mr. Speaker, I yield 1 minute to the gentlewoman from Illinois (Ms. SCHAKOWSKY).

Ms. SCHAKOWSKY. Mr. Speaker, here is what my constituent Laurel wrote me from Wilmette, Illinois:

Thank you. I am tired of all this belly-aching about health care, so I want to share our story. We are small business owners and have a very expensive policy for our two employees, but we have been stuck with that approach because my husband and one of our kids has asthma and are therefore uninsurable.

Our health care broker just sent us all the health care information for the next year, and our yearly costs will go down if we switch to one of the ObamaCare options in

Illinois. Although we don't qualify for subsidies, it is cheaper in all scenarios. In fact, if our usage is similar to what it was the last 3 years, our costs go down 20 percent. The policy is better. Everyone in our family is now insurable. My kids who are still under 21 may be able to get dental insurance, and the out-of-pocket maximum is lowered if someone really gets sick. Wow.

She says:

These savings don't include the benefit of the no-deductible checkups and preventive drug benefits, which have already saved us $1800 this year. Our health care broker and his partner are signing up for ObamaCare options themselves.

She says:

I would like to know what all those Republican grandstanders who have blocked action at every turn and are now wringing their hands have done for me lately.

Mr. PITTS. Mr. Speaker, may I inquire of the time remaining?

The SPEAKER pro tempore. The gentleman from Pennsylvania has 6½ minutes remaining. The gentleman from New Jersey has 9 minutes remaining.

Mr. PITTS. Mr. Speaker, at this time, I yield 2 minutes to the gentleman from Alabama (Mr. PALMER).

Mr. PALMER. Mr. Speaker, I rise in strong support of H.R. 596, a bill that would fully repeal the Affordable Care Act offered by Mr. BYRNE of Alabama.

Right now, Americans are being forced to buy a government product or pay a penalty. The Constitution mandates freedom, not the purchase of health insurance or any other product.

We all remember this promise: ''If you like your health care plan, you can keep it.'' In 2013, a reported 4.7 million people in 32 States lost their health insurance when their plans were canceled. That is just the beginning. The Congressional Budget Office projects that 7 million more Americans will lose their health-sponsored coverage in 2016.

Americans were promised that with ObamaCare their premiums would be lower. Instead, premiums have skyrocketed. Some groups have seen their premiums increase by 78 percent. At the same time, household incomes have gone down.

Today, 4 years after the passage of ObamaCare, there are still more than 41 million people without health coverage. There are millions of people out of full-time work and millions more forced into part-time jobs.

ObamaCare must be repealed and replaced. Americans should be allowed to buy the health insurance they want and need. We need market competition between health insurance providers, and people should be able to buy their health insurance across State lines. This would result in more choices for plans and at lower costs.

We need portability so that when a person changes or loses a job, they don't lose their health insurance. We need innovative reforms for Medicaid and reforms that create incentives for controlling costs, promoting healthier lifestyle choices, and reforms that treat people with dignity.

H.R. 596 starts the process of reforming our health care system by repealing ObamaCare. This is the first step toward true affordable health care that puts people back in charge of their health care choices.

□ 1445

Mr. PALLONE. Mr. Speaker, I yield 1 minute to the gentleman from North Carolina (Mr. BUTTERFIELD).

Mr. BUTTERFIELD. Mr. Speaker, I rise in strong opposition to this bill.

This vote today marks the 56th attempt by House Republicans to dismantle the ACA. If enacted, more than 19 million people who were previously uninsured would lose tax credits and subsidies that make insurance affordable.

Members who voted for this bill are telling the American people that access to affordable, quality health care should be reserved for only those who have the means to afford it. Let me just tell you a very brief story about a man named Carlton Stevens, Jr., from my hometown of Wilson, North Carolina.

Last year was a very challenging year for the Stevens family of five as they found themselves uninsured. As Mr. Stevens and his wife found themselves between jobs and in a new town, they prioritized finding health coverage for their family.

Mr. Stevens visited the Federal Health Insurance Marketplace to search for coverage and was surprised and elated to know that he and his family qualified for a credit of approximately $800. He and his wife were able to purchase insurance for his entire family for less than $200.

Mr. Speaker, this bill would deprive families like the Stevens family of affordable health care in a time of need. I wonder why my Republican friends are doing this again.

Mr. PITTS. Mr. Speaker, the number one health care concern of the American people is cost. The President promised American families that they would see a $2,500 reduction in premiums. President Obama was wrong.

According to one study from the Manhattan Institute, American families are seeing premium increases on an average of 49 percent.

At this time, I am pleased to yield 1 minute to the gentleman from Arkansas (Mr. HILL).

Mr. HILL. Thank you, Mr. Chairman, for yielding.

Mr. Speaker, I rise today in support of H.R. 596 which repeals the President's flawed health care law in its entirety and provides the Congress with a clean slate to implement the real, patient-centered health care reform that this Nation needs and deserves.

The majority of Americans are opposed to ObamaCare and its harmful intended or unintended side effects which have increased costs, decreased health care access, and lost jobs, work hours, and wages for many of our hard-working families.

This is an opportunity to recognize the flaws of mandates and a top-down approach to health care and allows us to finally consider ideas that will result in a health care system that empowers and encourages individuals to take control of and responsibility for their health care through the use of tools like health savings accounts and incentives that reward healthy behaviors.

We need targeted, transparent, well thought out reforms that acknowledge the complexity of our health care system, and with the right kind of reforms, we can get the right kind of health care that is affordable and accessible.

Mr. PALLONE. Mr. Speaker, I yield 1 minute to the gentlewoman from Florida (Ms. CASTOR).

Ms. CASTOR of Florida. Mr. Speaker, the Affordable Care Act is a great help to American families.

Most Americans have health insurance through their employer. The ACA provides important consumer protections for those families. They cannot end your policy if you get sick, your copayments and premiums have to go to health services and not to profits for insurance companies, and kids aged 26 or younger can stay on your own health insurance plan.

For Americans on Medicare, the ACA is saving you money. In fact, since passage of the ACA, more than 7.9 million people who rely on Medicare have saved almost $10 billion on prescription drugs. You have new wellness checkups, and the Affordable Care Act extended the life of the Medicare trust fund for more than a decade.

Finally, before the ACA, many Americans were barred from health insurance because of a previous diagnosis of cancer, diabetes, or something else. The Affordable Care Act has been a lifeline for them because it ended discrimination and created new marketplaces for Americans to shop for the best plan for their families.

In Florida alone, my home State, 1.5 million Floridians have already signed up for a plan in the marketplace in the upcoming year. That is 1.5 million Floridians.

Please, colleagues, don't take this away. Vote ''no'' on this bill.

Mr. PITTS. Mr. Speaker, at this time, I am pleased to yield 2 minutes to the gentleman from Georgia (Mr. JODY B. HICE).

Mr. JODY B. HICE of Georgia. Mr. Speaker, I thank the gentleman for yielding time, and I rise in strong support of H.R. 596, the legislation that will repeal ObamaCare.

Mr. Speaker, since its passage in 2010, ObamaCare has put us on the path toward a full government takeover of the health care industry. The American people were sold on this by false promises that ObamaCare would lower the costs and increase access to care.

The first and most egregious false promise came when the President himself said:

If you like your health care plan, you'll be able to keep your health care plan, period. No one will take it away, no matter what.

In reality, some 5 million Americans have lost their plans since that time and have suffered needlessly.

Furthermore, Mr. Speaker, we were promised that premiums would go down; instead, premiums in the individual marketplace have increased by an average of 49 percent across the country. This is one of the main reasons that only 7 percent of Americans believe that ObamaCare will actually reduce the cost of care.

ObamaCare has also been a drag on the economy. The nonpartisan Congressional Budget Office has estimated that this law will reduce the full-time workforce by some 2.5 million people. The American Action Forum reported that small business wages have already decreased by $22.6 billion a year.

Mr. Speaker, with its $1 trillion in new taxes and $2 trillion in new entitlement spending, we must repeal ObamaCare, and H.R. 596 does exactly that.

Additionally, we must replace this law with patient-centered, free market solutions to the problems that exist in our health care system. H.R. 596 takes the important step of directing the committees of jurisdiction to develop legislation that will do just that.

I ask all of my colleagues to support H.R. 596.

Mr. PALLONE. Mr. Speaker, I yield 1 minute to the gentlewoman from New York (Ms. CLARKE).

Ms. CLARKE of New York. Mr. Speaker, I rise in opposition to H.R. 596, a bill that will completely repeal the Affordable Care Act, which was signed into law in 2010 and was declared constitutionally sound by the U.S. Supreme Court.

The Affordable Care Act extends health care coverage to all Americans, regardless of their gender, health condition, or ability to pay.

Unlike other Republican repeal efforts, H.R. 596 does have a bit of a new twist. This legislation instructs the appropriate committees to draft a Republican alternative to the Affordable Care Act and directs them to include provisions that will provide people with preexisting conditions access to affordable health coverage and provisions designed to increase the number of insured Americans.

I am not sure where the Republicans have been over the past 5 years, but those two provisions are already in the Affordable Care Act which is already the law of the land. In fact, the number of uninsured Americans has steadily decreased under the Affordable Care Act to a record low of 13.4 percent by the second quarter of 2014, and Gallup's quarterly trends projected that the uninsured rate will continue to drop over all age groups.

The Affordable Care Act is good law. It should not be repealed, and that is why I vehemently oppose H.R. 596. It is another very cynical attempt to take our Nation backward.

The SPEAKER pro tempore. The Chair would inform the managers that the gentleman from Pennsylvania (Mr. PITTS) has 1 minute remaining. The gentleman from New Jersey (Mr. PALLONE) has 6 minutes remaining.

Mr. PITTS. Mr. Speaker, I reserve the balance of my time.

Mr. PALLONE. Mr. Speaker, I yield 1 minute to the gentleman from Oregon (Mr. SCHRADER).

Mr. SCHRADER. Mr. Speaker, I have to say that I am very surprised to have to be here today. I thought after millions of Americans said loud and clear this past November that they wanted us to work together and find common ground, we could put divisive bills like this behind us.

When I speak to voters in my district in Oregon, none of them ask me to raise taxes on the middle class which, effectively, this bill does. None of them have asked me to let health insurance plans discriminate against women or those with preexisting conditions, something this bill does. I don't know any seniors that want to pay more for prescription drugs, something that will happen if this bill becomes law.

Nobody I speak with wants the most vulnerable children to go without health insurance which will happen if this bill goes into effect, ending bipartisan support for the Children's Health Insurance Program.

Nobody I know wants to see the deficit grow, to pass on more debt to our future generations, or reduce the solvency of the Medicare trust fund—again, something that will happen if this bill becomes law.

Mr. Speaker, I don't think my constituents are alone in this. Americans want us to stop wasting time and come together and put this partisan nonsense behind us.

I urge my colleagues to vote ''no'' on this bill and get our priorities in line.

Mr. PITTS. Mr. Speaker, I continue to reserve the balance of my time.

Mr. PALLONE. Mr. Speaker, I yield 1 minute to my colleague from Massachusetts (Mr. KENNEDY).

Mr. KENNEDY. Mr. Speaker, I rise today in proud support of the Affordable Care Act and the millions of Americans that have received coverage under this law.

I rise today in support of the idea that in this country, the most powerful in the world, every citizen deserves access to quality affordable health care, and I rise today on behalf of the millions of children who get health insurance through the Children's Health Insurance Program which is also at risk today.

Mr. Speaker, one in five children today are on food stamps, 16 million kids under the age of 18. For the first time in 50 years, the majority of U.S. public school students live in poverty. CHIP was designed in the 1990s to try to address these kids and make sure that they had access to health care. Since then, the uninsured rate for children has dropped from 14 percent to 7 percent.

CHIP funding expires later this year and is included in this bill. More than 8 million children will lose access to health insurance. That is 150,000 children in Massachusetts alone.

Mr. Speaker, I ask my colleagues to hear those 8 million voices and vote ''no'' on this bill.

Mr. PITTS. Mr. Speaker, I continue to reserve the balance of my time.

Mr. PALLONE. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. CÁRDENAS).

Mr. CÁRDENAS. Mr. Speaker, I rise today to strongly oppose H.R. 596, a bill to deny access to health care to tens of thousands of Americans with preexisting conditions.

Americans should know that these same fear-mongering comments were made when Congress created Medicare. Today, we have millions of grandmothers and grandfathers who would not be alive today had Congress abandoned this critical lifesaving law.

I am proud to have supported the Affordable Care Act last year in the San Fernando Valley which I represent. My office helped experts sign up over a thousand families. Family after family sat there, nervous at first, but after realizing that now their family could afford to see a doctor, I personally witnessed tears of joy.

Republicans need to stop playing games with people's lives. The Affordable Care Act saves lives. ObamaCare never existed. ObamaCare is just a form of a lie. Americans need to learn that the Affordable Care Act is not what people call ObamaCare.

Millions of people will be alive today and tomorrow, and we just have to look at history in Congress to know that fear-mongering should not intimidate elected officials.

Mr. PITTS. Mr. Speaker, I continue to reserve the balance of my time.

Mr. PALLONE. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. THOMPSON).

Mr. THOMPSON of California. I thank the gentleman for yielding.

Mr. Speaker, it is said that insanity is doing something over and over again and expecting a different result. Well, here we go again, the 56th bill to repeal or undermine the Affordable Care Act.

We all understand that the majority needs to give their freshmen Members an opportunity to say that they voted to repeal ObamaCare, so let's call this what it really is: an exercise in futility.

It may make for good talking points in your districts, but it is bad for our country, and it is a waste of time and a waste of tax dollars. You are in charge with the biggest majority in decades, and this is what you decide to do with it?

Folks on my side of the aisle are willing to work with you on things like investing in roads, growing our economy, creating jobs, and even making improvements in the Affordable Care Act.

Our constituents sent us here to get something done, not to pass bills that

are never going to become law. So let's do something meaningful. Let's say ''no'' to this bill and get on to the work of the people.

Mr. PITTS. Mr. Speaker, might I inquire how many speakers the gentleman from New Jersey has remaining. We are prepared to close, Mr. Speaker, and I reserve the balance of my time.

□ 1500

Mr. PALLONE. Mr. Speaker, may I ask how much time I have?

The SPEAKER pro tempore. The gentleman from New Jersey has 2 minutes remaining.

Mr. PALLONE. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, I have listened very carefully to what my colleagues said on the other side. They keep saying they are going to come up with an alternative to the Affordable Care Act, and yet not one speaker mentioned an alternative that they have, and that is because it doesn't exist.

As I said before, 4 years ago they came up with a similar repeal bill. They said they were going to instruct the committees to come back with an alternative, and they never did, and they never will.

The fact of the matter is, if you listen to my colleagues on the Democratic side, they talked about all the positive things that have occurred because of the Affordable Care Act. Millions—almost 20 million people—who didn't have insurance before now have insurance.

Preexisting conditions, out the window. How many people weren't able to get insurance before because they had cancer or they had other preexisting conditions that made it impossible for them to get insurance, and that is not the case anymore?

Kids who are on their parents' policies, seniors who benefited from the fact that now there is no doughnut hole, and they can basically get their prescription drugs. How in the world do my Republican colleagues come here on the floor and know that all these positive things have resulted because of the Affordable Care Act and just in a moment's notice say they are going to simply repeal it and not even have an alternative to come up with at any point?

It is incredible to me that they want to turn the clock back and don't understand that people have benefited greatly from the Affordable Care Act.

Well, the bottom line is that we, as Democrats, are not going to turn the clock back. We are very proud of the fact the Affordable Care Act has accomplished so much to reform the health care system, to deal with preventative care, to make changes to the health care system that are providing good quality care, good benefits at an affordable price.

The President has said that this bill is dead on arrival. He will veto it. He will take out his veto pen.

So let's not waste our time. Fifty-six votes to repeal; I hope we don't see another one. It is simply a waste of time, and I think that my Republican colleagues, hopefully, understand that.

So, if you have some ideas for the future that you want to make improvements, you want to improve quality, you want to improve access, we will listen to them. We are more than willing to work with you on a bipartisan basis.

But we are not going back to the system that existed before where the insurance companies ran the system. We are not giving it back to the insurance companies.

Mr. Speaker, I yield back the balance of my time.

Mr. PITTS. Mr. Speaker, as I said before, we have several hundred bills, a menu of options to repeal, to replace, some comprehensive, some targeted.

And I would remind the Democrats that ObamaCare cut $716 billion out of Medicare to fund ObamaCare.

Mr. Speaker, I am pleased now to yield 1 minute to the gentleman from California (Mr. MCCARTHY), our great majority leader.

Mr. MCCARTHY. I thank the gentleman for yielding.

Mr. Speaker, today the House will vote on a bill that we have voted on many times in this Chamber.

Mr. Speaker, you want to know why?

The answer is very simple. The law is a disaster. We still can't afford its costs, and the American people still don't want it.

The House, on both sides, is intimately tied to the will of the people. We talk to, we listen to our constituents every day. In our districts, we listen to them at meetings, in the grocery store, at the gas station, and in our houses of worship. And every 2 years our neighbors either send us back to Washington to fight for them or send someone else.

In the most fundamental way, their priorities are our priorities because we directly represent them. When it comes to ObamaCare, the people could not be clearer.

Mr. Speaker, you know what they have said?

They said, We don't want it. We don't want higher premiums. We don't want to be forced to buy all sorts of coverage that we don't need and can't afford.

Mr. Speaker, they have also said, We don't want to lose our doctors, as millions have. We don't want to give control over our health care decisions to Washington bureaucrats. They have simply said, We don't want it.

But for years, the President hasn't listened.

Now, House Republicans have three priorities. We want to increase freedom, promote opportunity, and hold government accountable.

ObamaCare is against all those goals with its outdated, top-down approach. It limits opportunities by destroying the 40-hour workweek and saddling Americans with more costs. It empowers a government that mismanaged the VA and gives them even more control over American health care systems.

We need a new system. We need a system that puts the patients first, one that controls costs through competition and expands coverage by choice, not coercion. That is the system the House is developing right now.

So if you ask why we are voting to repeal this law again, we are doing it for the people.

Mr. Speaker, I ask that every Member of this House who has a direct relationship with their district to listen. But, at the end, have the wisdom to listen but the courage to lead and vote ''yes.''

The SPEAKER pro tempore. The time has expired for the Energy and Commerce Committee.

The Chair recognizes the gentleman from Texas (Mr. BRADY).

Mr. BRADY of Texas. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 596, legislation to repeal the President's controversial and expensive health care law, a law that put 159 Federal agencies, commissions, and bureaucracies in between you and your physician.

Mr. Speaker, today the House of Representatives again acts to repeal the costly mistake known as the Affordable Care Act. In the years since the law's passage, too many Americans have discovered the reality behind the President's promises.

Americans lost plans that they liked and wanted to keep. They saw their premiums soar, and their deductibles, and they discovered their family doctor was suddenly out of network and unaffordable.

They saw their hours reduced at work, and hiring slowed as a result of the law's $1 trillion in new taxes. They realized that, under the law, more work doesn't necessarily mean more pay.

They saw their tax dollars risked on insurance organizations that are now failing. They tried, frustratingly, to navigate the complicated health care site to get help buying what turned out to be more costly coverage. And soon, millions of unsuspecting Americans may learn that errors beyond their control could leave them on the hook to the IRS.

Today's action is not simply opposing the Affordable Care Act. It is about standing up for our families, patients, small businesses, and local health care providers who have been hurt by this law.

The American people deserve better than this. We need to start over, and that begins with the full repeal of the President's health care law.

But we can't just stop there. We also have to continue to advance our own patient-centered solutions to the problems in health care, solutions that actually lower the cost of health care; to make our current system more fair; to

protect the most vulnerable; and put our crucial safety net programs on a path to sustainability for the long term.

I am pleased, Mr. Speaker, that this bill will allow us another opportunity to put forward these ideas, and I encourage my colleagues to support this bill.

Mr. Speaker, I reserve the balance of my time.

Mr. LEVIN. Mr. Speaker, I yield myself such time as I may consume.

(Mr. LEVIN asked and was given permission to revise and extend his remarks.)

Mr. Speaker, well, the majority leader says we need a new system. This has been for 4 years their new system—a total blank page.

Their problem is that it is working, that health care is working. It is working for these people: 12 million uninsured Americans who got coverage; over 10 million enrolled in Medicaid and CHIP; 3 million young adults, 3 million who are now covered because of their parents' health policy.

It is working. It is working for the 129 million Americans with preexisting health conditions, so many of whom were out in the cold; for 105 million Americans who no longer have a lifetime limit or an annual limit; and for seniors who got the benefit of filling the doughnut hole.

There is some reference here to increased health care costs. It is a lie. Health care costs have been going down. It is a fib. It isn't true.

I think what bothers Republicans most of all is that it is working, and their ideology is blind to success, or they don't want to see it.

We are going to vote ''no.'' What is this, the 56th time? We have lost track of how many times we voted ''no.''

We are voting ''no'' because of the millions of people who were left out by our insurance coverage, who now have the decency of health care coverage and the protection of health care coverage.

We are proud of health care reform, so we stand up to say ''yes'' to it by voting ''no.''

Mr. Speaker, I reserve the balance of my time.

Mr. BRADY of Texas. Mr. Speaker, I am pleased to yield 1 minute to the gentlewoman from Tennessee (Mrs. BLACK), one of the health care leaders on the Ways and Means Committee.

Mrs. BLACK. I thank the gentleman for yielding.

Mr. Speaker, as a nurse for over 40 years, I saw how decisions in Washington affected the real people. I witnessed the effects of Congress' action on my patients' faces and in their billing statements.

I understand better than most the need for health care reform, but ObamaCare was never the way to do it. Just ask the 16,000 Tennesseeans who lost their health insurance through Cover Tennessee, despite the President's promise ''if you like what you have, you can keep it,'' or the 11 million small business employees who CMS says will see their premiums spike because of the law.

The results are in. ObamaCare was a mistake that hurts the very people it pretends to help. And that is why, today, I will vote to repeal this law once and for all.

Mr. LEVIN. Mr. Speaker, I yield 1½ minutes to the distinguished gentleman from New York (Mr. RANGEL) who has worked on health care for how many years, Mr. RANGEL?

Mr. RANGEL. A million and one.

Thank you for this opportunity to try to figure out what is going on on the floor today. Normally, Republicans are rational, intelligent people, and that is the reason why they keep talking about ObamaCare.

It is clear to me that we are not voting on ObamaCare. I haven't seen ObamaCare in any of the papers we have today, so they must be saying that they want to repeal the Patient Protection and Affordable Care Act. That makes it easier to understand what they want to do.

They want to repeal health care, and they want to replace it with, well, they want to—I don't know what they want to do, quite frankly, but I know they want to get rid of this.

I think we have reached the point that we have exhausted the legislative process. I have figured it out. This Senate is prepared to join with them in this insanity. The only thing missing is the President of the United States.

Now, they must have a plan how they are going to pick up two-thirds of this House and two-thirds of the Senate to tell the world: We don't want Americans to have health care.

Now is the time for the spiritual leaders to come in, because I have been reviewing the Bible, and Christians, Jews, everybody says that we have a moral obligation, far beyond our legislative responsibility, to give the sick an opportunity to get well, to allow children the opportunity to breathe.

And I know the concerns for the unborn that we all have. But what about the born, the aged, the disabled?

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. LEVIN. I yield the gentleman an additional 30 seconds.

Mr. RANGEL. So collectively, we all have to—in God we have to trust. This means we have given up on the process—55, 56 times. It is time to trust in God.

So I am calling upon all of those solid voices there that were waiting to see whether sanity could ever come to the well of this House, and I think we have proven today, don't count on us, God. We need your help. And only God can get us out of this rut.

Thank you for the opportunity.

□ 1515

Mr. BRADY of Texas. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Minnesota (Mr. EMMER), one of the new Members of the House of Representatives.

Mr. EMMER. I thank the gentleman from Texas, Representative BRADY, for his leadership on this issue.

Mr. Speaker, I rise today to address the urgent health needs of this Nation. I asked my constituents to share with me how ObamaCare has affected them, and I want to share a few of their stories with you today.

Troy, from Norwood Young America, wrote that his family's premium went up and coverage went down, drastically affecting the cost of his son's hearing aid.

Brian, from Albertville, said his wife's mental health clinic has steadily lost clients due to regulations.

Today, Congress will vote to get rid of this fundamentally flawed and unworkable law, but this cannot be for show. It is not enough for Congress to simply be against ObamaCare. We need to offer alternatives. By offering market-based, consumer-focused reforms, we can find real solutions, and I am committed to working with my colleagues to get it done. It is time to stop playing party politics with the public's health.

Mr. LEVIN. I now yield 2 minutes to the gentleman from Washington, Dr. MCDERMOTT.

(Mr. MCDERMOTT asked and was given permission to revise and extend his remarks.)

Mr. MCDERMOTT. Mr. Speaker, I feel like I am telling a story told to children. The story to the children is this:

When President Obama became President, most people didn't live in the house of health. There were 30 million people who were out in the street who had nothing. So President Obama built them a house and said everybody can live in the house of health and have health care.

Their next-door neighbor didn't like the house, complained about the house, said there was everything wrong with the house, and has tried 55 times to blow the house down, just like the Big Bad Wolf in the ''Three Little Pigs.'' This time, they have come with a bulldozer, and they want to knock the house down and put everybody out in the street again.

Now, this would be not so silly if it wasn't for the fact that they have no plans to build anything for the people to live in. They have talked for 5 years: We have plans. We have a committee. We are going to have plans here any day now.

The fact is they have no plan for the people. They simply say to the American people: We want to knock down your house of health. Your preexisting condition will now keep you from health care. Your kids are off before 26. All of this is going to happen because we don't think you should have a house of health in this country.

They have no plan, and they know it, and they are ashamed of it. But they can't stand the fact that Mr. Obama

built a house that covered everybody. It is a glorious creation.

Is it perfect? No.

Did they come over with a hammer or paint or something to change it? No.

It was always: Knock that house down.

Folks, vote ''no.'' Keep the house up.

Mr. BRADY of Texas. Mr. Speaker, I am pleased to yield 1 minute to the gentlewoman from California (Mrs. WALTERS), a businesswoman and former State legislator who understands the harm of the Affordable Care Act.

Mrs. MIMI WALTERS of California. Mr. Speaker, over 4 years ago, ObamaCare was signed into law and sold to the American people on numerous false promises. Americans were promised that premiums for a typical family would go down. The President told Americans, if you like your health care plan, you can keep it, and, if you like your doctor, you can keep your doctor. However, that was not true, and now many Americans are grappling with a very different reality.

As a result of ObamaCare, millions of Americans have seen their health care plans canceled, families are finding that they may not get to keep the doctor that they like, and premiums in the individual market are increasing by 41 percent in the average State.

Mr. Speaker, the American people deserve better. Instead of putting the Federal Government in the driver's seat of our Nation's health care decisions, we need solutions that will protect the doctor-patient relationship, foster economic growth, and empower patients by giving them the choice and control.

Today, I am pleased to stand in support of H.R. 596, legislation that would not only repeal ObamaCare, but would instruct the House to come forward with a patient-centered, free market alternative.

Mr. LEVIN. Mr. Speaker, I now yield 2 minutes to the gentleman from New Jersey (Mr. PASCRELL), another distinguished member of our committee.

Mr. PASCRELL. Mr. Speaker, I rise today in opposition to H.R. 596.

You would think that if my friends on the other side cobbled together all of the time they have spent trying to undermine the ACA, they should have been able to come up with an alternative for this law, the law they can't find anything good to say about, but I am not holding my breath for that.

While we have been here 55 times before, including my Republican colleagues shutting down the government over ACA—let's not forget that. You shut the place down in trying to stop ACA. Oh, by the way, you don't know how much that cost, the billions of dollars in jobs. But we will overlook that today. Today is different because they are now repealing the law after the major coverage expansion provisions have gone into effect.

Today's vote to repeal the ACA means taking away health insurance for the 19 million Americans who receive coverage under ACA, including 213,000 people from my home State of New Jersey; second, ending the tax credits 85 percent of Americans with coverage through the exchange are using to help offset the premiums and requiring them to pay back the tax credits they already received; and third, among the many reasons, seniors losing the new Medicare benefits the ACA created, such as lower drug costs and free preventive services.

I want to be there when you tell the seniors in your district that are covered under this plan that they don't have it anymore. I want you to tell them how much it is going to be increased on prescription drugs. You stand there. Don't pontificate on this floor. Go to your district. Tell the people what you are doing.

Before the ACA, many people were paying for plans that didn't provide them with the coverage they needed. The plans they purchased had high out-of-pocket costs and artificially low caps on coverage.

The SPEAKER pro tempore. The time of the gentleman has expired.

The Chair would remind Members to address their remarks to the Chair.

Mr. LEVIN. I yield the gentleman 30 seconds.

Mr. PASCRELL. Through the Chair, my friend from Texas—I call him my friend, I think, sincerely—I agree with him that we want results from what we are spending on health care. We want to see the results, results-oriented, absolutely. That is what health care reform and the ACA are all about.

We are removing ourselves from the fee-for-service, which had made patients prisoners of hospitals. The gentleman from Texas agrees with me on that, I believe. Make the ACA better. Help us improve it for a change. The gentleman knows there are good things in this bill and in this law. Help us make it better for the American people.

Mr. BRADY of Texas. Mr. Speaker, I am proud to yield 1 minute to the gentleman from North Carolina (Mr. ROUZER), a new Member of Congress and a former State legislator who helped lead the fight against the damage caused by the Affordable Care Act.

Mr. ROUZER. Mr. Speaker, one of the best things we can do in Congress to create an environment for more good-paying jobs is to repeal ObamaCare.

Under ObamaCare, health insurance premiums have gone up, access to quality care has gone down, and doctors all over this great land are plotting their exit strategies—not to mention the chilling effect this law has had on our economy, resulting in lost jobs all over America.

It is a simple fact that if you are going to get the best product for the lowest possible price, you must have competition and transparency. We have very little of either in the health care sector today, and ObamaCare, with all its rules and mandates, has made it that much worse.

If we want to do right by the American people, we should allow individuals and families to buy insurance across State lines, let small businesses and other groups establish associated health plans so they can pool their resources and have the leverage to buy health insurance at lower rates, and we should let individuals and families set aside money in health savings accounts tax free.

Mr. Speaker, those are just a few of the simple, commonsense steps we can take to help drive down costs. The American people know that ObamaCare is not the answer, and those seeking a good-paying job definitely know it. So let's do what is right. Let's repeal this disastrous law and start anew.

Mr. LEVIN. It is now my pleasure to yield 2 minutes to the gentleman from New York (Mr. CROWLEY), a member of our committee and also the vice chair of our Caucus.

Mr. CROWLEY. I thank the gentleman for yielding.

Mr. Speaker, I heard my friend, the gentlewoman from Tennessee (Mrs. BLACK), as she was finishing her remarks and leaving, she said—I somewhat quote—she hopes this repeal of the ACA will, once and for all, be the end of the ACA. ''Once and for all.''

If they have done it once, they have done it 56 times. This is not one time. It is 56 times they have wanted to repeal the Affordable Care Act—56 times.

My colleagues on the other side of the aisle are probably pretty proud of themselves. After all, Joe DiMaggio, he had a 56-game hitting streak, something people say will never be equated again.

But unlike ''Joltin' Joe,'' this one isn't a streak of hits. It is a streak of losses, a streak of strikeouts for the American people. It is a streak of being willing to sacrifice the health and well-being of your constituents just to make a cheap political point.

This majority is apparently ready and eager to actually take away health coverage. As my friend from New Jersey (Mr. PASCRELL) said, try explaining this to your constituents back home. Take away the health coverage that people have purchased and have been using for over a year.

They would make people, particularly seniors, pay back the tax credits that helped them afford the coverage in the first place. They would ask their seniors to go back to pinching pennies to afford prescription drugs and even force them to repay the rebate check they received for their high prescription drug costs. They would put insurance companies back in charge of what kind of health care you can get and when you can get it and how much it is going to cost.

That is not a win to me. That is not something to celebrate. It is something you should all be ashamed of.

Mr. Speaker, you are no Joe DiMaggio. Some streaks put you at the

top. This one puts you at the bottom. And, unfortunately, it puts the American people on the bottom as well.

Mr. BRADY of Texas. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Missouri (Mr. SMITH), a new member of the Ways and Means Committee, who has quickly become a leader on health care issues.

Mr. SMITH of Missouri. Mr. Speaker, we have heard the comment numerous times, ''If you like your health care, you can keep it,'' what the President had said. Mr. Speaker, we know that that was not true. I would like to give you an example of just one of thousands that I have had from my district.

This comes from Frank. When he contacted our office, he said:

My first personal introduction to ObamaCare was a cancelation notice on December 31, 2014.

He said:

I wasn't canceled for numerous claims or because of my health. I was canceled because of ObamaCare.

Let me tell you, he lost his health insurance; and this is the change from his current health insurance that he was supposed to keep to now what he has to have. His current policy premium was $237.86. His new premium is $531.89, an increase of 123.6 percent. His deductible on his old policy was $2,500. His new policy deductible is $6,350. His copay on his prior policy was a zero copay within the network. His new program has a 40 percent pay above his deductible.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. BRADY of Texas. Mr. Speaker, I yield the gentleman an additional 30 seconds.

Mr. SMITH of Missouri. I thank the chairman.

So let's look at it. If you have a $30,000 medical procedure, under his old insurance plan, he had a $2,500 deductible. Under this new plan, with his $6,350 deductible plus the 40 percent on top of it, he is going to be out $15,810.

This is what my constituent Frank wrote:

ObamaCare is clearly the biggest, most costly lie that has ever been forced upon me by the Federal Government. It should be entitled what it is, the ''Most Ridiculously Unaffordable Health Care Act.''

Mr. Speaker, that is why I am standing here today with my colleagues asking for a vote on H.R. 596 to repeal the most ridiculously unaffordable health care act.

Mr. LEVIN. Mr. Speaker, how much time is there remaining, please?

The SPEAKER pro tempore. The gentleman from Michigan has 4 minutes remaining, and the gentleman from Texas has 7 minutes remaining.

Mr. LEVIN. I reserve the balance of my time.

□ 1530

Mr. BRADY of Texas. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Pennsylvania (Mr. KELLY), a businessowner who has provided health care to his workers and is a leader on the Ways and Means Committee.

Mr. KELLY of Pennsylvania. Mr. Speaker, I rise in strong support of H.R. 596 because I think it is time for everybody that sits in this House to listen to the American people. This is America's House. This is the House of Representatives. It is not the Republican Party who disapproves of the Affordable Care Act. It is the American people.

Mr. Speaker, it doesn't matter what poll you look at, whether it is Quinnipiac, Rasmussen, CBS, FOX News, Associated Press, Gallup, or Pew Research. Overwhelmingly, Americans are saying resoundingly: We do not like this bill. We disapprove of this bill.

To continue to say that somehow we are taking something from somebody, wait until the tax season hits. I am talking to people back home that do tax preparation. They are already looking at—they are at just day two of tax preparation; and, my goodness, what we were told was a lie.

Mr. Gruber could not have been more truthful when he said:

Look, we relied on the stupidity of the American people. We lied to them to get this passed.

Mr. Speaker, where I am from, you are allowed to make an honest mistake, but you are not allowed to outright lie to people. They will never forgive you for that.

It is time to repeal this horrible piece of legislation that got passed through lies. It didn't get passed through honesty. I think it is very dishonest to sit here today and say that somehow the Republicans are trying to do something to hurt the American people when the American people speak out and a great majority of them disapprove of this law.

Mr. LEVIN. Mr. Speaker, I reserve the balance of my time.

Mr. BRADY of Texas. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from North Carolina (Mr. PITTENGER), a small business person and a dynamic Member of our House of Representatives.

Mr. PITTENGER. Mr. Chairman, thank you for yielding the time.

Mr. Speaker, I rise today in support of H.R. 596 to repeal the Affordable Care Act. I would ask my colleagues on the other side of the aisle: If this ObamaCare is so good, then why am I hearing so much from my constituents that they can't keep the insurance plans that they liked?

Many have seen their premiums skyrocket, and too many that need help have fallen through the cracks because of a flawed system where ObamaCare picks winners and losers at the expense of the American taxpayers.

Mr. Speaker, today's vote on repeal is an important first step. We will replace ObamaCare with patient-centered reforms, increasing competition and lowering costs by allowing insurance to be sold across State lines, ensuring portability, and safeguarding individuals with preexisting conditions, all by providing freedom of choice, not more fines and taxes.

Mr. Speaker, ObamaCare is a train wreck. I urge my colleagues to support today's repeal and join me in working toward a commonsense replacement.

Mr. LEVIN. Mr. Speaker, I reserve the balance of my time.

Mr. BRADY of Texas. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Florida (Mr. YOHO), a veterinarian involved deeply in health care issues.

Mr. YOHO. I appreciate you, Mr. Chairman.

Mr. Speaker, I stand in support of H.R. 596. The ACA was passed not in open, transparent government; it was passed with not one Republican's support behind it.

We hear on the other side how we are repealing it again. I think you ought to take heed to that notice that the American people sent the largest majority of Republicans back to Congress primarily to repeal this bill.

Mr. Speaker, I have seen my own story. My family's policy—my wife's, our kids', and mine—got canceled because of ObamaCare, and through the House exchange as a Member of Congress, my premium went up $870 extra a month. That is almost $11,000 extra it is costing me with decreased coverage and increased deductibility, and the price went up. It was a fabrication that the prices would go down.

If this is happening to me, it is happening to everybody around America, which leads to the quality of our lifestyle decreasing, and health care is not improving because the majority of the people getting care through this are on the Medicaid system.

If you look out at the outcome around the world, our Medicaid health system is at the bottom, and that is why we need to repeal this bill and replace it with reforms we have.

Mr. LEVIN. Mr. Speaker, we may have one additional speaker who is not here yet, so I reserve the balance of my time.

Mr. BRADY of Texas. Mr. Speaker, I yield myself 1 minute.

Mr. Speaker, we have heard a lot about 56, 56 times we have voted to repeal or defund this bill, but think about the hundreds of times this White House and our Democrat colleagues have tried to force tax increases on families and small businesses.

How many hundreds of times have they tried to force global warming mandates that only drive up energy costs? How many hundreds of times did they force red tape down our local businesses so that they can't possibly survive? How many millions of people have been forced into the health care plans they don't want and forced into higher monthly premiums, higher deductibles, and they can't see their doctor or their hospital or their provider?

Mr. Speaker, these numbers matter. We can do better.

Mr. Speaker, we are ready to close, so if the ranking member would like to proceed, I would reserve the balance of my time.

Mr. LEVIN. Mr. Speaker, I yield 2 minutes to the gentleman from Washington (Mr. MCDERMOTT).

(Mr. MCDERMOTT asked and was given permission to revise and extend his remarks.)

Mr. MCDERMOTT. Mr. Speaker, it is hard to conceive of a democratic society in which everyone does not have health security. When you look across the face of the Earth, every industrialized society on the face of the Earth has given health security to their people. They have had their own plan. The Germans had their plan, the Japanese had their plan, the British had their plan, and the Canadians—everybody has had their own plans.

Now, what we are arguing about here today is the President brought a plan to the Congress and tried to work with the other side, but they said: No, no, no, no.

So we passed a bill. Now, there isn't anybody in this business who has done any work in any legislative body who believes that you can write a perfect piece of legislation. You always have to make changes in it. You find things in it that need to be changed, and we have had no help whatsoever of bringing out the kind of changes that would make sense to make this bill work for all Americans.

Mr. Speaker, when you get sick, you are not a Democrat. When you get sick, you are not a Republican. You are not in the Tea Party, and you are not on the left. You are just sick, and you want some help. That is why this bill is way beyond partisan politics.

Mr. Speaker, I had a conversation with Bill Frist. About a year and a half ago, he wrote an editorial in which he said: Don't repeal, fix.

I called him up and said: You and I ought to work together and see if we can't work with the Republican caucus. Maybe you can get into them. They won't talk to me about working together.

He said: Well, I will do what I can.

But we never got there. Everybody knows that you do not want to have a situation tomorrow where you have a preexisting condition and you have no health insurance. That is the kind of thing you are creating by repeal. It is just a bad bill. Just put it aside, and let's work on it.

Mr. LEVIN. Mr. BRADY, are you ready to close?

Mr. BRADY of Texas. Mr. Speaker, how much time do we have remaining?

The SPEAKER pro tempore. The gentleman has 3½ minutes remaining.

Mr. BRADY of Texas. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Virginia (Mr. BRAT) to speak about health care and the Affordable Care Act.

Mr. BRAT. Thank you, Mr. Chairman.

Mr. Speaker, I rise in support of repeal. ObamaCare came with many promises, but the American people are finally getting the bill in the mail, and they don't like what they see.

We were promised lower costs, but we have seen most premiums and deductibles only skyrocket. Almost nine out of 10 people who buy insurance on the ObamaCare exchange need a government subsidy just to afford it.

Mr. Speaker, as I have traveled my district, I have talked with countless small business owners who think of their employees like family, and they already provide health care coverage for their fine workers; but now that ObamaCare is forcing them to buy more expensive insurance, many are having to lay off their own employees or convert them to part time to avoid these skyrocketing costs.

At a time when we should be growing the economy, ObamaCare is forcing businesses to lay off people, cut their hours, and cut off their health care coverage. Health care in America certainly had problems before this law, but ObamaCare has been a cure worse than the disease.

Mr. LEVIN. Mr. BRADY, are you ready to close?

Mr. BRADY of Texas. In a moment, sir, yes, sir. So if you would like to close, we will follow.

Mr. LEVIN. And then you will close?

Mr. BRADY of Texas. Yes, sir.

Mr. LEVIN. I yield myself the balance of my time.

Mr. Speaker, I insert in the RECORD a Statement of Administration Policy.

EXECUTIVE OFFICE OF THE PRESIDENT, OFFICE OF MANAGEMENT AND BUDGET,

*Washington, DC, February 2, 2015.*

STATEMENT OF ADMINISTRATION POLICY

H.R. 596—REPEALING THE AFFORDABLE CARE ACT

(Rep. Byrne, R–AL, and 48 cosponsors)

The Administration strongly opposes House passage of H.R. 596. The House has now attempted to repeal or undermine the Affordable Care Act more than 50 times. H.R. 596 would take away critical benefits and health care coverage from hard-working middle class families. In addition to taking away Americans health care security, the bill would increase the deficit, remove policies that have helped slow health care cost growth and improve the quality of care patients receive, and detract from the work the Congress could be doing to further job creation and economic growth.

The Affordable Care Act is not only working, it is hilly integrated into an improved American health care system. Discrimination based on pre-existing conditions is a thing of the past. And under the Affordable Care Act, we've seen the slowest growth in health care prices in nearly 50 years, benefiting all Americans.

Repealing the Affordable Care Act would mean that Health Insurance Marketplaces where millions of Americans now compare private insurance plans and get tax credits to purchase them would shut down. Tax credits for small business owners who cover their employees would be taken away. States would lose substantial Federal assistance under Medicaid to provide coverage for the neediest Americans. According to the most recent projections by the Congressional Budget Office (CBO), 27 million Americans are expected to gain coverage due to the law. Repeal will likely result in most of these individuals remaining uninsured or losing their insurance altogether. An estimated 10 million Americans gained coverage during 2014, and repealing the law would erase most of these coverage gains and strip these Americans of the security and peace of mind they now have.

Further, repealing the health care law would have implications far beyond Americans who have or will gain insurance.

More than 250 million Americans with insurance private insurance, Medicare, and Medicaid would lose the benefits and protections they receive under the health care law. Insurance companies would no longer have to cover as dependents millions of young adults who have been able to stay on or sign up on their parents' plans. Lifetime limits and restrictive annual limits on coverage could be reimposed. Women could be charged more than men and up to 129 million Americans with pre-existing conditions would be at risk of not being able to access or afford health coverage. Policies that promote efficiency and accountability in health care and health insurance would be erased.

Reforms that strengthen Medicare's long-term finances also would be repealed. Seniors also would lose the more generous prescription drug coverage provided under the health care law, as well as free preventive care, and Medicare's Hospital Insurance Trust Fund would become insolvent years earlier. Moreover, by repealing these reforms to Medicare and other reforms that encourage doctors and hospitals to provide efficient, high-quality care, the legislation would drive up costs and worsen patient care throughout our health care system.

CBO has previously estimated that repealing the health care law would add more than $100 billion to the deficit over the ten years ending in 2022, and more than $1 trillion in the following decade. This not only hurts the Government: it hurts State and local economies, job creation, and the Nation's long-term prosperity.

The last thing the Congress should do is refight old political battles and take a massive step backward by repealing basic protections that provide security for the middle class. Right now, the Congress needs to work together to focus on the economy, helping middle-class families, and creating jobs.

If the President were presented with H.R. 596, he would veto it.

Mr. LEVIN. Mr. Speaker, this came from the President. The President said, when he ran for office, ''Yes, we can.'' He came here and eventually secured a majority to pass a bill to rectify 75 years of inaction, 75 years for Americans without health care by the millions, and so we did it.

Mr. Speaker, the Republicans have said, ''We will,'' but they never have. We have never seen a bill that addressed this issue comprehensively. Now, they are on the run because millions and millions of people have now benefited for a variety of reasons who never had a single hour of health care for themselves or their children. Now, the Republicans say, ''We will come up with something.'' It is too late.

Health care reform is here to stay. We can improve it, but Republicans will never destroy it. The American people know it is complex, but they know their health needs. We responded. We responded.

That should be and is respected, not the disrespect of coming here 56 times

to say ''no'' when they have never come up with anything.

Mr. Speaker, I yield back the balance of my time.

Mr. BRADY of Texas. Mr. Speaker, I yield myself such time as I may consume.

Frightened—in the days before this health care law was brought to the floor, Democrats were meeting in the White House in secret, cutting special deals, trying to find a way to pass this bill because they were frightened that if they did it in the public, out where the people could see what they were creating, that they would fail.

The night they brought it to the House floor, they were frightened that the American public would know what was in it. They brought it to the floor, and literally no one on this floor knew what was in this bill. They were frightened about what the American public would believe.

Since it has passed, frankly, too many Americans are frightened by what they have been exposed to, which is forced into health care plans. They had good ones in their business, and now, they are forced into ones that cost more, the deductibles have soared, and they can't see their local doctor or go to their local hospital or even pay for medicines for their children because of this health care plan.

Democrats at the time didn't allow a vote on any other alternative—no ideas, no options—because they were frightened the American public could see there is a better way.

The question today, Mr. Speaker, is: Can we do better? Can we do better than this law? Yes. It has helped some but has hurt so many more.

Today is about taking the first step to allowing a better option for American families, providers, and patients by first repealing this controversial and troubling law and then bringing to the floor—directing our committees to bring a better idea to the floor so that the American public has a chance for real, affordable health care that is directed toward them—not Washington—that goes with them from job to job and State to State, home to raise a family or to start that small business, one that is tailored to them, not Washington.

Mr. Speaker, this law is about not top down, but bottom up; and it is long overdue. I support and strongly urge repeal of the health care law and passage of this bill.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. All time for debate by the Ways and Means Committee has expired.

The Chair recognizes the gentleman from Alabama (Mr. BYRNE).

□ 1545

Mr. BYRNE. Mr. Speaker, I yield myself such time as I may consume, and I rise today in strong support of H.R. 596.

By now, we have heard all the stories. From canceled plans to higher deductibles to longer wait times at your doctor, ObamaCare is full of broken promises. Everywhere I go in southwest Alabama, I hear a different story about how this law is having a negative impact on families, small businesses, doctors, and hospitals.

The problems aren't just in Alabama. Nationwide studies show that under ObamaCare, individual premiums have gone up by an average of 49 percent and deductibles have skyrocketed for the average American family to the point where many people can't afford to pay their deductibles. How is that affordable?

Even worse, only 7 percent of Americans believe that this health care law will reduce their health care costs. Seven percent—that is astonishing.

I don't believe ObamaCare can be fixed through piecemeal reforms. I think the only way to truly get rid of this harmful law is to repeal ObamaCare in its entirety. For the first time, Republicans now have control of the Senate, and Senate Democrats can no longer stand in the way of having this legislation brought up for a vote.

This also marks the first full repeal vote since the law has been in implementation. Right now, American families are sitting around their kitchen table to do their taxes and realizing yet another area where this law has caused a confusing maze of requirements that must be properly navigated in order to avoid government penalties. And we have been told that millions of Americans will have to pay penalties.

We were told we would like the law once we found out what was in it. The opposite has proven to be true. We were told that we could keep our health care plans and keep our family physicians. That is also not true. The more we learn about this law, the less it makes sense.

Today's vote is not just about getting rid of ObamaCare, it is about charting an appropriate path forward.

My legislation instructs the appropriate House committees to move forward with alternative solutions to improve our health care system based on patient-centered reforms that aren't run by the Federal Government. I look forward to being a part of that process.

Mr. Speaker, I am proud to champion this legislation on behalf of families in southwest Alabama and all across America who have been negatively impacted by this law, and I urge my colleagues to vote ''yes'' on H.R. 596.

I reserve the balance of my time.

Mr. SCOTT of Virginia. Mr. Speaker, I yield myself such time as I may consume, and I rise in opposition to H.R. 596.

As the new ranking member on the Committee on Education and the Workforce, I know that protecting access to affordable health care for America's workers and families is a high priority. Despite scare tactics and misinformation, the bottom line is that the Affordable Care Act is working. Perhaps those who want to repeal the Affordable Care Act have a short memory. It is important to remember why the Affordable Care Act was passed in the first place.

Before the ACA, employer-provided coverage was shrinking. More and more employers were dropping coverage altogether. There were months in 2008 and 2009 when 14,000 people a day were losing their health insurance because employers were not providing it and because it was above their ability to pay. From 1999 to 2010, the cost of premiums for employer-provided health insurance increased by 138 percent while workers' earnings only went up around 40 percent. And those who were employed were often locked into their employment for fear of losing their health care insurance because even though they wanted to retire, they couldn't get insurance somewhere else, and so they were stuck in that job.

Every American family with insurance had to pay a hidden tax of approximately $1,000 per family for the cost of paying for those without insurance who would go to the hospital and not pay, and so when they went to the hospital, they would have to pay a little extra. That little extra was about $1,000 per year for every family with insurance. This was the reality that American workers and their families faced before the passage of the Affordable Care Act. We should not go backwards.

Today, thanks to the ACA, workers are enjoying the peace of mind that they have options. If employer-provided coverage is not available, they can enter the marketplace. If it is available, they have the security of new consumer protections such as the requirement that at least 80 percent of the premiums be spent on actual health care, not corporate jets and CEO bonuses. And we ended insurance practices such as caps on payments that would only pay so much overall and then you are on your own, or so much for your lifetime and then you are on your own. And cancelations where they could just arbitrarily cancel your insurance after you have paid premiums year after year. You get sick, and they check and just want to cancel your premium. Those abuses can no longer take place.

Employers will also suffer under a repeal. In 2014, premiums for employer-provided health care grew at the lowest rate in 15 years. If the ACA is repealed, many employers could again be charged health-related premiums, so if they have a few sick employees, they will see their premiums skyrocket. The vast majority of large employers who provide health insurance to their employees may suffer an increase in premiums due to the return of the hidden tax, the cost shifting of uncompensated care.

And when employees leave a job, they are on their own to get insurance, if they can, because there was a prohibition that they could deny people with

preexisting conditions. So if you have a preexisting condition and leave your job, who knows what is going to happen.

In addition, small employers would suffer since all small group market reforms, including rating reforms, would disappear. Small employers used to pay 18 percent more in premiums than large businesses, on average. ACA leveled the playing field so now they are paying rates like everybody else. If you repeal the Affordable Care Act, they are up another 18 percent, where it was before.

Now we have heard all of the statistics: over 3 million uninsured young adults have access to health insurance through their parents' policies; 8 million senior citizens in the so-called Medicare doughnut hole have been getting relief and have saved billions. Twelve million more Americans have health insurance because of the Affordable Care Act.

These numbers represent real people, and these real people would lose access to their benefits if the Affordable Care Act is repealed. Those trying to repeal the law should be honest to seniors about what would happen to their free preventive care in the absence of the Affordable Care Act. They should explain to young adults that repealing the law would kick them off their parents' policies. They would have to explain to millions of Americans who only have insurance because of the Affordable Care Act—many for the first time in their lives—why they will now have to go without coverage.

And while the Republican majority continues to talk about repeal, we should be talking about the progress we have already made and how we can continue to move in the right direction. So when the Republicans talk about replacement of legislation, it is important to note that there is no meaningful replacement proposal on the table. Delaying the effective date of this repeal for 180 days does not make a meaningful replacement any more plausible or likely.

This is the 56th attempt to repeal or undermine the Affordable Care Act. This is a distraction, and I hope the Republican majority will refocus efforts on real policy solutions for the American people, American families, and workers.

I reserve the balance of my time.

Mr. BYRNE. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Louisiana (Mr. SCALISE), the majority whip of this House, who has not just traveled around his district talking to people harmed by this law but has traveled around the United States of America.

Mr. SCALISE. Mr. Speaker, I want to thank the gentleman from Alabama for yielding and for his leadership in bringing this bill to the floor to repeal the President's health care law.

It was back in 2010 when then-Speaker PELOSI infamously said:

We have to pass the bill so you can find out what's in it.

Well, Mr. Speaker, we know what is in the bill. American people across the country have seen the devastating impacts of the President's health care law. Millions of people have lost the good health care that they had that they liked. We all heard the promise: If you like what you have, you can keep it. The promise was broken to millions of people.

And not only did they lose good health care, but many, many millions of people have seen dramatic increases. They are paying double-digit increases for the health care that they do have. And what is worse, Mr. Speaker, is we have seen that vital doctor-patient relationship violated now by unelected bureaucrats in Washington who have come in between the doctor and the patients to make decisions on people's health care. That is not the way to do reform. That was the old way, the Washington-knows-best way.

There is a better way, and this bill starts that process by first repealing the law in its entirety and then getting the committees of jurisdiction involved, putting an alternative in place with a shot clock of 180 days where we can come up with a real bipartisan alternative. Let's repeal this law, and let's restore the doctor-patient relationship.

Mr. SCOTT of Virginia. Mr. Speaker, I yield 3 minutes to the gentleman from Colorado (Mr. POLIS).

Mr. POLIS. Mr. Speaker, it is week five of the 114th Congress, and I really feel like that movie ''Groundhog Day,'' where the same day just keeps repeating itself over and over and over again. This is the 56th time that we have been through this particular exercise, repealing the Affordable Care Act here in the House. We get it. Republicans want to repeal the Affordable Care Act. Go ahead and try to get President Obama's signature on that piece of legislation. It ain't going to happen. But here we go again and again and again.

We are considering recycled political gimmicks that everyone here knows deprive the American people of affordable health care and won't create a single job and would increase our deficit by over $200 billion.

By the way, there is an accounting trick in the Ryan budget. What the Republican budget does is it keeps all of the ObamaCare taxes and gets rid of all of the benefits. That is the worst of both worlds. The Republicans want you to pay for ObamaCare and not get it. Does that make any sense, Mr. Speaker? We are starting to see the dangers of this strange ''Groundhog Day'' brand of so-called policymaking.

This is what happens when we abandon regular order. We don't have markups in committee, we don't have hearings—to jam through partisan legislation under a closed process without an opportunity to even suggest what might replace the Affordable Care Act or what kind of health care policy we want to help make health care more affordable in our country.

This bill would leave 27 million Americans out in the cold without health care. What about even more Americans who wouldn't have coverage for preexisting conditions or who wouldn't have access to affordable prescription drugs?

This bill would mean real harm and real hardship for people in my district—couples like Mike and Lynn in Loveland, whose health care cost more than their mortgage before the Affordable Care Act. It cost $850 a month. But thanks to the Affordable Care Act, they were able to find a plan that costs $200 a month. Or people like Robin in Eagle County in my district, who could barely afford $600 a month in health care costs but now, thanks to the Affordable Care Act and the tax credits, pays just $132 a month.

Another constituent of mine didn't go to the doctor for years because he was uninsured. But because of the Affordable Care Act, he was eligible for the Medicaid expansion. For the first time he received a colonoscopy and doctors discovered and removed a precancerous polyp. Without ACA, that might have become a cancer, costing him his life, not to mention the tens or hundreds of thousands of dollars of taxpayer money for that procedure that were saved thanks to the Affordable Care Act.

We can do better. We can escape this endless loop, this ''Groundhog Day,'' and start talking about real job-creating legislation, improvements to health care that Democrats and Republicans can agree on because they make sense for our country. There are real lives at stake. I urge my colleagues to vote ''no.''

Mr. BYRNE. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Georgia (Mr. CARTER), a new member of the Education and the Workforce Committee and a new Member of this body.

Mr. CARTER of Georgia. Mr. Speaker, I stand before you in support of H.R. 596 for three reasons. First, of all, I am a member of the middle class. Secondly, I am an employer. I was an employer of a small business and had employees. Thirdly, and perhaps most importantly, I am a health care professional, the only pharmacist in Congress. And I can tell you that the Affordable Care Act, ObamaCare, is destroying health care that I have worked in for over 30 years, and I refuse to step aside and let that happen.

Mr. Speaker, the ACA has increased costs, increased deductibles, and decreased coverage for the middle class. That is not what it was supposed to do.

For employers, it has increased costs and decreased the coverage for their patients and, most importantly, for health care, Mr. Speaker.

What ObamaCare has done is to drive the free market out of health care. You don't see any more independent pharmacies. You don't see any more independent doctors. They are all members

of health care systems or hospitals employed by them. There are only three or four major pharmacies now, and we are heading more toward that.

□ 1600

You don't see patients having a say in their drug coverage anymore. Drug therapy is decided not by a pharmacist, not by a doctor, not by the patient, but by insurance companies and government. ObamaCare has to end.

Mr. SCOTT of Virginia. Mr. Speaker, I enter into the RECORD the following letters in opposition: one from the National Committee to Preserve Social Security & Medicare, another from Easter Seals, another from the AFL–CIO, and another from the SEIU.

FEBRUARY 2, 2015.

House of Representatives,
*Washington, DC.*

DEAR REPRESENTATIVE: On behalf of the millions of members and supporters of the National Committee to Preserve Social Security and Medicare, I urge you to oppose H.R. 596, a bill to repeal the Patient Protection and Affordable Care Act.

Repealing the Affordable Care Act (ACA) would be detrimental to Americans of all ages: It would undercut the ability of marketplace insurance plans to offer affordable health coverage to individuals, including those with pre-existing conditions. Repeal would mean that young adults could no longer count on remaining on their parents' insurance plans until age 26. In addition, the number of uninsured ''young seniors,'' aged 50–64, would increase, leaving them in poorer health by the time they are eligible for Medicare—thereby increasing Medicare's costs.

Repealing the ACA would also eliminate many of that law's provisions that benefit Medicare beneficiaries today, including help with prescription drug costs and preventive screenings and wellness visits with no out-of pocket costs. In addition, the payment and delivery system reforms that are being implemented due to the ACA are slowing the rate of increase in health spending while improving the care that is being provided, especially care to people with multiple chronic conditions. Slowing the rate of increase in health spending has also lowered costs for beneficiaries—the Part B premium has stayed level for three years in a row—and is extending the solvency of the Part A trust fund.

We oppose H. R. 596 because it interferes with the ability of marketplace insurance plans to offer affordable health coverage, and hurts millions of seniors who benefit from the Medicare improvements contained in the ACA. The National Committee strongly urges you to vote against this anti-senior legislation.

Sincerely,

MAX RICHTMAN,
*President and CEO.*

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FEBRUARY 3, 2015.

DEAR REPRESENTATIVE: Easter Seals is writing to request that you vote no on HR 596, legislation to repeal the Patient Protection and Affordable Care Act (ACA). This law provides critical access to appropriate and high quality health care services that is essential for people with disabilities to live, learn and work and play in their communities. Easter Seals is the leading non-profit provider of services for individuals with autism, developmental disabilities, physical and mental disabilities, and other special needs.

One of the most important provisions in the ACA is the policy under which insurance companies can no longer refuse to cover children with disabilities and other pre-existing conditions. This provision came into affect on September 23, 2010. For children served by Easter Seals and their families, this provision can transform a family. Prior to the law, families would lose coverage of their child with cerebral palsy, epilepsy or another condition. The only way that the family could get the services their child needed was to pay out of pocket. For many families, they had no choice but to take out a second mortgage, declare bankruptcy, or have their child go without the services he or she needs to be healthy and strong.

The goal of the health care reform law is to assure that all people have access to quality, affordable health care and long term services and supports that meet their individual needs. It is through these types of changes to the health care system that we can hope to enable all Americans, including people with disabilities and chronic conditions, to be healthy, functional, live as independently as possible and participate in their communities.

Please vote NO on HR 596. Thank you for considering our views.

Sincerely,

KATHERINE BEH NEAS,
*Executive Vice President for Public Affairs.*

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FEBRUARY 2, 2015.

DEAR REPRESENTATIVE: On behalf of the AFL-CIO, I urge you to vote against H.R. 596, legislation that will repeal the Affordable Care Act (ACA). In pursuing yet another vote against the health reform law, the House Republican leadership persists in its campaign to undermine the coverage expansions of the ACA, erecting barriers that will keep millions of uninsured Americans from accessing coverage under the law.

Based on the latest Congressional Budget Office (CBO) estimate of the ACA coverage expansions, 19 million U.S. residents would lose coverage in 2015 if the ACA is repealed—people who would lack coverage today if not for the ACA. CBO also estimates that 36 million individuals remain uninsured today, even with the expansion of coverage through the marketplaces and Medicaid.

In large part, millions remain uninsured because a number of governors and state legislatures have refused to pursue an expansion of their Medicaid programs or have prohibited government agencies from providing ACA enrollment assistance to the residents of their states. Twenty-two states have refused to extend Medicaid coverage to lower-income residents, turning away coverage that is almost completely subsidized by the federal government. Other states refuse to provide education and assistance to people who need help negotiating the complex decisions involved in applying for coverage. The Kaiser Family Foundation found that the lack of information about enrollment choices is making it difficult for many individuals to access coverage that is available to them.

This partisan resistance to the ACA coverage expansions at the state level is bolstered by these votes to repeal the ACA in Washington. It is time to break the partisan deadlock on health care reform and to focus on needed changes that will strengthen, not weaken, family health security—reforms that both improve and build upon the ACA.

We can begin improving the ACA to expand access to affordable coverage by eliminating the 40 percent excise tax on health benefits, by basing eligibility for premium subsidies on the costs of family coverage, and by ensuring that new fees intended for commercial insurance issuers will not apply to nonprofit coverage. We hope that bipartisan attention will be focused soon on productive ways of addressing needed modifications to the ACA.

Sincerely,

WILLIAM SAMUEL,
*Director, Government Affairs Department.*

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FEBRUARY 3, 2015.

DEAR REPRESENTATIVE: On behalf of the 2 million members of the Service Employees International Union (SEIU), I urge you to oppose H. R. 596, a bill to repeal the Affordable Care Act (ACA). H.R. 596 puts millions of working families' financial security and health at risk by eliminating essential consumer protections, access to affordable coverage, and higher quality care made possible by the ACA.

Already, about 100 million Americans are benefiting from the ACA. Prior to the ACA, millions of Americans did not have access to health insurance, or were only able to obtain insurance that was costly but did not provide the coverage they needed. However, the ACA changed that reality. Due to the ACA, no longer are insurance companies allowed to discriminate against women or those with pre-existing conditions by charging them more for coverage or refusing to provide them with coverage at all. As a result of the ACA's closure of the Medicare drug coverage gap, older Americans now have relief from excessive drug costs that forced many to go without medically necessary medications. Furthermore, the ACA promotes preventive care, which helps us all, regardless of race, gender, ethnicity, or income, avoid the development of more serious chronic conditions that prevent us from living long and healthy lives. These are just of the few ways that the ACA has bettered the day to day lives of Americans.

Perhaps most significantly, people are getting covered. In fact, 9.5 million consumers have signed up to receive coverage through ACA marketplaces, millions more signed up for Medicaid, and the number of uninsured in America has dropped by 10 million people. No longer do working families have to worry about being one accident or illness away from bankruptcy. We cannot take actions that force people to go without coverage they desperately need.

There is also an untold story of the ACA. The law aims to create a more efficient system by promoting quality over quantity of care and reducing waste, fraud, and abuse in our system. The Congressional Budget Office and the Social Security and Medicare Boards of Trustees have found that healthcare spending is slowing at record rates. The ACA includes programs, like those that provide incentives to hospitals to reduce readmissions and encourage care coordination across settings, which aspire to further build on this trend and, most importantly, improve patients' health and experience. A vote for this bill is a vote to reverse all of this progress.

As with every major law, there are ways to improve upon the solid base the ACA provides, however, full repeal is a step backwards for millions of working families. SEIU strongly urges you to oppose H. R. 596. Votes on this legislation may be added to our congressional scorecard, located at www.seiu.org. If you have any questions, do not hesitate to contact Ilene Stein, Assistant Legislative Director, at 202–730–7216 or llene.stein@seiu.org.

Sincerely,

MARY KAY HENRY,
*International President.*

Mr. SCOTT of Virginia. Mr. Speaker, I reserve the balance of my time.

Mr. BYRNE. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Michigan (Mr. BISHOP),

another new Member of this body and another new member of the Education and the Workforce Committee, who brings a unique experience to this body.

Mr. BISHOP of Michigan. Mr. Speaker, I thank the gentleman for yielding.

Mr. Speaker, for the past 20 years as a practicing lawyer and businessowner, I have seen firsthand how companies have tried to grow and create more jobs, but they simply can't, due to the strangling grip of ObamaCare's employer mandate.

Small businesses tell the story of how their current plan was canceled and how they were forced by ObamaCare into a health plan that covers less with higher copays and higher deductibles, along with astronomical, unsustainable increases in premiums.

Simply stated, ObamaCare is crushing small businesses across this great country. Despite the urgency of this crisis, the President has decided to dig himself in and promised to veto any commonsense reform, such as removing this employer mandate.

If the White House has decided not to collaborate with Congress to ease the burdens on families and businesses, then the only path we have is full repeal.

Along with that, Mr. Speaker, we need to move forward and develop commonsense health care reform that not only respects families and the doctor-patient relationship, but also considers any and all opportunities to lower skyrocketing health care costs.

I urge my colleagues to join me in voting ''yes'' on H.R. 596.

Mr. SCOTT of Virginia. Mr. Speaker, I enter into the RECORD letters in opposition from the following organizations: the American Academy of Family Physicians, the American Diabetes Association, and the American Public Health Association.

FEBRUARY 3, 2015.

*House of Representatives,*
*Washington, DC.*

DEAR REPRESENTATIVE: The House of Representatives is scheduled to vote on HR 596, which would repeal the Patient Protection and Affordable Care Act (ACA). The AAFP urges Congress not to repeal this nearly 5–year-old health care reform law, but rather focus on how the measure can be revised to improve patient care and restrain health system costs.

The ACA addresses several important persistent problems with the nation's delivery of health care. First of all, it has demonstrably improved access to health care. As the most recent Gallup poll of the uninsured shows, the uninsured rate in the fourth quarter of 2014 fell to 12.9 percent, which is the lowest since Gallup began measuring it. By comparison, 17.1 percent were uninsured at the end of 2013. This substantial decline in the uninsured rate in one year has been broadly felt since it was evident in all the demographic categories.

Second, the ACA establishes critical insurance reforms to prevent abuses such as reducing or eliminating coverage due to preexisting conditions, or setting prohibitively high prices on the individual market based on health status. Third, it encourages innovation in health care delivery through extensive research performed by the CMS Innovation Center. As recently as last week, for example, CMS announced early results of the Comprehensive Primary Care Initiative which demonstrate significant cost reductions in the first year due to investments in primary care. Fourth, the ACA requires both Medicare and private health plans to cover preventive health services (without cost-sharing), which is a proven long-term strategy to improve health while reducing costs.

There are elements of the ACA that cause the AAFP concern, including the poorly constructed Independent Payment Advisory Board (IPAB). Congress should carefully review these elements with an eye to improving them for patients, for physicians and other providers, and for taxpayers, generally. The AAFP will continue to offer you our support for such efforts. However, in the meantime, it is important to avoid the disruptions and turmoil that repeal of the ACA would cause.

Sincerely,
REID B. BLACKWELDER, MD, FAAFP,
*Board Chair.*

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FEBRUARY 2, 2015.

Hon. JOHN BOEHNER,
*Speaker of the House,*
*House of Representatives, Washington, DC.*

DEAR SPEAKER BOEHNER: On behalf of the nearly 30 million Americans with diabetes and the 86 million with prediabetes, the American Diabetes Association is writing to express our opposition to HR 596, legislation that would repeal the Patient Protection and Affordable Care Act (ACA).

For the millions of people with diabetes and those at risk of developing it, the ACA provides access to quality health care that is vital to the prevention and management of diabetes, and in maintaining overall health. The law protects people with diabetes who, prior to the ACA, were discriminated against because of their disease when they sought health insurance. It also expands access to quality health care and prevention programs needed to curb the current diabetes epidemic and prevent its devastating complications, including blindness, amputation, heart disease and kidney failure.

People with diabetes are benefiting from many provisions in the law, including the elimination of annual and lifetime limits on health insurance coverage, access to free preventive care, lower prescription drug costs for seniors, allowing young adults to stay on their parent's insurance plans, and the development of a successful program aimed at preventing type 2 diabetes.

The Association is committed to working with Members of Congress and government officials on the law's implementation to ensure people with diabetes, and all Americans, have access to the health insurance they need and cannot be discriminated against because of pre-existing conditions. We urge Members of the House to oppose repeal of the Affordable Care Act. Should you have any questions or need further information, please feel free to contact Amy Wotring, Associate Director, Federal Government Affairs at awotring@diabetes.org or 703–299–2087.

Sincerely,
SHEREEN ARENT,
*Executive Vice President, Government Affairs & Advocacy.*

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FEBRUARY 2, 2015.

*House of Representatives,*
*Washington, DC.*

DEAR REPRESENTATIVE: On behalf of the American Public Health Association, which champions the health of all people and all communities by strengthening the profession of public health, sharing the latest research and information, promoting best practices and advocating for public health issues and policies grounded in science, I write in strong opposition to H.R. 596, legislation to repeal the Affordable Care Act.

The ACA is critical to addressing the biggest challenges facing our health system including the rising costs associated with our health care system, uneven quality of care, deaths due to medical errors, discriminatory practices by health insurance providers and the shrinking ranks of the nation's primary care providers. The ACA is helping to shift our health system from one that focuses on treating the sick to one that focuses on keeping people healthy.

Under the law, millions of previously uninsured Americans now have affordable and comprehensive health insurance coverage through the health insurance marketplaces as well as through the expansion of the Medicaid program, significantly reducing the uninsured rate. This year, 9.5 million individuals have already enrolled in coverage through the health insurance marketplaces. Since its enactment, the law has provided 71 million Americans with access to preventive health care services such as vaccines, disease screenings, well-child visits and tobacco cessation counseling without co-pays or deductibles. Thirty seven million seniors have also accessed preventive services without cost through the Medicare program. More than 3 million young adults up to age 26 are able to stay on their parents' health insurance plans and nearly 129 million individuals with pre-existing conditions are protected from insurance coverage denials. In addition, the ACA provides critical mandatory funding through the Prevention and Public Health Fund for community-based prevention and wellness activities including efforts to control the obesity epidemic, reduce tobacco use and modernize vaccination systems.

Protecting the ACA and working to effectively implement this critical law to protect and improve the health of the American people will remain a top priority for APHA, and we will consider including this vote in our 2015 annual congressional vote record.

We ask you to oppose this and future efforts to repeal the ACA and we look forward to working with you to create the healthiest nation in one generation.

Sincerely,
GEORGES C. BENJAMIN, MD,
*Executive Director.*

Mr. SCOTT of Virginia. I reserve the balance of my time.

Mr. BYRNE. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Georgia (Mr. ALLEN), another new member of the Education and the Workforce Committee and new Member of this body.

Mr. ALLEN. Mr. Speaker, I thank the gentleman from Alabama for yielding.

Mr. Speaker, individuals, families, and businesses alike—in Georgia and across the Nation—agree that ObamaCare is wrong for Americans. Across my district, hardworking Georgians trying to make ends meet have told me their health care premiums have skyrocketed under this law.

Many have learned the plan they liked and were promised they could keep have been canceled, and they have been denied care and access to their doctors.

In addition to hurting America's families, ObamaCare's costly mandates burden small businesses, the bedrock of job creation and entrepreneurship, and

have real consequences for their employees facing lower hours and wages.

The nonpartisan Congressional Budget Office estimates that the law will lower the number of full-time equivalent workers by 2.5 million. The President's own Centers for Medicare and Medicaid Services also found that an estimated two-thirds of small businesses will see their health care premiums go up under ObamaCare.

I urge my colleagues to support H.R. 596.

Mr. SCOTT of Virginia. Mr. Speaker, I yield 3 minutes to the gentleman from Connecticut (Mr. COURTNEY).

Mr. COURTNEY. Mr. Speaker, almost exactly a year ago, the Republican majority held a retreat where other Members met and they set their agenda for 2014. After that retreat, the leadership issued a statement promising, with a solemn promise, that the House Republicans will rally around and pass an alternative to ObamaCare this year.

That is about 4 years after the law passed, but at least you can give them some credit that they were going to move forward in 2014 with an alternative to the Affordable Care Act.

That was last winter, and winter turned to spring, spring turned to summer, summer turned to fall, fall turned to winter, and we never had a vote in the House on the alternative, the promised alternative to ObamaCare.

Maybe the committees took action, the committees that this proposed bill is lateraling this issue off to. Did we have a committee vote on Education and the Workforce, Ways and Means, Energy and Commerce? No. Did we have hearings on an alternative that was promised by the majority caucus a year ago on an alternative to the Affordable Care Act? No, no hearings, no markup, no vote, no bill.

Here we are today with the majority once again throwing out a promise: Trust us. In 180 days, we will have an alternative to the Affordable Care Act.

Well, Mr. Speaker, unfortunately, in the last year, millions of Americans have moved on. Parents are insuring their kids through the Affordable Care Act up to age 26.

There are Members in the majority who take advantage of that very provision to provide coverage for their children under the Affordable Care Act that they seek to repeal here today.

Millions of seniors see their prescription drug costs cut because of the Affordable Care Act because of the leftover of the Republican prescription drug bill which led this outrageous doughnut hole that threw 100 percent of the cost of medications to seniors who were paying monthly premiums.

Yes, we saw the startup of exchanges, both at the State level—like my State in the State of Connecticut—and the Federal exchange, which have enrolled millions of Americans in affordable plans.

This year, the Affordable Care Act in Connecticut, we had submissions by the insurance companies to participate in 2015. Did we see reduced competition? Did we see less of a free marketplace? No, we saw more competition. We have more insurers who are offering the product through the exchange in 2015 than in 2014.

Did we see rates go up? Mr. Speaker, I am going to enter into the RECORD a record from the Connecticut State Insurance Department which shows that rates went down—down—for individual plans and for small group market plans.

STATE OF CONNECTICUT INSURANCE DEPARTMENT

2014 CONNECTICUT INSURANCE RATE FILINGS FOR ON/OFF EXCHANGE 2015 POLICIES

Individual Market Requested and Approved Changes

Aetna Life Insurance Co.:
—Requested Change: 9.4%
—Approved Change: 4.60%
—Effective 1/1/2015
Celtic Insurance Company:
—Requested Change: 0.00%
—Approved Change: −6.50%
—Effective 1/1/2015
ConnectiCare Benefits, Inc.:
—Requested Change: 12.8%
—Approved Change: 3.10%
—Effective 1/1/2015
ConnectiCare Inc.:
—Requested Change: −21.50%
—Approved Change: −21.50%
—Effective 1/1/2015
ConnectiCare Insurance Co.:
—Requested Change: 1.40%
—Approved Change: 1.30%
—Effective 1/1/2015
UnitedHealthcare Ins. Co.:
—Requested Change: 0.00%
—Approved Change: −9.30%
—Effective 1/1/2015
Golden Rule Insurance Co.:
—Requested Change: 0.00%
—Approved Change: −6.91%
—Effective 1/1/2015
HealthyCT, Inc:
—Requested Change: −8.60%
—Approved Change: −8.50%
—Effective 1/1/2015
Time Insurance Company:
—Requested Change: 25.00%
—Approved Change: 6.00%
—Effective 1/1/2015
Cigna Health and Life Insurance Company:
—Requested Change: 15.23%
—Approved Change: 8.82%
—Effective 1/1/2015
Anthem Health Plans:
—Requested Change: 12.5%,
—Approved Change: −0.10%
—Effective 1/1/2015
UnitedHealthcare Life Insurance Company:
—Requested Change: 0.00%
—Approved Change: −9.20%
—Effective 1/1/2015

Average Requested Change: 3.85%
Average Approved Change: −3.18%
Estimated savings for consumers in Individual Market: $79,099,427

Small Group Market Requested and Approved Changes

Aetna Life Insurance Co.:
—Requested Change: 5.90%
—Approved Change: 5.90%
—Effective 1/1/2015
Anthem Health Plans:
—Requested Change: 6.00%
—Approved Change: 4.40%
—Effective 1/1/2015
HealthyCT, Inc*:
—Requested Change: −13.40%
—Approved Change: −13.40%
—Effective 1/1/2015
UnitedHealthcare Ins. Co.*:
—Requested Change: 2.50%
—Approved Change: 2.50%
—Effective 1/1/2015
ConnectiCare Inc.:
—Requested Change: −1.40%
—Approved Change: −5.00%
—Effective 1/1/2015
ConnectiCare Insurance Co.*:
—Requested Change: 7.00%
—Approved Change: 7.00%
—Effective 1/1/2015
Harvard Pilgrim Healthcare of CT:
—Requested Change: 2.80%
—Approved Change: −12.00%,
—Effective 1/1/2015
HPHC Insurance Co.*:
—Requested Change: −3.40%
—Approved Change: −9.40%
—Effective 1/1/2015
Oxford Health Insurance*:
—Requested Change: 10.20%
—Approved Change: 10.20%
—Effective 1/1/2015
Oxford Health Plans (CT):
—Requested Change: 10.20%
—Approved Change: 9.00%
—Effective 1/1/2015

Average Requested Change: 2.64%
Average Approved Change: 0.08%
*CID has review authority but not approval authority over these filings
Estimated savings for consumers in Small Group Market: $9,448,203
Estimated savings for combined Individual & Small Group Markets: $88,547,630

Mr. COURTNEY. The fact of the matter is that this marketplace, which now has more carriers, is now providing lower rates, saving close to $90 million from last year's rates than the year before.

The SPEAKER pro tempore (Mr. HULTGREN). The time of the gentleman has expired.

Mr. SCOTT of Virginia. I yield the gentleman an additional 30 seconds.

Mr. COURTNEY. Mr. Speaker, what we are being asked to do here today is to stop that progress, to take away that coverage to young adults that today get it through their parents' plans, to take away the prescription drug benefit, to take away from seniors the relief that they are getting for lifesaving medications, and to tell those individual and small group plans that are purchasing it—this year, again, we have 70,000 reenrollments of the 75,000 enrolled last year, and we have 30,000 new that have enrolled this year in that plan.

We have cut the uninsured rate in a State like Connecticut that has embraced the law down to 4 percent of its population.

You are telling folks like me to blow it up, get rid of it, and you have no plan, even though your caucus made a promise a year ago to the American people that they would provide a plan, and they never came through with it.

Reject this bill.

Mr. BYRNE. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Florida (Mr. DESANTIS), my distinguished colleague.

Mr. DESANTIS. Mr. Speaker, my colleagues have demonstrated ably the substantive problems with this law:

higher costs, canceled coverage, lost doctors.

I would just like to say that ObamaCare has done harm to republican government properly understood. When you go around the country telling people over and over again that they can keep their plans, that they can keep their doctors, and that they will see thousands of dollars in savings on health insurance premiums, all the while you know—or should have known—that those promises were false, I think that damages our political system because, ultimately, representative government requires honest dialogue between elected officials and the citizenry.

It is almost as if this is the Jonathan Gruber law where we want to tell people lies in order to get bills that we would not have passed otherwise. I think that is unacceptable.

These promises made to the American people were false, the American people were deceived, and I think our representative government and political system have been damaged as a result.

Mr. SCOTT of Virginia. Mr. Speaker, I yield 1½ minutes to the gentlewoman from North Carolina (Ms. ADAMS).

Ms. ADAMS. Mr. Speaker, I thank the gentleman for yielding, and I rise today in support of the Affordable Care Act.

One year after implementing the health care exchanges, the number of uninsured in this country has decreased dramatically. Implementing the health care exchanges has provided health insurance access to 208,000 individuals in my district, with Charlotte accounting for one of North Carolina's highest number of subsidized health insurance enrollments.

Young adults can now stay on their parents' plans until age 26, resulting in nearly 10,000 young adults retaining health insurance in my district. Seniors in my district have saved $11.1 million through Medicare part D prescription drug discounts.

The Affordable Care Act has also created 9.6 million private sector jobs. My district's unemployment rate is 13.9 percent, so for me, this is not just about health, but jobs and our economy.

These tangible benefits cannot be ignored. I urge my Republican colleagues to end talks of repeal and instead work with Democrats to strengthen the law.

The Affordable Care Act would have meant a lot to my sister who I often had to take to the emergency room for primary care for sickle cell. She died at age 26, but I know she would have been grateful for the coverage provided by the Affordable Care Act.

Mr. BYRNE. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Texas (Mr. BABIN), a new Member of the House, who is himself a dentist.

Mr. BABIN. Mr. Speaker, I thank the chairman.

Mr. Speaker, I rise in strong support of H.R. 596, legislation that I have cosponsored to fully repeal ObamaCare.

My constituents sent me to Washington to repeal this disastrous law, and that is what we are doing today, the number one issue in my district.

As a health care provider myself for 38 years, I have seen firsthand the devastating effects of ObamaCare and how it undermines the doctor-patient relationship.

It is costing us jobs and work hours and has led to millions of Americans losing their health plans that they had and wanted to keep and were promised such. Restoring the patient's right to choose a plan that they want and can afford is just plain common sense.

Our bill does this by repealing ObamaCare and replacing it with free market solutions. We put America on a path toward patient-focused care, rather than government-directed care. The traditional doctor-patient relationship would be restored.

Let's show the American people that we are listening and rid the Nation of this terrible law and replace it with policies that work.

Mr. SCOTT of Virginia. Mr. Speaker, I reserve the balance of my time.

Mr. BYRNE. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Utah (Mr. STEWART), a colleague of ours and a distinguished veteran.

Mr. STEWART. Mr. Speaker, I would like to thank my friend, the gentleman from Alabama, for giving me time to express the importance of repealing what has been one of the most destructive laws ever written.

The intent of ObamaCare was to make health care more accessible and more affordable and, in fact, has done exactly the opposite.

I have heard from hundreds of my constituents who tell me how it has impacted their lives. A friend of mine from Bountiful, their premiums have doubled—have doubled. A small business owner in the southern part of my district, who found they could not get insurance at all, their plan was entirely taken away.

This law was built on a foundation of deceptions. We were told: ''If you wanted to keep your doctor, you could keep them.'' We were told: ''If you wanted to keep your plan, you could keep it.'' We were told it would reduce costs by an average of $2,500 per family.

We now know that all of that is not true and that they knew at the time they passed this law that it was not true.

All of us want to take care of those who have preexisting conditions; all of us want to provide insurance to the uninsured. We can do better.

Mr. SCOTT of Virginia. Mr. Speaker, I continue to reserve the balance of my time.

Mr. BYRNE. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Washington (Mr. NEWHOUSE), another freshman in this House.

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Mr. NEWHOUSE. Thank you to the gentleman from Alabama.

Mr. Speaker, since its hasty passage in 2010, ObamaCare has been detrimental to American families, businesses, and taxpayers. Americans were promised that they could keep their health care plans and see their premiums decrease. Instead, they have been irreparably harmed by the elimination of their existing health care plans and pushed into a one-size-fits-all health care system—a system that fails to consider individual needs and that eliminates choice of physicians while families are faced with soaring premiums.

The cost of implementing ObamaCare has crippled businesses, hurting the drivers of our economy. Small and large businesses have been forced to pass these increased costs on to their employees, resulting in a decreased workforce, lower wages, and delayed hiring. ObamaCare has hurt economic growth at a time when we can least afford it, damaging our fragile economic recovery.

Put simply, a government-centered approach to health care is not the answer. I urge my colleagues to join me in supporting this legislation.

Mr. SCOTT of Virginia. Mr. Speaker, I reserve the balance of my time.

Mr. BYRNE. Mr. Speaker, I yield 1 minute to the gentleman from North Carolina (Mr. WALKER), another freshman Member and a gentleman who brings great experience to his position in this House.

Mr. WALKER. Thank you, Mr. Chairman.

Mr. Speaker, ''middle class economics'' is the President's new catchphrase and method to pay lip service to helping American families—more smoke and mirrors.

In November, voters spoke loudly and clearly in sending 58 Members to Washington. I made a promise over these past 2 years that I would come to Washington and stand up. Today, for the first time, I am proud to vote for a full repeal of this law.

The ACA has caused insurance premiums to skyrocket for working families in North Carolina. It continues to weigh on our economy and on our job creators. This law is seriously flawed in the fact that the President's administration has overreached dozens of times in trying to change and fix the law themselves. Yes, the damaging effects of ObamaCare are so ingrained in the fabric of this law that fixing it is not an option. That is why I urge my colleagues to vote for H.R. 596 for a full repeal.

Mr. SCOTT of Virginia. Mr. Speaker, I believe the gentleman from Alabama is prepared to close.

Mr. BYRNE. I am, and I reserve the balance of my time for closing.

Mr. SCOTT of Virginia. Mr. Speaker, I yield the balance of my time to the gentleman from Oregon (Mr. BLUMENAUER).

The SPEAKER pro tempore. The gentleman is recognized for 1¾ minutes.

Mr. BLUMENAUER. Thank you, Mr. SCOTT.

Mr. Speaker, this is the 56th time we have gathered on the floor, talking past each other. The legislation that is offered by our Republican friends—a repeal—does not have any alternative. Frankly, everybody knows that it is not going to pass. If it were to be enacted into law, the President would veto it.

The facts don't justify the rhetoric. We have 10 million previously uninsured Americans. We have the lowest health care spending growth rate in 50 years. Health care premium inflation is growing at historic lows, and Medicare premiums are lower than they were before the ACA was passed, and it held steady for 3 years.

What should we be doing? Instead of trying to make the ACA worse and rail against it and get nowhere, I would suggest that we deal with things that we can agree upon.

I have been working with my colleague Mr. ROE on bipartisan legislation to deal with providers helping with end-of-life care for patients; with Representative ROSKAM, a Medicare Common Access Card, bipartisan legislation to establish a smart card pilot project to eliminate Medicare fraud; with Representative BLACK, a value-based design for better care which would establish a pilot project to test reducing or eliminating cost-sharing for seniors with high-value medications. These are things that we could do this month that would make a difference.

I hope that we stop this charade and get down to cases. The American public deserves our best efforts not to debate but to make health care better and to build on the foundation of the Affordable Care Act.

Mr. SCOTT of Virginia. I yield back the balance of my time.

Mr. BYRNE. Mr. Speaker, I yield myself such time as I may consume.

In closing, I have been listening carefully to the debate today. We have heard a lot from both sides, but at the end of the day, this is not about anybody in this House; this is about the American people. This is about something that is so very fundamentally important to them—their health care.

We took away the health care system that worked for 80 percent of the people of this country to fix a problem that we today know we fix for only 1 percent of the American people. Only 3 million new Americans have gotten on this new health care plan who didn't have health insurance before. That is 1 percent of the American people. We threw out the health care plan that worked for 80 percent of Americans to fix a problem for 1 percent of Americans.

Look what it has done.

It has wrecked lives. I have here from my office a sampling of emails and letters, which don't include the phone calls from people who came up to me in the over 30 town hall meetings I did last year—women with tears in their eyes because they couldn't pay their health insurance, because they couldn't pay the deductibles when they went to the doctor or the hospital; a man who forwent going to get a particular type of surgery he needed because he couldn't pay the deductible. That is what this law has done to the people of America. It has victimized the people of America.

There is no way to fix this law. It is fundamentally flawed. We could go in and fix a problem piecemeal here and find a piecemeal resolution there. We would end up with another Frankenstein. The American people don't want Frankenstein. They don't want Groundhog Day either. They don't want the President to continue to throw stuff at them over and over again that doesn't work. They deserve a health care system that they control with their doctors, picking the health insurance programs that they want, that are not mandated by the Federal Government and that fit into their budgets. It empowers them instead of having their power taken away by some faceless bureaucracy in Washington.

Let's repeal this terrible ObamaCare law. Let's put in place a process that will give us a solution, one that works for people and what they really need. Let's get on with the business that we are here to do in order to make lives better for the American people.

I thank the majority leader, and I thank the Speaker, and I thank the whip for bringing this bill to the floor. I thank them for allowing my bill to be the one to be the package that we use today, and I ask all of my colleagues to vote ''yes'' on this important bill.

Mr. Speaker, I yield back the balance of my time.

Mr. SCHOCK. Mr. Speaker, I rise in support of H.R. 596 so the flawed Obamacare program can be reformed in order to focus on patient-centered care.

NANCY PELOSI infamously said ''We have to pass the [health care] bill so that you can find out what's in it.'' Nearly five years later, the verdict is in: Obamacare continues to be a flawed program that created over $1.8 trillion in new spending. It imposed over $1 trillion in new taxes, including on those families who make less than $250,000 a year—violating another promise made by President Obama. In fact, Obamacare's tax increases will be borne primarily by middle class Americans during a time of sluggish economic activity.

Instead of allowing individuals and families to take control of their own healthcare decisions, the health law contained 18 separate tax increases, fees and penalties that imposed mandate after mandate and resulted in over 20,000 pages of new rules and regulations. I believe a far simpler way to fix our broken healthcare system is to give individuals and families control over their own healthcare choices, such as through health savings accounts or incentives to live healthy lifestyles. Investment in prevention and wellness will not only lead to longer lifestyles for Americans but also reduce the overall cost of healthcare.

In my home state of Illinois, we have already seen the effects of Obamacare in effect. According to the Illinois Policy Institute, since 2011, Illinois has lost the equivalent of 66,000 across multiple sectors due to reduced hours or less workers in the workplace due to Obamacare's employer mandate. Illinois families in 101 out of the state's 102 counties are facing, on average, higher premium costs—in some cases those premiums are nearly 120% higher than they were before Obamacare according to the Manhattan Institute.

Finally, the President's health care law creates a limited religious conscience exemption that limits the exemption to a few select faiths. Legislation such as my EACH Act bill modestly expands the exemption so that more individuals who choose not to seek healthcare will not be fined for violating their religious beliefs.

I am proud to support this important legislation and I look forward to working with my colleagues on the Ways and Means Committee on solutions to better reform our healthcare system that protect the doctor-patient relationship while also incentivizing more people to take control of their own healthcare.

Ms. ROYBAL-ALLARD. Mr. Speaker, I rise in opposition to this 56th Republican attempt to repeal the Affordable Care Act.

We have been down this road before, with the same misleading rhetoric that does not reflect the true benefits of the health reform law.

This legislation is being brought to the Floor in order to give Republican Freshmen a voting opportunity to repeal the ACA, despite the fact that polls have repeatedly shown high satisfaction rates with the newly mandated coverage opportunities under Obamacare, even among Republicans.

My colleagues speaking against the ACA today are not listening to these polls, or to thousands of newly insured individuals in my 40th Congressional District who are thrilled with their new access to health care.

In my district and hundreds of other poor and minority communities across the country, the benefits of expanded coverage and provisions to address health disparities are already changing lives.

ACA opponents are not listening to women from all economic backgrounds who are no longer paying higher premiums because they are female, and who now have prenatal care as a covered benefit.

They are not listening to millions of seniors who love their free preventive services and lower prescription drug costs, or the disabled community that no longer has to live in fear of being denied coverage for pre-existing conditions or because they've reached lifetime limits.

Mr. Speaker, the ACA is working for my constituents, for women and minority communities, and for seniors and people with disabilities.

It is time for my Republican colleagues to listen to these Americans who DO NOT want to lose these health benefits.

This bill is the same misguided legislation Republicans forced through the House in

2011, 2012, and 2013. And like those bills, it has absolutely no chance of passing the Senate or being signed into law by the President.

Let's stop wasting Congressional time and taxpayer's money and find solutions to the other complex issues facing our nation such as creating jobs and strengthening our economy.

I urge my colleagues to vote no on H.R. 596.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 70, the previous question is ordered on the bill, as amended.

The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

MOTION TO RECOMMIT

Mr. DESAULNIER. Mr. Speaker, I have a motion to recommit at the desk.

The SPEAKER pro tempore. Is the gentleman opposed to the bill?

Mr. DESAULNIER. I am opposed in its current form, Mr. Speaker.

The SPEAKER pro tempore. The Clerk will report the motion to recommit.

The Clerk read as follows:

Mr. DeSaulnier moves to recommit the bill H.R. 596 to the Committee on Ways and Means with instructions to report the same back to the House forthwith, with the following amendment:

Add at the end of the bill the following:

**SEC. 4. PROTECTING WOMEN, SENIORS, AND MIDDLE CLASS FAMILIES FROM THE HARMFUL EFFECTS OF HEALTH REPEAL.**

The provisions of this Act shall not take effect unless and until such date that it is certified that such provisions will not result in—

(1) discrimination by health insurance issuers and group health plans on the basis of pre-existing conditions or gender, including in the form of higher premiums for women or loss of benefits such as mammograms, cervical cancer screenings, prenatal care, and commonly prescribed contraception;

(2) higher premiums or out-of-pocket costs for seniors for prescription drugs under prescription drug plans under the Medicare program under part D of title XVIII of the Social Security Act (42 U.S.C. 1395w–101 et seq.); or

(3) a tax increase on middle class families through the loss of subsidies to purchase health insurance coverage.

Mrs. LOVE (during the reading). Mr. Speaker, I reserve a point of order against the motion to recommit.

The SPEAKER pro tempore. A point of order is reserved.

The Clerk will read.

The Clerk continued to read.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California is recognized for 5 minutes in support of his motion.

Mr. DESAULNIER. Mr. Speaker, I have listened intently to the comments of my friends on the other side of the aisle, and I must say that it has not been my experience where I come from, but maybe it is a little different with my being from California.

This is the final amendment to the bill, which will not kill the bill or send it back to committee. If adopted, the bill, as amended, will immediately proceed to final passage.

Mr. Speaker, H.R. 596 would eliminate critical benefits and health care coverage from hardworking American families. In addition to taking away Americans' health care security, this bill would increase the deficit, make health care more expensive, and degrade the quality of care that patients are now receiving. If adopted, my motion to recommit would ensure that some of the most important protections of the Affordable Care Act would remain in effect.

Yesterday, as others have mentioned, was Groundhog Day, but, today, we are Bill Murray, living the same votes over and over again—in fact, as has been mentioned, 56 times over and over again.

This motion would protect existing law by continuing to, one, prevent insurance companies from discriminating based on preexisting conditions and gender or cutting health benefits for women; two, prevent increases in Medicare D prescription drug costs for seniors; and three, prevent a tax increase for middle class American families by the taking away of subsidies to purchase health insurance.

Mr. Speaker, I am a former Republican and a small business owner who supports the Affordable Care Act and who has seen the benefits for small business. I have also seen the benefits for the economy and for the 7 million Californians who do not have health insurance. Many individuals who wanted health insurance were unable to obtain it, either because it was too expensive or because they had preexisting conditions, including nearly 126,000 people in my home county in the Bay Area.

One of these individuals in my district is a young woman named Emily. Emily was born with a congenital heart defect, and as a result, she will need regular monitoring and treatment by a cardiologist. Were it not for the Affordable Care Act, Emily would have been left without critical health care and the necessary treatment for the remainder of her young life.

Her situation is not unique. Approximately 130 million other Americans no longer have to worry about being denied health care coverage because of their health status. Additionally, Mr. Speaker, under the Affordable Care Act, almost 8 million seniors have saved nearly $10 billion on prescription drugs, and under the Affordable Care Act, many people paid less for their insurance in 2014 than in 2013.

Before the law was enacted, health care premiums were increasing exponentially, much faster than college tuition, workers' wages, and inflation. Once the law took effect, premium increases for plans slowed down substantially. Simply, this law is saving Americans money. This year in California, with 2 weeks left to go in open enrollment, more than 273,000 Californians have joined the nearly 1 million covered California customers who were enrolled in 2014. Nearly nine of 10 enrollees received some kind of financial help in 2014, ensuring that Californians can afford the kind of coverage that they need and want.

Repealing the law without including these three protections will cost more than we can afford—$100 billion over the next 10 years, until 2022, and more than $1 trillion in the following decade. It would also discriminate against women in the form of higher premiums, and it would make it impossible for many women to get the care they need.

Mr. Speaker, every American family deserves a plan that covers essential health benefits, like hospital care, emergency care, care for pregnant women, and a plan that won't bankrupt them or this country just because an illness or an accident occurs. Every American family deserves to know that they won't be kicked off their insurance for a preexisting condition or be subjected to lifetime caps that take away their benefits when they need them the most.

Health care, Mr. Speaker, is not a Democrat or a Republican issue; it is an American issue and a human issue. We are here to ensure that every American continues to have access to quality, affordable health care. If we can produce a bill that fulfills the goals set out by the Affordable Care Act, it doesn't matter who wrote or signed the bill. But repealing the Affordable Care Act without including these important protections for hardworking, middle class American families is irresponsible and reckless.

I yield back the balance of my time.

Mrs. LOVE. Mr. Speaker, I withdraw my reservation of a point of order.

The SPEAKER pro tempore. The reservation of the point of order is withdrawn.

Mrs. LOVE. Mr. Speaker, I claim the time in opposition to the gentleman's motion.

The SPEAKER pro tempore. The gentlewoman from Utah is recognized for 5 minutes.

□ 1630

Mrs. LOVE. Mr. Speaker, I would like to ask a few questions of my colleagues as it relates to health care.

Has Congress made health care more accessible and affordable? Has the quality of care improved? No.

Do hardworking families and our children deserve better? Absolutely.

Now is the time to repeal and replace this disaster of a law. This law has hurt more poor and more middle-income families.

I received a letter from a constituent. Mr. Speaker, the letter states:

I wonder if you would like a real-life example of what ObamaCare is doing to families. My daughter and her husband are expecting their second child. They were planning on moving from their small apartment to a small home. Their insurance has doubled under ObamaCare, and they will pay $500 a month. Their deductible will be $10,000. They

will have to pay each doctor for a phone call plus $50 copayment. No specialists are covered. They barely are getting by as it is. Because of their insurance costs, there is no chance of getting into a home or even a bigger apartment. How can insurance for everyone be of help if it causes such a financial burden on families? My daughter is so depressed. She isn't even excited about her upcoming child because she is so worried about their future. If we had the means to help, we would, but we don't. My heart breaks for her. How can Congress help?

Sincerely, Paula.

Now, people talk about tweaking ObamaCare. I ask: How do you tweak that to help that family?

The American people deserve better, Mr. Speaker. Imagine a health care system that is centered in service. Imagine a health care system that is measured by outcomes, not by Washington dictates.

I know that it is hard for some of my colleagues to contemplate, but imagine, if you will, for me, Mr. Speaker, a health care system where dollars and decisions are left with patients, their families, and their doctor. I see an American exceptionalism at work, where families and innovation and compassion drive the highest quality of care.

Members of Congress, Representatives of the people, do not settle. Don't settle for just tweaking a bad program that hurts more than it helps, that controls more than it empowers. There are too many Members of this body that are content with just getting this health care law to be good enough. I am here to tell you that, for the American people, good enough just isn't good enough.

I reject the downward spiral of mediocrity and government takeover of health care. I refuse to pursue the administration's path of fear, blame, and failure. I oppose this motion to recommit a bad health care law.

It is time for us, for this body, to advance the policies and the principles which have lifted more people out of poverty, fueled more freedom, and driven more dreams than any other set of principles in the history of the world. I ask this body to come with me, boldly step forward and unleash that American exceptionalism that produces the health care solutions that this family is worthy of and every hardworking American in this country is worthy of.

May God continue to bless this great, exceptional country.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. Without objection, the previous question is ordered on the motion to recommit.

There was no objection.

The SPEAKER pro tempore. The question is on the motion to recommit.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. DESAULNIER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 9 of rule XX, the Chair will reduce to 5 minutes the minimum time for any electronic vote on the question of passage of the bill.

The vote was taken by electronic device, and there were—yeas 179, nays 241, not voting 13, as follows:

[Roll No. 57]

YEAS—179

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle (PA)
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle (PA)
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Levin
Lewis
Lieu (CA)
Loebsack
Lowenthal
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Wilson (FL)
Yarmuth

NAYS—241

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emmer
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice (GA)
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Katko
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaMalfa
Lamborn
Lance
Latta
Lipinski
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price (GA)
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—13

Chu (CA)
Denham
Duckworth
Gutiérrez
Huffman
Lee
Lofgren
Lowey
Nunnelee
Roe (TN)
Stutzman
Welch
Young (AK)

□ 1657

Messrs. GOSAR, BOST, COFFMAN, SALMON, LUETKEMEYER, ROYCE, and ROSKAM changed their vote from ''yea'' to ''nay.''

Mr. SWALWELL of California and Ms. SLAUGHTER changed their vote from ''nay'' to ''yea.''

So the motion to recommit was rejected.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. SCOTT of Virginia. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 239, noes 186, not voting 8, as follows:

[Roll No. 58]

AYES—239

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emmer
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice (GA)
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (IA)
Young (IN)
Zeldin
Zinke

NOES—186

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle (PA)
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Dold
Doyle (PA)
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Katko
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Levin
Lewis
Lieu (CA)
Lipinski
Loebsack
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Poliquin
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—8

Chu (CA)
Duckworth
Gutiérrez
Lee
Lofgren
Nunnelee
Roe (TN)
Young (AK)

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1705

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. GUTIÉRREZ. Mr. Speaker, I was unavoidably absent in the House chamber for votes on Wednesday, January 28, 2015 through Tuesday, February 3, 2015.

Had I been present on Wednesday, January 28, 2015, I would have voted "yea" on roll call vote 49, and "nay" on roll call vote 50 against final passage of H.R. 351, the LNG Permitting Certainty and Transparency Act.

Had I been present on Monday, February 2, 2015, I would have voted "yea" on roll call vote 51, "yea" on roll call vote 52, and "yea" on roll call vote 53.

On Tuesday, February 3, 2015 I would have voted "nay" on roll call vote 54, "nay" on roll call vote 55, and "nay" on roll call vote 56. I would have voted "yea" on roll call vote 57, and finally I would have voted "nay" on roll call vote 58 in strong opposition to H.R. 596, the 56th vote to repeal the Patient Protection and Affordable Care Act.

PERSONAL EXPLANATION

Mr. ROE of Tennessee. Mr. Speaker, I was unable to vote today because of a serious illness in my family. Had I been present, I would have voted: Roll Call #57—Nay; Roll Call #58—Yea.

## MESSAGE FROM THE SENATE

A message from the Senate by Ms. Curtis, one of its clerks, announced that the Senate has passed without amendment a bill of the House of the following title:

H.R. 203. An act to direct the Secretary of Veterans Affairs to provide for the conduct of annual evaluations of mental health care and suicide prevention programs of the Department of Veterans Affairs, to require a pilot program on loan repayment for psychiatrists who agree to serve in the Veterans Health Administration of the Department of Veterans Affairs, and for other purposes.

## ELECTING MEMBERS TO CERTAIN STANDING COMMITTEES OF THE HOUSE OF REPRESENTATIVES

Mr. BECERRA. Madam Speaker, by direction of the Democratic Caucus, I offer a privileged resolution and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 77

*Resolved*, That the following named Members be and are hereby elected to the following standing committees of the House of Representatives:

(1) COMMITTEE ON OVERSIGHT AND GOVERNMENT REFORM.—Mr. Welch and Ms. Michelle Lujan Grisham of New Mexico.

(2) COMMITTEE ON SCIENCE, SPACE, AND TECHNOLOGY.—Mr. Perlmutter and Mr. Tonko.

(3) COMMITTEE ON SMALL BUSINESS.—Ms. Adams.

(4) COMMITTEE ON VETERANS' AFFAIRS.—Mr. Walz and Mr. McNerney.

Mr. BECERRA (during the reading). Madam Speaker, I ask unanimous consent that the resolution be considered as read and printed in the RECORD.

The SPEAKER pro tempore (Ms. MCSALLY). Is there objection to the request of the gentleman from California?

There was no objection.

The resolution was agreed to.

A motion to reconsider was laid on the table.

## APPOINTMENT OF MEMBERS TO THE HOUSE DEMOCRACY PARTNERSHIP

The SPEAKER pro tempore. The Chair announces the Speaker's appointment, pursuant to section 4(b) of House Resolution 5, One Hundred Fourteenth Congress, and the order of the House of January 6, 2015, of the following Members to the House Democracy Partnership:

Mr. ROSKAM, Illinois, Chairman
Mr. FORTENBERRY, Nebraska
Mr. BOUSTANY, Louisiana
Mr. CONAWAY, Texas
Mr. BUCHANAN, Florida

Mr. CRENSHAW, Florida
Mrs. BROOKS, Indiana
Mrs. BLACK, Tennessee
Mr. RIBBLE, Wisconsin
Mrs. WALORSKI, Indiana
Mr. ZELDIN, New York

## MIDDLE CLASS ECONOMICS

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from California (Mr. GARAMENDI) is recognized for 60 minutes as the designee of the minority leader.

Mr. GARAMENDI. Madam Speaker, and Members, wow. There are actually people here in the audience and Members.

We have talked a lot about middle class economics, but why? Why is it important? Why did the President raise this issue in his State of the Union? What is this all about?

We are going to spend some time here today working our way through middle class economics, and some of my colleagues may join me, and I asked the Republicans, if they want to join, they could too.

It is okay, Madam Speaker, that they are not listening. But this is really an important issue.

So why is middle class economics important?

What is it all about?

It is really about driving the economy. If you want to create jobs in America, if you want to have economic growth in America, the middle class of America, the great middle class, the millions upon millions of men and women that are working families, they need to grow. And so middle class economics is all about growing the American economy, because that is where demand is created.

We often talk about the job creators, and businesses really create product and they create profit. But it is the middle class that actually creates the growth in the economy by creating the demand. So if we are able to grow the middle class, grow the paychecks, increase the vast number of Americans who are in the middle class, we will create the jobs. So that is why middle class economics is on our agenda.

□ 1715

There are other pieces of this. It leads to higher wages. So when you increase the middle class, you increase the higher wages, creating the demand.

So that is what this is all about. It is about opportunity. It is about growing the ability of the working families in America to make it, to have a shot at education, to have a shot at a home. So that is what we are going to talk about today in the next 46 minutes, about middle class economics. The President brought this issue to us. We are going to spend some time discussing this.

I notice that our fearless whip, STENY HOYER of Maryland, has joined us.

Mr. HOYER, please, let's get into this conversation.

Mr. HOYER. I thank the gentleman for yielding.

The reason I wanted him to yield is because I want to thank him. I don't know that there is any Member of this body or, frankly, the other body who has spent more time talking with the American public to let them know how focused we are on making sure that Americans can Make It In America. And the middle class, of course, is critically important.

I will tell the gentleman from California, he and I have both traveled outside this country—I think I have been to probably 60 nations—and every nation has its rich people, and every nation has its poor people. America's genius and success was posited, however, on the broad middle class that we had, that made America. They are the ones whose work and intellect and creativity and innovative spirit and entrepreneurial energy made America what it is and what it has been.

I want to congratulate the gentleman from California (Mr. GARAMENDI) for the fidelity that he has shown over the years to this critically important objective of making sure that the middle class, working Americans have the ability to make it and to increase their standard of living over that of their parents. That has always been the genius of our country. It needs to continue to be. And the President, of course, has offered, as the gentleman points out, an agenda that is focused on working men and women in this country, making sure that they have the ability to live quality lives and have their children pursue education and do even better than their parents; and as they do so, their country, this great country of ours, will do better as well.

So I wanted to rise to thank the gentleman for his, as I say, fidelity to this objective, which is, after all, the critical agenda for our country.

Mr. GARAMENDI. I thank you, Mr. HOYER. Nobody has been at this longer than you. You have been working in the Halls of Congress and across this Nation advocating for the middle class.

Both Democrats and Republicans now agree that the middle class in America has stalled out. They have not seen the increase in their paychecks. In fact, in the last couple of years, there has actually been a decrease on the average middle-American paycheck.

So what we are all about and what the President proposed to us in his State of the Union was middle class economics. And it is critically important, if we want to grow the jobs in this Nation, that we have got to pay attention to the middle class and how they can improve themselves, how they can have a higher standard of living, have greater paychecks. In doing so, we will grow this economy. We will be able to deal with the deficit. There are numerous ways in which this can be done.

We need to look for higher wages. Infrastructure is critically important. In the budget that the President just put forth yesterday, there is a major advancement that he is proposing for infrastructure, a 6-year program, over $600 billion in that 6-year period—$673 billion building our roads, rebuilding our bridges, our ports, our communication systems. When you do that, you actually are going to grow the economy, and it is the middle class that will have those jobs.

So this is all about growing the middle class, otherwise known as middle class economics. That is what we are going to debate this year.

We are going to spend the next several months as we put together the budget first and then the appropriations and the various pieces of legislation—for example, reauthorizing the surface transportation program. We want to structure that. We, the Democrats, want to structure that in such a way that the principal benefits flow to the working families of America so that they can see greater wages, so that they can see greater opportunities. And there are many, many pieces to this puzzle that we need to pay attention to. So we want to grow American jobs.

The gentleman from Maryland (Mr. HOYER) was here just a moment ago. And he has been talking about this theme of making it in America, which builds on the Buy America laws which have been in effect for more than 40 years. Our taxpayer money must be spent, should be spent on American-made equipment. We will come to this in a little more detail, but these are the fundamental parts of growing American jobs. You make things in America, whether that happens to be a movie or a new app for your iPhone or a train or a plane, whatever it happens to be. Make it in America; and use our taxpayer money to buy American-made equipment.

This one here: a well-educated workforce is fundamental to growing any economy, whether it be in Bangladesh or in the United States, the education of the workforce. If you have a well-educated workforce, your economy will grow.

America used to have the best education system in the world. We are not there anymore. We have fallen way off that power curve. We have got to establish America's position as having the best educated workforce in the entire world.

Now, the President, in his State of the Union and as part of the middle class economics, spoke to this issue when he talked about community colleges, all Americans being able to get 2 years of education at a community college, perhaps to pick up an AA degree or some skill set, and that it be free. What an important, important element that is in having a well-educated workforce. There are many, many other pieces to this educated workforce, and we will, over the next several weeks and months, be talking about this as we go forward.

Research and development. Well, I am from California, and I represent a

major research university, the University of California, Davis. You can just see spreading out from that university new businesses in biotechnology, biomedical, biopharmaceutical. We are seeing energy programs and new companies being created from the research at the universities. This is not just at Davis, California, but certainly Silicon Valley is a prime example of the skill being used all across this Nation, and other research institutions around the Nation. These are the ways in which you grow American jobs.

We talked earlier about infrastructure. We will come back to that.

Trade policies are also critically important. We will be debating the Trans-Pacific Partnership here and the TTIP, the European trade agreement. In those trade agreements, it is vitally important that we don't give away the American jobs. It will be a great debate. Very important. We have seen what happened with NAFTA and other trade agreements when we have simply allowed the offshoring of American jobs.

So these are six pieces of how you grow American jobs.

I notice my colleague from Vermont is here.

If you would care to join us in this conversation, I would be delighted.

Mr. WELCH. Thank you for doing this.

One of the things that we have to recognize in Congress is that policies really make a difference.

Wages have stagnated; people haven't had a raise in 15 or 20 years; and there are a lot of reasons for that. Some of it is globalization. A lot of it has to do with the weakening bargaining power of unions that were so helpful in improving living standards for everyday Americans, not just for the members of the union but for others who benefited by the commitment of unions to good jobs, good wages, and safe working conditions.

There are pressures with globalization that have reduced bargaining power. It has made things cheaper to buy but has really helped contribute to lower wages. The bottom line is that we need policies in order to focus attention, as you are saying, on the middle class and improving their purchasing power, giving them what the middle class has always had: a wage or a salary where, at the end of the month, they can pay their bills, set aside a little money for college, set aside a little money for a vacation, set aside a little extra money for retirement. That is a basic contract that we should be making.

We have got a variety of things where we have created policies and undercut the capacity of the middle class to sustain itself.

The tax policy is out of control. It is really outrageous when we have been passing these Bush tax cuts that are skewed very heavily toward high-end folks with the notion and the assertion that it will create jobs through trickle-down economics. It hasn't worked.

When we have entered, in some cases, into trade agreements, it didn't take into account the environmental and labor standards that are so essential to having a level playing field. American workers are willing to compete, but it has got to be on a level playing field.

Then basic things that a confident nation always invests in, even in tough times, like education and the future. We grew up, and those ahead of us had the GI Bill. They came back from serving their country and got a free education. But you know what? They paid it back, and then some, with their productivity.

We established Medicare and Social Security that has provided a safety net for older people. We are trying to make inroads now into providing a secure health care system for everybody through the Affordable Care Act, but we have a big challenge in bringing down those costs.

We have an opportunity to invest in, as you were saying, not just the higher education, but job training for people so that they have the skills that we need to compete in a modern economy.

And the infrastructure that you mentioned, how is it that in this country, where we have extraordinary engineers, extraordinary needs, and bipartisan agreement that we have to rebuild our roads and our bridges, extend broadband throughout the country, including in rural areas of Vermont and, by the way, rebuild our schools, rebuild our hospitals, all of these are institutions that are essential to the well-being of local communities that are where the middle-class people live, so I really appreciate your focus on this.

What is frustrating, I think, for America and for a lot of us in Congress is that our focus on policy is how many more tax cuts should we give to folks who don't need them, how much more should we spend on things that don't reward investment and hard work, and for how long are we going to continue this disinvestment in science, in research, in medical research, in infrastructure, and in education.

I am pretty amazed, as I know you are, that young people getting out of college, on average, have a $30,000-plus debt. Many have accumulated debts in the range of $100,000, and a lot of those debts are shared by their parents who have cosigned. They pay higher interest rates. A lot of those parents who have finally paid down their house and were looking forward to maybe taking a 2- or 3-week vacation, maybe a cruise, suddenly find themselves saddled, along with their kids, with these very high monthly payments for education.

So there is a bipartisan desire, I think, to help the middle class, but we are in a debate about what the solutions are. Essentially, one argument is that no taxes, no regulation, will somehow lift all boats. I don't think I have seen evidence that that is the case. Another argument is you have got to make sensible, prudent, disciplined decisions about how and where to invest in the future of this country.

So, Mr. GARAMENDI, I salute you for your advocacy here and for speaking so eloquently on this issue that I think is the issue of our time.

Mr. GARAMENDI. Mr. WELCH, your representation of the State of Vermont is unparalleled. You have been at this for some time, and you have so correctly pointed out all of the various policies that are in law today that hold back the middle class.

You have talked about the tax policy that basically supports those at the very, very top—the one-percenters, the 10 percent—and forces, therefore, the tax burden onto the middle class and the poor. The President is suggesting a shift in that, and we are going to debate that here—and we should. But again, that is one more piece of this middle class economics to grow American jobs. These are all public policy issues, the Make It In America, the Buy America provisions, the education.

You raised something that has been very, very much on my mind. I have kids that have school debt from going to medical school or nursing school or even just to the 4 years, and I often wonder, the great majority of the student debt is actually owned by the Federal Government. I think about 60 percent of the $1 trillion-plus in student debt is owned by the American public.

□ 1730

We refinance everything. We refinance our credit cards, and we refinance our home, seeking a lower interest rate. I just wonder: Why don't we refinance the student debt?

Mr. WELCH. That is exactly right.

Mr. GARAMENDI. We could borrow money at less than 2 percent now for 10 years, probably 3 or 4 percent for 20 years. Why don't we go out and borrow at 2 percent, refinance that debt, and let them pay 2½ rather than 6, 7, 8, and 9 percent?

Mr. WELCH. If I may, Mr. GARAMENDI, you are so right. One of the upsides of this really tough economy is that interest rates have gone down, and a lot of folks have been given a little breathing room by being able to reduce their interest rates on their mortgage from 7 or 8 percent down to 3½ percent. That is real money in their pocket.

Mr. GARAMENDI. You bet.

Mr. WELCH. Why not allow students and parents who have cosigned on students loans that same opportunity to save a few bucks? They will pay those loans back.

So I salute you.

Mr. GARAMENDI. Refinance your home; refinance your student debt. It is a bookkeeping procedure at the Federal level. Right now, those students are paying a very, very high interest rate to the U.S. Government, and they are held back. This is a major part of the middle class.

Mr. WELCH. Well, I thank you for your leadership.

Mr. GARAMENDI. Mr. WELCH, thank you for joining us.

Madam Speaker, I am going to carry on here for a few more moments. We are going to talk about a few other things that go into this. That previous placard had Make It In America as one of the principal ways of growing American jobs, and it is really true.

Madam Speaker, I want to give you just two examples of how Make It In America and Buy America creates American jobs—or not. Two bridges, one on the west coast, the San Francisco-Oakland Bay Bridge, and one on the east coast—New York, actually—the Tappan Zee Bridge in New York.

This bridge in the San Francisco Bay was supposed to be about a $3 billion project. It turned out to be over $6 billion. Instead of buying American steel, they went out and bought Chinese steel. It was supposed to be 10 percent cheaper. It turned out to be far, far more expensive. It became over budget.

It did create 3,000 jobs in China and serious problems with the quality of the steel, the welds, and other problems. Anyway, it wound up almost $4 billion over budget, more than 100 percent more expensive. That was San Francisco. This is my State. This is a major controversy and, if you will, a major scandal in California.

In New York, the Tappan Zee Bridge is now under construction. It is 100 percent U.S.-made steel. It is coming in at about $3.9 billion total, under budget, and there were 7,728 American jobs as a direct result of the decision made by New York to buy American, to make it in America.

This is the most clear example that I have been able to find—west coast, east coast—and the east coast is making the right decision of buying American, using the American taxpayer dollars in the case of both the commuters in New York or the commuters in San Francisco Bay, paying their money to China in the case of San Francisco Bay Bridge, or to American workers and American steel companies, a prime example of why Make It In America is so critically important because it is all about those middle class jobs.

It is about the steelworkers, the ironworkers, and the men and women that are doing the welding that are in the shops and in the steel mill harvesting or mining the coal and the iron ore to make the steel.

Keep this in mind, America: when we talk about Make It In America policies and when we talk about middle class economics, we are talking about bringing it home, keeping it home, and building our own economy.

China can do what they want to do, but let them do it with somebody else's money and not with American taxpayer money, so we are going to push this policy hard.

I want to give you another example, Madam Speaker, and that is that at this moment Amtrak—we know what Amtrak is. It is just the American passenger rail system. Amtrak is requesting a waiver from the Department of Transportation on the Buy America requirements for the purchase of 28 new high-speed rail train sets for the east coast corridor.

Amtrak correctly wants to make the trip between Washington, D.C., and Boston a whole lot faster. To do that, they want to transition to a whole new type of train—not the Acela, which was the last version of high speed. They want to go to a real high-speed system here on the east coast.

However, we are talking about tens of millions of dollars to be spent on these high-speed train sets, 28 of them. They want to waive the Buy America requirements—waive the Buy America requirements.

What happened with the Bay Bridge, the San Francisco-Oakland Bay Bridge when they did that? The jobs went overseas. I am saying: No way, no how, are you going to waive the Buy America requirements. They say: Oh, but you don't understand. America doesn't make high-speed trains.

Yes, that is correct because we have never had them in the United States, and we never will if we waive the Buy America requirements both for the high-speed rail on the east coast or the high-speed rail on the west coast.

No way, no how, Madam Speaker, should we allow American taxpayer money to be spent overseas. Build it in America, make it in America, and hold on to those Buy America requirements. They are legal. They have been in law for nearly half a century. Keep them.

Amtrak, I am sorry, but I have talked to the companies that could manufacture these trains. They say: Of course we can make them in America. It is going to take a little while. We have got to build the factory. We can do it. If it is required, we will do it.

I will give you an example of how it actually happened. In the stimulus bill, the American Recovery Act, there was a provision, some $700 million for Amtrak to purchase 100 percent American-made locomotives—these are the electric locomotives that will be operating on the east coast corridor, 100 percent American made, $700 million, about 80 different trains, 80 different locomotives.

Siemens looked at that and said: Hmm, 700 million, that is a lot of money, 80, 90 trains or locomotives, we can do that.

They took their light-rail factory in Sacramento, California, about a mile from my district, a few miles from my home, expanded it, and began the process of making it in America. Those new locomotives are 100 percent American made by a German company operating in the United States.

Don't tell me you can't do it. Don't tell me that you cannot make aluminum frames for these trains, that you can't make wheels and brake systems in the United States. This is the United States. We used to be—and we must be—at the top of the pack. We can be if we bring it home, if we keep it home, and if we make it in America.

Remember. Remember this fiasco in California. Remember what happens when you went to China to buy steel, 100 percent over budget, and a lot of ongoing problems as to the safety of this bridge going forward.

Remember New York. They said they were going to buy American. It comes in under budget with 7,728 jobs in the United States, built by Americans. I am not proud of California in this situation.

Madam Speaker, there are a couple of other things that are on my mind. As I said, why middle class economics? It is about growing the demands. It is about rebuilding the middle class, giving the purchasing power to the middle class, and growing their wages.

Grow the paycheck. Grow the paycheck. Grow the jobs. Grow the paycheck. These are all ways in which we can raise the wage. There is this little #raisethewage, so when you see that out there on your Twitter account, you know what it is about. Grow the paycheck, buy American, education—job training and education.

This is a big one: more than 50 percent of the women in America are working, and they are working at the same job as a man for about 75 percent of the wage. Do you want to grow the wage? Do you want a bigger paycheck for American families?

Then pay attention to the law that has been in effect in the United States since John F. Kennedy signed it in the sixties, and that is equal pay for equal work.

This one down here at the bottom, the men and women at the bottom at the minimum wage. We have been calling for a raise in the minimum wage for months and years here.

If you want to help out the American economy, you raise the minimum wage—we—excuse me, not you, us—Members of Congress and the Senate—raise the minimum wage, and we will see greater purchasing power and a growing economy as a result of that.

You don't lose jobs. The economic studies are clear. You are not going to lose jobs by raising the minimum wage. It hasn't happened in California. The minimum wage went up in California a year ago. We have seen job growth. We didn't see less jobs.

What we are seeing, Madam Speaker, is greater purchasing power by the families of America, fewer people on food stamps, and fewer people on welfare. As you raise the minimum wage, that is what happens, so this is what we call grow the paycheck, raise the wage.

I am going to let education go. We will pick that up later. I want to pick up one of my current challenges. I think anybody that studies American history will know that America was the greatest maritime nation in the world. We would contend with the United Kingdom—England—as to which was the greatest maritime nation, and we surpassed England.

We have lost that. We have seen our maritime industry—our mariners and

our ships—decline. We have very, very few ships flying the American flag anymore. All of the cruise ships that are advertised even on the Super Bowl 2 days ago were flagged overseas. They didn't have American crews on them, although all of their passengers seemed to be American—or at least many of them.

What we need to do is to find ways to rebuild the American maritime industry. These are the sailors, the merchant marines, the American mariners, the captains, the sailors, and the engineers.

It is also the shipbuilding. The great shipyards of America are in need of business. We do a lot of naval ships. Madam Speaker, this is a fundamental national security issue. The shipyards in America, the ability to build ships for the Navy and for our domestic trade is critical as a security issue. Obviously, it is critical as a jobs issue. We can do this.

We are in the process of exporting natural gas with liquefied natural gas. A new terminal by the Cheniere company in Texas will need 100 ships or more just for that one terminal. What I am saying is that if we are going to ship a strategic national asset—natural gas in the form of liquefied natural gas—if we are going to export that, then we ought to use that export to secure a second national security issue, and that is our merchant marines and our shipyards.

When this tanker, which happened to have been built in Japan, finds its way to an American port, will it be American sailors? This is a very dangerous thing. You are talking about millions of gallons of natural gas in liquefied form. Will it be American sailors? Will this ship be an American ship?

India wants to buy natural gas from the United States. They have a tender offer out. That tender offer says: We want to buy X gazillion cubic meters of natural gas—good—and three of the ships that transport that must be built in India.

□ 1745

And I say to India: Great. The other six or seven ships must be built in the United States. You want our gas, terrific. Then we want to have the ships built in the United States with American sailors.

This is a fundamental national security issue.

I just noticed that my good friend, the gentleman from New York (Mr. TONKO), came to join me on the floor, probably because I was praising New York so profusely with the Tappan Zee Bridge. Mr. TONKO, good for New York. Shame on California for building a bridge with Chinese steel.

Mr. TONKO. I thank the gentleman from California for leading us on middle class economics and on infrastructure and on growing the jobs and growing the economy. That can be—must be—our top priority, making certain that the dignity of work and the strength of drawing a paycheck are the American Dream that we want to help individuals and families across this country tether so they can move forward, utilizing their skills and talents and passions in order to be able to maintain a household, raise a family, and provide for the American Dream. It is always a pleasure to join you when we are speaking on these issues so forcefully, and to know there is a solution out there. There is a way to grow this economy, and looking at some of the items mentioned in the budget is important, and we should pay respect to that.

Certainly infrastructure that you just made mention of, and thank you for leading us in a recent motion to recommit to make certain that those who will staff those boats, transporting that cargo of LNG, create American jobs. We need to be very much disciplined in how we create a working agenda for America's families, and that is one step in the process.

But to the greater issue of infrastructure, I would suggest that we are well beyond that deadline when we should have responded to America's needs. We have a very deficient infrastructure. There are many bridges in this country that are rated deficient and weak. There are a number of situations with the grid system that was designed for a monopoly setting, and we now know that we transmit, we deliver electrons not only from region to region, former monopoly region to monopoly region, but State to State and country to country. It requires an upgrading in investment in our electric utility grid and certainly broadband. For our communication's sake, we need to wire neighborhoods in remote areas in communities across the country to enable us to strengthen the outcome, the commerce end of it all, to give businesses those needs that are so important.

Let me just close with this, because I see our friend, the gentlewoman from Ohio (Ms. KAPTUR) has joined us. I believe it is the Ninth District of Ohio.

I recently held a press conference at home after a week of being on the floor here, and it was about the child care and dependent child care credit, tax credit, and it was amazing to hear the real-life stories of parents who struggle, trying to work. They need two incomes and are impacted by the high cost of child care, quality child care. They need that comfort zone to know that as a coparent, in a way, with the given agency that they are in a secure setting, so that they can be productive at work and know that their children are well cared for.

And it brings great benefits. There are social and cognitive and educational skill sets that are introduced into the lives of those toddlers and children that makes them all the more ready for that pre-K to K to elementary setting, so it has great benefits. But when you think about the fact that the average cost is $10,000 per year for child care, and when toddlers can be as high as $16,000 and a 5-year old as high as $12,000 per year, that is an immense cost to families.

So as the President addresses this issue in the budget, he triples that benefit to some $3,000 per child under 5 per family. For families making as much as $120,000, they can get that full benefit, and there is a scaled-down benefit for family incomes as high as $210,000.

So there are efforts here to grow the economy through middle class economics. The middle class has taken it on the chin for far too long. We have seen the growth of this economy post-recession and all of the added wealth that has come since that turnaround, that upward movement that has gone to a relative few in our society. Now it is time to share the wealth with the great numbers of us in the middle class, and that is the engine that runs America.

If you give more purchasing power to the middle-income community, you give it to the working poor, give it to those looking to ascend into the middle class, that will drive a strong economic recovery, even more powerful than what we have seen since the President took office in 2009, when we hit the lowest point in March 2009. From that recession that President Obama inherited, we have done really well. We could have done much better with infrastructure investments, which would have put many people in the trades to work and where we would have responded with a much stronger outcome for purchasing power for the great many of us in that middle-income community.

So, Mr. GARAMENDI, it is always a pleasure to join with you and our colleagues to make certain that we bring to the public's attention direct assistance that we can provide, items that have been introduced in bill format or included in a proposed budget from the President that can make a difference in the fabric of this community called America, where we can tether that American Dream in more noble and measured terms, and where we can make certain that we not only grow the climate for job production but grow the economy.

So it is within our grasp, but we just have to be bold in our attempt to go forward and to be progressive in our thinking and in our policies.

Mr. GARAMENDI. Mr. TONKO, you have been here on the floor with me many times over the last few years, and we keep beating this drum about American jobs. We now have a policy from the President, middle class economics, that has all of the elements, many of which we have talked about on the floor—the research issue, the education issue, the job training issue, the infrastructure, all of those things—and it is all pulled together in middle class economics.

Another piece of that puzzle is trade policy. If we are going to grow American jobs, as I put this up before—Make

It In America, Buy American, education workforce, research, infrastructure, and then this one down here, trade policy.

The gentlewoman from Ohio (Ms. KAPTUR) has spoken to us on the floor about this issue many times. She is passionate about it. I think she is right about it. We have to be really, really careful as to how we do our international trade programs so that we don't hollow out the great American manufacturing sector, American jobs, whether they are in agriculture or manufacturing, or in other parts of our economy.

Ms. KAPTUR, we would love to hear from you on this issue. I know that you are passionate about it and very well informed.

Ms. KAPTUR. Mr. Speaker, I thank Mr. GARAMENDI for bringing us together again. He is truly a leader on growing American jobs, all of the way from California, way out on the west coast, to the gentleman from New York's community on the east coast. I commend both of you for your dogged determination to keep expanding the recovery and doing everything we can to help the American people have increasing paychecks and fulfilling work and a good family life where they are able to raise their children and fulfill their dreams, whatever they might be.

I just wanted to come to the floor and talk about America's trade policies for a brief moment and the records. Statistics don't lie, and our trade policies have been costing us more jobs than they have been yielding us for a very long time. The trade policies that have been enacted have actually caused the United States to cumulate since 1976 a staggering number—$9.5 trillion—in trade deficits. That means more imports coming in than our exports going out. Translating that into lost jobs, foregone jobs, 47.5 million lost jobs in that little over a quarter century.

The American people say: Why do we have a budget deficit?

Well, I will tell you why. When you lose this much productive wealth inside your country to other places, our people start to backslide, and they have been backsliding since the 1980s. Despite our hard work here to try to make a difference, trade policies have an enormous impact on the ability of the American people to maintain a standard of living and to both remain in the middle class or aspire to it and earn their way forward.

It now takes two in a family to earn enough, whereas when I grew up, our father worked and that was enough to support our family—until he became ill, and that is a whole other story. But today, it is so hard for people to have two people working in the family and hold their household together. They are scrimping every week as to where they are going to put their limited incomes.

I just wanted to put this so people start thinking: How did America get in this deep a hole on trade? I believe before we sign any more trade agreements, we ought to go back and fix what is wrong with the current ones. Wouldn't that makes sense?

They promised us with Korea, which is one of the most recent agreements, that we would be exporting 50,000 automobiles over there. It hasn't happened. In, fact we have already lost 17,000 additional jobs because of the Korean agreement not being in balance.

So I think we have to be rigorous and ask ourselves: How do we fix this for the sake of the future, not just this generation but the next? I have a long list, and I am going to be coming to the floor many evenings going through this list, talking about companies that we have known in this country and where they have relocated. I know that the workers in those places and the executives who used to run those companies, I know how hard they worked to create great American products, and they didn't deserve the fate they were dealt because of bad trade policies.

Let's look at Huffy Bicycle in Celina, Ohio. Huffy Bicycle used to be known coast to coast. It was made in western Ohio, and it actually became and is currently a Wal-Mart supplier. Unfortunately, well over 1,000 people lost their jobs at Huffy Bicycle in Ohio in the late 1990s—1998—and the plant first moved from Ohio to Missouri, and then it moved from Missouri to Mexico, and then it made its final move from Mexico to China.

So if you look at Huffy Bicycle today, you will see the paint job is not the same. You will see the tires aren't the same. The quality of the metal is not the same. It is not the bicycle that used to be made in Ohio that lasted a lifetime.

So there has been a knockdown, a decrease in quality, that has come with that manufactured product, which is then shipped back here to the United States and sold in different locations. It is kind of sad, really, what happens.

I love chocolate. I used to really like to buy Hershey bars, and I still eat Hershey. But Hershey had always been manufactured in Pennsylvania—in Hershey, Pennsylvania. In fact, when you walked through Hershey, you could smell the chocolate in the streets. It was just absolutely captivating. But if you have noticed, Hershey has changed. The recipe has changed. They will deny it, but a large part of their production was moved to Mexico. They even had to change the wrapper to withstand the warmer temperatures, and the recipe changed, and all of those workers in Hershey, Pennsylvania, in 2011. That happened in 2011. These are brand-name products that we know in our country.

Dell—Dell had been located in the Carolinas, and in 2009 they moved to Mexico, too. So you think about the manufactured products that we have known, and companies like Bank of America that had offices in Cincinnati, Ohio, and Independence, Ohio, they moved production to Mexico too, in 2013. So if people think they are safe in their service job because they are not in manufacturing, they will be very surprised to learn that the service jobs will follow.

How many phone calls have you gotten in your home from a call center located in—and it could be anywhere in the world but here. And I always ask the person from the call center:

Where are you calling from and how much do you earn?

I find that their earnings are so low they can't buy the very product that they are selling over the telephone. What kind of world are we creating?

The markets that exist in other places like Korea, Japan, and China are closed to us. We are racking up these gigantic trade deficits because we can't get our products in there, and the people in those places don't earn enough money to buy some of what we export. So it is really a rather vicious cycle. I am not going to take up much more time except to say that I believe where America went wrong was about 30 years ago.

□ 1800

We should have signed a trade relationship with Europe which shares our political and legal values. They subscribe to a rule of law: ''We can do business.'' Though their markets aren't completely open, they are pretty open, and we could work with them.

Then we should have invited into that structure, which starts with a belief in democracy and representative government, these other countries that are aspiring to be better than they are, but without the political advancement, their economic system will never work for them without the rights the American people have.

We could have invited in Mexico. We could have invited in the CAFTA countries. We could have invited in Korea, et cetera, to that union of democracy-loving republics. We didn't do that.

What worries me over time is, in the end, we might be cashing out our very liberty because, if you look globally at what is happening, you will find in those places that the people are not treated well that are doing this work. Over time, what kind of residue does that leave toward our country and toward those who are their new overlords?

I have walked through some of these places; I have walked through some of these companies. I remember walking through with our mother—God love her—when she was still living, through one company in Mexico.

She said, ''MARCY, look at the women's faces,'' and I did. They were so afraid. They were afraid of their boss. They were afraid of us. They were afraid of losing their work because there was no worker representation. What kind of a world are we contributing to in these other places that most Americans will never visit?

I thank the gentleman. As I see your title there, ''Grow American Jobs,'' I

would say, ''Grow American democracy. Grow representative government at the same time as we do trade.''

I think we really got way out of kilter back in the 1980s when these agreements began to be imbued with the kind of power they had.

Mr. GARAMENDI. Ms. KAPTUR, you are very, very correct about the role of trade policy and hollowing out the American jobs in almost every sector—you mentioned several sectors—and in every one of those, we have seen this happen.

We are going to be engaging in a debate this year about whether we are going to extend trade policies to what is called the Trans-Pacific Partnership and, also, very, very soon, whether we will give away our constitutional obligation to write trade policy, whether we are going to give that away to the administration.

For me, this is extremely important. We have seen this year after year, we have seen this problem, and I do not want to see a repeat of it in the new legislation.

I would like to just move to a couple of other issues. We have got about 7 minutes left. Perhaps, Mr. TONKO, if you would take a few of those minutes and wrap up, keeping in mind that this is all in the context of middle class economics, how the American family that is struggling to make it in America, how they can do better with a set of policies that we are proposing to the American public—tax policy, infrastructure, educational policy, research—all of these things that are part and parcel of middle class economics.

Mr. TONKO. Thank you, Representative GARAMENDI.

If I could just associate my comments with the representative from Ohio, MARCY KAPTUR talked about the impoverishment factor around the world. These negotiated agreements are much more than just trade barriers and tariffs. They become public policy.

When you lose American jobs, that is only the beginning of the story. We have made a situation very critically tough here, and we have resulted in impoverishing workers around the world, so that is an undoable, unsustainable outcome.

I think back when Ms. KAPTUR spoke of the exodus of jobs and the incremental steps that took them eventually offshore. I think of the entire passageway of the Erie Canal system that drove a westward movement, reached Ohio, and then eventually allowed for the development to the west coast.

You think of that, and many a person, many a worker, tethered the American Dream to those mill towns that were given birth to by that Erie Canal system. That was the empowerment of this Nation—and to think that that whole history has been rejected. A lot of the creative genius came from the immigrant who was working on those assembly lines. We need to remember that history. We must have it speak to us.

This whole idea of inserting public policy into these agreements or, again, circumventing our responsibilities here in the House—people who we represent at home need to ask us: Where are we on fast track? Do we want to give up that congressional responsibility and just do thumbs up or thumbs down on a negotiated agreement?

The other items that I am concerned about are items like the earned income tax credit. That is part of the budget request made by the President. I spoke to a number of people in my district who rely on that and others who aren't even filing for the earned income tax credit and they qualify.

I want people to understand that this is not a tax loophole, this is economic and social justice, where we take folks who perhaps might not even make enough to file a tax return to get an earned income tax credit.

This is one of the greatest anti-poverty agents we have in the budget, so we need to make certain that that earned income tax credit is available when the final budget is completed, and we need to make certain we get the word out.

This is about empowering those who are at the lower strata of income. We want to make certain that programs like the earned income tax credit speak to those who are working. It is encouraging people to work, and it is trying to bring again some economic justice and social justice.

So many of these communities are benefited when we remind people that these tax opportunities are available for them. It empowers the regional economy. So many times, there is poverty clustered in some of our urban cores, and so the social justice that comes with an earned income tax credit is that millions of dollars are now brought back into the community.

On those budgets where our lower strata income qualifying folks are, they are going to spend those dollars, they are not going to bank those dollars. So an earned income tax credit, dependent child care tax credit, these are important items—fair trade, infrastructure improvement, there are a great number of things that we can do to muscle up the outcome here.

It begins in those hallowed halls of government where you can, through these efforts in the halls of government, make policy happen. We need to take heed as to what needs to be done for our middle income community.

Mr. GARAMENDI. Mr. TONKO, I thank you so very, very much.

Ms. KAPTUR, we are in what we call the rapid fire. You have about 2 minutes, then I will wrap it up with another minute, and we are out of time. If you would, please.

Ms. KAPTUR. I appreciate your focus on growing the middle class and helping those who aspire to be in it to be successful in that journey. There is no question that when you have a robust middle class, it creates the demand that then buys the products from the corporations across this country that want to earn dividends, so that they can share those with their shareholders.

Growing the middle class drives our economy and it creates the jobs, and the people who do those jobs really create the company, they make the company work.

It isn't the shareholders who are down there on the lines, although I believe very much in shareholder equity for workers. I wish I could encourage more of it. Wouldn't that be great if they could all have a part of the indexes that the wealthy invest in? Because they certainly have earned it.

Through good jobs with decent wages, through the transportation and infrastructure bill I hope we can pass this year, which would be one action we could take that would help to give a big boost to this economy from coast to coast, all of that can help lift people's boats across this Nation.

I join in alliance with my two dear colleagues, Congressman TONKO and Congressman GARAMENDI, who are down here all the time. You are such good Representatives from your respective States, fighting on behalf of the American people.

Most of the rest of the place has gone home, but you are on the job. You remind me of members of my family. They always worked overtime.

Mr. GARAMENDI. I want to thank you and Mr. TONKO for joining us, so I have got Ohio and New York. Mr. HOYER was here earlier from Maryland and Mr. WELCH from Vermont. We covered a large part of the United States.

We are all talking about what the President has put forth as a national policy of middle class economics: how we can grow the American economy, why it is so important for the middle class to really succeed, because that creates demand that then America businesses can fulfill in their many, many ways.

I notice that the esteemed chairman of the Rules Committee is here, and I suspect he wants to present us with some information. Mr. SESSIONS, if you are ready—and I will continue on until you are ready.

In the meantime, the elements of the middle class economics, we know why it is important. It builds the demand that the businesses can then fulfill—American business—and so you really create the jobs with that demand.

It also gives us higher wages. You are strengthening the middle class with higher wages.

We talk about infrastructure. We will spend a lot of time talking about infrastructure as we come up to the May deadline where we must renew the infrastructure law, the surface highway transportation.

All of these are pieces of the puzzle.

We are nearly out of time, but I see the esteemed chairman of the Rules Committee.

Mr. Chairman, I yield.

Mr. SESSIONS. I thank the gentleman very much, my fellow Eagle Scout from California.

In fact, I did walk on the floor here, and I noticed that Ms. KAPTUR is here, Mr. TONKO is here, and you are having a vigorous discussion which is important with the American people.

I am about to be in receipt of a bill that will come down that will be presented to the floor here in just a minute, so if I keep talking here for just a minute.

Mr. GARAMENDI. If I may interrupt here for a second?

Thank you for the courtesy that you provided to me in the Rules Committee when the liquefied natural gas—the LNG bill came up and when we talked about how we could use that strategic asset to enhance another strategic asset, the American shipbuilding industry. You were kind.

We had a wonderful discussion in the committee and then again on the floor. It is another way in which we can grow the American economy, by using public policy in this way, and there are many, many other pieces to it.

I think your staff has just arrived with the papers that you need, so I will yield to you, Mr. Chairman.

Mr. SESSIONS. I would, pending receiving those, which is just about to happen, say to the gentleman that his ideas that he brought to the Rules Committee, in fact, were received well, the ideas about shipping in American ships, building of American ships, the opportunity for American ships to employ people as they transported American products around the world.

We will be ready here in half a second, so anybody who is watching gets high drama.

Mr. GARAMENDI. Mr. Chairman, I have always looked forward to a dialogue, a bipartisan dialogue, on important issues, and I didn't quite know that we would come to that at this moment while we await your staff bringing down their papers.

In the meantime, I thank my colleagues very much, and I yield back the balance of my time.

## REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF H.R. 527, SMALL BUSINESS REGULATORY FLEXIBILITY IMPROVEMENTS ACT OF 2015, AND PROVIDING FOR CONSIDERATION OF H.R. 50, UNFUNDED MANDATES INFORMATION AND TRANSPARENCY ACT OF 2015

Mr. SESSIONS, from the Committee on Rules, submitted a privileged report (Rept. No. 114–14) on the resolution (H. Res. 78) providing for consideration of the bill (H.R. 527) to amend chapter 6 of title 5, United States Code (commonly known as the Regulatory Flexibility Act), to ensure complete analysis of potential impacts on small entities of rules, and for other purposes, and providing for consideration of the bill (H.R. 50) to provide for additional safeguards with respect to imposing Federal mandates, and for other purposes, which was referred to the House Calendar and ordered to be printed.

## THE EFFECTS OF THE PRESIDENT'S ECONOMY

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from Texas (Mr. GOHMERT) is recognized for 60 minutes as the designee of the majority leader.

Mr. GOHMERT. Thank you, Madam Speaker.

I do appreciate my friend's discussion today. In fact, there is an article I would like to move right into regarding the President's proposal to help middle America by going after corporations.

□ 1815

This is an article of Money News from Newsmax, by Peter Morici. This points out:

> Posturing as champion of needed public investments and fairness, President Barack Obama wants new taxes on the overseas earnings of American businesses. That would kill jobs and punish retired Americans. Although special deals permit some corporations to pay low taxes, most pay a heavy burden. The estimated effective U.S. corporate tax rate is about 27 percent and is well above the 20 percent imposed by other industrialized countries.
>
> The United States is virtually alone by taxing the overseas profits of its multinationals when those are repatriated. This has encouraged U.S. firms to invest nearly $2.1 trillion of their earnings abroad instead of bringing some of that money home to create jobs in America. Now the President wants an immediate 14 percent tax levy on those assets to raise about $500 billion and to impose a 19 percent tax on future earnings to finance infrastructure investments.

Madam Speaker, we have heard this before, this mantra about how we are going to build infrastructure. If you will just give us, as it was the last time, $900 billion, we are going to rebuild the infrastructure of America.

What happened?

We got Solyndra, and some Democratic friends got lots and lots of money and grants and all kinds of benefits, and we didn't get the infrastructure we were promised. Every time the President wants to trot out a new program, he throws that in because it worked. Seriously, it worked 6 years ago. Americans bought into it, and the majority here bought into it. Let's give him the money so we can build infrastructure, and we saw that that was a word that was not kept.

There is the point that many have made about the President's new proposals that he brought up in the State of the Union Address to help the middle class, to help the Nation's poor, and we have seen how the middle class has been helped under this President—the middle class has gotten smaller. The gap between the ultra rich and the poor has gotten wider, and we have more poor. We have got more people on food stamps than ever in history, more than anybody could have ever imagined when that program was started, and it continues to be a massive problem for much of America.

There is trouble getting a job. Oh, I know we keep being told that the Cook numbers work well. Gee, the economy is doing so well. But across America, people understand ''I am not doing well.'' If they have been able to keep their jobs, they have not seen their wages keep up like they should have. At the same time, the administration is trying to convince the middle class and the Nation's poor: ''I am taking care of you.''

What is actually happening behind the scenes?

We know for at least the first 5, 6 years of this administration and for the first time in our Nation's history, 95 percent of the Nation's income went to the top 1 percent. Before this administration, the Obama administration, that had never, ever happened.

It is tragic when you see the effect that it has on families. It is tragic when you see that people had such hope for this President's helping the poor, not adding to the poor. They had hope for climbing up through the middle class and maybe, one day, having a shot at being wealthy. Unless you are a President or a former President, it is kind of tough to make that kind of move because not everybody gets paid a million bucks or even $100,000 for giving a speech. So most of America that was suffering before is still suffering. In many cases, it is much worse.

The people who really understand money management are pointing out: wait a minute. If you break down what the President is proposing in order to help, supposedly, the middle class, and if he is going to tax these evil corporations on money they have earned overseas when they have a corporate presence here and there, some of us have been proposing: if you will just eliminate any penalty, then they will bring that money into the United States; they will use that capital here in the United States; jobs will be created, and plants will be expanded; and there will be more people able to join unions of non-government working people because those are the kinds of jobs that would come back. If you lowered the tax on corporations down to where China has it, you would see companies come flooding back into the United States that built their plants in China.

As our good friend Arthur Laffer has pointed out, the rich are the people you are not really able to tax because they will move on you. They will move, and they will change the way they make income. I know people like Democrat Warren Buffett like to say: ''Oh, gee. I am willing to pay more taxes.'' It is one thing to say it. It is another to write the check, and that hasn't happened. If he wanted to pay the same income tax rate that his secretary pays, then he could pay that. Write the check. You don't have to keep it all. It is okay. You can send it to the government if you want to. Unfortunately, when you tax corporations as much as we do in the United States, and when that tax gets passed on to the consumers—because, if it doesn't, they don't stay in business—then it is back to the middle class paying those taxes.

If you start taxing these multinational corporations for money they have earned in another country and they have paid taxes on in another country—and if you are going to tax it to bring it into the United States—then they are not going to bring it in. If you are going to tax them for even having a presence here, then you will find the presence will go. The jobs that are here in the United States will go. You are going to have trouble ever taxing the multinational corporations, like the richest people in the world, because they will move. They will change the way they do business to avoid that tax. It is the middle class and those amongst the poor who actually pay tax—income tax, that is—who end up taking the biggest hit.

If you want to make taxes fair, let's go to a flat tax across the board. If you make more, you pay more. If you make less, you pay less. I like a deduction for the home mortgage interest, and I like charitable deductions. But, otherwise, let's just drop all of them. If you make more, you pay more. That would be fair.

Instead, if you want to look around to what has really done massive damage to the ability of the middle class and the Nation's poor, particularly African Americans, there has been a tremendous problem getting employed, staying employed, and having higher wages because this administration keeps bringing in people, giving them work permits—people who have come in illegally. Now we know that the big corporations are even given a $3,000 bonus if they will hire someone who came here illegally, one of the 5 million.

Now, Texas has created most of the jobs that the President stood right here and took credit for. It was rather interesting. I know people in this administration like to make jokes about Texas, but it would have been nice if, when he took credit for creating jobs, that he would have thanked Texas for being the place that really bailed him out and kept him from having to stand up and report a net loss of jobs. So we are glad to help out, not because we are helping the President but because we are helping real people in America.

If he really wants to help the Nation's poor, the working poor, those few who are left in the middle class, he would quit giving people who have come in illegally work permits, which actually incentivizes more people to come in illegally, and then there wouldn't be any need for him to come in and say we have got to raise the minimum wage, because we know—there is no question—when you raise the minimum wage, people who are trying to break into the working of America don't have jobs. People lose their jobs.

For businesses that are barely getting by at a profit, when you force a higher minimum wage, then those people who are brought in at the entry level naturally don't produce as much as people who have been there a while because it takes a learning curve. But the minimum wage is the entry level if it is even at minimum wage. Most businesses I talk to around east Texas will pay more than the minimum wage even for startup employment. But once you raise the minimum wage, they are going to have to lay somebody off, and somebody is going to have to work harder because they cannot afford, like the government, to be operating in the red—they would go broke—because they don't get to print their own money and create their own monetary system.

I see here another article today. This is from Neil Munro of The Daily Caller: ''Obama Quietly Adds 5.46 Million Foreigners to Economy.''

That should be great news for the economy, but since there haven't been 5.46 million jobs created in this administration, that means that they are going to take over jobs and that Americans who emigrated legally are going to lose their jobs. When you tack on that you get a $3,000 bonus under ObamaCare if you hire somebody who came illegally and got one of these work permits—they are not required to have ObamaCare, and so they don't have to provide health insurance; therefore, the companies don't have to pay the $3,000 penalty—it gives incentives to hire people who came illegally and got the work permits.

Now, we had before our Judiciary Committee today some witnesses, and I greatly appreciated Chairman GOODLATTE for calling the hearing. It was very enlightening. We had a sheriff, a law professor, a couple of people who work on the immigration issue. I didn't realize until the testimony that, when released, about 50 percent of those people who have come here illegally and who have committed a crime commit another crime. I had somebody else explain it to me after the hearing.

If you come here and if you have no respect for the law in the United States, is it any mystery that you are going to be more likely to disregard the criminal laws as you have the immigration laws? Fortunately, everybody doesn't see it that way who emigrates here illegally, but it is a problem.

□ 1830

If you are a 21-year-old store clerk that is just trying to make it, you are not making that much money, but you are trying to make it, you are working tough hours in a thankless job, and unbeknownst to you as a 21-year-old store clerk, the Obama administration—Homeland Security has followed the lead of the President. They have not been deporting people that came illegally, committed crimes, like they should be. So unknown to you, the 21-year-old store clerk, that man who has committed crimes before and has not been deported because this administration is not following up to the oath that was taken, you are about to have your life taken away from you by someone that should not even be in the country.

I was with another Member of Congress today when staff came and notified him that one of their staff had been hit by another car. It was the fault of the other car, and the people in the other car got out, walked around, and then by the time the officer got there, they complained one of their group couldn't walk, couldn't use their legs. So here comes the ambulance. Who knows. Maybe they have figured out our system well enough to know you just file a lawsuit even though you were at fault for the wreck, file a claim against the insurance company.

But there are people who are here in this country illegally who would like to be here legally, and we ought to help and encourage them to do just that: Come legally; follow the law; make application.

There are those of us whose offices help those who come legally. We have been helping people who have immigrated legally to try to get their spouse into the country, and we find out that actually this administration, by the executive amnesties and decrees, has apparently used the fees that were paid by people who came legally, trying to bring in others legally, trying to do everything right, some paid a higher fee to try to speed up the time with which they could get their spouse or loved one in the country, and with the stroke of the pen this President apparently put those on hold, said: We are going to take those fees that people who were acting legally and within the law paid to get their loved one in, we are going to put their applications on hold because I have got a whole bunch of people over here who entered illegally that I want to come in. I am sure they will vote Democrat when they get the chance, but I need them beholden to the Federal Government, so we are going to bring in these people that didn't believe in following the law, give them amnesty and a work permit, allow a $3,000 bonus under ObamaCare to businesses that hire them, get rid of their American workers, their legal immigrants, and hire people that came in illegally.

The question arises, and it is a very important question because it has criminal consequences, if anyone within the United States Government, executive branch particularly, takes money that was ordered for one purpose under the law and converts that money's use to another without getting the permission of Congress, without jumping through the hoops that are required to use that money for another purpose and use it for a purpose such as getting a lease in Crystal City so that you can set up your amnesty mill, you have got a problem, and so do we because you may have violated the law, and it may be a crime.

I am hopeful that we are at the early stages of getting to the bottom of that so we can find out whether somebody

broke the law. We know that there are criminal statutes regarding government workers if they use their position, particularly at the IRS, and yet Lois Lerner basically got caught redhanded, took the Fifth Amendment. Even still, the President, the executive branch didn't want to get rid of her, so paid her to stay home for a while. But nobody has been prosecuted, nobody has been pursued out of those laws that were broken in the Internal Revenue Service to go after conservative groups.

No question. We don't know the full extent, but no question, it had to have helped the President in the election of 2012. All you have got to do is keep your opponents from being able to form groups like the Democrats have. Of course, a lot of the Democrats' funding comes from government money that goes through unions and ends up helping Democrats, but these are groups that were raising their own money that they had earned. It wasn't money received from the government. People who actually did build that, they did earn that, and they were wanting to pool their money for political purposes, but the IRS put them on hold for long enough, some of them for years, so that they could not play any role in the 2012 election.

This administration was able to use the laws or the Tax Code and use the IRS in ways Richard Nixon could have only dreamed of. He had an enemies list, but he was not able to carry out the vendetta like some in the IRS appear to have done. So that is here in this country as people are suffering, workers struggling, especially African American minority workers, their unemployment rate so dramatically higher.

I have had people ask me—and I am not really sure of the answer—if President Obama actually should get all the credit for the jobs that have been created in the United States, then why in the world was he creating them all in Texas, most of them in Texas? That just seems a little strange. But I would think his supporters would certainly fall away from supporting someone in the Democratic Party that creates jobs mainly in a very red State. But if that is true and he gets the credit for creating all the jobs in Texas, over a million, then he is to be congratulated on the bipartisan nature of that effort, although the Senate would wonder whether or not he actually participated in that.

At this point, Mr. Speaker, I would like to turn to one of the more horrendous acts that man has inflicted on man. The Islamic State—and that first word is ''Islamic''—released a video that shows, or purports to show, Jordanian pilot al-Kaseasbeh prior to being burned alive. The video released today appears to show him being burned alive.

Some say: How could they do such a thing? It seems to me that if one human being can take a dull knife and jaggedly cut off the head of another human being, he is probably pretty capable of burning another human being alive.

There is evil in this world. Adolf Hitler manifested pure evil. It is the only way he could have been responsible for the mass killings of 6 million Jews in Europe.

It is unbelievable, but when the United States fails to lead, fails to point out the horrors and the ideology behind it and goes to war against those who invoke this kind of evil and push it and use it against human beings, at a time when the United States is called the lone superpower, then the vacuum in the world of power is filled by the most evil among us, and that is what is happening.

It is unbelievable, and yet this is who these radical Islamists are. One story after another in the news about that pilot being burned alive, and yet we come to the story of the President addressing this today, this one entitled, ''Obama Comments on Jordanian Pilot Burned Alive, Doesn't Know What 'Ideology' Islamic State Follows.'' The President is quoted as saying:

> I just got word of the video that had been released. Should in fact this video be authentic, it is just one more indication of the viciousness and barbarity of this organization.

He wouldn't even call the organization the Islamic State, which is what they call themselves. The President says:

> It, I think, will redouble the vigilance and determination on the part of a global coalition to make sure that they are degraded and ultimately defeated.

It is interesting. The President doesn't say we are going to defeat this radical ideology, this Islamic State, we will defeat them, we will stop them. It brings to mind the response of Winston Churchill. He was making sure everyone knew that Britain was not going to let evil win, that they were going to fight them on the beaches, fight them on the land, fight them in the air, fight them wherever they found them.

Our leader in this current world crisis here in the United States, the position some say is the most powerful leader's position in the world, says:

> And it, I think, will redouble the vigilance and determination on the part of the global coalition to make sure that they are degraded and ultimately defeated.

But it doesn't stop there. Our President goes on to say:

> It also indicates the degree to which whatever ideology they are operating off of, it is bankrupt.

''Whatever ideology they are operating off of''? It is called the Islamic State.

I have seen amazing prosecutors at work trying to pull together a case. I have seen incredible law enforcement minds at work as they try to put together pieces of the puzzle to figure out some law enforcement mystery, figure out the source of some crime. But I don't think it would take the more brilliant law enforcement officers in our country—so many that I have met and come to appreciate their intellect. I don't think it takes them to figure out what ideology they are out of, because the first piece of the puzzle when we are looking to determine what ideology these evil men are working out of, let's see, what do they call themselves?

□ 1845

We will start with that clue. They call themselves the Islamic State. Well, that would seem to indicate that perhaps the ideology they are out of would be an Islamic ideology. Since these people get real upset if anybody draws a cartoon—for example, about the prophet Muhammad, as they call him—then perhaps it is that people that hold Muhammad as a prophet is another unifying clue to the ideology.

Perhaps since they are willing to kill people, as they did in Afghanistan when Korans were found being burned because they had been defaced by Muslims using them to pass messages—and the proper remedy for defaced Korans is to destroy them like that—but nonetheless, they killed people because they didn't like Americans—people they consider infidels—burning the Korans that were defaced by Muslims.

These seem to be clues that keep bringing us back to the fact that the most evil people in our world today appear to claim radical Islam as their ideology, and I know there are Muslim Brothers who have made clear they want a caliphate.

One of the top advisers in the Homeland Security Department here tweeted out back last August, I believe it was, that the caliphate is inevitable, so people just need to get used to the idea. In fact, as I understand it, he put together a long message in recent days that went on a tear after Christians and, as I understand, basically pointing out that maybe the Islamists should be called evangelical Islamists.

Well, that has a different meaning, and I am sure Mr. Elibiary doesn't quite understand the term ''evangelical'' because evangelical Christian means you bring peace to the world and you introduce them to knowledge of Jesus Christ. You bring them knowledge of Jesus Christ as a man of peace, and you don't kill them if they don't accept Jesus as their savior.

There have been Christians during different historic times in the world that were barbarians and deserved to be put to death for being so barbaric, but the current state of the world is that the most evil people right now are not Christians.

One of my Republican friends and I were talking earlier today. I am a Baptist. When a Baptist church, Westboro or any other, does things that are really despicable, we call them out. My friend was Catholic. He said that if the Catholic church does something improper, he calls them out.

We also understand that there is a reluctance among moderate Muslims to

stand up and condemn the ideology of radical Islam that is so barbaric because they know that if they do that, they shoot to the top of the hit list of people to be taken out. They understand that.

They become horrific apostates in the eyes of radical Islamists and should be taken out, in the minds that are so marred by this evil radical Islamic thinking that would allow someone to have their head jaggedly cut off or to be put in a cage and set on fire.

To whom much is given, of them much is required. For those who believe the teaching of the Bible, we believe that.

We are going to have the President's National Prayer Breakfast Thursday morning. There should be people from over 140 or 150 countries there, and that is one time I am greatly appreciative of the President's espoused faith. We can put politics aside. We are supposed to. We did last year while I was cochair. JANICE HAHN was cochair.

We can thank God. Radical Islamists can't put aside their evil ideology because they want to force it upon everyone, and they are not going to rest until they are dead and they take as many of what they call infidels with them as possible.

So it shouldn't have been a big surprise to see this story from Breitbart:

ISIS members marched into a Syrian town Friday demanding that all crosses be removed from the churches or have the buildings be completely destroyed.

That is according to the Assyrian Patriotic Party.

Two trucks carrying 20 armed ISIS members stormed into the predominantly Assyrian town of Tel Hormizd in Hassakeh and forced the residents to remove the cross from the main church tower. Hassakeh, an area made up of five Assyrian villages, is located on the Khabur River.

That is radical Islamic ideology, Mr. Speaker, for those in this town who are not aware; but I guess if you are part of this administration, you shouldn't consider that to be all that radical because this administration, under their watch, with Commander in Chief Barack Obama, had orders given to remove crosses from the chapels on our military installations.

So maybe—is it possible—radical Islamists could just be following the example that was set by the top commander in our United States military that we want the crosses removed from our chapels?

Well, unfortunately, the radical Islamists in the Middle East go further. They want all Americans dead. They want all Jews dead. They want Israel wiped off the map. They want the United States, as the great Satan, to become a caliphate, paying homage to their choice of leaders, not ours.

That is an affront to the Constitution, and anyone who has taken an oath to support and defend the Constitution should fight shari'a law supplanting our Constitution.

I was also talking today with someone who works with victims in Nigeria. Boko Haram remains not only unapologetic for the death, torture, and suffering that they have caused to Christians in Nigeria, but they are emboldened. No one from the United States with power to stop them has lifted a finger, other than to tweet: ''Bring back our girls.''

Having been over there, talking to victims' families—I had it reaffirmed today—the Twitter campaign that was started by this administration against Boko Haram has not been effective. Again, they have been emboldened.

I was advised that there are Christian children in northeast Nigeria who haven't been to school for 2 years because they know that if they do, they will be killed. If they are boys, they will be killed. If they are girls, they will normally be made sex slaves or sold into sex slavery or made into wives who are basically slaves. They are told to convert or be killed.

In meeting with parents, whose hearts are broken, they have heard that the United States is the most powerful country in the world, but they don't know that because they can't understand, if the United States is so powerful—and if it was powerful and good and not evil like Boko Haram—then why wouldn't we lend something more than a tweet to stop the evil.

I also did note that there is a story of French planes helping with intelligence on the Nigerian border. That is encouraging.

The United States does not have to send boots on the ground to Nigeria in order to help defeat Boko Haram. Yes, I understand from people I know and respect in Nigeria that Boko Haram has infiltrated the main government, so it is hard to do anything effectively as the Nigerian Government, with Boko Haram becoming more and more powerful each week.

But because this country has been given so much, if we don't lend a helping hand to stop the most evil entities and people in the world, there will be American lives lost in big numbers in this country, and it is not going to be in the distant future.

In Africa, if Boko Haram takes over Nigeria, as they are well on their way toward pushing to do, then no Christian and no Jew in all of Africa is safe. In fact, they will seek to help establish that caliphate that the Obama adviser in Homeland Security had tweeted out last summer was inevitable.

Well, if Boko Haram is not stopped, they will be inevitable in Africa. Radical Islam—that ideology the President is not familiar with—that radical Islamism will take over Africa.

God bless the Egyptians. They stood up against the Muslim Brothers. The Muslim Brotherhood, by the way, has been labeled as a terrorist organization.

□ 1900

CAIR is part of the Muslim Brotherhood. Some countries consider CAIR to be a radical Islamic terrorist organization, but not here in America because the President relies on them for advice.

The Muslim Brotherhood, in the United States, has not been labeled a terrorist organization, like it has in our ally, the UAE, Egypt, other places because, here in the United States, the Muslim Brothers' leaders are sought for advice by this administration.

If we don't stand up against radical Islam—as President Bush talked about, I would rather stop it over there than have to stop it here. Well, it is here. There are cells here. There are people who have been radicalized here.

There are people who have been born here, like al-Awlaki, who have their American citizen passport, and they have grown up hating America from wherever they were raised, and they have free access in and out of the United States because their parents, or at least their mother, came here.

I thought a few years ago it would be years before we saw that kind of effect here. But we know al-Awlaki, whom the President blew up with a drone in Yemen, was helpful in radicalizing people here.

Although the President is not familiar with the ideology that was at work at Fort Hood in that act of war at Fort Hood, the act of war in killing a military recruiter in Arkansas, the acts of war that have been taking place as they did in Boston, it is radical Islam.

And yes, you don't have to qualify that. We understand that most Muslims do not believe in radical Islam. We got that. We don't need the qualifier every time something is said about radical Islam. We get it. But radical Islam should be identified for what it is.

It breaks my heart to say it, but it is a fact. If we don't do more to stop radical Islam in the world, there are large numbers of Americans that are going to die that don't have to. It doesn't have to happen.

But we have to have an administration wake up to the danger that faces the world's Christians and Jews, and people who believe in democracy and who believe in representative government, and not shari'a law; because if we don't act as leaders on the world stage and positively point out, that is radical Islam, and we are going to stop radical Islam—and the moderates of the world understand we are not talking about them. They understand radical Islam is a threat to them and their lives if they stand up against it. They get that.

But I have met moderate Muslims around the world who are willing to lay down their lives because they don't want radical Islamists controlling their country, and they hope, and they do pray, that the United States will wake up and recognize what ideology the President knows not of, and finally see it is radical Islam, and we are going to stop it.

Mr. Speaker, I yield back the balance of my time.

## THE MINDLESS, HEARTLESS EVIL OF ISIS

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the Chair recognizes the gentleman from Arizona (Mr. FRANKS) for 30 minutes.

Mr. FRANKS of Arizona. Mr. Speaker, there is nothing that I fear more for America than that, as a country, we might allow ourselves to grow numb to human atrocity in our own country and across the world.

Eight years ago, President George Bush warned that: ''To begin withdrawing before our commanders tell us we are ready would mean surrendering the future of Iraq.''

He said: ''It would mean that we would be risking mass killings on a horrific scale. It would mean increasing the probability that American troops would have to return at some later date to confront an enemy that is even more dangerous.''

Mr. Speaker, many of us in Congress warned President Obama, both in a private letter and in open declaration, of the danger that ISIS represented as it began to rise in Iraq.

We also warned the President that negotiating with terrorists by trading high-level Taliban leaders would lead to an increase in terrorists trying to leverage America and the world by taking hostages. Yet, this President ignored this, and so many other commonsense warnings, and atrocity after atrocity has occurred since.

Today, Mr. Speaker, the world watched in abject horror as 26-year old Jordanian pilot, 1st Lieutenant al-Kaseasbeh, who was taken captive by ISIS, was doused in gasoline, placed in a cage, and burned alive.

Mr. Speaker, this horrifying tragedy is the natural end to the timorous policy of appeasing or negotiating with or neglecting to have a just response to this mindless, heartless evil cancer called ISIS.

And the question occurs: When will this President respond decisively to this hellish evil?

Will it take a direct attack on American shopping malls?

Will it take a direct attack on an American grocery store or a school or an American magazine or some other venue where American blood will have to be spilled before this President calls the evil of global jihad for what it is?

It has been a full year since ISIS retook Fallujah and wiped out America's blood-bought gains. It has been a full 7 months since 55 of my colleagues and I beseeched the President to prioritize security and humanitarian support for religious minorities in Iraq, including the Yazidi people, a group that has now been nearly wiped out completely by ISIS.

Mr. Speaker, this administration can no longer claim ignorance. This Nation is at war with Islamist groups like ISIS that support and perpetrate the terrorism of global jihad. Terrorists understand it all too well. The American people understand it all too well, and it is time that this White House begin to understand it as well.

Mr. Speaker, if the Obama administration continues to sit on the sidelines and allows this unspeakable act of terrorism we have all witnessed today to go unanswered, as it has so many times before, we invite that sinister malevolence to our own shores.

Mr. Speaker, I yield back the balance of my time.

## LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Ms. JUDY CHU of California (at the request of Ms. PELOSI) for today.

## ADJOURNMENT

Mr. FRANKS of Arizona. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 7 o'clock and 10 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, February 4, 2015, at 10 a.m. for morning hour debate.

## EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

293. A letter from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Office of Energy Efficiency and Renewable Energy, Department of Energy, transmitting the Department's Major final rule — Energy Conservation Program: Energy Conservation Standards for General Service Fluorescent Lamps and Incandescent Reflector Lamps [Docket No.: EERE-2011-BT-STD-0006] (RIN: 1904-AC43) received January 28, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

294. A letter from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Office of Energy Efficiency and Renewable Energy, Department of Energy, transmitting the Department's Major final rule — Energy Conservation Program: Energy Conservation Standards for Automatic Commercial Ice Makers [Docket No.: EERE-2010-BT-STD-0037] (RIN: 1904-AC39) received January 28, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

295. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 14-123, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

296. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 14-128, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

297. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 14-080, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

298. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 14-113, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

299. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 14-130, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

300. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 14-137, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

301. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 14-127, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

302. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 14-106, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

303. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting the Secretary's determinations, certifications, and notifications, pursuant to the Iran Freedom and Counter-Proliferation Act of 2012 (IFCA), sections 1244(c)(1), 1246(a)(1), and 1247(a); to the Committee on Foreign Affairs.

304. A letter from the Director, Mississippi River Commission, Army, Department of Defense, transmitting a copy of the annual report, in compliance with the Government in the Sunshine Act, for the Mississippi River Commission covering the calendar year 2014; to the Committee on Oversight and Government Reform.

305. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments [Docket No.: 30990; Amdt. No.: 3619] received January 30, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

306. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Airbus Helicopters (Previously Eurocopter France) [Docket No.: FAA-2014-1058; Directorate Identifier 2014-SW-065-AD; Amendment 39-18053; AD 2014-26-02] (RIN: 2120-AA64) received January 30, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

307. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Bombardier, Inc. Airplanes [Docket No.: FAA-2014-0582; Directorate Identifier 2014-NM-065-AD; Amendment 39-18060; AD 2014-26-09] (RIN: 2120-AA64) received January 30, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

308. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Airbus Airplanes [Docket No.: FAA-2014-0526; Directorate Identifier 2013-NM-141-AD; Amendment 39-18061; AD 2014-26-10] (RIN: 2120-AA64) received January 30, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

309. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; ATR-GIE Avions de Transport Régional Airplanes [Docket No.: FAA-2014-0530; Directorate Identifier 2014-NM-062-AD; Amendment 39-18057; AD 2014-26-06] (RIN: 2120-AA64) received January 30, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

310. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Dassault Aviation Airplanes [Docket No.: FAA-2014-0626; Directorate Identifier 2014-NM-017-AD; Amendment 39-18058; AD 2014-26-07] (RIN: 2120-AA64) received January 30, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

311. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments [Docket No.: 30991; Amdt. No.: 3620] received January 30, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

312. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments [Docket No.: 30992; Amdt. No.: 3621] received January 30, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

## REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Ms. FOXX: Committee on Rules. House Resolution 78. Resolution Providing for consideration of the bill (H.R. 527) to amend chapter 6 of title 5, United States Code (commonly known as the Regulatory Flexibility Act), to ensure complete analysis of potential impacts on small entities of rules, and for other purposes, and providing for consideration of the bill (H.R. 50) to provide for additional safeguards with respect to imposing Federal mandates, and for other purposes (Rept. 114–14). Referred to the House Calendar.

## PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. KLINE (for himself and Mr. ROKITA):

H.R. 5. A bill to support State and local accountability for public education, protect State and local authority, inform parents of the performance of their children's schools, and for other purposes; to the Committee on Education and the Workforce, and in addition to the Committee on Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BARTON (for himself, Mr. CONAWAY, Mr. WILSON of South Carolina, Mr. CHABOT, Mr. BRIDENSTINE, Mr. FRANKS of Arizona, Mrs. BLACKBURN, Mr. SALMON, Mr. PITTENGER, Mr. FLORES, Mr. NEUGEBAUER, Mr. CARTER of Texas, and Mr. CRAMER):

H.R. 666. A bill to adapt to changing crude oil market conditions; to the Committee on Energy and Commerce, and in addition to the Committee on Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BLUMENAUER (for himself, Mr. ROHRABACHER, Mr. JONES, Mr. AMASH, Mr. REED, Mr. HANNA, Ms. TITUS, Mr. FARR, and Mr. POLIS):

H.R. 667. A bill to authorize Department of Veterans Affairs health care providers to provide recommendations and opinions to veterans regarding participation in State marijuana programs; to the Committee on Veterans' Affairs.

By Mr. BURGESS:

H.R. 668. A bill to make clear that an agency outside of the Department of Health and Human Services may not designate, appoint, or employ special consultants, fellows, or other employees under subsection (f) or (g) of section 207 of the Public Health Service Act; to the Committee on Energy and Commerce.

By Mr. FARENTHOLD:

H.R. 669. A bill to amend the Immigration and Nationality Act to extend the period of time for which a conditional permit to land temporarily may be granted to an alien crewman; to the Committee on the Judiciary.

By Mr. THOMPSON of Pennsylvania (for himself and Mr. PALLONE):

H.R. 670. A bill to amend title XIX of the Social Security Act to extend the Medicaid rules regarding supplemental needs trusts for Medicaid beneficiaries to trusts established by those beneficiaries, and for other purposes; to the Committee on Energy and Commerce.

By Mr. JOHNSON of Georgia (for himself, Mr. COLLINS of Georgia, Ms. HAHN, Mr. VAN HOLLEN, Mr. NADLER, Mr. YARMUTH, Mr. CARSON of Indiana, Mr. SCHIFF, Mr. LYNCH, Ms. NORTON, Mr. KILMER, Mr. ISRAEL, Mr. MURPHY of Florida, Mr. LIPINSKI, Ms. BROWN of Florida, Mr. CROWLEY, Mr. BISHOP of Georgia, Mr. MICHAEL F. DOYLE of Pennsylvania, Mr. COHEN, Ms. EDWARDS, Ms. BROWNLEY of California, Mr. CLYBURN, Mr. FRANKS of Arizona, Mr. PIERLUISI, Mr. CUMMINGS, Ms. PINGREE, Mr. LEVIN, Mr. MEEKS, Ms. SLAUGHTER, Ms. JACKSON LEE, Mr. CICILLINE, Ms. CLARK of Massachusetts, Mrs. WATSON COLEMAN, Mr. TONKO, Mr. PETERS, Mr. CLAY, Ms. WILSON of Florida, Mr. CAPUANO, Mrs. BEATTY, Ms. JENKINS of Kansas, Mr. RANGEL, Mr. DEFAZIO, Mr. ELLISON, Mr. THOMPSON of Mississippi, Mr. DAVID SCOTT of Georgia, Ms. SPEIER, Ms. WASSERMAN SCHULTZ, Mr. JEFFRIES, Ms. KAPTUR, Mr. LANGEVIN, Mr. CONYERS, Mr. CONNOLLY, Mr. AL GREEN of Texas, Mr. WALZ, Mr. LARSON of Connecticut, Ms. LEE, Mr. NUNNELEE, Ms. JUDY CHU of California, Mr. GRIJALVA, Mr. SMITH of Washington, Mr. DANNY K. DAVIS of Illinois, Mrs. KIRKPATRICK, Ms. ROYBAL-ALLARD, Mr. HINOJOSA, Mr. DOGGETT, Mr. MCDERMOTT, Ms. MCCOLLUM, Ms. MAXINE WATERS of California, Mr. BUTTERFIELD, Mr. GENE GREEN of Texas, Mr. SARBANES, Mr. SCHOCK, Mr. VARGAS, Mr. DEUTCH, Mrs. BUSTOS, Mr. O'ROURKE, Mr. BEYER, Ms. FUDGE, Mr. HIGGINS, Mr. HASTINGS, Mr. LOWENTHAL, Mr. THOMPSON of California, Ms. KUSTER, Ms. CASTOR of Florida, Mr. PITTS, Ms. CLARKE of New York, Mr. BLUMENAUER, Mrs. CAROLYN B. MALONEY of New York, Mr. BRADY of Pennsylvania, Ms. LORETTA SANCHEZ of California, Ms. DELBENE, Mr. POCAN, Ms. SEWELL of Alabama, Mr. SWALWELL of California, Mr. SCOTT of Virginia, Mr. RICHMOND, Mr. FATTAH, Ms. TITUS, Mr. VEASEY, Mr. CÁRDENAS, Mr. PRICE of North Carolina, Mr. RODNEY DAVIS of Illinois, Ms. DEGETTE, Ms. ESHOO, Mr. CLEAVER, Mr. RUSH, Mr. MCGOVERN, Ms. ESTY, Mr. GARAMENDI, Mr. ROHRABACHER, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. RUPPERSBERGER, Miss RICE of New York, Mr. TED LIEU of California, Mr. SIRES, Mr. PASCRELL, Ms. BORDALLO, Mr. RIGELL, Mr. QUIGLEY, Ms. KELLY of Illinois, Mr. BEN RAY LUJÁN of New Mexico, Ms. ADAMS, Mr. GUTIÉRREZ, Ms. MOORE, Mr. SEAN PATRICK MALONEY of New York, Mrs. LAWRENCE, Ms. BASS, Mr. FARR, Mr. BERA, Mr. SHERMAN, Mrs. LOVE, Ms. SCHAKOWSKY, Mr. PAYNE, Mr. HONDA, Mr. BROOKS of Alabama, Ms. PLASKETT, and Mr. MCNERNEY):

H.R. 671. A bill to award a Congressional Gold Medal to the Freedom Riders, collectively, in recognition of their unique contribution to Civil Rights, which inspired a revolutionary movement for equality in interstate travel; to the Committee on Financial Services, and in addition to the Committee on House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. YOUNG of Alaska (for himself, Mr. AMODEI, Mr. KING of Iowa, and Mr. LOEBSACK):

H.R. 672. A bill to amend title XVIII of the Social Security Act to provide for a five-year extension of the rural community hospital demonstration program, and for other purposes; to the Committee on Ways and Means.

By Mr. ROTHFUS (for himself, Mr. MURPHY of Florida, Mr. COOPER, Ms. GABBARD, Mr. BARR, Mr. LOEBSACK, Mr. RIBBLE, and Mr. DESANTIS):

H.R. 673. A bill to hold the salaries of Members of a House of Congress in escrow if the House of Congress does not agree to a budget resolution or pass regular appropriation bills on a timely basis during a Congress, and for other purposes; to the Committee on House Administration.

By Mr. DENHAM (for himself, Ms. NORTON, Mr. FARENTHOLD, Mr. NADLER, Mr. AMODEI, Mr. LOWENTHAL, Mrs. CAROLYN B. MALONEY of New York, Mr. GRIJALVA, Ms. LINDA T. SÁNCHEZ of California, Mr. CÁRDENAS, Mr. VALADAO, Mr. SCHIFF, Mr. TAKANO, Mr. YOUNG of Alaska, Mr. COSTELLO of Pennsylvania, Mr. CAPUANO, Mr. PERLMUTTER, Mr. COHEN, Mr. BLUMENAUER, Mr. HONDA, and Mr. RODNEY DAVIS of Illinois):

H.R. 674. A bill to require Amtrak to propose a pet policy that allows passengers to transport domesticated cats and dogs on certain Amtrak trains, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. ABRAHAM (for himself and Ms. TITUS):

H.R. 675. A bill to increase, effective as of December 1, 2015, the rates of compensation

for veterans with service-connected disabilities and the rates of dependency and indemnity compensation for the survivors of certain disabled veterans, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. CONYERS (for himself, Ms. CLARK of Massachusetts, Mr. CUMMINGS, Mr. MICHAEL F. DOYLE of Pennsylvania, Ms. EDWARDS, Mr. ELLISON, Ms. CLARKE of New York, Mr. FARR, Mr. AL GREEN of Texas, Mr. GRIJALVA, Mr. HASTINGS, Mr. HONDA, Mr. JOHNSON of Georgia, Ms. LEE, Mr. LEWIS, Mr. MCDERMOTT, Mr. NADLER, Mr. NOLAN, Mr. POCAN, Mr. RUSH, Ms. SCHAKOWSKY, Ms. KAPTUR, Mr. DESAULNIER, Mr. SCOTT of Virginia, Mr. TAKANO, Mr. TONKO, Mr. WELCH, Ms. PINGREE, Ms. WILSON of Florida, Mr. YARMUTH, Mr. COHEN, Mr. ENGEL, Mr. SERRANO, Ms. NORTON, Ms. ROYBAL-ALLARD, Mr. CARTWRIGHT, Mr. GUTIÉRREZ, Mr. JEFFRIES, Mr. CLYBURN, Mr. BRADY of Pennsylvania, Mr. HUFFMAN, Ms. JACKSON LEE, Ms. MOORE, Mr. RANGEL, and Ms. BASS):

H.R. 676. A bill to provide for comprehensive health insurance coverage for all United States residents, improved health care delivery, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committees on Ways and Means, and Natural Resources, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. ABRAHAM (for himself and Ms. TITUS):

H.R. 677. A bill to amend title 38, United States Code, to provide for annual cost-of-living adjustments to be made automatically by law each year in the rates of disability compensation for veterans with service-connected disabilities and the rates of dependency and indemnity compensation for survivors of certain service-connected disabled veterans; to the Committee on Veterans' Affairs.

By Mrs. MCMORRIS RODGERS:

H.R. 678. A bill to promote the use of blended learning in classrooms across America; to the Committee on Education and the Workforce.

By Mr. BLUMENAUER:

H.R. 679. A bill to establish a Road Usage Charge Pilot Program to study mileage-based fee systems, and for other purposes; to the Committee on Ways and Means, and in addition to the Committees on Transportation and Infrastructure, and Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BLUMENAUER (for himself, Mr. BEYER, Mr. BRENDAN F. BOYLE of Pennsylvania, Ms. BROWN of Florida, Mr. CLEAVER, Mr. DEUTCH, Mr. ELLISON, Mr. FARR, Mr. GRIJALVA, Ms. HAHN, Mr. HONDA, Mr. HUFFMAN, Mr. LOWENTHAL, Mr. MCDERMOTT, Mr. MCGOVERN, Mrs. NAPOLITANO, Mr. O'ROURKE, Mr. PAYNE, Mr. POCAN, Ms. LINDA T. SÁNCHEZ of California, Ms. SCHAKOWSKY, Mr. SIRES, Mr. WELCH, and Mr. COHEN):

H.R. 680. A bill to amend the Internal Revenue Code of 1986 to increase the excise tax on gasoline, diesel, and kerosene fuels; to the Committee on Ways and Means.

By Mr. CRENSHAW (for himself, Mr. SMITH of Nebraska, Mr. PAULSEN, Mr. HUFFMAN, Ms. BORDALLO, Ms. KUSTER, Mr. ROSKAM, Mr. POLIS, Mr. RENACCI, and Ms. DUCKWORTH):

H.R. 681. A bill to make certain luggage and travel articles eligible for duty-free treatment under the Generalized System of Preferences, and for other purposes; to the Committee on Ways and Means.

By Mr. DEFAZIO (for himself and Mr. HUFFMAN):

H.R. 682. A bill to withdraw certain land located in Curry County and Josephine County, Oregon, from all forms of entry, appropriation, or disposal under the public land laws, location, entry, and patent under the mining laws, and operation under the mineral leasing and geothermal leasing laws, and for other purposes; to the Committee on Natural Resources.

By Mr. FORBES:

H.R. 683. A bill to prohibit the Internal Revenue Service from hiring new employees to enforce any provision of the Patient Protection and Affordable Care Act or the Health Care and Education Reconciliation Act of 2010; to the Committee on Ways and Means.

By Mr. HONDA (for himself, Mr. BLUMENAUER, Mr. CÁRDENAS, Ms. SLAUGHTER, Ms. EDWARDS, Ms. BROWN of Florida, Ms. LEE, Ms. LOFGREN, Mr. LEWIS, Ms. MOORE, Ms. BASS, Mr. GRIJALVA, Ms. NORTON, Ms. MCCOLLUM, Mr. BRADY of Pennsylvania, Mr. VARGAS, Mr. TAKANO, Mr. POCAN, Mrs. KIRKPATRICK, Mr. KILMER, Mr. ELLISON, Mr. MCDERMOTT, Mr. NOLAN, Mr. TAKAI, Mr. CARSON of Indiana, Ms. CLARKE of New York, and Ms. FUDGE):

H.R. 684. A bill to amend the Trademark Act of 1946 regarding the disparagement of Native American persons or peoples through marks that use the term ''redskin'', and for other purposes; to the Committee on the Judiciary.

By Mr. HUIZENGA of Michigan (for himself, Mr. MEEKS, Mr. ROYCE, Mr. DAVID SCOTT of Georgia, Mr. JOYCE, Mr. STIVERS, Mr. MICHAEL F. DOYLE of Pennsylvania, Mr. MURPHY of Florida, Ms. MCCOLLUM, and Mr. FINCHER):

H.R. 685. A bill to amend the Truth in Lending Act to improve upon the definitions provided for points and fees in connection with a mortgage transaction; to the Committee on Financial Services.

By Mr. HUIZENGA of Michigan (for himself, Mr. HIGGINS, and Mr. POSEY):

H.R. 686. A bill to amend the Securities Exchange Act of 1934 to exempt from registration brokers performing services in connection with the transfer of ownership of smaller privately held companies; to the Committee on Financial Services.

By Mr. KING of Iowa (for himself, Mr. ROUZER, Mr. NEUGEBAUER, Mr. PETERSON, Mr. BLUM, Mr. HUELSKAMP, and Mr. YOUNG of Iowa):

H.R. 687. A bill to prevent States and local jurisdictions from interfering with the production and distribution of agricultural products in interstate or foreign commerce; to the Committee on Agriculture.

By Mr. LOEBSACK (for himself, Mrs. BUSTOS, and Mr. ASHFORD):

H.R. 688. A bill to reduce the rate of pay for Members of Congress by 10 percent and to eliminate automatic pay adjustments for Members; to the Committee on House Administration, and in addition to the Committee on Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. LOFGREN (for herself, Mr. CHAFFETZ, Mr. CONYERS, Mr. POE of Texas, Ms. DELBENE, Mr. MASSIE, Mr. POLIS, and Mr. O'ROURKE):

H.R. 689. A bill to permit periodic public reporting by electronic communications providers and remote computer service providers of certain estimates pertaining to requests or demands by Federal agencies under the provisions of certain surveillance laws where disclosure of such estimates is, or may be, otherwise prohibited by law; to the Committee on the Judiciary, and in addition to the Committees on Intelligence (Permanent Select), and Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. LUETKEMEYER (for himself and Mrs. CAROLYN B. MALONEY of New York):

H.R. 690. A bill to require each agency, in providing notice of a rule making, to include a link to a 100 word plain language summary of the proposed rule; to the Committee on the Judiciary.

By Ms. MATSUI (for herself and Mr. JOHNSON of Ohio):

H.R. 691. A bill to promote the provision of telehealth by establishing a Federal standard for telehealth, and for other purposes; to the Committee on Energy and Commerce.

By Mr. MCCLINTOCK (for himself, Mr. POE of Texas, Mr. PITTENGER, Mr. GARRETT, Mr. DUNCAN of Tennessee, Mr. FLEISCHMANN, Mr. OLSON, Mr. BRAT, Mr. YOHO, Mr. MULVANEY, Mr. PEARCE, Mrs. BLACK, Mr. DUNCAN of South Carolina, Mrs. BLACKBURN, Mr. DESANTIS, Mr. ROE of Tennessee, Mr. CHABOT, Mr. ROTHFUS, Mr. BRADY of Texas, Mr. CRAMER, Mr. HENSARLING, Mr. LAMBORN, Mr. GIBBS, Mr. WESTERMAN, Mrs. ELLMERS, Mr. BLUM, Mr. WOODALL, Mr. LAMALFA, Mr. WILSON of South Carolina, Mr. FLEMING, Mr. BROOKS of Alabama, Mr. AUSTIN SCOTT of Georgia, Mr. FRANKS of Arizona, Mr. WITTMAN, Mr. BARR, Mr. LOUDERMILK, Mr. ROUZER, Mr. STEWART, Mr. FLORES, Mr. YODER, Mr. RICE of South Carolina, Mr. NUNNELEE, Mr. KING of Iowa, and Mr. SALMON):

H.R. 692. A bill to ensure the payment of interest and principal of the debt of the United States; to the Committee on Ways and Means.

By Mr. MCKINLEY (for himself, Mr. DELANEY, Mr. MOONEY of West Virginia, and Mr. JENKINS of West Virginia):

H.R. 693. A bill to establish the Appalachian Forest National Heritage Area, and for other purposes; to the Committee on Natural Resources.

By Mr. O'ROURKE (for himself, Mr. CARTER of Texas, and Mr. WILLIAMS):

H.R. 694. A bill to provide that members of the Armed Forces performing hazardous humanitarian services in West Africa to combat the spread of the Ebola virus outbreak shall be entitled to tax benefits in the same manner as if such services were performed in a combat zone; to the Committee on Ways and Means.

By Mr. TIPTON (for himself, Mr. BENISHEK, Mr. AMODEI, Mrs. LUMMIS, Mr. STEWART, Mr. PEARCE, Mr. ISSA, Mr. ZINKE, Mr. LABRADOR, Mr. COSTA, Mr. GOSAR, Mr. THOMPSON of Pennsylvania, Mr. COOK, Mr. LAMBORN, and Mr. CHAFFETZ):

H.R. 695. A bill to address the bark beetle epidemic, drought, deteriorating forest health conditions, and high risk of wildfires on National Forest System land and land under the jurisdiction of the Bureau of Land Management by expanding authorities established in the Healthy Forest Restoration Act of 2003 to provide emergency measures for

high-risk areas identified by such States, and for other purposes; to the Committee on Agriculture, and in addition to the Committee on Natural Resources, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. WHITFIELD (for himself, Mr. GENE GREEN of Texas, Mr. SHIMKUS, Ms. DEGETTE, Mr. NUNES, and Mr. TIBERI):

H.R. 696. A bill to amend part B of title XVIII of the Social Security Act to exclude customary prompt pay discounts from manufacturers to wholesalers from the average sales price for drugs and biologicals under Medicare, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. YOUNG of Alaska (for himself and Mr. PETERSON):

H.R. 697. A bill to amend the African Elephant Conservation Act of 1988 to conserve elephants while appropriately regulating ivory in the United States; to the Committee on Natural Resources.

By Mr. PERRY:

H.J. Res. 28. A joint resolution proposing a balanced budget amendment to the Constitution requiring that each agency and department's funding is justified; to the Committee on the Judiciary.

By Mr. MCKINLEY:

H. Con. Res. 13. Concurrent resolution expressing the sense of Congress that the radical Islamic movement in Afghanistan known as the Taliban should be recognized officially as a foreign terrorist organization by the United States Government; to the Committee on the Judiciary.

By Mr. BECERRA:

H. Res. 77. A resolution electing Members to certain standing committees of the House of Representatives; considered and agreed to. considered and agreed to.

By Mr. SESSIONS:

H. Res. 79. A resolution providing amounts for the expenses of the Committee on Rules in the One Hundred Fourteenth Congress; to the Committee on House Administration.

By Mr. GOODLATTE:

H. Res. 80. A resolution providing amounts for the expenses of the Committee on the Judiciary in the One Hundred Fourteenth Congress; to the Committee on House Administration.

By Mr. NUNES (for himself and Mr. SCHIFF):

H. Res. 81. A resolution providing amounts for the expenses of the Permanent Select Committee on Intelligence in the One Hundred Fourteenth Congress; to the Committee on House Administration.

By Mr. PALAZZO:

H. Res. 82. A resolution calling on schools and State and local educational agencies to recognize that dyslexia has significant educational implications that must be addressed; to the Committee on Education and the Workforce.

By Mr. PEARCE (for himself and Mr. SWALWELL of California):

H. Res. 83. A resolution recognizing the security challenges of convening government officials in one specific place and directing the House of Representatives to take appropriate steps so that the House of Representatives can meet in a virtual setting; to the Committee on the Judiciary, and in addition to the Committees on Rules, and House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. RYAN of Wisconsin (for himself and Mr. LEVIN):

H. Res. 84. A resolution providing amounts for the expenses of the Committee on Ways and Means in the One Hundred Fourteenth Congress; to the Committee on House Administration.

By Mr. SMITH of Texas:

H. Res. 85. A resolution providing amounts for the expenses of the Committee on Science, Space, and Technology in the One Hundred Fourteenth Congress; to the Committee on House Administration.

## PRIVATE BILLS AND RESOLUTIONS

Under clause 3 of rule XII,

Mr. PERLMUTTER introduced a bill (H.R. 698) for the relief of Arturo Hernandez-Garcia; which was referred to the Committee on the Judiciary.

## CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. KLINE:

H.R. 5.

Congress has the power to enact this legislation pursuant to the following:

Article 1, section 8 of the Constitution of the United States

By Mr. BARTON:

H.R. 666.

Congress has the power to enact this legislation pursuant to the following:

Article I Section 8

''The Congress shall have Power . . . To regulate Commerce with foreign nations . . .''

By Mr. BLUMENAUER:

H.R. 667.

Congress has the power to enact this legislation pursuant to the following:

The Constitution of the United States provides clear authority for Congress to pass legislation to provide for the general welfare of the United States. Article I of the Constitution, in detailing Congressional authority, provides that ''Congress shall have the Power to provide for the . . . general welfare of the United State. . . .'' This legislation is introduced pursuant to that grant of authority.

By Mr. BURGESS:

H.R. 668.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 9, clause 7, ''No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time.''

By Mr. FARENTHOLD:

H.R. 669.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Sec 8, Clause 4

By Mr. THOMPSON of Pennsylvania:

H.R. 670.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 14; and including, but not solely limited to the 14th Amendment's Equal Protection Clause.

By Mr. JOHNSON of Georgia:

H.R. 671.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18 of the Constitution

By Mr. YOUNG of Alaska:

H.R. 672.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3

By Mr. ROTHFUS:

H.R. 673.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1

By Mr. DENHAM:

H.R. 674.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution, specifically Clause 1 (relating to providing for the common defense and general welfare of the United States) and Clause 18 (relating to the power to make all laws necessary and proper for carrying out the powers vested in Congress).

By Mr. ABRAHAM:

H.R. 675.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the Constitution

By Mr. CONYERS:

H.R. 676.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8.

By Mr. ABRAHAM:

H.R. 677.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the Constitution

By Mrs. MCMORRIS RODGERS:

H.R. 678.

Congress has the power to enact this legislation pursuant to the following:

The Constitutional authority in which this bill rests is the power of the Congress to regulate Commerce as enumerated by Article I, Section 8, Clause 3 as applied to the Elementary and Secondary Education Act.

By Mr. BLUMENAUER:

H.R. 679.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3.

By Mr. BLUMENAUER:

H.R. 680.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 1.

By Mr. CRENSHAW:

H.R. 681.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 of the U.S. Constitution, commonly referred to as the Commerce Clause. The Commerce Clause states that the Congress shall have power to regulate Commerce with foreign Nations, and among the several States, and with the Indian tribes. This bill changes U.S. trade

By Mr. DEFAZIO:

H.R. 682.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18 (relating to the power to make all laws necessary and proper for carrying out the powers vested in Congress), and Article IV, Section 3, Clause 2 (relating to the power of Congress to dispose of and make all needful rules and regulations respecting the territory or other property belonging to the United States).

By Mr. FORBES:

H.R. 683.

Congress has the power to enact this legislation pursuant to the following:

Article I, Sec. 8, Clauses 1 and 18

By Mr. HONDA:

H.R. 684.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

By Mr. HUIZENGA of Michigan:

H.R. 685.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3.

By Mr. HUIZENGA of Michigan:

H.R. 686.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clauses 1 (''The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defense and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States''), 3 (''To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes''), and 18 (''To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof).

By Mr. KING of Iowa:

H.R. 687.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to Congress' powers to regulate commerce with foreign nations, and among the several states, and with the Indian Tribes under Article 1, Section 8, Clause 3 of the United States Constitution

By Mr. LOEBSACK:

H.R. 688.

Congress has the power to enact this legislation pursuant to the following:

Clause 1 of Section 6 of Article I of the Constitution.

By Ms. LOFGREN:

H.R. 689.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the United States Constitution

By Mr. LUETKEMEYER:

H.R. 690.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18, ''To make all Laws which shall be necessary and proper from carrying into Execution from foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or any Department of Officer thereoff.''

By Ms. MATSUI:

H.R. 691.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3

By Mr. MCCLINTOCK:

H.R. 692.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clauses 1 and 2 of the United States Constitution, which confer on Congress the power to collect and manage revenue for the payment of debts owed by the United States and to borrow money on the credit of the United States.

Article 1, Section 8, Clauses 1 and 2 United States Constitution:

''The Congress shall have the power to lay and collect taxes, duties, imports and excises, to pay the debts and provide for the common defense and general welfare of the United States; but all duties, imports and excises shall be uniform throughout the United States;

To borrow money on credit of the United States;''

By Mr. MCKINLEY:

H.R. 693.

Congress has the power to enact this legislation pursuant to the following:

Article IV, section 3 of the Constitution of the United States grant Congress authority to make ''all needful Rules and Regulations respecting the Territory or other Property belonging to the United States.''

By Mr. O'ROURKE:

H.R. 694.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this bill rests is the power of Congress ''to provide for the common Defence'', ''to raise and support Armies'', ''to provide and maintain a Navy'' and ''to make Rules for the Government and Regulation of the land and naval Forces'' as enumerated in Article I, section 8 of the United States Constitution.

By Mr. TIPTON:

H.R. 695.

Congress has the power to enact this legislation pursuant to the following:

Article IV Section 3 clause 2 United States Constitution.

By Mr. WHITFIELD:

H.R. 696.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

The Congress shall have Power * * * To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Mr. YOUNG of Alaska:

H.R. 697.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3

By Mr. PERLMUTTER:

H.R. 698.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8

By Mr. PERRY:

H.J. Res. 28.

Congress has the power to enact this legislation pursuant to the following:

Article V of the United States Constitution, which grants Congress the authority to propose Constitutional amendments

## ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 20: Ms. DUCKWORTH.

H.R. 21: Mr. POSEY.

H.R. 24: Mr. BUCK, Mr. BUCHANAN, Mr. JOYCE, Mr. MARCHANT, Mr. WENSTRUP, and Mr. SHUSTER.

H.R. 94: Ms. CASTOR of Florida.

H.R. 109: Mr. COSTELLO of Pennsylvania and Mr. YOUNG of Iowa.

H.R. 131: Mr. MESSER, Mr. ZINKE, Mr. GRAVES of Missouri, Mrs. LUMMIS, Mrs. WALORSKI, and Mr. MCCLINTOCK.

H.R. 139: Mr. BYRNE.

H.R. 143: Mr. KATKO.

H.R. 158: Mrs. BROOKS of Indiana.

H.R. 167: Mrs. HARTZLER.

H.R. 169: Mr. WALZ and Mr. SHIMKUS.

H.R. 174: Mr. RIBBLE, Mr. MCKINLEY, Mr. HULTGREN, Mr. CRAMER, Mr. FLORES, Mr. CARTER of Georgia, Mr. YOHO, Mr. LATTA, Mr. PEARCE, and Mr. ALLEN.

H.R. 188: Mr. FITZPATRICK, Mr. BISHOP of Georgia, Mr. VAN HOLLEN, Mr. BRADY of Pennsylvania, Mr. YOUNG of Iowa, Mr. WITTMAN, and Mr. THOMPSON of Mississippi.

H.R. 217: Mr. ADERHOLT and Mr. MOONEY of West Virginia.

H.R. 228: Mr. TAKANO.

H.R. 232: Mr. BILIRAKIS and Mr. YOUNG of Indiana.

H.R. 249: Mr. BEN RAY LUJÁN of New Mexico.

H.R. 281: Mrs. HARTZLER.

H.R. 287: Mr. ROTHFUS.

H.R. 310: Mr. KLINE and Mr. PAULSEN.

H.R. 313: Mr. RANGEL, Ms. MOORE, Mr. JOLLY, Mr. MCGOVERN, and Mr. HASTINGS.

H.R. 317: Mr. BEYER, Mr. GRIJALVA, Mr. CAPUANO, and Mr. RYAN of Ohio.

H.R. 370: Mr. JONES.

H.R. 383: Mr. LATTA and Mr. GIBBS.

H.R. 386: Mr. HONDA.

H.R. 387: Mr. MACARTHUR.

H.R. 388: Mr. POCAN.

H.R. 400: Mr. TROTT and Mr. BERA.

H.R. 408: Mr. LOEBSACK, Mr. GENE GREEN of Texas, and Ms. CLARK of Massachusetts.

H.R. 427: Mrs. ROBY.

H.R. 443: Mr. JOLLY and Mr. DESANTIS.

H.R. 448: Mr. VEASEY and Mr. CONNOLLY.

H.R. 449: Ms. CASTOR of Florida.

H.R. 451: Mr. WILSON of South Carolina, Mr. LATTA, Mr. FARENTHOLD, Mr. COLE, and Mr. ROKITA.

H.R. 452: Mr. COHEN, Mr. GRAVES of Missouri, and Mr. SCHOCK.

H.R. 456: Mr. POCAN, Ms. MAXINE WATERS of California, and Mr. JOYCE.

H.R. 489: Mr. MESSER.

H.R. 508: Mr. HUFFMAN and Mr. LANGEVIN.

H.R. 525: Mr. SWALWELL of California.

H.R. 529: Mr. KLINE, Mr. YOUNG of Indiana, Mr. GOODLATTE, Mr. MEEHAN, Mr. WESTERMAN, Mr. PETERS, Mr. HILL, and Ms. GRAHAM.

H.R. 531: Mr. HASTINGS, Mr. POCAN, Ms. LEE, Mr. RUSH, and Mr. MCGOVERN.

H.R. 532: Mr. SWALWELL of California, Ms. SPEIER, Mr. GRIJALVA, and Mr. LOWENTHAL.

H.R. 541: Mr. LANGEVIN.

H.R. 546: Mr. HUFFMAN, Mr. QUIGLEY, Mrs. BUSTOS, and Mr. SCHWEIKERT.

H.R. 554: Mr. SALMON.

H.R. 555: Mr. WESTMORELAND, Mr. NUGENT, Mr. DESJARLAIS, Mr. HUIZENGA of Michigan, Mr. POSEY, Mr. BOST, Mr. WILSON of South Carolina, Mr. PEARCE, Mr. TIBERI, Mr. LAMALFA, Mr. HARPER, Mr. SAM JOHNSON of Texas, and Mr. COOK.

H.R. 556: Mr. BURGESS.

H.R. 563: Mr. MCDERMOTT, Ms. TITUS, and Ms. JACKSON LEE.

H.R. 578: Mr. TIBERI, Mr. GRAVES of Missouri, Mr. ROE of Tennessee, and Mr. MCCLINTOCK.

H.R. 581: Mr. BARLETTA, Ms. NORTON, and Mr. POLIS.

H.R. 583: Mr. WEBER of Texas.

H.R. 584: Ms. JENKINS of Kansas and Mr. PALAZZO.

H.R. 588: Mr. MURPHY of Pennsylvania.

H.R. 589: Mr. SALMON.

H.R. 592: Mr. JOLLY, Mr. RODNEY DAVIS of Illinois, Mr. YARMUTH, and Mr. QUIGLEY.

H.R. 594: Mr. HULTGREN, Mr. MARINO, Mr. CARTER of Texas, Mrs. NOEM, Mr. MACARTHUR, Mrs. ROBY, Mr. BARTON, and Mr. ABRAHAM.

H.R. 595: Mr. MOONEY of West Virginia.

H.R. 596: Mr. GOODLATTE, Mr. ROHRABACHER, Mr. BISHOP of Utah, Mr. ALLEN, Mr. WESTERMAN, Mr. CONAWAY, Mrs. COMSTOCK, Mr. BOUSTANY, Mr. MILLER of Florida, Mr. BISHOP of Michigan, Mr. MCHENRY, Mr. CRAWFORD, Mr. CLAWSON of Florida, and Mr. JORDAN.

H.R. 601: Mr. SCHOCK, Mr. NUGENT, Mr. JONES, Ms. PINGREE, Mrs. BLACK, Mr. EMMER, Mr. LATTA, Mr. LONG, Mr. BROOKS of Alabama, Ms. WILSON of Florida, and Mr. CARSON of Indiana.

H.R. 608: Ms. MAXINE WATERS of California and Ms. EDWARDS.

H.R. 609: Ms. JUDY CHU of California.

H.R. 612: Mr. MILLER of Florida, Mr. TOM PRICE of Georgia, Mr. ALLEN, Mr. LUCAS, and Mr. GARRETT.

H.R. 620: Mr. MCGOVERN.
H.R. 629: Mr. COSTELLO of Pennsylvania.
H.R. 630: Mr. COSTELLO of Pennsylvania.
H.R. 634: Mr. FARR, Mr. GRIJALVA, Mr. HUFFMAN, Ms. MCCOLLUM, Mr. MCDERMOTT, Ms. MOORE, Mr. WALZ, and Ms. MAXINE WATERS of California.
H.R. 635: Mr. FARR, Mr. GRIJALVA, Mr. HUFFMAN, Ms. MCCOLLUM, Mr. MCDERMOTT, Ms. MOORE, Mr. WALZ, and Ms. MAXINE WATERS of California.
H.R. 636: Mr. BLUM, Mr. COSTELLO of Pennsylvania, and Mr. DESJARLAIS.
H.R. 637: Mr. COSTELLO of Pennsylvania and Mr. REED.
H.R. 638: Mr. SMITH of New Jersey and Mr. LOBIONDO.
H.R. 640: Mr. REED and Mr. COSTELLO of Pennsylvania.
H.R. 644: Mr. TIBERI, Mr. SCHOCK, Mr. COSTELLO of Pennsylvania, and Mr. KELLY of Pennsylvania.
H.R. 652: Mr. DELANEY and Mr. YOUNG of Alaska.
H.R. 654: Mr. FLORES, Mr. HUNTER, Mr. AUSTIN SCOTT of Georgia, Mr. ZINKE, Mr. WEBER of Texas, Mr. DESANTIS, Mr. MILLER of Florida, Mr. ISSA, Mr. RODNEY DAVIS of Illinois, and Mr. POSEY.
H.R. 661: Mr. KLINE.
H.R. 664: Ms. CASTOR of Florida, Ms. DELAURO, Mr. FARR, Mr. VAN HOLLEN, Ms. VELÁZQUEZ, and Mr. WELCH.
H.R. 665: Mr. GIBSON and Mrs. COMSTOCK.
H. Res. 17: Mr. RIBBLE.
H. Res. 28: Mr. HONDA and Mr. TAKANO.
H. Res. 32: Ms. SEWELL of Alabama, Mr. MCDERMOTT, Mrs. CAPPS, and Mr. CLAY.
H. Res. 54: Ms. DUCKWORTH, Mrs. DINGELL, Mr. RYAN of Ohio, Mr. HASTINGS, Ms. KUSTER, Ms. MCCOLLUM, Ms. SCHAKOWSKY, and Mr. MICHAEL F. DOYLE of Pennsylvania.
H. Res. 62: Mr. POCAN.
H. Res. 64: Mr. GRIJALVA.
H. Res. 67: Mr. LOWENTHAL.
H. Res. 74: Mr. CÁRDENAS, Mr. TED LIEU of California, and Mr. LANGEVIN.

United States of America

# Congressional Record

PROCEEDINGS AND DEBATES OF THE 114th CONGRESS, FIRST SESSION

*Vol. 161* WASHINGTON, TUESDAY, FEBRUARY 3, 2015 *No. 18*

# *Senate*

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. HATCH).

## PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Eternal God, every good and perfect gift comes from You alone. For with You, there is no variation or shadow of turning. Help us to place our hope in You and remember how You have sustained us in the past.

Give our Senators the wisdom to trust You in the small things, realizing that faithfulness with the least prepares them for fidelity with the much. May they trust You to do what is best for America. In good and bad times, keep them from underestimating the power of Your might.

Lord, we thank You for continuing to heal Senator HARRY REID.

We praise You in Your sacred Name. Amen.

## PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

Mr. MCCONNELL. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. COTTON). The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

## RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER. The majority leader is recognized.

## DEPARTMENT OF HOMELAND SECURITY APPROPRIATIONS ACT, 2015—MOTION TO PROCEED

Mr. MCCONNELL. Mr. President, I move to proceed to H.R. 240.

The PRESIDING OFFICER. The clerk will report the motion.

The legislative clerk read as follows:

Motion to proceed to Calendar No. 5, H.R. 240, a bill making appropriations for the Department of Homeland Security for the fiscal year beginning September 30, 2015, and for other purposes.

### MEASURES PLACED ON THE CALENDAR—S. 338 AND S. 339

Mr. MCCONNELL. I understand there are two bills at the desk due for a second reading.

The PRESIDING OFFICER. The clerk will read the bills by title for the second time.

The legislative clerk read as follows:

A bill (S. 338) to permanently reauthorize the Land and Water Conservation Fund.

A bill (S. 339) to repeal the Patient Protection and Affordable Care Act and the Health Care and Education Reconciliation Act of 2010 entirely.

Mr. MCCONNELL. Mr. President, in order to place the bills on the calendar under the provisions of rule XIV, I object to further proceedings en bloc.

The PRESIDING OFFICER. Objection is heard.

The bills will be placed on the calendar.

### SCHEDULE

Mr. MCCONNELL. Mr. President, at noon today the Senate will vote on passage of H.R. 203, the bipartisan veterans suicide prevention bill. Following the recess for the weekly party lunches, we will vote on cloture on the motion to proceed to H.R. 240, a bill to fund the Department of Homeland Security.

### CLAY HUNT SUICIDE PREVENTION FOR AMERICAN VETERANS ACT

Mr. MCCONNELL. Mr. President, following last week's bipartisan vote for American jobs, the new Republican Congress will vote to send the President another bipartisan bill today. It is legislation that already passed the House of Representatives unanimously, the Clay Hunt Suicide Prevention for American Veterans Act.

This bill would offer critical support to the men and women who have already sacrificed so much for all of us. It would extend a helping hand to heroes when they need it. It is just the kind of commonsense bipartisan action the new Congress can deliver for the American people.

Let me recognize once more the great work of Senators ISAKSON and MCCAIN on this bill. I hope our colleagues across the aisle will help us pass this legislation today with strong bipartisan support.

### DEPARTMENT OF HOMELAND SECURITY FUNDING

Mr. President, when the new Senate convened, I stated my view that democracy is not about what you can get away with, it is about what can be achieved together. Exercising raw power is easier, no question about that. Changing the rules of democracy when they do not suit you can be pretty tempting to politicians. But we are hoping our colleagues in the Democratic Party will agree that elected leaders can be bigger than that. We are hoping Democrats will agree that it is on Presidents to consider the long-term consequences of partisan power grabs and to rise above the kinds of partisan temptations that tend to emerge.

The choices Democrats make on the legislation before us will say a lot about whether there are still two serious political parties in our country, whether there are still two parties interested in governing within a constitutional framework.

At its core, the debate is about whether Democrats think Presidents of either party should have the power to simply do what they want. While this is about more than just President Obama, it is also true that President Obama has repeatedly reached beyond his authority.



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Some of the President's overreach has been so out of bounds that the Supreme Court struck it down unanimously. Whether on the left, right, or center, every last Justice—even those appointed by the President—rebuked him for his overreach on recess appointments last June. Then just a couple of months ago the President rebuked himself by taking actions he had previously said many times that he lacked the legal authority to take. When he tried to suggest otherwise, a fact-checker blasted the spin and clarified that the President had been asked specifically about just the sorts of actions he was contemplating.

Last year President Obama declared that executive action was ''not an option'' because it would mean ''ignoring the law.'' ''There is a path to get this done,'' the President said, ''and that is through Congress.'' That was his view then. What changed? What changed?

The truth is, the latest power grab is not really about immigration reform. It is about making an already broken system even more broken. It is about imposing even more unfairness on immigrants who have already worked so hard and played by the rules. It is hard to understand why the President would want to impose additional unfairness on immigrants like these who just want to live their own American dream.

The question is, Do Democrats agree with the President? Well, we will soon find out. We will also find out if Democrats agree with President Obama who ignores the law when it suits him or if they agree with President Obama who made this statement just a few years ago in Miami. Here is what he said in Miami just a couple of years ago.

The President:

> Democracy is hard, but it's right. [And] changing our laws means doing the hard work of changing minds and changing votes one by one.

That is the President a couple of years ago.

So I am calling on Democrats to vote with us now to fund the Department of Homeland Security. I am calling on Democrats to join us and stand up for core democratic principles such as the rule of law and separation of powers.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Democratic leader is recognized.

LORETTA LYNCH NOMINATION

Mr. REID. Mr. President, the record held by the Republicans dealing with Cabinet officers is not one they should be proud of. For example, during a time of the War on Terror, the Republicans held up the Defense Department's nominee for a historically long time. Never in the past had someone who was to be Defense Secretary been held up by being blocked from moving forward.

You would think that would be a lesson learned and that would be enough, but no, that is not enough. Loretta Lynch, for example, who was nominated by the President to be Attorney General, has been held up for longer than any nominee for Attorney General in the last 30 or 40 years. It is hard to comprehend that. For example, Senator LINDSEY GRAHAM said she was ''a solid choice.'' Senator ORRIN HATCH has indicated that he supports her nomination. Why, then, do we have to keep waiting and waiting? We are approaching 3 months that this good woman has been held up from a job for which she has been nominated.

I would hope the Republican leadership would move this out of the Senate as quickly as possible.

DEPARTMENT OF HOMELAND SECURITY FUNDING

Mr. President, I am not going to dwell very long on the matter that is before this body, and we will vote at 2:30. We have here with us the leading Democrat on the Appropriations Committee, and she will talk about homeland security. We have here on the floor today the assistant Democratic leader, who was one of the authors of a bill which we brought to the floor and which was debated for a long time and passed overwhelmingly before it was blocked by the Republicans.

We have before us a very interesting proposition. We have had terrorist attacks in Canada, in Australia, all over the European Union, including France and Belgium. Those countries, rather than talking about not funding homeland security, are talking about funding it with more money—but not the Senate led by the Republicans. They are doing everything within their power to make sure Homeland Security is held hostage to matters that do not really relate to homeland security.

If my Republican colleagues do not like something President Obama has done dealing with Presidential Executive orders—which, by the way, he has done less than any President in modern times—bring it up on the Senate floor and let's have a debate on that. Let's not do what happened previously and shut down the government. That is the direction we are headed. That is really too bad.

THE PRESIDENT'S BUDGET

Finally, Mr. President, the President has outlined a good proposal for a budget. It is nothing that is new. It is simply building upon the budget that was so successfully negotiated by Senator MURRAY and Congressman RYAN. That is what this budget he proposed is all about. It would seem to me, rather than the Republicans running out, as soon as he said a word, saying no, no, no, let's look at areas where we can compromise. Don't we need something done with the infrastructure of this country? The answer is obviously yes. Why can't we work something out in that regard? So I would hope that rather than saying no to everything the President does, that we should understand that our role, including Republican Senators, is to legislate. Legislation is the art of compromise.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

MORNING BUSINESS

The PRESIDING OFFICER. Under the previous order, the Senate will be in a period of morning business for 1 hour, equally divided, with Senators permitted to speak therein, with the Democrats controlling the first half and the Republicans controlling the final half.

The Senator from Maryland.

Ms. MIKULSKI. Mr. President, I ask to speak in morning business as agreed upon.

## WELCOMING BACK THE DEMOCRATIC LEADER

Ms. MIKULSKI. Mr. President, before the Democratic leader leaves, in the warmest and most enthusiastic way, I want to welcome him back. He looks like he has been in a big fight. I am sure he won. It is wonderful to have him back in his leadership role, here right at his duty station. We look forward to following him and to working with him to try to forge these bipartisan relationships.

## DEPARTMENT OF HOMELAND SECURITY FUNDING

Ms. MIKULSKI. Mr. President, I come to the floor to call for a vote against the motion to proceed to H.R. 240, the House Homeland Security funding bill.

Now, this is a shock—for Senator BARBARA MIKULSKI to call for a vote against a motion to proceed on an appropriations bill. For the past 2 years, I have been on the floor speaking out, pounding the table, saying: Let's bring up bills; let's bring them up one at a time.

So now why am I on the floor asking for a vote against the motion to proceed on the Department of Homeland Security funding bill?

Well, I can tell us it is because the Homeland Security bill has two parts. One is an essential bill, the funding for the Department of Homeland Security—which I hope we get to and we get to as expeditiously as possible. But they have another component to it—poison pill riders—five riders from the House of Representatives designed to attack the President on immigration.

These riders, if passed, will guarantee the President will veto the bill, and we are going to be back to parliamentary ping-pong. We posture and pomp and vote. Send it to the President; he will veto it. We will get into more posturing, pomp, and partisan points. For what? We need to fund the Department of Homeland Security.

Yes, we do need to deal with immigration, but the Senate passed an immigration bill. Rather than attacking the President, let's attack the problems from immigration. Let's deal with the DREAMers. Let's deal with getting people into the sunshine.

This institution, both the House and the Senate under Republican control, criticized the President for not acting.

Where is leadership? Where is leadership? When the President acts, as he did on immigration, they want to punish him by adding poison pill riders to an essential—essential—national security bill.

Colleagues on the other side say: Why are you seeking to delay the funding bill?

I am not seeking to delay the funding bill. I am asking that we put in a clean bill and just vote on the money part.

All of my Democratic colleagues and I wrote a letter to Senator MCCONNELL asking him to schedule a vote on a clean Homeland Security bill. Senator JEANNE SHAHEEN, the ranking member on the Appropriations Subcommittee on Homeland Security, and I put in a clean bill the other day.

We could do it now. We could pass that funding today and reserve the debate on immigration for another day, calling upon the House to do their job. But right now I want all of the wonderful men and women who work at the Department of Homeland Security to be paid for the work they do.

We need them. We need them in cyber security. We need them searching out the lone-wolf attacks. Weren't we proud of the brilliant job our Homeland Security leadership provided to protect all the people who so enjoyed the Super Bowl?

We have a lot of work to do. In my own home State we are dependent on the Coast Guard, but so is every other State with a coastal area, protecting us in terms of search and rescue, against drug dealers.

What about our Border Patrol, which is there every single day in dangerous circumstances; don't they deserve our respect, the resources they need, and the pay they have earned?

Let's get with the program. The program is to protect America, not to protect a political party and its partisan points on immigration. Our job is to protect the homeland security of the United States of America.

I am adamant about this. We are now 4 months into the fiscal year. We could be heading for—I hope not—another continuing resolution. We need to stand for America.

Americans are in danger at home and abroad. I know my other colleagues are waiting to speak. But we do face terrorist threats. We do face cyber criminals. The Secret Service is reforming itself. We have fence jumpers at the White House, we have drones over the White House, and yet we are going to dicker, dicker, dicker, and dicker against five poison pill amendments.

Let's clean this up and vote against the motion to proceed today. Let's come back with the clean bill that Senator SHAHEEN and I introduced.

The money has been agreed upon on both sides of the aisle and both sides of the dome in the closing hours of the fiscal year 2015 debate. Working hand-in-hand with Senator DAN COATS we fashioned a bill in the Senate, and we have it agreed to over in the House. So we could do our job so that Homeland Security can do their job.

Defeat this ill-conceived motion to proceed. Let's proceed to a clean bill. Let's protect America and then get on with other important debates.

I yield the floor.

The PRESIDING OFFICER. The assistant Democratic leader.

Mr. DURBIN. Mr. President, I am pleased to follow my leader on the Appropriations Committee, Senator MIKULSKI. She and I know what it was like on 9/11/2001 in this building. We were looking out the window down the Mall and saw black smoke billowing from the Pentagon. We didn't know what happened, but we were told immediately to evacuate this U.S. Capitol Building.

I had never heard those words before. We raced out of the building, standing on the lawn outside, unaware of exactly what happened.

We knew about the tragedy in New York. We didn't know what was next. We stood there in our bewilderment, thinking what could we do. Well, what we did was protect ourselves and our Nation and come together. I remember our choral director, when we came together, Senator MIKULSKI of Maryland, led us in singing ''God Bless America'' that evening on the steps of the Capitol.

There was a feeling of bipartisanship brought about by the tragedy of that moment and the belief that we had to rise above party to do something and keep America safe.

We did. I am proud of that, and I am proud of the role the Senator from Maryland played in that.

One of the aspects that went way beyond singing was to roll up our sleeves and decide how to make government work more effectively. We had two outstanding leaders in that effort: Senator Lieberman of Connecticut and Senator COLLINS of Maine. The ranking Republican and Democratic chair of that committee came together and crafted a bill literally to create a new department in our government, the Department of Homeland Security, that brought together, I believe, 22 different agencies under one roof so that we could effectively coordinate keeping America safe.

We agreed on a bipartisan basis and created that Department, and that Department has really served us well. The current Secretary, Jeh Johnson, is an outstanding individual. They have so many areas of responsibility. Other agencies play an important role—defense, intelligence, transportation—but the Department of Homeland Security is the coordinating department for America's safety against terrorism.

That is why it is incredible to me that we have refused to provide the funds the Department of Homeland Security needs to keep America safe.

The Republicans insisted in December, in the House of Representatives, they would not pass the appropriations bill for one department, the Department of Homeland Security, because they wanted to enter into a debate with the President over immigration policy. There is nothing wrong with a debate over immigration policy. In fact, the Republicans, now in the majority control of the House and Senate, could have started that debate weeks ago. They didn't.

Instead, they attached five riders to the Department of Homeland Security appropriations bill, and they said: We will not allow that Department to be properly funded unless the President accepts these five immigration riders.

I wish to speak to one of those riders because it really tells the story of the feelings of many on the Republican side when it comes to immigration.

Fourteen years ago I introduced the DREAM Act. The DREAM Act is very basic. If you were brought to America as an infant, a toddler, a child by your parents, and you were undocumented in America, we believe you still deserve a chance.

As children, they didn't vote on the family decision to come to America, but their lives have been changed because of that decision. They have lived in America—many of these young people—undocumented, growing up, going to school, doing everything every child around them did, and then finally knowing they didn't have the necessary legal documentation to stay in this country.

Well, I introduced the DREAM Act and said for those kids—who should not be held responsible for any wrongdoing by their parents—give them a chance. Give them a chance if they have led a good life, if they have graduated from high school, if they aspire to serve in our military or go on to college. Give them a chance to be legal in America.

The DREAM Act we have never enacted into law despite 14 years of effort. But the President stepped in 2½ years ago and said by Executive order: We will not deport the DREAMers if there is no evidence of criminal wrongdoing, if they have completed high school, if they came here as infants, toddlers, and children. We will give them a chance to stay in America, to work in America, and to go to school in America.

We estimate 2 million young people would qualify, and 600,000 have gone through the process. They have paid the filing fee, gone through the process, have the protection of what we call DACA, and now don't have to fear deportation. Who are these young people? They, frankly, are some of the most inspiring stories I have met as a Member of the Senate.

The Republicans in the House of Representatives have said they want to deport the DREAMers. That is right. They will not allow the Department of Homeland Security to renew their protection from deportation, and they won't allow any others to apply for DACA protection.

That means 600,000 young people currently protected by DACA would be

facing deportation and another 1.5 million will be facing it as well.

Now, that is the answer of the Republican Party when it comes to immigration. Take these children—who came here as children to America, who have shown they want to be part of America's future—and deport them. Get rid of them.

From the Republican point of view in the House of Representatives, we have no use for these young people.

I wish to introduce one of these young people. This is Aaima Sayed. Aaima Sayed was brought to the United States from Pakistan. When she was 3 years old her parents brought her to this country. She grew up in Chicago like every other typical American kid. Aaima says:

I have no memories but those of living in the United States; I am an American in every way, except on paper.

Aaima was an outstanding student. She graduated in the top 10 percent of her high school class, where she was secretary of the Spanish club, the math team, and a member of the National Society of High School Scholars. Her dream in life is to be a doctor. This is how she explains it:

It completely breaks my heart to see thousands of children die of treatable diseases due to inadequate basic health care facilities, and I want to have the skills and ability to change that.

In January 2012, Aaima graduated from Rutgers University magna cum laude with a major in psychology. She was on the dean's list six times and had a grade point average of 3.75 out of 4.0. She was a research assistant at the Rutgers Department of Psychology and interned with a local cardiologist. Aaima took the Medical College Admission Test, the MCAT, after graduating magna cum laude from Rutgers.

She scored in the 90th percentile. Her score was better than 90 percent of those who took the test. Shortly after she graduated from Rutgers, she was told that President Obama had an Executive order that gave her a chance to stay in America. It was called DACA. She applied for it, and she was accepted.

For Aaima, it meant that now, for the first time, she could honestly think about going to go medical school. She has never received any government assistance, incidentally. As an undocumented person in America, she doesn't qualify. So when she goes to college, it is at considerable challenge and hardship beyond those who had help from the government. She never did.

Aaima sent a letter to me about DACA and its impact on her. She said:

I went from feeling hopeless and full of uncertainty regarding my future to feeling confident and optimistic that I will one day get the opportunity to help my community and people in other poverty-stricken areas.

Then something amazing happened. Loyola University in Chicago, after the President's Executive order on DACA, decided they would create 10 spots in their medical school for DACA students around America such as Aaima. She applied.

I went to Loyola the day they started classes and met 10 of them. Aaima is an amazing young woman. This was an extraordinary academic achievement in her life, and she was surrounded by those just like her who were ''undocumented,'' protected by President Obama's Executive order.

The 10 were accepted to Loyola in this special program in their medical school on one condition; that is that when they finished and became doctors, they had to agree to serve in underserved areas where the poor people live in America and don't have doctors. They gladly agreed to do it.

They are not going to medical school to get rich. They are going to medical school for the enrichment of a profession where they can help so many deserving people. That is where Aaima is today, at Loyola's medical school. I thank Loyola University for giving her a chance and giving nine others a chance. I thank them as well for giving Aaima the opportunity to serve those in America—in cities and rural areas—who have no doctors.

The House Republicans want to deport this young woman. That is what they have said: We want to deport her. We don't believe she should stay in America. After all she has accomplished in her life, after all she promises to bring to our great country, the Republicans have said: No, we don't need you. We don't want you. Leave.

That is what the rider says on the Department of Homeland Security. I come to this floor virtually every day and tell another story, such as the story of Aaima, the story of what she has been through and the promise she holds for the future of this country. I cannot understand the mentality of some on the other side of the aisle who are so hateful when it comes to these young, idealistic, amazing young people. Some of the things they have said about these DREAMers are very sad. I have had a chance to meet them, and I am going to continue to work for them.

So let us do this. Let us pass a clean Department of Homeland Security bill. What does that mean? Take off the riders, take off the politically extraneous things. Let us pass the bill to fund the Department that keeps America safe and then turn to the majority party—the Republican majority party—and say: Now accept your responsibility. If you want to debate immigration, bring it to the floor of the Senate, bring it to the floor of the House. It is within your power to do it. Don't hold the Department of Homeland Security hostage. Please, when you consider the future of immigration in America, don't forget we are a nation of immigrants, and that immigrant stock has made this the greatest country on Earth, if I can say. Let us continue that tradition.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Vermont.

Mr. LEAHY. Mr. President, later today, the Senate will vote on whether it should proceed to a bill that attempts to link two critical yet independent debates: the day-to-day operations of one of the Nation's key national security agencies, and addressing our broken immigration system. Now, in doing that, it appears that leadership wants to hold hostage the operations of the Department of Homeland Security, an office charged with protecting our national security. And frankly, that is simply irresponsible.

Sometimes the sense of history around here is whatever was the last sound bite heard on television, but let's take an honest look at the real history and how we got here: It has been well over a year and a half since a strong, bipartisan majority, Democrats and Republicans, came together in the Senate and approved a package of comprehensive immigration reforms. We did this after the Senate Judiciary Committee had held hundreds of hours of hearings and debate in markup. We passed it here overwhelmingly. The Republican House leadership refused to allow a vote on that measure even though most of it would have passed the House of Representatives. Now, because they wouldn't act at all, and left a void, the President acted. The President acted when he had waited for a couple of years to see if Congress would act—waited for the House of Representatives to take up the bill we passed. He had to act. This is almost like ''Alice in Wonderland.'' The Republican leadership refuses to act on the immigration bill and then they get mad because the President, who has to take responsibility for this country, acts. They now want to put at risk the very operations of the agency charged with enforcing the immigration laws in question and blame it on the President because they failed to act. This is ''Alice in Wonderland.''

I know Republicans object to the President's Executive action. We spent hours hearing their complaints last week as the Senate Judiciary Committee was supposed to be considering the qualifications of Loretta Lynch to be Attorney General. It had nothing to do with her but they wanted to vent for the cameras. It went on until the cameras were turned off. I would say that instead of complaining about what they failed to do and complaining about what the President does to protect this country, why don't they offer some meaningful solutions for fixing our broken immigration system. A good place to start would be the comprehensive immigration bill we passed last Congress by a vote of 68–32. There was plenty in that bill I did not like but it included meaningful reforms to all aspects of our immigration system that was negotiated and improved through the full committee process and that is what made it a real compromise.

Now, instead of voting on that bipartisan compromise or other alternative solutions, all we see are attempts to

undermine any efforts at comprehensive reform. By blocking all alternatives, the Republicans are keeping us locked in a status quo that hurts our economy, makes us less safe and pulls families apart.

The President's Executive action is a positive step to toward keeping our communities safe because it requires DHS to prioritize the deportation of dangerous criminals. And it encourages those immigrants with longstanding ties to our communities who do not pose a danger to register with the government and come out of the shadows.

Law enforcement officers and victims' advocates tell us the President's Executive action will make our communities and families safer because people will not hesitate to call the police for fear of being deported themselves.

Business leaders, economists and labor leaders tell us it will grow our economy and increase wages for all workers. It will level the playing field for American workers and raise revenues by more than $22.6 billion over 5 years.

Immigration and constitutional law experts have concluded that it is constitutional and the President acted within his authority.

Mayors from 33 major cities across the country who work every day to make our communities safe and our businesses flourish, have said the Executive action will fuel growth in local economies, increase public safety, and facilitate the integration of immigrants. These are not political partisans. They are frontline leaders who understand the daily problems posed by our broken immigration system. They are telling us that we must act. And until we do, they are supportive of the temporary steps the President has taken.

House Republicans have said their proposal will bolster border security in a way the President's Executive actions did not but those claims ignore reality. Border security has become a game of who can develop the most outlandish, unrealistic proposals. Round-the-clock drone surveillance. Doubling the border patrol. Waiving all environmental laws. Requiring DHS to prevent every last undocumented person from crossing the southern border. These proposals are not serious. They never worked in the past. They are not going to work now. We are not at war with Mexico and Canada. We cannot seal our borders. Nor should we.

We already have devoted an enormous amount of resources to border security. The overall budget for CBP and ICE has nearly doubled in the past 10 years. Hundreds of miles of border fencing has been constructed. We have more than 21,000 border patrol agents. And, the Department has deployed advanced technologies and airborne assets. The most effective border security measure would be approving the comprehensive immigration reforms passed by the Senate last Congress that reduce the number of people trying to come here in the first place.

The Senate has a choice. We can set aside politics and act like grownups or we can waste days debating the legislation sent to us by the House, which the President has made clear he will veto.

What I suggest is that we respond to the American people and act like grownups—consider legislation introduced last week by Senator SHAHEEN and Senator MIKULSKI. That bill, negotiated last year by Senate and House members, Democrats and Republicans alike, would ensure that the Department of Homeland Security has the critical resources it needs to protect our national interests. That bill will raise DHS funding by $400 million, and fund the largest operation force of border patrol agents and CBP officers in history. It will provide resources to respond quickly when natural disasters devastate our states and communities. It will provide funding for the essential services provided by the Coast Guard and Secret Service. It will invest in FEMA's State and Local Grants Program, which also helps all of our states—including rural, border ones like Vermont. And it will support our state and local law enforcement, fire departments and first responder emergency services. It replaces rhetoric with reality. I think the American people are tired of rhetoric. They'd like some reality.

We all know our current immigration system needs comprehensive reform. That's why I held hundreds of hours of hearings and markups in the Judiciary Committee and why this Senate, Republicans and Democrats, came together last Congress and passed a comprehensive immigration bill. And I'm so sorry that the House Republican leadership refused to bring it up even though there were the votes to pass it. So the President took the first step. Now, Congress must act. But this appropriations bill is not the place for that debate. Have a real debate on immigration. We cannot send the message that we are more willing to play politics than promote and protect national security. That posturing is beneath the Senate. We should pass a clean funding bill for the Department of Homeland Security, and renew our efforts to enact meaningful, comprehensive immigration reforms such as those passed by the Senate in 2013.

I yield the floor.

The PRESIDING OFFICER. The Senator from New Jersey.

Mr. BOOKER. Mr. President, I stand to discuss what has been discussed by the previous two Senators, the urgent need for a clean bill to fund our Department of Homeland Security.

I wasn't part of this body during the 9/11 attacks. I was living in Newark, NJ, and watched, as many in my city did, with a view clearly to the World Trade Center and saw that attack. What moved me afterward was the incredible unity of our country. There was no partisan politics. People pulled together. First responders from New Jersey, all over New York, and all over the country came together.

What we did after that as a nation was we began to prepare to ensure we could prevent those attacks and have better systems in place should emergencies, crises, disasters or attacks happen again. What happened from that unity is evidenced by this body joining together not just to sing patriotic songs on the Capitol steps but to work in unison to create the Department of Homeland Security.

That agency is tasked with the urgent need to prepare our country to meet crises if they come. This is not a partisan issue and should not fall prey to political fights between congressional Republicans and the President of the United States over immigration. There is way too much at stake.

Let me cite a few examples. Something we have learned from past attacks is the urgency of coordinating between different layers of law enforcement and first responders. If we do not pass a clean DHS bill, resources for that coordination, getting everyone working together, will be put at risk.

Let me cite another example. It is critical in this day and age that we stay on the cutting edge of technology, one step ahead of those people who seek to do us harm. We see clearly if we do not get a clean bill passed, we will not be able to stay on that technological edge. We see that in many areas. One great example is at our ports. New Jersey has one of the third busiest ports in America, and we need that critical technological equipment for upgrades that can help us to detect nuclear devices or harmful materials coming into our country. Without a clean bill, we will not have those resources.

We also see the headlines from just the past few months about cyber attack after cyber attack. A critical agency that must be funded appropriately to protect our businesses and our infrastructure and our first-responding capabilities against cyber attack is coordinated and led from the DHS. Not to fund this agency adequately so they can prepare for those attacks is unacceptable.

We are Americans and this idea of unifying together is our strength. We stand united against attacks. If we do it right, as we have learned not just throughout our country's history but in every aspect of our society—my college—high school coach used to talk about the five Ps: Proper preparation prevents poor performance. This, unfortunately, will so undermine our ability to secure ourselves, it is almost an insult that it will not even give proper funding to meet the weaknesses to the Secret Service, as we have seen their weaknesses exposed. As we go into a Presidential election, we must provide adequate security and protection for the next potential President.

This also harms our businesses as well. Take for example the E-Verify

system. This makes sure people who are hired by our companies do not have things in their background that would undermine our security. Those systems are harmed as well.

This is an example where petty politics and recklessness is being placed above people, policy, and reason. We as a nation have stood in unity after the most horrifying of attacks. We live in a world where we have seen diseases such as Ebola, where we have experienced cyber attacks, and where we have had to recover from vicious weather events such as Sandy. We live in a world where people seek to do us harm, and we should do nothing to weaken our ability to respond, to prepare, to make ourselves more resilient for any such occurrences. The urgency is upon us. We cannot be a reactive nation unified after the fact. We must be a proactive nation, working together, above politics, to do what is right for the strength and the security of our country.

I call for a clean bill in the critical, most important part, of our government to provide for the common defense. This is a time that should bring us together, not have us fall prey to every bit of Washington that people have grown tired and sick of. Let us pass a clean bill, as a bipartisan group of former Secretaries of Homeland Security has called for. This is not a time for recklessness; it is a time for reason. It is not a time for petty politics; it is time to put people first.

I yield the floor.

The PRESIDING OFFICER. The Senator from South Dakota.

## THE PRESIDENT'S BUDGET

Mr. THUNE. Mr. President, yesterday the President of the United States released his budget. Unfortunately, it looks like the same old failed, top-down policies of the past. It is a government-knows-best approach that clings to more taxes, more spending, and bigger government. And it is exactly what the American people don't need.

If the past 6 years have demonstrated anything, it is that big government doesn't work. Six years of big-government policies have left the American people struggling.

Even the Vice President of the United States admits it. Speaking at the House Democrats' retreat last week, Vice President BIDEN said:

> To state the obvious, the past six years have been really, really hard for this country.

That is the truth. The recession officially ended more than 5 years ago, but the recovery has been weak and sluggish. Economic growth has lagged far behind the pace of other recoveries.

By this point in the Reagan recovery, the economy had created a staggering 11.8 million more private sector jobs than we have created since the recession ended.

Wage growth has remained stagnant under the Obama administration, while prices have risen. The average family health insurance premium has increased by over $3,000 since the President's health care law was passed. Household income has declined by more than $2,000 over the past 6 years. And too many Americans are unemployed or trapped in part-time jobs because they can't find full-time employment.

Over the past 6 years, middle-class families have had to work harder and harder just to stay in place. Getting ahead has started to seem like an impossible dream.

Republicans are committed to changing that. Providing relief to the middle class is the priority of America's new Congress. We intend to do it by eliminating the top-down, big-government policies of the past few years and replacing them with a new path focused on growing the economy from the ground up.

If big government programs tend to assume one thing, it is that government knows best. The government decides what it thinks you need, and then it makes you pay for it.

Well, Republicans don't believe government knows best. We believe the American people know best. And our goal is to get government off the backs of American families. We want to eliminate burdensome government programs and regulations and allow Americans to keep more of their hard-earned dollars. We want to leave Americans free to make the best decisions for their families about health care, about housing, and about everything in between. We want to make sure Americans live in an economy that provides the resources and opportunities they need to support their families and achieve their dreams. That is what we mean by fighting for people, not government, and we have already gotten started.

Senate Republicans just passed legislation to approve the Keystone XL Pipeline. This project is a win-win for Americans. It would support 42,000 jobs during construction. It would invest billions in the economy. It would bring in millions in revenue to State and local governments.

In my home State of South Dakota alone, the pipeline would bring in $20 million in tax revenue. That is a lot of funding for local priorities such as schools and teachers, law enforcement, roads, and bridges.

Finally, the Keystone Pipeline would substantially reduce our reliance on oil from unstable countries such as Russia, Venezuela, and Iran. That would be good news for American families' energy bills.

In addition to legislation to approve Keystone, Republicans have a number of other job-creating bills on the agenda.

The House of Representatives has already taken up legislation to make it easier for employers to hire veterans by exempting new veteran hires from ObamaCare's burdensome employer mandate. House Republicans have also taken up legislation to fix ObamaCare's 30-hour workweek rule, which is currently cutting workers' hours and wages by making it more difficult for employers to create or maintain full-time positions.

Republicans will also be releasing our own budget in the next few weeks, and it will be very different from President Obama's. First of all, our budget is going to balance. The President's budget never balances—ever—and that is not a sustainable path for our country. Families have to balance their budgets. They don't have a choice. The Federal Government should be no different.

The President tends to act as if the Federal Government is different, as if the fact that his new government programs have good intentions means he can somehow ignore the fact that the country can't afford them. But the Federal Government is just like any family or business or organization. If its budget isn't balanced, bad things happen.

Right now, the Federal Government is in debt to the tune of $18.1 trillion. That number is so large that it is practically unfathomable.

To put it in perspective, 18.1 trillion people are more than 2,540 times the total population of the Earth; 18.1 trillion miles is the distance to the Moon and back—almost 38 million times.

Needless to say, a debt that big is not a good thing—and the President's budget would keep adding to it. In fact, it would add another $8.5 trillion to the debt. That is not good news for future generations who will have to pay down the bills our generation is racking up.

Republicans' budget will balance. It will take aim at out-of-control Federal spending and address our massive Federal debt. Our budget will also cut waste to make the government more efficient, effective, and accountable to the American people. There is no excuse for wasting Americans' money on ineffective and duplicative programs.

The President's budget is about the past. Republicans' budget will be about the future. The American people sent a clear message in November that they were tired of the status quo in Washington. They were tired of gridlock. They were tired of the same old top-down, government-knows-best approach to governing.

Well, Republicans heard them. And since we took control of Congress a month ago, we have focused on living up to the trust the American people placed in us. We have gotten Washington working again.

In just 1 month, we have held more amendment votes than Democrats held in an entire year. Committees are back up and running, and Republicans and Democrats are getting the chance to make their constituents' voices heard.

We have passed job-creating legislation, and we are going to keep passing more. We are going to put forward the kind of budget the American people are looking for: a budget that balances, a

budget that targets wasteful Washington spending, and a budget that starts to address the massive debt that has accumulated under the Obama administration.

President Obama has a choice: He can continue to put forward the failed policies his budget offers, or he can move away from these policies and work with Republicans to start cleaning up the debt and getting government off the backs of the American people. We hope he will choose to work with us.

But whatever he chooses, though, Republicans will continue this Congress as we have begun: by getting Washington working again for American families.

I yield the floor.

The PRESIDING OFFICER. The Senator from Wyoming.

Mr. BARRASSO. Mr. President, I wish to join in the comments from my able and learned colleague from South Dakota to talk about what happened when the President yesterday released his budget for the next fiscal year.

I agree with my colleague from South Dakota that the President's spending is absolutely astonishing. The President wants to spend $4 trillion in 2016. That is $1 billion 4,000 times. Nobody has ever seen a budget that big before.

The New York Times ran an article right after the budget came out yesterday with the headline ''Liberal aspirations, set out as a budget.'' The article said:

> President Obama presented a budget on Monday that is more utopian vision than pragmatic blueprint.

The American people don't want a utopian vision. They want responsible leadership—responsible leadership that understands their needs and the challenges people face every day.

So far this year, all we have seen from the President is a list of ways he wants to spend taxpayers' hard-earned dollars. These ideas are so unrealistic, there has been no sign that the President actually wants to get anything done for the rest of his term. If the President wanted to get something done, what he would do is write a budget that spends a reasonable amount of money in a responsible way. If he wanted to get something done, he would offer responsible tax simplification.

Instead, the President of the United States asked for more taxes on hard-working American families. That is what he did when he said last month that he wanted to raise taxes on college savings plans. Millions of people use those plans to give their children a better future. When even Democrats in Congress told the President it was a terrible idea, the President finally had to relent and drop his plan.

Then came the State of the Union Address, and the President had more ideas for even additional new taxes. The Tax Policy Center analyzed those ideas, and they found that millions of middle-class families would pay even higher taxes under the President's plans. When they looked at families squarely in the middle of the middle class, they found that only about one in four of them would even get a tax break and, instead, twice as many families in the middle of the middle class—twice as many families—would see their taxes go up, and they would pay almost $300 more on average under President Obama's plan. How is that a good deal for hard-working taxpayers all across the country, for middle-class families?

Another study looked at some of the President's other plans for tax increases. It found those ideas would lead to a smaller economy and smaller incomes. How is that a good idea for the middle class?

Now we have the President's budget. Next year, he wants to increase spending by 7 percent over what Washington will spend this year. Did most Americans get a raise of 7 percent last year? Of course not. Under President Obama's economy, wages have been stagnant. Part-time workers are having their hours cut, their paychecks cut. Why? Because of the President's health care law. People are paying higher premiums, higher deductibles, higher copays for health insurance that meets all of President Obama's mandates but doesn't necessarily meet the needs for them and their families. President Obama still has not learned that every dollar Washington takes out of the pockets of hard-working taxpayers all across the country is a dollar they can't use for themselves, to spend, to save, to invest.

In his budget the President sent over yesterday, he wants to add another $474 billion to Washington's debt next year alone—see what the debt is, and he wants to add it to the debt on top of that. He wants another $8.5 trillion over the next decade. Every one of those numbers is right there in his budget, and every one of them is bad news for hard-working American taxpayers.

Americans aren't asking the President to add trillions of dollars to Washington's out-of-control spending and debt. They know they are the ones who are going to have to pay for this new spending. The President may not realize it, but the American taxpayer knows it.

The White House says it can add all of this new spending because the budget deficit this year, as they say, will only be $468 billion. That is how out of touch this administration is. The President sees a deficit of $468 billion—and that is adding it on top of the debt—and is declaring victory. He wants to celebrate by piling on more debt to spend on his priorities, not on the priorities of hard-working American families. That is not a victory.

Over the next 10 years, under President Obama's budget, the debt in Washington is going to climb to more than $26 trillion. That is $75,000 that each man, woman, and child in America would owe to pay off the debt President Obama is suggesting in his budget.

We have all of that debt, and the President's budget does nothing to preserve and protect Social Security. There is nothing to preserve and protect Social Security so it will be there for the next generation. Is that really the legacy President Obama wants to leave for America's young people?

At least the President will send his budget to Congress by the deadline this year. This is President Obama's seventh budget, and five of those he turned over after the legal deadline. Maybe the President should have taken a little more time to double check his math because the President's figures don't add up for the American people.

President Obama's economic policies have led to far less growth than we would have had following the recession. According to the latest numbers released on Friday, our economy grew by just 2.4 percent last year. That is not really what it should be, not for our country. We have tried President Obama's ideas for the last 6 years, and they have failed. They have failed the American people. This budget is more of the same ideas—more middle-class taxes, more spending, more debt. And Democrats in Congress didn't even offer a budget the past few years.

Republicans are ready to do the work of passing a responsible budget. We are going to pass a budget with commonsense spending that fits America's priorities, not Washington and President Obama's priorities. We will pass a budget that actually helps middle-class families thrive and our economy grow. We will pass a budget that takes control of Washington spending and starts to bring down President Obama's massive debt. Republicans in Congress understand that governing responsibly begins with budgeting responsibly. Instead of more new spending that middle-class, hard-working American families can't afford, we will balance the budget. We will cut waste and support programs that deliver real results.

That is what the President should have done. What he should have done is shown real leadership, not just more utopian vision. The President missed his chance to lead. Republicans will produce a budget that focuses on jobs, economic growth, and opportunity for all Americans.

I thank the Presiding Officer and yield the floor.

The PRESIDING OFFICER (Mr. SULLIVAN). The Senator from Louisiana.

## DEPARTMENT OF HOMELAND SECURITY FUNDING

Mr. VITTER. Mr. President, I rise in strong support of moving to the Homeland Security appropriations bill. I hope we do that with a vote today. This is very important in terms of governing and in terms of passing an appropriations bill for a vital part of government.

It is also important to address and debate and vote head-on on President

Obama's illegal Executive amnesty, which he announced last December, which would basically give amnesty to about 5 million illegal aliens with no basis whatsoever in statutory law. In fact, statutory law is opposed to that sort of Executive action.

I find it ironic that the very same Members from the very same party and ideology that is constantly beating the drum and saying ''For God's sake, we can't shut down the government; we can't have that sort of showdown'' are apparently preparing to vote against even moving to this spending bill which is necessary to fund a vital part of the government. That makes no sense.

We need to move to this spending bill, debate it, and act on it. Not moving to the spending bill is a vote for a government shutdown in that area of the government, and I think that is irresponsible. We need to move to the spending bill which originated in the House. This is the House-passed spending bill for Homeland Security. We need to move to it.

Furthermore, as is evident from the last couple of weeks, we are going to have an open amendment process. There will be amendments offered and available to be debated and voted on that will have anything and everything with regard to this spending bill.

The House put several policy provisions in the spending bill, including those that I agree with, such as defunding this unconstitutional Executive amnesty from December. I agree with that, I support that, and I will certainly vote to support it. But the point is that there will be plenty of opportunity to vote on that and potentially remove that because we are going to have an open debate and amendment process—as we should—here on the Senate floor.

Let's move to this vital spending bill. Let's not threaten to shut down the government. Let's have the debate here on the floor, and let's vote. That is what we were elected to do. We were elected to represent our constituents, debate major issues of the day—and that certainly includes the President's Executive amnesty—and to vote.

If there is an effort to not allow us to even move to the bill to do that, I can only come to one conclusion: that folks voting that way for the most part support President Obama's illegal Executive amnesty, but they just don't want to have to say so, and they certainly don't want to have to vote that way. Well, sorry. You ran for the job, you asked for the job, and you got it. Let's do our job, which means putting the country's business on the floor of the Senate and acting one way or the other, debating, voting, proposing amendments, and moving on with this essential spending bill for this part of the government.

I will strongly support moving to the bill. That is the responsible thing to do. I will strongly support the provisions in the bill that the House enacted, including blocking the President's illegal Executive amnesty.

With regard to that, this is an important matter for two reasons. First of all, I believe this Executive amnesty is really bad policy that is going to grow the problem and not solve it. A fundamental rule in life is that when you reward something, you get more of it, not less of it, right? That is true of our Tax Code, and that is true in parenting. Well, we are rewarding illegal crossings. We are rewarding that flow of illegal immigrants. We are rewarding that through the President's Executive amnesty, and it is only going to produce more of it. That is my first objection to the policy. It is a very bad idea, and it is going to grow the problem, not decrease it.

My second objection is even more fundamental. I believe this action is clearly way beyond the President's Executive authority and way beyond his true powers under the Constitution. The Supreme Court has said many times that there is nothing that Congress has more clear and straightforward powers on than immigration policy, and it certainly includes anything like a major amnesty.

What the President did in December was not filling in the blanks of statutory laws or executing statutory law. What he did was completely contrary to all sorts of statutory law. Statutory law is clear. It is on the books. It has been passed through a valid process. It is clear that folks who enter the country illegally, break the law and are here illegally, are subject to removal and cannot work in the country legally.

In contrast to that clear statutory law, President Obama is first giving them authorization to stay here for at least 3 years, and that can be renewed. Secondly, he is handing them a document that he is making up out of thin air called a work permit which gives them authority to work even though that is clearly contrary to statutory law given the means by which they entered the country.

We need to put that issue and topic directly on the Senate floor and debate and act on that as well. As I suggested, the only way we do any of that is to first take a responsible vote and put the House spending bill on the Senate floor. To vote otherwise is to block a necessary spending bill, to basically threaten shutting down part of the government, and to avoid our responsibility in terms of debating and voting on the major issues of the day—to deal directly with that.

I urge all of my colleagues, Republicans and Democrats, to put this necessary bill on the floor, and then we will have an open and full debate, we will have an open amendment process, we will have all of the votes that go to this topic, and then we will act. That is what we should do, and that is what we were elected to do.

I thank the Presiding Officer and yield the floor.

The PRESIDING OFFICER. The Senator from Iowa.

Mr. GRASSLEY. Mr. President, elections in our representative form of government are supposed to have consequences, and if they don't have consequences, there is not much point of having elections.

One of the issues in the most recent election for Congress was a promise of some people running for office to overcome the President's constitutional actions, particularly what he did on immigration but on a lot of other things as well. The bill we have before us is a demonstration on the part of people who were victorious in that last election to deliver on the promises of that election.

So obviously I am here at this time to speak on the Department of Homeland Security appropriations that the Senate is considering today and, as the Senator from Louisiana just said, to urge my colleagues to support the efforts to move ahead.

In doing so, I wish to discuss what we are doing. This bill is about stopping the unilateral actions the President has taken with respect to the country's immigration laws, doing it without congressional approval or scrutiny. It is our responsibility to check the President and ensure that he does not go beyond the limits of his powers as defined in that basic document, the Constitution. This is about restoring the rule of law. This is about restoring the Constitution by denying that funds be utilized to carry out the President's improper, unconstitutional actions.

Our government is based on the rule of law. No one is above the law, not even those who were chosen to be leaders among the people. This core principle has kept us free and preserved our rights and liberties for over 200 years.

However, the rule of law in our country has slowly eroded away. While the current administration is not the only culprit of that corrosion of the rule of law, this administration has expedited its erosion more than others. That is the basis for the President saying: If Congress won't, I have a pen and a phone, and I will.

Let me explain this erosion. Under article II of the Constitution, the President ''shall take care that the laws be faithfully executed.'' This is not a permissive clause, letting the President pick and choose which laws he will enforce. The article uses the mandatory ''shall,'' which requires him to enforce all laws. However, the President has not done that. He has taken the attitude that he is above the law and is not required to obey it.

Just in the last couple of years we have seen President Obama's complete disregard for laws passed by Congress. Rather than enforcing the Affordable Care Act, he rewrote the deadlines prescribed by law. He has not enforced the Controlled Substance Act in some States and, even worse, has allowed them to openly defy Federal law.

He released five Taliban prisoners from Guantanamo without first providing 30 days' notice to Congress as required under the National Defense Authorization Act.

He unlawfully made four appointments to executive positions without authority under the appointments clause of the Constitution. In that regard, he was even overruled by two members he appointed to the Supreme Court in that 9-to-0 decision that says when the Constitution says only Congress can decide when a House is in session, the President can't say on some basis that they aren't in session and proceed to make recess appointments. In other words, what the judges said is that what the Constitution says is what it says. So he took unconstitutional action in making those appointments.

Lastly, he took the drastic step of changing immigration laws on the books without the authority or approval from Congress.

When the President acts in contravention to the law, he erodes the rule of law. He sets an example for future Presidents who will expand on his precedent and actions on other laws and policies they don't agree with. By doing this the President sends the message that the laws as written by the legislative branch aren't important, thereby removing and reducing faith in the rule of law.

The Founders understood the serious dangers of investing all powers of our government in a single body. They understood that because the Revolution was all about colonists being sick and tired of one man—George III—making decisions. So under the doctrine of separation of powers, they wrote into the Constitution dividing the power among three branches of government so one person could not be George III. They gave all legislative powers to the Congress, all Executive powers to the President, and all judicial powers to the judicial branch. No body of government may exercise the powers of other bodies of the government.

Separation of power then is fundamental to the Constitution of the United States, and the Constitution of the United States enshrines the spirit of the Declaration of Independence, that we are endowed by our Creator, not by government, with certain inalienable rights.

Just last week during the nomination hearings of Loretta Lynch as Attorney General, we had an outstanding professor from George Washington Law School testify by the name of Jonathan Turley, and he said this: ''The Separation of Powers is the very core of our constitutional system and was designed not as a protection of the powers of the branches but a protection of liberty.''

We are endowed by our Creator with certain inalienable rights, among them life, liberty, and the pursuit of happiness. The Founding Fathers knew that if the same body had all the powers, that body, no matter how large or small, would be tyrannical, as was George III.

However, President Obama has overreached the limits of his constitutional authority. He has blurred the lines of separation of powers.

The executive branch action taken with respect to our immigration laws is only the most recent, if not the most pervasive, of legislative actions he has taken under the proposition that I have a phone and a pen and I can do almost anything Congress isn't doing that I want them to do. In effect, the President has thwarted the immigration laws Congress has written in order to implement the policy he wants. Contrary to the laws on the books, the President's action would give people who have crossed the border illegally the right to remain in the United States and many taxpayer benefits that are only available to lawfully documented immigrants, as well as the right to work.

The President's action expanded a program he created without congressional approval, the Deferred Action for Childhood Arrivals—or DACA as it is called—and created a new program, the deferred action of parents of U.S. citizens and lawful permanent residents—or DAPA—as it is called.

But under the Constitution only Congress has the authority to create these types of programs that grant a lawful status to people who have come here undocumented. Let me repeat: Congress has the responsibility of writing laws, not the President. I remind my colleagues that Congress considered a law that resembled the DACA Program, but it never passed that law. So what has the President done? In effect, he has enacted a law Congress rejected.

The President justifies his actions by saying ''Congress has failed.'' However, that doesn't give him license to act on his own. I wish to again quote Professor Turley:

> Our government requires consent and compromise to function. It goes without saying that when we are politically divided as a nation, less tends to get done. However, such division is no license to ''go it alone'' as the President has suggested.

The genius of our government is that it allows for the collection of ideas and opinions. It allows these different ideas and opinions to work together to find common ground. Once common ground is reached, then laws are enacted. The President doesn't represent that many different views in the country, but obviously Congressmen from all over this geographical area represent those views. Congressmen are elected by the people directly, and if there is a disagreement in Congress on how immigration should be handled, that means there is disagreement in the country on how immigration should be handled. The President cannot imagine that everyone agrees his plan is the best plan. It is the job of Congress to find compromises and solutions that most people can agree with and particularly in the U.S. Senate where it takes 60 votes to pass legislation. This is where consensus is built when there are only 54 Republicans and 46 Democrats. If we are going to get anything done, there has to be a consensus.

The other justification the President is fond of using for his actions is the executive branch's ability to exercise prosecutorial discretion, but while the President does have the authority to decide when to prosecute or where to allocate resources, that authority is not unlimited.

The President's actions with respect to immigration go far beyond prosecutorial discretion. Lawful prosecutorial discretion is exercised on a case-by-case basis. Lawful prosecutorial discretion isn't excluding entire categories of individuals in a blanket fashion and telling them that going forward the law will be applied to them.

The PRESIDING OFFICER. The time of the Senator has expired.

Mr. GRASSLEY. I ask unanimous consent to proceed for 4 minutes.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. GRASSLEY. In addition, lawful prosecutorial discretion doesn't reward illegal behavior by conferring substantive benefits to those who have violated the law. Yet under the President's unilateral action, individuals who have entered without inspection or overstayed their visas unlawfully now will get work permits, Social Security numbers, driver's licenses, employment and education opportunities, and many other benefits only afforded to those who abide by the law.

Further, the President argues that because the Department doesn't have sufficient resources, he has exercised his prosecutorial discretion by prioritizing the removal of the most dangerous aliens for better security of our country. Yet the reality of his statement is that in fiscal year 2013, 36,007 criminal aliens were released. What is more, a report just issued by the Department of Homeland Security reveals that 1,000 of those criminal aliens have gone on to commit further crimes.

So the President isn't even doing what he says he is doing. Instead of removing criminals from our country as required by law, he is just releasing them back into the community so they can continue to commit further crimes and jeopardize public safety.

No matter how the President paints the picture, his Executive action on immigration is an abuse of constitutional duty to faithfully execute the law and an overreach of his executive branch authority under the separation of powers doctrine.

Under the Constitution, the Congress has several tools it can use to check the President and rein him in when he operates outside of the Constitution. Among the tools Congress has is the power of the purse. Congress appropriates funds and has the authority to

dictate where and how those funds may or may not be used. If the President exceeds the limits of his Executive authority to create an illegal program such as DACA or DAPA, Congress has the power to defund such a program.

The Department of Homeland Security appropriations bill is a check on the executive branch. It is a result of the last election, and elections are supposed to have consequences. This bill is our way of showing to the American people we are carrying out a campaign promise to make sure the President doesn't act in an unconstitutional way and abuse his authority.

So I ask my colleagues to take this under serious consideration when deciding whether to vote in favor or against proceeding to this bill.

I yield the floor.

## CONCLUSION OF MORNING BUSINESS

The PRESIDING OFFICER. Morning business is closed.

## CLAY HUNT SUICIDE PREVENTION FOR AMERICAN VETERANS ACT

The PRESIDING OFFICER. Under the previous order, the Senate will proceed to the consideration of H.R. 203, which the clerk will report.

The assistant legislative clerk read as follows:

A bill (H.R. 203) to direct the Secretary of Veterans Affairs to provide for the conduct of annual evaluations of mental health care and suicide prevention programs of the Department of Veterans Affairs, to require a pilot program on loan repayment for psychiatrists who agree to serve in the Veterans Health Administration of the Department of Veterans Affairs, and for other purposes.

The PRESIDING OFFICER. Under the previous order, the time until 12 noon will be equally divided in the usual form.

The Senator from Alabama.

Mr. SESSIONS. Mr. President, I ask unanimous consent to speak as in morning business for up to 10 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

### DEPARTMENT OF HOMELAND SECURITY FUNDING

Mr. SESSIONS. Mr. President, I thank Senator GRASSLEY for his remarks. As chairman of the Judiciary Committee and a longtime vigorous leader in the U.S. Senate, I know he was here and saw the problems of the 1986 amnesty. It had bad ramifications in a lot of ways. I believe if we listened to the experience of Senator GRASSLEY and his understanding of what is at stake, we would all be in a lot better shape than we are today.

The American people want a lawful system of immigration. They want one that is fair to applicants who want to come to America. They are not for eliminating immigration to America. They want a system that allows people to apply, wait their turn, and if they are qualified, be admitted; if they don't qualify, not be admitted. They want that enforced. They don't believe we should have open borders and open visa programs that allow people by the millions to come unlawfully into this country. The President obviously has a different view. As a result, we are in a situation in which the Constitution is at stake in a lot of ways.

We will vote after lunch on moving forward to the Department of Homeland Security bill. The Department of Homeland Security bill, passed by the House of Representatives, fully funds the Department of Homeland Security. The basic funding mechanisms and agreements and allocations of money in that legislation were approved on a bipartisan basis. The House of Representatives simply said: Mr. President, the money in the Department of Homeland Security funding mechanism will be spent for lawful purposes. That money will be spent to secure the homeland in an effective way. That money, however, will not be spent by anyone to take actions outside the lawful limitations and lawful powers of the Department of Homeland Security. But that is what the President wanted to do, and that is what he wants to do through his Executive action.

They are now leasing a new building across the river in Crystal City. They are hiring 1,000 new Federal employees. Those Federal employees will be processing the applications for up to 5 million people and they will be providing those people with photo IDs. These are people in the country unlawfully. They are not lawfully allowed to work in America. Businesses aren't allowed to hire people who are here unlawfully.

It is plain and simple. They are not eligible to qualify for Social Security or Medicare. So the President has declared he is going to set up this office. They will process these individuals, and they will provide up to 5 million photo IDs, 5 million Social Security numbers, and the right to work in America. They will be allowed to participate in Social Security and Medicare.

He says: I am entitled to do that. Well, he is not entitled to do that. As scholar after scholar and as common sense tells us, the President doesn't have that power. That is what this is about.

The House barred any spending on this unlawful activity—an activity the President asked Congress to allow him to do and which Congress rejected. This proposal was presented to Congress, and Congress refused to pass it. But he is doing it anyway. It is an arrogant overreach, a direct challenge to the historic role of Congress in our American system.

Our Democratic colleagues say they don't want controversial immigration riders on this bill—controversial immigration riders. In other words, they don't want the Congress to do what it is required to do—fund the programs it believes need to be funded and not fund programs it doesn't believe should be funded.

As a matter of policy, Congress has not adopted and does not support what the President wants to do. In fact, it has prohibited it. It has no duty whatsoever to allow the President to spend moneys of the United States of America to advocate a program they don't approve of, or certainly one that is unlawful. That is what this is all about. Our colleagues are voting to block the bill that would fund Homeland Security at the level the President has asked for. So there is no policy change here. Every lawful activity of Homeland Security is funded.

There was a headline in the New York Times today. I am going to push back a little on my colleagues because they have been spinning this idea that somehow the Republican House, in sending this legislation over that funded Homeland Security, is disrupting the fair flow and causing controversies within our funding mechanisms of Congress. The headline from an experienced reporter's article in today's New York Times is: ''Democrats Look to Protect Obama's Immigration Directives.''

That is exactly what this is about, colleagues. At least seven of our Democratic colleagues have explicitly said they don't agree with the policy of the President with regard to Executive amnesty and providing work permits and Social Security to people unlawfully here. But they are now united. We are told all of them are going to stand together to protect President Obama's immigration directives.

When they were running for office during the campaign last fall, people were saying they didn't agree with him. Now, when the issue hits the floor and we have an opportunity to do the normal and rational thing and not fund an unlawful policy, they are all sticking together like a palace guard around the White House to protect Obama's immigration directives. This is a sad thing and a disappointing thing to me. The article goes on to say:

Democrats are hoping they can force the new Republican majority to drop the immigration provisions and send the $40 billion spending bill to the President.

Congress is spending $40 billion on homeland security. All of that money is directed to legitimate lawful policies of Homeland Security and not allowing any of it to be spent on unlawful, unapproved policies in Homeland Security—an absolute power that Congress has, a duty that it has. Congress is violating its fundamental duty if it allows the President to carry out power he is not authorized. It is absolutely violating its duty if it supports and funds actions by the President to violate the law. It has a duty to say no to the President who overreaches.

The article goes on to say:

But Democrats have decided to shut down debate on the measure altogether, fearful that it could lead to the bill's approval and could prompt negotiations with the House that would put them at a disadvantage.

Fearful that the process could lead to the bill's approval during negotiations

with the House—isn't that what legislation is all about? Isn't that what it is all about? Shouldn't our colleagues have the right, if they don't like the language that constricts the President's power to carry on this unlawful act, to offer an amendment to strip it out? They have the ability to strike that language. Why don't they do that? No, they are blocking even moving to the bill in its entirety. Then they are attempting one of the most through-the-looking-glass, down-the-rabbit-hole arguments you have ever heard. They are saying Republicans are shutting down Homeland Security when they are not passing the bill that is on the floor today and we will be voting on. They are rejecting it. All it does is fund the Department of Homeland Security at a level agreed upon on a bipartisan basis, $40 billion.

What kind of world are we in when we do that? I would like to ask who is being protected here. The answer is clear. The New York Times said: They are protecting President Obama's political immigration directives.

I would ask this. Isn't it our duty to protect the Constitution? Isn't it our duty to protect the laws of the United States of America? Isn't it our duty to protect American workers from the decline in wages and their job prospects as a result of now legalizing 5 million people to be able to take any job whatsoever in the entire American economy, including working for the county commission, the power company, the trucking companies?

Isn't that what our duty is? Who should we be protecting here? Shouldn't we be protecting a lawful system of immigration?

But the President wants to take money. He wants Congress to appropriate money to give him at Homeland Security so he can spend it to undermine the law of the United States of America. What an unthinkable thing that is. But that is fundamentally what is happening. He wants and is demanding that this Congress not follow its promises to the American people—not follow its lawful and constitutional duty—but to give him the money so he can carry out a policy in contradiction to the laws of the United States of America and to the good policy of America. This is the way we do business in this country.

I think the reason our Democratic colleagues don't want to move to the bill is because they don't want to debate the substance of it. That is not a good reason. They don't want to debate the substance of it because their position is untenable. The American people understand that Congress is not shutting down the government and is not shutting down Homeland Security. Our Democratic colleagues are the ones that are refusing to pass the legislation that would fund Homeland Security. The President is backing them up and encouraging them, and apparently he has had success. He twisted arms or something because at least seven of the Members said they didn't agree with this, and more probably would have, had they been asked. But no, not now. Now they are all standing together with Senator REID, the minority leader of the Senate, to advocate this policy.

I don't appreciate it being said time and again by so many of our Democratic colleagues and the President that somehow Congress is acting improperly and that Congress is not funding Homeland Security. This is through the looking glass. This is beyond acceptance. I think the New York Times pretty well said it correct. I don't believe the media is buying this argument. I don't think the American people are buying this argument, and Congress shouldn't buy the argument. The right thing to do, colleagues, is to get on the bill.

Let me say this to my Democratic colleagues. I know many of you are uneasy about this. Let's get on the legislation. There will be amendments. There will be a number of amendments. Perhaps things could develop in a way that you can support them. We will protect the lawful constitutional powers of Congress and fund Homeland Security. We will do it in a way that strengthens the rule of law in America and strengthens our ability to have integrity in the immigration system. It creates a system the American people rightfully have demanded, pleaded for, and prayed for, and that Congress and the politicians have failed to produce for now over 40 years. That is the problem. The American people are angry, and they are not angry at immigrants. All of us have friends and relatives and neighbors who have immigrated to America. We are not against immigrants. I think there is a growing unease out there about the willful refusal of Congress to do what it takes to fix this system.

I would just say one more thing. American wages are down. Wages fell in December 5 cents an hour—not a good event after we have been told everything is getting so much better. There is a limit, colleagues, to how many people we can bring to America to take jobs when we have a limited number of jobs and falling wages.

We have the lowest percentage of Americans in the workforce working today since the 1970s. Things aren't going good. We can't accept everybody in the whole world to take jobs here.

We just had a report produced yesterday that said we have now discovered there are another 5 million people who have been—it looks to me—admitted to work in the country unlawfully. Through the Freedom of Information Act, it was discovered that not only do we have a million people a year come to America with green cards and permanent residency, we have 700,000 guest workers that come every year. Add to that the asylees, plus the refugees and other people. What they found out was we have now—in the last 5 years under this administration—given work authorization to 5 million more people than anybody knew. Do we think this doesn't impact people's wages, impact women to have a better job, their children to have a better job?

Somebody needs to be thinking about this. There is a limit here, and it is obvious the limits need to be discussed. We need to create a lawful system which protects American workers. We need to be less concerned about protecting President Obama's unlawful directives and more concerned with protecting the interests of the American working person.

I yield the floor.

The PRESIDING OFFICER. The Senator from Arizona.

Mr. MCCAIN. Mr. President, I ask unanimous consent to speak as in morning business for such time as I may consume.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MCCAIN. Mr. President, today I rise to speak on the Clay Hunt Suicide Prevention for American Veterans Act, a most important piece of legislation. I would like to thank Senator ISAKSON in particular for expediting this legislation through the Veterans' Affairs Committee. I admire his leadership. I admire his commitment to the veterans of America. It has been a pleasure to know him and to serve in the Senate with an advocate for our American veterans.

I would also like to thank Senator BLUMENTHAL, whose partnership I have been with for a long period of time. Without his leadership and support, this legislation would not be coming to the floor.

Every day approximately 22 American veterans commit suicide, totaling over 8,000 veteran suicides each year. I repeat: 8,000 veteran suicides each year. It is evident by these staggering numbers that our military and veterans affairs programs are not effectively treating post-traumatic stress disorder, known as PTSD, and other mental health illnesses that can lead to suicide. There are too many disconnected and ineffective treatment programs, and as a result our service men and women are suffering from the bureaucracy.

Against this backdrop, I wish to highlight the story of Clay Hunt, for whom this proposed legislation is named. Clay enlisted in the Marine Corps in May of 2005, deployed to Al Anbar Province near Fallujah in January 2007.

During that deployment Clay Hunt was shot in the wrist by a sniper's bullet that barely missed his head, a wound for which he received a Purple Heart. Despite having been wounded, Clay Hunt volunteered and graduated from Marine Corps Scout Sniper School in March 2008.

After another deployment to Afghanistan, Clay was honorably discharged from the marines in April 2009. After returning home, Clay suffered from the effects of PTSD for many years and struggled with inadequate care at his

local VA hospital. Subsequently, Clay took his own life in March 2011 at the age of 28. Clay is only one example of veterans who are trying to make their way in our country today, but who suffer, more so than they have to, because of Department of Defense and Department of Veterans Affairs mismanagement of resources for suicide prevention and mental health treatment.

This bipartisan bill will lay the foundation for improved mental health care and better suicide prevention resources for our American servicemembers. Specifically, this bill would require an independent evaluation of existing suicide prevention programs at the DOD and VA, gauge their effectiveness, and make recommendations for consolidation, elimination, or improvement.

Additionally, this legislation would establish a new single Web site that provides information for veterans regarding available mental health care services, create a pilot loan repayment program to recruit more psychiatrists to treat veterans at the VA, improve the exchange of training best practices and other resources among the VA and nonprofit mental health organizations, create a community outreach pilot program to assist with and mitigate the stressors of servicemembers transitioning to civilian life, and provide a 1-year extension for certain combat veterans to enroll in the VA.

Our Nation has a moral obligation to identify, resource, and make available to our veterans effective forms of treatment to help eliminate suicide resulting from severe combat-related psychological trauma. This bill is an important step to improve the care we provide to the men and women who have sacrificed for all of us and to whom we are forever indebted. We owe it to these brave men and women to act now.

Obviously I urge my colleagues to vote in favor of this legislation.

THE PRESIDENT'S BUDGET

Mr. President, I would like to briefly discuss the President's budget request for fiscal year 2016 as it relates to the Veterans' Administration. In this year's budget request, the President has stated he will submit legislation to reallocate part of the funding for the Veterans Access, Choice and Accountability Act of 2014, legislation he signed into law just last August, to other programs within the VA.

In other words, he wants to take money from the Veterans Access, Choice and Accountability Act and put it into other programs within the VA—a bill we just passed last August. It clearly suggests that the President of the United States is disconnected from the needs of our veterans and he may be more solicitous about supporting a bloated, demonstrably dysfunctional bureaucracy than ensuring that quality care is available to our veterans.

Our veterans have suffered long enough with wait times and scheduling delays at the VA, and deserve to have the right to choose where and when they get their health care. Taking funding away from this legislation, especially the choice card, shows a complete disregard for our veterans' well-being and the service they provide to our country.

If or when this legislative proposal comes to the Hill, I would urge my colleagues to vote against it—in fact, not even consider it.

I want to thank my colleagues. I am sure we will have an overwhelming vote today. I think it is an important step forward.

I would like to thank all of the veterans organizations and veterans advocates who have made the Clay Hunt Suicide Prevention Act for American Veterans a reality. But I would also like to urge my colleagues to understand that this problem, this serious problem, of 8,000 veteran suicides each year is not going away anytime soon. So do not believe the passage of this legislation will somehow be a cure-all. That can only come through long and persistent efforts and care and concern for our veterans who have given so much to their country. So I am very honored to be a part of this legislation.

Again, I want to thank the chairman of the Veterans' Affairs Committee and the ranking member, Senator SANDERS. I would like to thank Senator BURR, who was ranking member previously.

My friends, we have a long way to go. We have a lot of young men who have not been able to come all the way home. It is our job and our obligation to do everything we possibly can not only to honor them but to see that they have a safe and secure future, and one in which the thought of suicide would never be any consideration.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. ISAKSON. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mrs. FEINSTEIN. Mr. President, I rise today to express my strong support for the Clay Hunt Suicide Prevention for American Veterans—SAV—Act, of which I am a cosponsor.

This bill addresses a true public health crisis facing our Nation's military members and veterans: suicide. You see, an estimated 22 veterans commit suicide every day. According to data from the Department of Veterans Affairs, VA, young veterans are particularly at risk, dying by suicide more often than both Active-Duty troops and civilians. In fact, the Department of Defense, DOD, reports that in 2012 and 2013 more veterans died by committing suicide than died in the Iraq and Afghanistan wars. This is a serious problem that must be addressed.

The legislation being considered today is named for a marine who served in Iraq and Afghanistan and who committed suicide in 2011. He was 28. After being honorably discharged from the Marine Corps, Clay Hunt sought VA medical care for post-traumatic stress disorder. He constantly voiced concerns about the care he was receiving, both in terms of scheduling and the treatment received, which consisted solely of medication.

Clay decided to move closer to his family but had to wait months to see a psychiatrist at the VA medical center. After the appointment, Clay called his mother on his way home and told her that the VA is way too stressful of a place and that he can't go back. Two weeks later, Clay took his own life. Despite Clay Hunt's proactive and open approach to seeking care to address his injuries, the VA system did not adequately address his needs.

Unfortunately, this story is far too common. In 2014, Jeremy Sears, a Camp Pendleton, CA, marine who survived several tours in Iraq and Afghanistan, also took his own life after struggling to receive adequate care from the San Diego VA Medical Center. It took the VA 16 months to respond to Jeremy's disability claim. After the long wait, Jeremy received a letter that he had been denied all disability payments, despite reporting symptoms of traumatic brain injury and hearing loss from his military service. The 35-year-old former Camp Pendleton marine tragically took his own life almost 2 years after being discharged from service.

These tragedies are unacceptable, and it is our moral duty to ensure that the men and women who bravely serve our country have access to the mental health care needed to address serious mental health conditions like depression and post-traumatic stress disorder.

What does this bill do? The SAV Act is an important bill that will improve the delivery of mental health care to veterans and will address obstacles in the VA and DOD health care systems.

Under this bill, special care and attention will be given to service personnel transitioning from Active-Duty to veteran status through community outreach and peer support groups. The legislation also calls for a one-stop Web site with suicide prevention resources for veterans. In addition, to make recruitment of mental health professionals easier, the bill creates new incentives for psychiatrists who agree to serve at the VA. Both Department of Defense and VA suicide-prevention programs will also be required to be evaluated each year to increase accountability and improve care. Lastly, this bill empowers the VA to collaborate with Veteran Service Organizations and nonprofit mental health organizations to combat veteran suicide.

Suicide is a deadly epidemic for veterans that the Federal Government must address. This bill will be a starting point, by requiring the VA to prioritize suicide prevention. However, Congress must continue to work to address this critical public health issue,

and I hope this will be one of many steps we will take to prevent veteran and military suicides.

I urge all of my colleagues to support the passage of the Clay Hunt Suicide Prevention for American Veterans, SAV, Act.

Mr. INHOFE. Mr. President, I remain strongly committed to our veterans and their families. When America sends our men and women to war, we vow to care for them when they return. However, throughout the Nation, we have seen reports of our veterans enduring long wait times, substandard quality of care, and a lack of transparency at the Department of Veterans Affairs.

In my great State of Oklahoma, we have a large population of veterans at roughly 340,000. From 2005–2012, there was an increase of 34 percent in the annual veteran suicide rate in Oklahoma, totaling 1,018 veteran suicide deaths. An average of 127 deaths per year is not acceptable. We must help our veterans get access to the best mental health and suicide prevention programs.

I believe the Clay Hunt Suicide Prevention for Americans bill will provide opportunities for the VA to work collaboratively with local community organizations and require an evaluation of the various mental health care programs to identify the efficiencies or lack thereof. It will also allow the VA to compete in recruiting the necessary staff for the mental health care and suicide prevention programs. We cannot allow VA psychiatry positions to remain open for long periods of time, and the education loan repayment pilot program will assist the VA in attracting the much needed psychiatrists to support those currently employed with the abundant workload. With this bill, Congress will exercise its constitutional right to oversight of the VA while requiring the Department to use the resources it already has.

Freedom is not free. Many of our veterans and their families have paid and continue to pay the price for us and our great Nation. It is our duty to honor the promises made to them in return for their sacrifices.

Mr. SANDERS. Mr. President, I have spoken repeatedly on this floor about the cost of war. In doing so, I have tried to remind the American people and my colleagues that the cost of war does not end when the last shots are fired and the last missiles launched. The cost of war is very, very expensive not just in dollars and cents but in terms of human life and human suffering.

The cost of war in Iraq and Afghanistan is almost 7,000 dead. Nearly 52,000 servicemembers have returned with physical wounds; however, more than 200,000 service men and women are seeking treatment for post-traumatic stress disorder or traumatic brain injury.

The cost of war is nearly 1,600 servicemembers who face amputations, to include a number of with multiple amputations.

The cost of war is veterans returning home unable to find jobs and get their feet back on the ground financially.

The cost of war is high divorce rates and the impact that family stress has on children.

The cost of war is mothers losing their children to suicide.

Late last session the Veterans' Affairs Committee heard from two mothers—Valerie Pallotta from Vermont and Susan Selke from Texas—whose lives have been forever changed because of the wars in Iraq and Afghanistan.

The experience these two mothers shared with the committee goes well beyond anything I can put into words. They shared powerful stories about their own cost of war—the tragic suicides of their sons following their return from combat. They talked about their sons' struggles with post-traumatic stress disorder and efforts to seek help from the Department of Veterans Affairs. It is with the stories shared by these mothers in mind that I come to the floor today.

As chairman of the Veterans' Affairs Committee, I worked hard to listen to and address concerns brought to my attention by veterans, their family members and advocates within the military and veterans' community.

The ideas in the bill under consideration—which will be voted on shortly—are the result of the work of the families and friends of those who have committed suicide, advocates, and countless others who continue to search and fight for solutions to address the staggering rate of suicide among veterans.

This bill is a good start. Everyone needs to be thanked for their efforts, especially the mothers who came before our committee and shared their thoughts on mental health and suicide.

But, we can never do too much in the area of veterans' mental health and suicide. That is why I intend to pursue additional enhancements at another time. I do not want to slow down the bill we will be voting on today—but I want my colleagues to recognize that much, much more needs to be done to assist veterans and families struggling with either their own mental health conditions or a loved ones' mental health condition. We can never do enough.

Briefly, let me tell you what additional provisions I will be pursing at a later time.

Currently, returning veterans have 5 years from their date of discharge to enroll in the VA health care system and receive free health care for their medical conditions resulting from their service.

The bill we are voting on today would provide an additional 1-year window during which VA can provide health care for veterans whose eligibility for the initial 5-year period has lapsed.

Now, is that exactly what I wanted? No. I think the period of eligibility for health care at VA following separation from service should be 10 years.

We hear time and time again that for many veterans, problems do not necessarily manifest until years after they have returned from war. Then it might take some time before they actually seek assistance at VA. However, recognizing the importance of getting this legislation to the President's desk as soon as possible, I intend to pursue that provision at another time.

During her testimony before this committee last session, Valerie Pallotta, the mother of a veteran who succumbed to suicide, talked about her desire to see complementary and alternative medicine opportunities expanded at VA.

While VA has made significant strides in providing complementary and alternative medicine at VA medical centers, access to such services is not standardized across VA. I commend VA's current efforts, but more must be done.

I will pursue expanding access to complementary and alternative medicine at another time, so that we can increase the likelihood that veterans will get the care that not only meets their needs, but their personal preferences, as well.

We have also heard that families, who are caring for loved ones with mental health conditions, are highly stressed and looking for resources to help their loved ones. At the moment, VA has only limited capacity to offer support and education to family members and caregivers of veterans with mental health conditions. This is an issue I will pursue in the near-future.

We could never do too much to help veterans and their family members after these veterans return from war. As I said earlier, this bill is a good start—but we have much more to do.

Mr. ISAKSON. Mr. President, I know we are close to a vote on the Clay Hunt suicide prevention bill. As chairman of the Veterans' Affairs Committee, who has just left the Veterans' Administration this morning after a 3-hour meeting with employees, I want to tell all of the Members of the Senate how much I appreciate their commitment to this bill, how much I would appreciate their vote in favor of this bill.

Every day in America, 22 veterans commit suicide. Every year in America, 8,000 veterans commit suicide. Eight thousand is more than all who have lost their lives in Iraq and Afghanistan over the last 13 years. Suicide is a critical problem in the VA. The Clay Hunt bill focuses and targets on what we need: more psychiatric care, more accountability in the VA, and an investment in the future of our soldiers who have come home after defending our country for ourselves.

As chairman of the committee, I want to thank Senator MCCAIN, Senator BLUMENTHAL, Senator BOOZMAN, and Senator BURR for their tremendous effort and work to bring this about. I want to thank the members of the committee who unanimously passed

this out, including the Presiding Officer, in the very first meeting of the Veterans' Affairs Committee.

I encourage every Member of the Senate to vote for the Clay Hunt suicide prevention bill and make an investment in the future of the lives we will save of our veterans who return with mental health problems.

I yield the floor.

The PRESIDING OFFICER. The Senator from Connecticut.

Mr. BLUMENTHAL. Mr. President, I want to begin by thanking Chairman ISAKSON for giving the Clay Hunt Suicide Prevention for American Veterans Act the priority it needs and deserves. I know the Presiding Officer, as a veteran, understands and supports the vital mission of this legislation.

I also want to thank the veterans service organizations, particularly the IAVA, for the critical role they have played in heightening awareness and educating the American public about the scourge that veteran suicide reflects in our society, the unacceptable 22 veterans who commit suicide every day in the greatest, strongest Nation in the history of the world.

Our veterans all too often succumb to the invisible wounds and inner demons that come home with them. They lack the mental health care they need and deserve because the VA lacks the resources to provide that health care.

I know the VA is committed to do better. Senator ISAKSON and I have just returned from 3 hours at the VA, where we heard the Secretary, as well as his top-ranking staff, commit to using this act as a means of enhancing and increasing the quality and quantity of mental health care our veterans deserve. Far too many of our veterans have succumbed to suicide, including a friend of mine, Justin Eldridge, whose widow Joanna was my guest at the State of the Union.

She has struggled in the wake of his death with their children to survive this tragedy. Her courage and strength mirror those same qualities of bravery and fortitude demonstrated by Susan Selke who testified before our committee about her son Clay Hunt, for whom this bill is named. My hope is we can continue this bipartisan work together.

I thank Senator MCCAIN, the cosponsor of this bill, and hope we keep faith with all of our veterans and make the VA the pioneer and champion of mental health care so we end the scourge of veteran suicide in this great Nation.

I urge my colleagues to vote in favor of this measure.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. ISAKSON. I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. ISAKSON. Mr. President, I ask for a vote to be called, and I ask that it be a rollcall vote on the Clay Hunt Suicide Prevention for American Veterans Act.

I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The bill was ordered to a third reading and was read the third time.

The PRESIDING OFFICER. The bill having been read the third time, the question is, Shall the bill pass?

The clerk will call the roll.

The bill clerk called the roll.

Mr. CORNYN. The following Senator is necessarily absent: the Senator from Illinois (Mr. KIRK).

The PRESIDING OFFICER (Mr. CRUZ). Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 99, nays 0, as follows:

[Rollcall Vote No. 50 Leg.]

YEAS—99

| | | |
|---|---|---|
| Alexander | Fischer | Murray |
| Ayotte | Flake | Nelson |
| Baldwin | Franken | Paul |
| Barrasso | Gardner | Perdue |
| Bennet | Gillibrand | Peters |
| Blumenthal | Graham | Portman |
| Blunt | Grassley | Reed |
| Booker | Hatch | Reid |
| Boozman | Heinrich | Risch |
| Boxer | Heitkamp | Roberts |
| Brown | Heller | Rounds |
| Burr | Hirono | Rubio |
| Cantwell | Hoeven | Sanders |
| Capito | Inhofe | Sasse |
| Cardin | Isakson | Schatz |
| Carper | Johnson | Schumer |
| Casey | Kaine | Scott |
| Cassidy | King | Sessions |
| Coats | Klobuchar | Shaheen |
| Cochran | Lankford | Shelby |
| Collins | Leahy | Stabenow |
| Coons | Lee | Sullivan |
| Corker | Manchin | Tester |
| Cornyn | Markey | Thune |
| Cotton | McCain | Tillis |
| Crapo | McCaskill | Toomey |
| Cruz | McConnell | Udall |
| Daines | Menendez | Vitter |
| Donnelly | Merkley | Warner |
| Durbin | Mikulski | Warren |
| Enzi | Moran | Whitehouse |
| Ernst | Murkowski | Wicker |
| Feinstein | Murphy | Wyden |

NOT VOTING—1

Kirk

The bill (H.R. 203) was passed.

## RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 12:32 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. PORTMAN).

## DEPARTMENT OF HOMELAND SECURITY APPROPRIATIONS ACT, 2015—MOTION TO PROCEED—Continued

The PRESIDING OFFICER. The Senator from New Hampshire.

Mrs. SHAHEEN. Mr. President, as we begin this debate on funding for the Department of Homeland Security, we face some fundamental questions: Are we going to prioritize the safety and security of the American people? Or are we going to put the country at risk because of an ideological disagreement?

That is the choice I believe we face with this bill. We can either pass a clean bill that makes critical investments in our Nation's security or we can put this country at risk by playing politics with the funding for the Department of Homeland Security.

We all know these are dangerous times that we live in. Every day, new threats emerge that endanger our citizens at home and our allies abroad. The Department of Homeland Security's role in protecting our country from these threats cannot be overstated, and its funding should not be controversial.

Right now, the U.S. law enforcement community is on high alert for terror threats after attacks in Sydney, Australia, and Ottawa, Canada, and in Paris. Just 2 weeks ago, an Ohio man was arrested when authorities discovered he was plotting to blow up the U.S. Capitol in an ISIS-inspired plan. I believe, as the Presiding Officer understands, the man was from Ohio.

ISIS has thousands of foreign fighters, including Americans, among their ranks who seek to return to their home countries to do harm—not to mention the barbarity of ISIS today in killing the Jordanian pilot whom they had in their custody.

These are very real threats—a clear and present danger to the homeland—and because they are so real, we need our counterterrorism intelligence community operating at full strength. We need the entire Department of Homeland Security fully engaged in keeping our Nation safe.

Last week, President Bush's two Homeland Security Secretaries, Tom Ridge and Michael Chertoff, joined former DHS Secretary Janet Napolitano in a letter to Congress. The three of them wrote:

> The national security role that the Department of Homeland Security plays . . . is critical to ensuring that our nation is safe from harm. . . . It is imperative that we ensure that DHS is ready, willing, and able to protect the American people . . . we urge you not to risk funding for the operations that protect every American and pass a clean DHS funding bill.

All three former Secretaries—two of whom served under a Republican President and one under a Democratic President—are warning us that the safety and security of our Nation are at risk if we hold up funding for Homeland Security operations.

Anything short of passing a clean funding bill will endanger important security operations and could very well put our citizens at risk. But because of the anti-immigration riders that have been attached by House Republicans, the bill we are about to vote on cannot become law. Senate Democrats are not going to support it. The President has already said he will veto it. And, furthermore, according to the nonpartisan

Congressional Budget Office, the bill also adds $7.5 billion to the deficit.

Last week, Senator MIKULSKI and I introduced a clean bill that is modeled after the bicameral, bipartisan agreement that was negotiated last December by Senator MIKULSKI, who was then chair of the Senate Appropriations Committee, and Congressman HAL ROGERS, then chair of the House Appropriations Committee. The bipartisan bill negotiated by Senator MIKULSKI and Congressman ROGERS is a good bill. It is in line with the Murray-Ryan budget deal. It will help keep our Nation safe and secure, funding key counterterrorism, intelligence, and law enforcement activities, and will also strengthen the protections on our borders.

So our position on this issue is clear: Congress needs to pass a clean, full-year funding bill without any controversial immigration riders that are not going to be able to gain support, that the President has already said he is going to veto. It is that simple. There is too much at stake for the security of our Nation to play politics with this bill.

Before I conclude, I would note again that the House-passed Department of Homeland Security funding bill includes several immigration-related provisions that draw budget points of order against the bill. According to the Congressional Budget Office, the immigration-related provisions would increase the deficit by $7.5 billion over 10 years. In addition, the bill includes language relating to the budgetary treatment of these provisions. The result is multiple points of order that would not apply to the bill if the immigration provisions had not been added.

Mr. President, I have a parliamentary inquiry: Does a budget point of order lie against H.R. 240 pursuant to section 311(a)(2)(B) of the Congressional Budget Act of 1974?

The PRESIDING OFFICER. The Chair is advised that the point of order lies.

Mrs. SHAHEEN. Does a budget point of order lie against the bill pursuant to section 311(a)(3) of the Congressional Budget Act of 1974?

The PRESIDING OFFICER. The Chair is advised that the point of order does lie.

Mrs. SHAHEEN. And does a budget point of order lie against the bill pursuant to section 306 of the Congressional Budget Act of 1974?

The PRESIDING OFFICER. The Chair is advised again that the budget point of order does lie.

Mrs. SHAHEEN. Thank you very much, Mr. President.

I yield the floor.

The PRESIDING OFFICER. Who seeks recognition?

The Senator from North Dakota.

Mr. HOEVEN. Mr. President, I rise to highlight the importance of voting yes to proceed to the Department of Homeland Security appropriations bill for 2015, H.R. 240. This bill, which has passed the House, is necessary to protect our borders, fight terrorism, and defend communities under threat from natural disasters. The list of national security-related programs this bill provides resources for is long, but before I speak to those programs in greater detail, I will reinforce the importance of proceeding to this DHS appropriations bill.

DHS's funding expires on February 27. To my colleagues on the other side of the aisle who do not want to proceed to this bill, I would just point out, we need to take up this DHS appropriations funding bill and debate it—to let the Senate do its work.

We just passed a Keystone bill after the consideration of more than 40 amendments. At the end of the day, we were able to produce a bill that garnered 62 votes. I urge my colleagues to let the Senate do its business. Vote yes on cloture on the motion to proceed.

Now I would like to walk through some of the things this bill funds. I want to remind my colleagues how critical these DHS operations are to the economic prosperity, public safety, and security of the American people.

The bill provides $39.67 billion in net discretionary appropriations plus $6.4 billion in disaster funding.

Let's take a look at some of the critical security functions this bill provides.

The bill provides $10.7 billion for Customs and Border Protection—an increase of $119 million over fiscal year 2014. It supports record levels of personnel, tactical infrastructure, technology, and air and marine assets, including 21,370 Border Patrol agents; 23,775 Customs and Border Protection officers; miles of fencing and border roads; fixed and mobile surveillance and detection technology; aircraft and vessels outfitted with the latest sensor technology, as well as unmanned aerial systems; reused technology from the Department of Defense, such as tethered aerostat radar systems.

The bill also includes funding for a biometric exit pilot program in airports in 2015, as well as improvements to the Department's biometric system to support exit implementation in the future.

The bill provides $5.96 billion for Immigration and Customs Enforcement, ICE—an increase of $689 million over fiscal year 2014, which is a 13-percent increase.

It holds the administration's feet to the fire by maintaining a record 34,000 adult detention beds.

It responds to the recent flood of families coming across our border by significantly increasing family detention beds from 96 to 3,828.

It provides increases for the criminal alien program and for fugitive operations, both of which are critical to identifying, apprehending, and removing the criminals that the administration claims are a priority.

The bill provides increases for Homeland Security Investigations to combat human trafficking, cyber crime, child exploitation, and drug smuggling.

It also includes $50 million for the Visa Security Program and supports enforcement to address visa overstays.

In addition, the bill provides strong support for the Secret Service, an organization that requires reform and congressional oversight, given recent incidents, with $81 million above fiscal year 2014.

In addition to funding increases associated with preparations for the 2016 campaign season, the bill provides $25 million to begin addressing security needs at the White House complex.

Recognizing the need for a state-of-the-art biosafety level 4 research facility to prepare for and respond to animal-borne and other biologic threats, this bill provides the funding necessary to construct the National Bio and Agro-Defense Facility.

The bill provides more than $10 billion for the Coast Guard. It continues our commitment to recapitalization of the Coast Guard fleet, including funding the 8th National Security Cutter. And it takes a serious step to address nearer term heavy ice breaker needs with $8 million for preserving the Polar Sea.

The bill supports our cyber security efforts as a nation, both protecting government systems and working with the private sector to share threat information and protective measures.

Since homeland security is a national effort, the bill continues funding for grant programs to State and local firefighters, emergency managers, and law enforcement—$467 million for State homeland security grants, including $55 million for Operation Stonegarden related to border security; $800 million for the Urban Area Security Initiative, port security grants, and transit security grants; $680 million for fire assistance grants; $350 million for Emergency Management Program grants.

For research and development efforts, funding is provided consistent with fiscal year 2014 levels. The Science and Technology Directorate supports research and development at our national labs, with our university partners, and in the private sector to meet homeland security needs.

The bill also provides for aviation security screening operations by the TSA, law enforcement training needs by the Federal Law Enforcement Training Center, and E-Verify, which supports businesses across the United States in hiring legal workers.

Finally, the bill provides the requested almost $7 billion for the Disaster Relief Fund to assist with recovery costs for communities hit by natural disasters.

What the bill does not fund is the President's Executive actions. The House bill includes several amendments that are targeted at reversing the President's actions and articulating priorities for immigration enforcement.

The President's actions overstepped his authority. His actions put illegal immigrants ahead of legal immigrants who are hoping to be a part of the American dream, who are following and respecting the Nation's laws.

The immigration system is broken, but it cannot be fixed through Executive actions that exceed the President's authority. Instead, it should be accomplished through legislative reforms that start with border security, do not provide amnesty, and respect the rule of law.

I leave my colleagues with this thought: We need to support these vital national security programs. Vote yes on cloture on the motion to proceed to this bill, and let's get to work.

With that, I yield the floor.

Mrs. SHAHEEN. Mr. President, will my colleague yield for a question?

Mr. HOEVEN. I will.

The PRESIDING OFFICER. The Senator from New Hampshire is recognized.

Mrs. SHAHEEN. I certainly appreciate Senator HOEVEN, who chairs the Appropriations Subcommittee on Homeland Security, for laying out the case for the importance of the funding for critical security agencies in this bill—for the Coast Guard, for Customs and Border Patrol, for efforts to address security at our border, for cyber security.

As the Senator pointed out, there is a lot of very important funding in this bill to address homeland security. I wonder if the Senator agrees with me that we should support the funding of this bill and that if we are going to have a debate about the President's Executive actions, it should be a separate debate on immigration rather than putting at risk the funding in this bill to protect our Nation.

Mr. HOEVEN. Mr. President, I would like to respond to my colleague from the State of New Hampshire. I thank her for her work on our Appropriations Committee on the Department of Homeland Security and—

The PRESIDING OFFICER. If the Senator will yield.

All time for debate has expired.

Mr. HOEVEN. I ask unanimous consent for 1 minute to respond.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. HOEVEN. Mr. President, she and I will be continuing to work together on this and other important issues, but the reality is that we need to proceed to this bill so that we can get the funding in place.

Let's proceed to the bill. Let's have the debate. Let's have amendments. Let's do the work of the Senate on this important legislation. That is why we need a ''yes'' on this cloture motion to proceed—so we can get on this funding bill and go to work, have debate, have amendments, and do the work of the Senate on funding DHS, which is very important for our country.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the motion to proceed to H.R. 240, making appropriations for the Department of Homeland Security for the fiscal year ending September 30, 2015.

Mitch McConnell, John Cornyn, Richard Burr, Jerry Moran, John Thune, Johnny Isakson, Marco Rubio, Roy Blunt, Pat Roberts, Deb Fischer, John Boozman, David Vitter, Tim Scott, Roger F. Wicker, Richard C. Shelby, Michael B. Enzi, Rand Paul.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the motion to proceed to H.R. 240, an act making appropriations for the Department of Homeland Security for the fiscal year ending September 30, 2015, and for other purposes, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. CORNYN. The following Senator is necessarily absent: the Senator from Illinois (Mr. KIRK).

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The yeas and nays resulted—yeas 51, nays 48, as follows:

[Rollcall Vote No. 51 Leg.]

YEAS—51

| | | |
|---|---|---|
| Alexander | Enzi | Paul |
| Ayotte | Ernst | Perdue |
| Barrasso | Fischer | Portman |
| Blunt | Flake | Risch |
| Boozman | Gardner | Roberts |
| Burr | Graham | Rounds |
| Capito | Grassley | Rubio |
| Cassidy | Hatch | Sasse |
| Coats | Hoeven | Scott |
| Cochran | Inhofe | Sessions |
| Collins | Isakson | Shelby |
| Corker | Johnson | Sullivan |
| Cornyn | Lankford | Thune |
| Cotton | Lee | Tillis |
| Crapo | McCain | Toomey |
| Cruz | Moran | Vitter |
| Daines | Murkowski | Wicker |

NAYS—48

| | | |
|---|---|---|
| Baldwin | Heinrich | Murray |
| Bennet | Heitkamp | Nelson |
| Blumenthal | Heller | Peters |
| Booker | Hirono | Reed |
| Boxer | Kaine | Reid |
| Brown | King | Sanders |
| Cantwell | Klobuchar | Schatz |
| Cardin | Leahy | Schumer |
| Carper | Manchin | Shaheen |
| Casey | Markey | Stabenow |
| Coons | McCaskill | Tester |
| Donnelly | McConnell | Udall |
| Durbin | Menendez | Warner |
| Feinstein | Merkley | Warren |
| Franken | Mikulski | Whitehouse |
| Gillibrand | Murphy | Wyden |

NOT VOTING—1

Kirk

The PRESIDING OFFICER. On this vote, the yeas are 51, the nays are 48. Three-fifths of the Senators duly chosen and sworn not having voted in the affirmative, the motion is rejected.

Mr. MCCONNELL. Mr. President, I enter a motion to reconsider the vote.

The PRESIDING OFFICER. The motion is entered.

The majority whip.

Mr. CORNYN. Mr. President, yesterday President Obama, as part of the rollout of his blueprint budget that calls for more than $2 trillion in new taxes and adds more than $8 trillion to our national debt over the next 10 years, visited the Department of Homeland Security to urge the House of Representatives to pass a funding bill for that Department.

It struck me as somewhat odd that the President would go to the Department of Homeland Security and ask the House to pass a bill to fund the Department of Homeland Security since they have already done it. They passed a $40 billion funding bill to fund the Department of Homeland Security. It seems to me the President—rather than giving a speech at the Department of Homeland Security—needs to be talking to Members of his own political party. If the President wants Congress to pass a Department of Homeland Security appropriations bill, then he needs to talk to our friends in the minority in the Senate who just blocked consideration of a $40 billion Department of Homeland Security funding bill.

I know what they will say. They will say: We don't like parts of the bill. But the only way to finish a bill is to start a bill, and today they voted to refuse to start that process.

Why in the world is it that the Senate Democrats will not even allow this particular legislation to be debated and amended? One of the reasons is that they probably don't want to revisit the President's own repeated assertions—22 different times—when he said he didn't believe he had the legal authority to issue the Executive action he issued in November of 2014. Twenty-two times he said: I don't have the authority.

In 2013, when the President was speaking at an immigration event, he was interrupted by a heckler who urged him to stop deportations by Executive fiat. In response, the President said:

If in fact I could solve all these problems without passing laws in Congress, then I would do so. But we're also a nation of laws—that's part of our tradition.

Thus spoke the President of the United States on 1 of those 22 different occasions.

Maybe our colleagues in the minority don't want to debate this bill because they don't want to have to answer questions from their constituents about those 22 different occasions when the President said, ''I don't have the authority,'' and explain how they now agree with him and that somehow he miraculously got that authority absent an act of Congress.

I can think of another reason our friends on the Democratic side are reluctant to allow us to even begin debate on this legislation. I have had the honor of participating in naturalization ceremonies all across my State. I

have witnessed men and women who were born in other countries, came to the United States of America, raised their right hand and swore allegiance to the U.S. Constitution. They may have come from Mexico, India, Vietnam or from any one of a number of other countries, but they decided, notwithstanding from where they came, they wanted to be an American.

Those naturalization ceremonies are almost like birthdays—a celebration of one's birth—because in a way it is a birthday. It is a day when they become proud Americans.

As Americans we believe in the benefits of legal immigration because in many cases it was our parents, grandparents or great-grandparents who came here from another country in search of the American dream—a better place to live, work, and raise a family.

Sadly, the President of the United States has made it clear his administration is willing to take the people who played by the rules and applied for immigration and legal status to become an American citizen and kick them to the back of the line. This President has kicked the people who played by the rules to the back of the line, and he has moved people who did not play by the rules to the front of the line. That is fundamentally unfair. It also sends a terrible message that we are going to reward people who break the law and we are going to punish people who follow and comply with the law.

So maybe our colleagues across the aisle don't really want to talk about that, and that is the reason they voted not to proceed to even begin to debate this important Department of Homeland Security appropriations bill—again, a bill that was passed by the House that would fund, to the tune of roughly $40 billion, the functions of the Department of Homeland Security. Yet our friends in the minority have said: We don't even want to talk about it. I can tell my colleagues what they don't want to talk about. They don't want to talk about the President's unconstitutional Executive action which he issued or announced last November.

Here are some interesting quotes from some of our colleagues in the minority. The senior Senator from West Virginia said: I wish he wouldn't do it. He was talking about the President's stated intention to issue his Executive action.

The senior Senator from Missouri, a member of the minority party, said: I have to be honest. How this is coming about makes me uncomfortable.

Then there is the junior Senator from Indiana who said: I am as frustrated as anyone in Congress that it is not doing its job, but the President shouldn't make such significant policy changes on his own.

Then there is the junior Senator from North Dakota, a member of the minority party, who said: It could poison any hope of compromise or bipartisanship in the new Senate before it has even started. That is what a Democrat from North Dakota said about the President's stated intention to issue his Executive action.

The senior Senator from Minnesota said: I have concerns.

Then there is Senator KING from Maine who said: And I also frankly am concerned about the constitutional separation of powers.

The Senator from Maine isn't the only one because 26 different States have filed a lawsuit in the Southern District of Texas challenging the constitutionality of the President's Executive action, and the Federal district judge could rule at any time on that.

Then there is the Senator from Montana.

Mr. SCHUMER. Mr. President, will my colleague from Texas yield for a question?

Mr. CORNYN. I will not yield at this time, Mr. President. I will be glad to yield at the conclusion of my remarks if the Senator still has a question.

Then there is the Senator from Montana who said: I would prefer that the Congress act, yes.

Then there is the Senator from Delaware who said: What I would say to Congress, I am going to give you a little bit of time in the new Congress, and I expect you to do something.

So that is eight Members of the minority party who said they are more than a little uncomfortable about what the President has done. Yet today the Members of the minority party have voted in lockstep to deny a debate, any opportunity to discuss how to fund the Department of Homeland Security, how to rein in a reckless President who has overreached his constitutional authority.

Here are some other provisions that are actually in the House bill that perhaps some of the Members of the minority are a little bit nervous to talk about, much less vote on.

The House has offered as part of their bill a rider which defunds Executive actions treating domestic violence, sexual abuse, and child exploitation offenders as secondary priorities for removal. In other words, the President's Executive action took people who have actually committed crimes—not just entered the country illegally but committed other crimes—and made them nonpriority in terms of removal.

Then, of course, there is the provision of the House bill that says we don't want to disadvantage legal immigrants and people who played by the rules because the House recognized that is exactly what the President's Executive action did. It kicked the people who played by the rules to the back of the line and the people who did not to the front of the line. But our friends in the minority obviously don't want to talk about that either.

Millions of foreign-born immigrants have become successful, patriotic American citizens. We are richer as a country because of the contributions they have made to our great land.

The fundamental choice we have is, are we going to have controlled immigration or uncontrolled immigration? The President and apparently his political party have embraced uncontrolled, illegal immigration as their cause.

We, on the other hand, have said we believe in the benefits to our great country of legal immigration and assimilation because that is who we are. All of us have a family story somewhere back in our history. Mine goes back to the 19th century following a potato crop famine in Ireland that caused my forebears to immigrate to Canada and then to the United States. Everybody has a story like that.

But it is a sad and important realization that the President, through his Executive action, is disrespecting the very individuals who have played by the rules and whom we celebrate as great, patriotic Americans. But apparently our friends in the minority don't even want to talk about it, so that is why they stopped this funding bill—$40 billion to fund the Department of Homeland Security—and refused to even talk about it, much less debate it. They are going to come out here on the floor, I trust, and click through the days and say: Well, we only have 3 weeks until the Department runs out of money. It is like the old story about the teenager who murders his own parents, and then he goes to court and pleads for mercy because—he says: Judge, I am an orphan. That is what our friends in the minority have done.

This is a crisis of their own making. In fact, we don't want a crisis. We want to eliminate government by crises. That is why the House has passed the responsible piece of legislation they have. That is why we ought to take it up today. If they don't like it—I know there are Members on our side who disagree with certain portions of it—then we ought to debate it and we ought to vote. Any way we look at it, the Senate ought to at least have the debate on this legislation.

Last week our colleague from Illinois, the assistant minority leader, came to the floor and praised the new majority leader, Senator MCCONNELL, for his leadership during the first few weeks of the new Republican majority here in the Senate. He said:

> I hope that in our role in the minority, we can work with you to achieve at least debate on the floor if not some significant legislation.

That was a nice moment. But then the very next day, on a call with reporters, my colleague from Illinois pledged to filibuster the House-passed Department of Homeland Security funding bill and refused to even allow a debate—a threat they made good on today.

So my request to our colleagues on the Democratic side is simple: Honor the promise the senior Senator from Illinois made last week to have an open and fair debate and not just shut it down and create government by crisis and add to the very dysfunction the voters repudiated on November 4.

I am glad to yield to the Senator from New York.

The PRESIDING OFFICER (Mr. LANKFORD). The Senator from New York.

Mr. SCHUMER. I thank my colleague. I just have a few more questions, and then I will say my piece.

First, I ask my colleague, is it his party that is in the majority in this body?

Mr. CORNYN. Absolutely.

Mr. SCHUMER. Indeed they are—sad, from our point of view.

Mr. CORNYN. We are delighted to be.

Mr. SCHUMER. Isn't it true that the majority has the ability to put any bill they want on the floor just about at any time? They can rule XIV. They can go through committee. There are many procedural ways to get a bill on the floor; is that right?

Mr. CORNYN. Again, Mr. President, the distinguished Senator from New York knows well the answer to that is yes.

Mr. SCHUMER. My final question is this: Since we have a Department of Homeland Security that needs funding and the issue of immigration is a controversial issue—one on which we relish a debate—wouldn't it be possible for the majority to pass a Department of Homeland Security bill without extraneous and controversial amendments, send that back to the House, and then move immediately to debate the immigration proposal that was added to the bill by the House or any other immigration proposal they wish to bring forward? I am not saying they will do it; I am just asking my dear friend, isn't that possible procedurally for the majority to do?

Mr. CORNYN. Mr. President, responding to my friend from New York, I would say theoretically the answer to his question is yes. As a practical matter, we know the House has passed a particular piece of legislation that we would like to take up. It is what it is. It is the hand we have been dealt. That is the base bill to operate from. There are, of course, procedures to change it.

Senator MCCONNELL, the majority leader of the Senate, has said he believes there should be an open amendment process, and I trust our friends across the aisle would have a chance to offer an amendment and get a vote. If they have the votes, they are going to win.

## MORNING BUSINESS

Mr. CORNYN. Mr. President, I ask unanimous consent that the Senate proceed to a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The Senator from New York.

## DEPARTMENT OF HOMELAND SECURITY FUNDING

Mr. SCHUMER. Mr. President, the distinguished majority leader has stated that it is possible within the procedures of this Senate to pass a homeland security bill, as negotiated by our Committee on Homeland Security and Governmental Affairs—and I see the able head of the subcommittee here on the floor, the Senator from New Hampshire—and then move to immigration and bring it to the floor. So all of his arguments that we are afraid to debate immigration, that we don't want to debate immigration are false.

There is not one choice, there are two. One is to debate immigration fully and openly. The other is to a play a game of hostage, to say: We are kidnapping Homeland Security, and now let's have a debate on how much the ransom should be.

No one in America wants us to legislate that way. I know my colleagues in the Senate didn't do that. It was the House that did it, led by thinking by the junior Senator from Texas. His view, as I have heard him say, is that what the President did on immigration is so awful that we should shut down the Department of Homeland Security as a way of forcing the President to go along with what the junior Senator from Texas wants.

When are our colleagues on the other side of the aisle going to learn? They followed Senator CRUZ a year and a half ago when he wanted to shut down the government over ObamaCare. They actually did shut down the government for a few weeks and were so widely excoriated by just about all Americans that they backed off. But they haven't learned. They are following the junior Senator from Texas, Mr. CRUZ, into a cul-de-sac at best and over a cliff at worst.

We are happy to debate homeland security but not with a gun to our head or the President's head; not to say: If you don't do it my way, I am going to shut down the government. The vast majority of Americans—Democratic, Independent, Republican, North, East, South, West—don't believe that is how we should legislate. I am surprised—I am almost shocked, with some of the wisdom we have in the leadership of this body, that they are allowing that to happen. We will not. We have the ability to block it, and block it we will. We will not play hostage. We will not risk shutting down Homeland Security—as I am sure my colleague from New Hampshire will talk about—a vital Department. We will not let their being upset with DREAM kids jeopardize our safety with ISIS. We will not let that happen.

I urge my colleagues on the other side of the aisle to pass the bill that has already been put on the floor—a clean Homeland Security bill—then they may decide to put immigration on the floor, and we will be happy, happy, happy to debate it.

I yield the floor.

The PRESIDING OFFICER. The Senator from Missouri.

Mrs. MCCASKILL. Mr. President, I have to say that I am a little confused about what is happening right now. The Republican Party is in charge—totally in charge of Congress. I am sure Speaker BOEHNER's and Majority Leader MCCONNELL's staffs talk on a daily basis. I am sure they are talking, coordinating, and realizing the Republican Party now has the responsibility of showing this country they can run Congress.

So what do we do right out of the gate? We threaten to shut down the Department of our government that protects our homeland while ISIS is burning prisoners alive on film? The irony of this is Republicans are in charge. All they have to do is present a clean funding bill for Homeland Security, and the very next day take up immigration reform and debate it. But they are trying to play a political trick and trying to make it look as if somehow their disagreement with the President on immigration trumps the protection of our country and that somehow we will all go along with that.

Speaker BOEHNER mentioned me. My friend and my colleague from Texas just mentioned me. Yes, I said it. I am uncomfortable with the President issuing Executive orders such as this—no matter what party it is, no matter who the President is. But what I said when I made that statement is—I pivoted, and I said: Do you know how we prevent that from happening? We have a House of Representatives that is willing to take up and debate immigration reform. This body passed a bipartisan immigration reform bill by a wide margin. It wasn't even a squeaker. Many of my Republican colleagues voted for it, understanding this is a public policy area in our country that needs to be addressed.

We can't make it a political punching bag on either side. My party can't say: We are for the immigrants; we get their votes. And the Republican Party can't say: Well, we are for the tea party, and we are against all immigrants. We need to come together and do public policy in a system that is broken. The bill we passed here was amazing in terms of border security. But Speaker BOEHNER wouldn't take it up for more than 18 months. Speaker BOEHNER wouldn't even allow it to be debated on the floor of the House.

Now the Republicans are in charge. Do they take up immigration reform? Do they have a proposal? By the way, that is the way you get rid of the President's Executive order; that is, we do our jobs. We do our job. It is a little bit like ''replace'' for health care. I have heard repeal and replace for 4 years. Has anybody seen replace? Has it been identified anywhere? If it is out there, I would love to see it. It has been talked about a lot. The same thing for immigration. If you don't like what the President has done, then put up a bill and let's debate it.

By the way, the Republicans have the power to do that immediately after we fund Homeland Security. We don't have to talk about anything else. We can

stay on immigration reform and pound out a compromise and public policy that won't please everyone but will do exactly what the American people want us to do, and that is find a compromise that works.

As countries around the world have united in their opposition to ISIS and the barbarians who are participating in ISIS activities, as all of our allies and some who haven't traditionally been our allies are beefing up their cyber security, their border security, beefing up their homeland security, their airport security, adding more resources, what are we doing in America? Talk about a mixed signal—we are threatening to shut ours down. We are threatening to shut ours down to score political points.

I know there would be tough votes on immigration reform when we debate it, for me in my State and for many in their States. We had those tough votes last year and the year before. We pounded out a bill that nobody loved, but it was pretty good. It made sure, by the way, that people who had broken the rules went to the back of the line. If you want people who break the rules to go to the back of the line, then let's get busy on immigration reform. But this is exactly the nonsense that frustrates Americans—threatening to shut down a vital part of protecting our country in the name of politics.

The notion that the senior Senator from Texas, the assistant majority floor leader, just said—that we were denying a debate—is absurd on its face. We debate whatever the Republican Party wants us to debate now. They are in charge. So step up, fund Homeland Security, and move on to an immigration debate. You will find a lot of willing partners trying to find a way forward but not with this gamesmanship. It is not going to happen. It isn't going to happen because homeland security is too important, especially at this moment in our history.

I yield the floor.

The PRESIDING OFFICER. The Senator of New Hampshire.

Mrs. SHAHEEN. Mr. President, I appreciate the remarks from the Senators from Missouri and New York because I think they reflect my sentiments as well. The senior Senator from Texas suggested that we don't want to debate immigration. We are happy to debate immigration. In fact, I would love to debate immigration reform with our colleagues. But the bill before us is not about immigration reform. It is about whether we are going to fund the Department of Homeland Security. The fact is many of the issues the senior Senator from Texas raised about immigration were addressed in the comprehensive immigration reform bill this body passed in 2013. I am happy to go back to that debate, but that debate should not come in place of our willingness to fund national security and the Department of Homeland Security. That is the issue that is before us today, and we should not hold up our willingness to fund the Department because there are certain Members of the Republican Party in the House and Senate who want to talk about the President's Executive action. This bill is not about that. It is about whether we are going to fund the Department of Homeland Security.

I thought it might be instructive to point out some of the changes Congress has made which are included in this bill and which actually strengthen border security, since that is one of the concerns that has been raised. Over the past 10 years, Congress has gone to extraordinary lengths to secure our borders against the threat of smugglers, of human traffickers, and of illegal immigrants.

Since 2005 the combined budgets for Customs and Border Protection and Immigration and Customs Enforcement have grown by an astounding 97 percent—97 percent—from about $8.5 billion in 2005 to more than $16.7 billion today.

In fact, the combined budgets for these two border security agencies now account for more than 42 percent of the entire discretionary appropriations of the Department of Homeland Security. But Congress just hasn't thrown money at the problem. We have made wise investments to ensure our borders are more secure than they have ever been.

Since 2011 Congress has steadily maintained 21,370 Border Patrol agents. That more than doubles the size of this force since 2001. Over the past 2 years Congress has added 2,000 Customs officers to help stop the flow of illegal drugs and prevent human trafficking while still facilitating legitimate trade.

I have been to the San Ysidro border crossing in San Diego. I have seen the advanced technologies that have been implemented to make sure that legitimate trade can get across the border yet stop those people who are coming illegally.

Congress has deployed enhanced border security technology, including integrated fixed towers, remote and mobile video surveillance systems, tethered aerostats, and other technology to secure our southern border.

We have also funded the construction of 652 miles of vehicle and pedestrian fencing at critical locations determined by the Border Patrol agents on the ground. The Department's ability to detect illegal border traffic has grown substantially due to simultaneous investments in airborne assets, including Blackhawk helicopters, multirole enforcement aircraft, and surveillance planes critical in the war against drugs, as well as nine unmanned, unarmed Predator aerial systems.

Since 2011 Congress has provided more than $721 million above the President's request for these important airborne assets that strengthen our border security. In the bipartisan full-year budget that Senator MIKULSKI and Congressman ROGERS negotiated last December—the same bill that Senator MIKULSKI and I have introduced in this session of the Senate—we included those critical investments made to continue those efforts to secure the border. These investments will not occur or they are going to be delayed if we have a short-term budget, if we continue with a continuing resolution and, heaven forbid, if we shut down the Department of Homeland Security, which some of the Members of this body and the House have suggested is not a problem for us to do.

The clean bill includes a $119 million increase for Customs and Border Protection. This is the funding level that supports the largest operational force levels in history—21,370 Border Patrol agents and 23,775 CBP officers. The agreement restores funding cuts to CBP's Office of Air and Marine proposed by the administration. That enables them to fly more patrols along the border and to continue purchasing critical assets.

The clean bill also increases funding for the border security, fencing, infrastructure, and technology account by $20 million to provide additional video surveillance systems and adapt surplus Defense Department equipment for border security purposes.

For Customs and Border Protection, a short-term budget also means that pending contracts for border security upgrades are going to be put on hold. When I met last week with CBP Commissioner Gil Kerlikowske, he told me that $90 million in contracts for mobile and remote video surveillance technology—the very technology that is going to help us keep illegal aliens from coming across the border—is going to be put on hold due to funding uncertainty.

A clean, full-year budget bill provides an increase of $700 million for Immigration and Customs Enforcement, the agency responsible for apprehending and detaining undocumented immigrants in this country. If we don't pass on full-year bill, ICE will have insufficient resources to maintain a statutorily mandated level of 34,000 detention beds for detaining illegal immigrants, the vast majority of which are criminals. They are going to fall over 4,000 beds short of that mandated level under a continuing resolution. Furthermore, they will have no funding to complete construction and continue operating new family detention facilities in Texas.

Now, 3,000 family detention beds are supposed to be completed in Texas to deal with the surge of unaccompanied children and families to the southwest border. The very people who are complaining about border security, who are complaining about illegal immigrants coming into this country are opposing the funding that would address that border security. It makes no sense.

The bill also increases ICE's capability to engage in domestic and international investigations with a $67 million increase for antihuman smuggling

and traffic activities, to combat cyber crime, to combat drug smuggling, and to expand visa vetting capabilities. With a short-term budget, a continuing resolution, these additional investments will not be made. We should not be holding up this funding bill for the Department of Homeland Security with critical border protections in it because we have a few Members of the House and Senate who want to make this an ideological battle about the President's Executive action. Let's have that immigration debate, but this is not the place to do it.

The PRESIDING OFFICER. The Senator from New Mexico.

Mr. UDALL. Mr. President, let me thank Senator SHAHEEN for her leadership on the Homeland Security bill. She has taken that over this year and learned it, knows the ins and outs of it. She is someone who truly cares about being fiscally responsible. She just recently pointed out to our caucus that if we pass the House bill with all of the riders in it, it would cost $7.5 billion more and put us $7.5 billion more into debt, which I do not think is a fiscally responsible move. So we should be taking a very hard look at these riders as they come through from the House.

I have come to the floor to talk about how important it is for us to pass a clean appropriations bill for the Department of Homeland Security. I wish to talk about how failing to pass a bill will impact the southern border, impact my State of New Mexico, where DHS plays a vital role in security, in business, and in people's daily lives. The men and women at DHS make sure commerce is conducted smoothly across our border with Mexico. They make sure workers can get back and forth. They inspect shipments coming into the country, and they protect our communities from drug smugglers and crime.

It is inconceivable to me that Republicans would threaten to stop funding this agency over a policy dispute with the President. I have heard Republican leaders say the era of shutdowns was over, but here we are again, rapidly approaching the date when DHS funding expires. We need an appropriations bill that does not disrupt this important work.

I talk to New Mexicans who live in the border communities. I talk to ranchers and farmers in my State. Border security is not theoretical. It is not a political game. It is crucial to safety. It is crucial to trade at our ports of entry, such as Santa Teresa and Columbus. In New Mexico a shutdown of DHS is a threat to our security, to jobs, and to our economy.

I have read some reports where congressional Republicans have said on the record that a delay in funding DHS would not be a big deal. They say most of the Department's employees are considered essential so they would still be working at our borders and screening airline passengers. That may be true, but those employees would not get paid. I am not willing to tell our Border Patrol agents and TSA officers with families to feed that they still need to go to work, but they are not going to get paid because Washington cannot get its act together.

I know my constituents would feel a lot more secure in border communities if the Border Patrol officers were getting paid rather than worrying about their mortgages, their car payments, tuition payments, and other household expenses. Despite the Republican claims that DHS will not actually shut down, there would be significant consequences if Congress failed to fund DHS.

Consider what would happen to the Federal Law Enforcement Training Center, FLETC as they are called out in New Mexico. FLETC serves as the law enforcement training academy for 96 Federal agencies. FLETC in Artesia, NM, trains all of our Border Patrol agents and Bureau of Indian Affairs police officers.

If we fail to fund DHS, FLETC training grinds to a halt. This will impact every Federal agency whose law enforcement officers must complete basic training before they can be deployed in their posts of duty. A delay in training impacts securing the Nation's borders, aviation security, protecting our Nation's leaders and diplomats, securing Federal buildings, and other countless Federal law enforcement activities.

The economic impact is huge. Over 3,000 students, 350 of them in Artesia, NM, are expected to be in training at the end of February. If DHS is not funded, they have to go back home. This will cost about $2.4 million in airfare to send students back to their agencies, and then turn around and fly them back to FLETC when Congress does its job and funds DHS.

Regardless of your views on immigration policy, wasting law enforcement's time and taxpayer money does not improve our security. Artesia is not a big city. Its economy relies on FLETC. The students spend their money at local businesses. Many residents are contract employees at the facility. If FLETC closes, it has a real impact in our community.

As a New Mexican, I am appalled that a DHS shutdown is even being considered. We cannot risk our national security, our community safety, and our border commerce just so Republicans can prove some sort of inside-the-beltway point about how angry they are about immigration reform. The House Republican bill threatens to deport millions of people who have been living and working and going to school in our country for many years. The Senate should choose a different route: Put a clean bill on the floor, allow an open amendment debate, and enact a bill the President can sign before any shutdown occurs.

Few States understand the importance of comprehensive immigration reform as New Mexico does. We need a system that secures our borders, strengthens families, and supports our economy. In fact, we almost had just that. The Senate passed a bipartisan bill in the last Congress, but House Republicans let it die—would not even take it up, would not put it on the floor.

That bill was not perfect. It did not satisfy everyone in every case, but that is what compromise means. That is what a bipartisan effort requires. Due to the House's failure to act on immigration reform, over 400,000 people in my State live in immigration limbo, all the while they work and raise families. Deporting these children and families is not a realistic option. We need to focus limited resources, as the President has done, on securing the border. We need to go after drug dealers and gang members and potential terrorists.

I and so many other New Mexicans are appalled that Republicans want to take out their anger on the DREAMers. They will not commit to real reform, but they will commit to chasing down children—innocent children—brought to this country by their parents. These are inspiring young people in my State, when I talk about these young DREAMers. They have worked hard. They have persevered. They know and love this country as their own.

They are young leaders such as Mabel Arellanes. Mabel came to Santa Fe with her mother from Mexico when she was just 6 years old. Mabel graduated from Capital High School. Her dream was to go to college, but her immigration status made that impossible. From the age of 15, Mabel worked to help other DREAMers. She helped pass the New Mexico DREAM Act. Mabel eventually did get to college and graduated from the University of New Mexico with honors. She is in her second year of law school now.

Another one of the DREAMers—this is Alejandro Rivera. Another DREAMer, he moved to Belen, NM, when he was 7 years old. After high school, Alejandro enrolled at the University of New Mexico. Undocumented, he could not get financial aid. He and his mother worked hard to pay tuition. Alejandro also volunteered to help other young people get an education and to follow their dreams. He is at work now on his Ph.D. in education. We may disagree on the specifics of immigration reform, but these DREAMers have earned our admiration. They should not be pushed back into the shadows by the House deportation bill.

The men and women who work to keep us safe, who screen more than 1 million people a day through our ports of entry, who patrol our borders and help secure our communities should not be a bargaining chip. In New Mexico we believe homeland security should be a priority, not a talking point. Secretary Johnson at DHS has been very clear. Key security initiatives are left waiting. His predecessors have also been very clear. Last week all three former DHS Secretaries, two of whom are Republican, sent a letter

to the Senate leadership urging them to pass a clean funding bill.

We live in a very dangerous world. We face terrorist threats at home and abroad. Recent events make that very clear. Now is not the time to play politics with homeland security. In fact, there never is a right time for that. The American people are watching. The people of my State are watching. They are watching these games. What they see is a lot of sound and fury that leads nowhere. What they want is a government that works.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. HATCH. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Ms. AYOTTE). Without objection, it is so ordered.

Mr. HATCH. Madam President, I rise today to discuss a matter of utmost importance: the Department of Homeland Security funding bill, H.R. 240.

We live in a world of extraordinary threats. Around the world, terrorists continue to devise ways to harm Americans and our interests. In Pakistan and Afghanistan, we see a resurgent Al Qaeda, which continues to plot attacks from increasingly ungoverned safe havens. Throughout the broader Middle East, we see Al Qaeda's affiliate groups—from Al Qaeda in the Arabian Peninsula to al-Shabaab—posing sophisticated new threats. In Iraq and Syria, we see the self-proclaimed Islamic State controlling vast swaths of territory, shocking the world with its brutality, and announcing its deadly serious intent to kill Americans. Within Western societies, we see the potential for radicalization at home, the danger of which has been made manifest in the attacks on Ottawa, Sydney, and Paris. Inside the United States, the Department of Homeland Security serves as our critical line of defense against many of these threats at critical points—from our borders, to our airports, to our coasts and our ports.

In the realm of cyber space, criminals, terrorists, and other nations' governments present sophisticated threats on a variety of fronts. Defending against these many serious threats requires efforts that range from securing critical infrastructure to guarding against the sort of espionage and blackmail that Sony recently experienced. These are enormously difficult tasks, especially in an ever-changing, high-tech operating environment. As the agency charged with protecting civilian networks and coordinating on cyber defense issues with the private sector, the Department of Homeland Security stands at the crossroads of our Nation's defense against this next generation of threats.

When the dangers we face are natural rather than manmade, the Department plays no less of a critical role. From hurricanes and tornadoes to volcanos and forest fires, the Department's component agencies, such as FEMA and the Coast Guard, play a critical role in the preservation of lives and property.

The House-passed bill provides the Department with nearly $40 billion in funding—a level consistent with the Budget Control Act's spending limits. That money will not only fund the critical programs I have mentioned so far, but will also provide critical improvements on a wide range of fronts, including more border control agents, new ICE detention facilities, increased funding for E-Verify, more effective security screening at our airports, improved Secret Service protection, increased support for cyber defense, and important disaster relief.

These provisions all enjoy broad bipartisan support, and I commend my colleagues on the Appropriations Committee for their hard work on this package. But this work has been complicated by a troubling development: some of my colleagues—almost all of them Democrats—actively seeking to block consideration of this vitally important funding. Why? Only because they seek to protect a President of their own party who has acted lawlessly and overstepped proper constitutional bounds. Instead of following the examples of great Senators of the past who stood up to Presidents of their own party on behalf of the Constitution and the rule of law, today we have witnessed far too many Senators instead shamefully toeing the party line.

Our Nation's Founders knew, in the sage words of Montesquieu, that ''in all tyrannical governments . . . the right both of making and enforcing the laws is vested in one and the same man . . . and wherever these two powers are united together, there can be no public liberty.'' For this reason, when drafting the Constitution, the Framers divided power between the executive, legislative, and judicial branches, and between the Federal Government and the States.

Despite these constitutional foundations, President Obama has decided that he ''won't take no for an answer'' when Congress refuses to go along with his agenda. In direct opposition to our centuries-old system of legislation and to the binding authority of the Constitution, the President has audaciously declared that ''when Congress won't act, I will.'' And he has followed up these threats with a variety of unilateral Executive actions, many of which are flatly inconsistent with the law and the Constitution.

Over the past weeks and months, I have come to the Senate floor to speak out about a series of specific instances that exemplified the brazen lawlessness of this administration. This pervasive and illegitimate overreach has come in many different forms.

With his recent move on immigration, President Obama seeks not only to prevent enforcement proceedings against millions of people unlawfully present in this country, but also to license their unlawful presence with affirmative work permits. In doing so, he not only ignores the duly-enacted laws of the land but also seeks to unilaterally replace them with his own contradicting policies.

The President and his allies in this Chamber want nothing more than to turn this into a debate about immigration policy, but that is not what this debate is about. Immigration is a complex and divisive issue, and Americans hold a wide variety of views on the matter that don't always divide neatly along partisan lines. Many conservatives—myself included—share some of the same policy goals as President Obama. Instead, this is a debate about loyalty. As Senators, where do our loyalties lie? Do we owe our loyalties first to the Constitution, to the protection of the American people, and to the goal of lawful and lasting immigration reform, or do we owe our loyalty, out of reflexive partisanship, to a President bent on dangerous unilateralism?

President Obama's Executive action is a direct affront to our system of republican self-government. The Constitution vests legislative authority with the Congress, not the President alone. Instead, the President is charged with the duty to ''take care that the laws be faithfully executed.'' This is not a suggestion or an invitation for the President to enforce the law; it is an obligation for him to do so.

The President and his executive branch exercise prosecutorial discretion—the discretion to choose not to prosecute certain cases. But that power stems from considerations of fairness and equity in particular cases. Instead of requiring individualized determinations based on individuals' specific situations, the President's latest action sweeps up millions of people based on only a few broad, widely shared criteria.

An administration, of course, cannot prosecute when there are not sufficient resources to do so. But the Obama administration has never explained how these Executive actions will save money. In fact, the administration's own policy advisers have acknowledged that a work-permitting program will be expensive and will actually take away resources from law enforcement.

While no one disagrees that capturing and removing violent criminals should be our highest immigration priority, President Obama has gone much further and made current immigration law essentially a dead letter for millions of illegal immigrants.

Despite the administration's claim to the contrary, President Obama's action is not comparable to the Executive actions taken by President Ronald Reagan and President George H.W. Bush. Even the Washington Post editorial board found that claim by the White House to be ''indefensible.'' Presidents Reagan and Bush simply implemented the enforcement priorities established in laws that Congress

actually passed. By contrast, President Obama sought to change the law before Congress has acted, so he cannot rely on Congress's authority to enforce the policy he prefers. Indeed, President Obama has acted directly in the face of congressional opposition, so we should call his Executive order what it is: an attempt to bypass the constitutionally ordained legislative process and rewrite the law unilaterally.

Perhaps the most persuasive case against this disturbing unilateralism was laid out by President Obama himself. On at least 22 different occasions since he took office, the President acknowledged that he lacked the legal authority to carry out these actions. As he himself said, by broadening immigration enforcement carve-outs, ''then essentially I would be ignoring the law in a way that I think would be very difficult to defend legally. So that's not an option . . . What I've said is there is a path to get this done, and that's through Congress.'' He was right then; he is wrong now.

Faced with this brazen lawlessness, the House of Representatives passed a bill that both funds our critical homeland security priorities and fulfills our duty to respond to the President's lawless actions. This is a careful line to walk, and our colleagues in the House deserve praise for their admirable work. Their bill represents a responsible governing approach by funding our critical homeland security needs while preventing President Obama's constitutional abuse.

When faced with such a sensible approach, I have frankly been shocked and dismayed by the opposition that many of my colleagues on the other side of the aisle have expressed to this bill. On the floor today, many of my colleagues have indicated that they will oppose letting us vote on Homeland Security funding and even oppose allowing a formal debate and an open amendment process on the bill unless we allow President Obama's Executive action to come into effect.

Senators of both political parties have often stood up to Executive encroachment—not for purposes of partisan gain or political grandstanding, but in defense of Congress as a coordinate and coequal branch of government with its own essential authorities and responsibilities.

Implicit in the constitutional design of separating the Federal Government's powers is the idea that each branch would have the incentive and authority to resist encroachments from the other branches, ensuring that unfettered power is not concentrated in any one set of hands. The Founders recognized this as indispensable to preserving the individual liberty of all citizens. As Madison counseled in Federalist 51, ''The great security against a gradual concentration of the several powers in the same department consists in giving to those who administer each department the necessary constitutional means and personal motives to resist encroachments of the others.''

Senator Robert C. Byrd of West Virginia embodied this institutional idea as much as anyone with whom I have served. Although he helped to lead this body for more than half a century and left us less than 5 short years ago, I was surprised and dismayed to learn recently that nearly half of current Members never served alongside Robert C. Byrd.

Senator Byrd fiercely defended this body's prerogatives and independence against the encroachments of the executive branch—whether they were Republicans or Democrats in the executive branch. He neither censored his criticisms nor weakened his defenses based on the President's political party. Even in his twilight years, when President Obama took office with extraordinarily high approval ratings, Senator Byrd was willing to hold the new President's feet to the fire to defend the Senate's right to give advice and consent to nominees. He publicly chastised the White House for its excessive reliance on czars, observing that unconfirmed policy chieftains ''can threaten the Constitutional system of checks and balances. At the worst, White House staff have taken direction and control of programmatic areas that are the statutory responsibility of Senate-confirmed officials.''

How far we have fallen since the days of Senator Byrd. Indeed, this brinksmanship by my colleagues in the minority represents the height of irresponsibility. They risk our homeland security funding at a time when our terrorist enemies have repeatedly demonstrated a renewed capability to threaten the homeland. They risk our very system of constitutional government by sacrificing our power to make the laws and the President's duty to enforce them. They risk many of the immigration reform goals that are shared across party lines.

I am committed to making real progress toward implementing lasting immigration reform. I supported the Senate's comprehensive immigration bill in the last Congress. Even though that bill was far from perfect, I voted for it because I believe in working together to make much needed progress on this vitally important issue.

As I have long argued, the way to get real immigration reform back on track is not for the President and his allies to insist on his ''my way or the highway'' approach. Responsible legislating—not unilateralism—is the right way forward on immigration. The President's Executive action risked the opportunity for meaningful bipartisan progress and undermined the Constitution in the process. And now, his allies in this Chamber are apparently willing to risk the security of our Nation at a time of extreme danger just to close partisan ranks and provide political cover to the President.

If my colleagues in both parties are serious about protecting our Constitution's separation of powers and the liberty it ensures, if they are committed to protecting Americans from the sorts of terrorist attacks we have lately witnessed with alarming frequency, and if they are committed to working together to achieve lasting immigration reform the right way, I urge them to reconsider their vote earlier today and to agree to—at the very least—debate this critically important bill.

Madam President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. MANCHIN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MANCHIN. Madam President, I rise in opposition to what seems to be a politically motivated Department of Homeland Security funding bill that we had to vote on. Funding the DHS should be a priority of Congress. It really should be. I know it is for all of us, and we cannot afford to play any of the political partisan games. It is not what people in this country want see. It doesn't do any of us justice whatsoever. We jeopardize the funding for third largest agency in the country that will risk lapse in not only our border security, which is most important to all of us, but also cyber security, also Secret Service protection, disaster response, FEMA, TSA in airports. Our Nation faces many threats from our enemies, both overseas and here at home, more so than ever before.

The world is a troubled place. We all go home and the No. 1 thing people are concerned about is the security of our own Nation. They see this evil going on, and now this horrific, barbaric action we saw that took place with the Jordanian pilot is unimaginable to us, that people could act this way to other humans.

With that being said, we have to stand united in supporting our values and protecting our citizens in the United States of America. This is not the forum for debate on immigration, and I have said that. I would hope some of my colleagues would feel the same way. We should fully fund the DHS, and this is one that has necessary levels that must be funded for the protection of our country. Then we can deal with our immigration system which is broken. I think we have stated that in the Senate. We have stood bravely, we voted, and we did changes and took some tough votes that needed to be made.

I agree with all of my Republican colleagues that our borders need to be secure. I don't think any of us disagree with that. It has to be secured first and then must stem the tide of illegal immigrants flowing into our country. We have seen them coming in all different sizes, races, and sexes. It continues to be something we should be concerned about.

I also agree with my Republican colleagues that President Obama should

not have executed action—he should not have used his Executive action to make changes in our immigration system. I think we should have doubled down and gotten this bill before us and get the House. I disagree with the House's decision not to even take up the bill we sent. In a bipartisan fashion it was debated on this floor, put together by Democrats and Republicans.

I have been here for 4 years. I haven't seen a bill worked more intensely than the immigration bill. I haven't seen the border security worked more intensely and Republicans and Democrats working together to make sure we have a Homeland Security that will secure our borders. That is the first time I saw the Senate truly work since I have been here and saw what the potential would be if we worked together. I was very excited about that. I thought for sure we would get a vote. Now we are back to the same, putting together who is for what and how we are going to posture on this one. I believe this is not the place and this is not the bill for us to get into a political squabble. I don't.

I know the House put us in a difficult position. It came over here, it had to be voted on, and it was. Now we have to get on to serious business. How do we take care and make sure our Department of Homeland Security has the necessary funding through an appropriations bill that both Democrats and Republicans worked on, not for another continuing resolution which does not let our different branches that are responsible for Homeland Security be able to upgrade and fight the battle we need to fight.

When we think about all of the new equipment that is needed for our forces out there, our National Guard, also our Coast Guard, what they need to be updated and upgraded to and the things that have been planned, it will only happen through a bill we pass on this side. It will not happen through a continuing resolution bill. It will be the same as we have had. The status quo will not change.

I am willing to work with all of my friends in here to have a good, clean Homeland Security bill that does the job and protects the United States of America. I am not willing to do a bill that will jeopardize the security of our homeland, which is what I think we have received. I think we can do better than that.

I urge all of our colleagues to work together to get a piece of legislation that helps protect America and keeps America safe and also puts the emphasis where it needs to be. That is what the people back home in West Virginia expect. I know people in New Hampshire expect the same from the Presiding Officer. I know we can deliver, working together in a bipartisan way, putting America first and not our politics. That is what they expect. I hope we are able to rise above this, and we will get through this. I think we will get to a clean bill that basically secures America and keeps us safe.

I yield the floor.

The PRESIDING OFFICER. The Senator from Minnesota.

Ms. KLOBUCHAR. Madam President, I come to the floor to join my colleagues to call for an end to any political gamesmanship being played over this bill to fund the Department of Homeland Security. I thank Senators SHAHEEN and MIKULSKI for their leadership on this issue. They have introduced legislation I am proud to cosponsor and that provides the critical resources the Department of Homeland Security needs today and for the remainder of 2015.

The issue of funding the Department of Homeland Security has become particularly important to my State. It is important to every State. New Hampshire cares a lot about the Coast Guard and many of the other agencies involved in security.

In Minnesota we have actually had active recruiting, a first from al-Shabaab that recruited young men in the State of Minnesota—and particularly in the Twin Cities—to go to Somalia and to fight, including becoming suicide bombers. We actually had 18 Federal indictments that came out of that. Half of those people have already been convicted because of the fact our community—our Somali community—has been able to work with the law enforcement positively. We have been able to get the information to prosecute those cases.

Then we go to Syria, something our Presiding Officer knows a lot about and is an expert on. The first American who was killed fighting on the side of the terrorists was from Minnesota. There is active recruiting that has been going on there. I have seen the ads of some of the recruiting from the FBI that has been going on there. In fact, we had an indictment of people involved in going to fight for ISIS. So this is real for us. This isn't just something that is thousands of miles away. It is happening in our communities.

Just last fall a young man from the Twin Cities area was arrested by the FBI at the Minneapolis-St. Paul International Airport as he was trying fly to Turkey. The next day the young man's partner was able to board a flight for Turkey and is thought to be fighting with ISIS.

These are real people, real terrorists. I think we all know when it comes to Homeland Security it is not just our national security that is at stake, it is also our economy. Our border with Canada stretches over 5,500 miles, the longest in the world. Over 400,000 people and nearly $2 billion in goods and services cross our borders every day.

In Minnesota we understand the economic significance of cross-border commerce. Canada is our State's top international trading partner with over $19 billion in total business across the border. Think of that—$19 billion. Over 1 million Canadians visit Minnesota every year—that is a lot of Canadians—contributing $265 million to our local economy. A lot of them visit the Mall of America in Bloomington. Many of them go fishing up north. That relationship relies on a seamless United States-Canadian border with U.S. Customs and Border Protection keeping that border secure and efficiently screening all cross-border traffic.

We have made important strides in recent years with the trusted travel programs to make our northern border more secure while encouraging the cross-border tourism and commerce that is the lifeblood of so many Northern States, including Minnesota and New Hampshire. Withholding critical funding from DHS could threaten this progress, leading to a less secure border and also hindering economic opportunity. Withholding critical funding risks the safety of our people, the strength of our economy, and even our relationships abroad.

At a time when other countries around the world are stepping up their security, we can't be standing it down. Even a cursory look at world headlines shows the threats the United States and our allies face—from the terrorist attacks in Paris and Sydney to cyber attacks by North Korea. We need to be stepping up our security.

That is why it is so important we turn immediately to this bill to fund the Department of Homeland Security, a bill we can all agree on. The funding bill introduced by Senator SHAHEEN and Senator MIKULSKI and that I am proud to cosponsor does just that. It would provide funding for security while keeping crossings open for business. It would support 23,775 Customs and Border Protection officers working at our country's 329 ports of entry. It would ensure that we keep 21,370 Border Patrol agents at work keeping our country safe. It funds cyber security initiatives that protect our critical infrastructure and allows us to track down and punish hackers who are responsible for cyber crimes.

It provides over $1 billion for security-related grants to States—we are talking about firefighters and first responders—and localities to help ensure they are prepared to handle both manmade and natural disasters. No one knows this better than our State when we had a bridge fall down in the middle of a summer day on August 1 in Minneapolis, MN. An 8-lane highway right in the middle of the Mississippi River, 13 people died, dozens of people injured, dozens of cars submerged in the water after dropping 111 feet. No one knows this better than our State after we had the floods we shared with North Dakota across the Red River, floods that nearly swept away homes and resulted in a lot of economic loss. That happened in our State. No one knows better than our State, where we have had tornadoes similar to so many places in the Midwest, sweep across the prairies, taking everything in their path. That is when you know what FEMA is all about. That is when you know what Homeland Security is all about. That is

why we must continue to fund this important Agency.

It is my hope we can come together to pass the Shaheen-Mikulski Homeland Security appropriations bill. We should never play politics when it comes to protecting our homeland. That is why former Homeland Security Secretaries from the George W. Bush and Obama administrations have come together—Tom Ridge, Michael Chertoff and Janet Napolitano—and all agree on the need to pass a clean bill. Anyone who is watching C–SPAN and says, What is she talking about—a clean bill? Did it go through the laundry machine? This is a bill that focuses on what it is supposed to focus on, which is funding Homeland Security. It doesn't have other provisions in it that are better debated on other bills, that are comprehensive and focus on these issues. This bill should not have those kinds of things on it. This bill is about Homeland Security, and we shouldn't be shutting down our security over political fights.

As Senators, chief among our responsibilities is to do everything we can do to keep Americans safe. As a Senator from Minnesota, no job is more important to me than keeping our State and our country safe. I was a prosecutor for 8 years. I know how much this means to people. I deeply respect the work of the Department of Homeland Security and what they do every single day to protect us. Those workers deserve the best. The people of America deserve the best. That is why we have to pass this bill.

I urge my colleagues to pass the Shaheen-Mikulski bill without delay.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. MORAN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. GARDNER). Without objection, it is so ordered.

Mr. MORAN. Mr. President, I ask unanimous consent to address the Senate in morning business for such time as I may consume.

The PRESIDING OFFICER. Without objection, it is so ordered.

## CHOICE ACT

Mr. MORAN. Mr. President, I am on the floor today to speak about an issue that I spoke about just a few days ago, the Choice Act.

Let me take my colleagues back in history just a few months, just to last year. I don't imagine any of us don't remember the scandal the Department of Veterans Affairs was facing—the stories across the country of fake waiting lists, of services not provided, of the potential death of veterans while waiting for those services to occur. I also would think that at least many of my colleagues would agree that for much of the past few years the Senate hasn't done much of the business it was designed to do and that needed to be done in our country.

But I remember a day in August of 2014 in which the Senate and the House of Representatives were successful in passing a bill. It is somewhat embarrassing to me to be on the floor praising the accomplishment of a bill passage. It is a significant part of what should be the normal course of business of the Senate.

But those of us—and I would put all of my colleagues in this category who care about the service men and women who sacrificed for the benefit of their fellow countrymen and came home to a Department of Veterans Affairs that failed to meet their needs. I have indicated that since I came to Congress, both in the House and the Senate, I have served on the Veterans' Affairs Committee. This is an issue that we need to make certain we get right.

Just this week, in fact this morning, we passed a piece of legislation, the Clay Hunt Suicide Prevention for American Veterans Act. That is an accomplishment. I remember the testimony of the two mothers in the Veterans' Affairs Committee who came to talk to us about the importance of this legislation, their experience as mothers, and the death of their sons by suicide.

In the time that I have been in Congress, it is among the most compelling testimony I have ever heard. The part that sticks with me the most is the belief by these two mothers that had the Department of Veterans Affairs done their work, their sons would be alive. What that tells me is the decisions we make and those decisions as implemented by the Department of Veterans Affairs in some cases—in fact in many cases—are a matter of life and death.

We saw the scandal that came about last year. We know the decisions we make have huge consequences on veterans and their families. We rejoiced—at least I did—in the passage of the Choice Act, which gave veterans the opportunity to choose VA services, to choose health care to be provided in their hometowns by their hometown physicians and doctors.

The criteria that is set out in the Choice Act for that to occur is pretty straightforward. It says if you live more than 40 miles from a VA facility, you are entitled to have the VA provide the services at home, if that is what you want. It says that if those services can't be provided within 30 days of the time you need those services, then the VA shall provide those services at home if you choose. You can see the hospital, you can be admitted to the hospital of your choice, and you can be seen by the doctor of your choice.

That was actually something to rejoice about, to be excited about—that this Congress and this Senate came together and passed what I know to be a very significant and important piece of legislation. It is important for the reasons that common sense tells us it is important—that a veteran who lives a long way from a VA hospital or a VA facility can now get services at home. A veteran who had to wait in line for too long could now get those services at home.

The other aspect of that is that the Department of Veterans Affairs has told us time and again about the inability to attract and retain the necessary health care providers, the doctors and others who provide services to our veterans.

So one way to improve that circumstance is to allow other health care providers, those in your hometown, to provide that service.

The Choice Act was a good measure for the Department of Veterans Affairs to meet its mandate to care for our veterans, and the Choice Act was a good measure for veterans who live long distances from a VA facility, especially in States such as mine and the Presiding Officer's, where it is a long way to a VA facility.

So I remember the moment in which that bill passed and was sent to the President. Finally something good has come. A bill has been passed. Something important to our veterans is occurring.

But the reality is the implementation of the Choice Act has created many problems and, in my view, the Department of Veterans Affairs is finding ways to make that implementation not advantageous to the veteran but self-serving to the Department.

This is what catches my attention today. We are reviewing the President's budget, and within that budget is this language:

> In the coming months, the Administration will submit legislation to reallocate a portion of Veterans Choice Program funding to support essential investments in VA system priorities in a fiscally responsible, budget-neutral manner.

What the President's budget is telling us is that there is excess money within the Choice Act. We allocated money—emergency spending—to fund the Choice Act, and the President's budget is telling us: Well, we think there is too much money in there. We are going to submit legislation to reallocate that money to something we think is a higher priority.

I don't expect many of my colleagues to remember, but I was on the Senate floor last week talking about a specific problem in the implementation of the Choice Act, and it was this: The Department of Veterans Affairs shall provide services at home to a veteran who lives more than 40 miles from a facility.

Well, the problem I described last week is that the VA has determined that if there is an outpatient clinic within that 40 miles, even though it doesn't provide the services that the veteran needs, that veteran, he or she, must drive to the VA, wherever that is

located, and does not qualify for the at-home services.

Does this make any sense to any of us, that the VA says: Oh, there is an outpatient clinic within 40 miles of you, Mr. Veteran? Even though it doesn't provide the service that you need, we are still going to require you to drive to a VA hospital to receive those services and you don't qualify to go see your hometown doctor or be admitted to your hometown hospital.

Who would think—in fact, I admired Secretary McDonald in his early days at the Department in which he talked about how the VA is going to serve the veteran: The decisions we make at the VA will be directed at how do we best care for our veterans.

I respect Secretary McDonald for that attitude and approach, and I want the Department to follow his lead in accomplishing that mission.

But clearly deciding that a facility, even though it can't provide the service you need, precludes you from getting services at home makes no sense, and it certainly doesn't put the veteran at the forefront of what is in the best interest of a veteran.

So why would the Department of Veterans Affairs make that decision? We have a facility within 40 miles, but you don't qualify. So drive 3 or 4 hours to the VA hospital.

Well, one might think they have made the decision that we are going to enforce that aspect of the Choice Act. We are going to enforce the idea that you don't qualify because they don't have enough money to pay for those services. But, lo and behold, the President's budget says there is excess money that we now want to transfer to other priorities.

So, clearly, it is not funding issues. The Department is making decisions for some reason that makes absolutely no sense, defies common sense, and certainly doesn't put the veteran ahead of the Department of Veterans Affairs.

I don't know what the story is that these kinds of decisions would be made, but it certainly is worthy of the Senate to make certain the Department implements its moment of triumph, the Choice Act, in a way that benefits those we intended for the legislation to serve.

I will ask some questions of the Department, and I wonder about the attitude. I have been on task trying to get services provided closer to home for veterans for as long as I have been in Congress.

One of the other programs, aside from the Choice Act, is a program called ARCH for accessing services closer to home. There are pilot programs across the country to do that. One of them is in Kansas.

In an internal memo from Washington, DC, to a VA hospital in Kansas, the Department of Veterans Affairs indicated to the VA hospital in Kansas they could not promote, encourage or market the idea of a veteran seeking services at home.

So already I bring skepticism about the attitude at the Department of Veterans Affairs. For a long time they have been told not to encourage veterans to find health care outside the VA hospital, outside the VA outpatient clinic.

Here are a few questions. How do you reach the conclusion that there is excess money when the program is just now being implemented and, in fact, there has been a significant delay in getting the choice cards out to veterans so they could determine whether they were interested and qualified?

I also have learned that the Department of Veterans Affairs has intentionally narrowed the veteran population that is eligible for the choice program by rule, narrowing the number of medical procedures for which they will consider whether it can be performed outside the VA on the 30-day rule.

I didn't say that quite right. I didn't say it quite as well as I would like. But the VA already narrowed, by regulation, the services that might qualify for hometown services if it takes longer than 30 days to get those services.

The VA added an unnecessary reimbursement requirement. I am told now that if there is a third-party provider and you have some insurance, the VA is going to require that the veteran pay the copayment up front and then seek reimbursement from the Department of Veterans Affairs.

Of course, the fourth one is how can you reach the conclusion that a veteran, who needs colonoscopy—in my hometown, as I talked about last week, one must drive 3 or 4 hours to Wichita to the VA to get the colonoscopy because there is an outpatient clinic within 40 miles of my hometown, but the outpatient clinic doesn't provide colonoscopies.

Now we learn that it is not a matter of money. It has to be a matter of attitude, approach, and culture.

Just today, a few minutes before I came to the Senate floor to talk about this issue, I received an inquiry from a constituent who is a health care provider. What they indicated to me is their interest in providing services under the Choice Act. They have contacted the VA, pursued the opportunity to be a provider for that veteran population in rural Kansas, and they were told the rate of reimbursement would be something significantly less than Medicare.

The Choice Act says the Department of Veterans Affairs shall provide these services up to paying Medicare rates. The VA says if you are going to provide services to our veterans, we are only going to reimburse you at something significantly less. That is something this health care provider didn't believe they could make any money doing, but ultimately they concluded it was their responsibility to try to help veterans who lived in rural Kansas, and so they went back to the VA and said we are willing to take less rates. Certainly let's negotiate and see if we can find something mutually agreeable between the VA and us to provide those services. They have yet to receive a return to their inquiry to the VA—again, trying to preclude a willing provider who is willing to provide services at less than cost. How can that be common sense? How can that be putting veterans ahead of the VA?

I look forward to working with my colleagues. I look forward to our Committee on Veterans' Affairs—a committee the Presiding Officer serves on—trying to make sure we get this right. I want to return to the day in August when the Senate passed the Choice Act and there was this feeling of accomplishment of something beneficial and useful.

If the VA continues to implement this bill—if it doesn't reverse course, if it doesn't put the veteran first, we will have missed another opportunity to care for the needs of those who served our country. What American would we expect to receive the best health care possible in this country? Well, of course, I want all Americans to receive quality health care at an affordable cost. But I would say there is no group of people for whom it is more important that they receive what is their due, what was committed to them, than those who served in our military and are now our Nation's veterans.

I represent a very rural State. The congressional district that I represented as a House Member is larger than the size of the State of Illinois. It has no VA hospital. How do you get to a VA hospital when you are a 92-year-old World War II veteran and the hospital is 4, 5, 6 hours away?

I thought we had finally come to a solution. I thought that earlier with the passage of legislation I introduced in the House that ultimately became the ARCH pilot program. While it gets rave reviews from veterans who are in those pilot program areas, it has not been expanded. It doesn't solve the country's rural needs.

Then I thought, well, a great day has occurred; we passed the Choice Act. But as I look at the implementation, as I look at the decisions being made today at the Department of Veterans Affairs, I have to wonder if one more time we are providing false hope, false promises to those who served our country. We owe them something different than what is occurring today.

I reaffirm my commitment to my colleagues, but also to the leadership of the Department of Veterans Affairs, to work closely, side-by-side, to make sure the choices made fit the reality of those who served our country in the circumstances they find themselves in today. Help those veterans who can't get the service because they can't get there. Help those veterans who need the services more quickly than the Department of Veterans Affairs can provide them.

This seems straightforward to me, but I raise this concern today to make

sure my colleagues and I are united in the effort to see that good things happen as a result of the passage of the Choice Act in 2014.

Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Ms. BALDWIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Wisconsin.

## DEPARTMENT OF HOMELAND SECURITY FUNDING

Ms. BALDWIN. Mr. President, it is no secret we are living in dangerous times and that we face a variety of threats. We face the threat of ISIL, a barbaric and despicable terrorist organization. We face threats to the security of our personal information both online and in our daily life. We still face threats from Al Qaeda and rogue nations such as North Korea. With all of these ongoing threats to our Nation and its citizens, shouldn't our colleagues on the other side of the aisle want to work together in a bipartisan manner in order to fund the government agency responsible for protecting us from those threats?

Evidently they do not. Instead, they are playing a partisan game while threatening to shut down the Department of Homeland Security. They are playing politics with our homeland security. The vote the Senate just took relates to a bill that put partisan politics ahead of our national security while also needlessly creating another manufactured budget crisis, and that is why I voted no.

I understand our Republican colleagues have concerns about the President's Executive actions on immigration, and I believe there is a time and place for this body to debate those issues, as we have in the past and we must in the future. But to jeopardize our Nation's security by playing politics with this vital funding measure is extremely disappointing.

I would actually like to remind our colleagues that the President's actions on immigration reform devote even more resources to securing our Southwest border and to deporting felons, not families, and identifying threats to our national security.

The President's Executive action on immigration also provides certain undocumented immigrants temporary relief, after background checks and other security measures are passed, bringing families out of the shadows so they can work and pay taxes like everyone else.

I remain committed to finishing the job on bipartisan and comprehensive immigration reform here in Congress, but until we can achieve that goal, I support the President keeping his promise to take action and do what he legally can to fix our broken system.

Consistent with the actions by previous Presidents of both parties, President Obama is right to follow in the footsteps of every President since Eisenhower to address as much of this problem as he can through Executive action. The status quo is simply unacceptable.

In fact, the Congressional Budget Office—also known as the nonpartisan scorekeeper—recently found that including a reversal of these Executive orders in the homeland security funding bill would actually increase our deficit.

Instead of attaching these transparent attacks on the President, the Congress should pass a clean, straightforward, bipartisan bill. And there is such a bill. That bill was previously negotiated and it was just introduced by the vice chairwoman of the Committee on Appropriations, BARBARA MIKULSKI, and the ranking member of the Subcommittee on Homeland Security, Senator SHAHEEN.

As a new member of the Subcommittee on Homeland Security of the Committee on Appropriations, I am a strong supporter of the Mikulski-Shaheen bill because it would fund programs that are critical to our Nation and to my home State of Wisconsin. Their straightforward funding bill funds essential Departments such as the Coast Guard, which keeps the Great Lakes safe and open for business; and it funds FEMA grants, which have helped communities in western Wisconsin, for example, plan and prepare for floods; and it funds fire grants that help rural fire departments with equipment they could never afford through the proceeds of annual pancake breakfasts. These are critical assets that my constituents rely on, and putting them at risk is simply irresponsible.

It is time for our colleagues to drop this dangerous political stunt and to join with Democrats to pass a bipartisan bill that gives the Department of Homeland Security the resources it needs to keep Americans safe.

Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. BROWN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

## HEALTH CARE

Mr. BROWN. Mr. President, today the House of Representatives held yet another vote—I think they are maybe up to 50-some—to repeal the Affordable Care Act, showing once again their objective is to dismantle the health care law. House Republicans voted to repeal the law. They like to say ''repeal and replace,'' but the ''replace'' doesn't ever really quite come forward.

Think what that would be like. It would take us back to the day when children with preexisting conditions such as cancer or asthma could be turned away from health coverage. Let me illustrate.

Several months ago a couple came to my coffee, which I hold every Thursday when the Senate is in session. It is open to anyone from Ohio who wants to stop in. A woman came from Cincinnati. She lives in one of the most conservative parts of the State. We talked for a few minutes about home schooling and her desire to be able to get some support from the Federal Government in a variety of different ways for home schooling.

Then she said: I want to thank you for the Affordable Care Act.

I said: Certainly. I was proud to support it.

She said: You see, my son—and she pointed across the room. He was about 15. He was diagnosed with diabetes when he was 7 or 8 years old.

She hesitated. She said: I counted them, 33 times, we were turned down for health insurance because of his preexisting condition. We signed up last week for the Affordable Care Act.

So if the House's effort to repeal the Affordable Care Act had come to the Senate and become law, someone would have to explain to her why she loses her health care. Again, if this is repealed, insurers could place lifetime or annual caps on health coverage. We know that tens of thousands of people in this country have gotten sick and their insurance has been cancelled because their insurance was so expensive. That is prohibited under the Affordable Care Act. That would be back if we repealed the Affordable Care Act.

Seniors were forced to pay huge out-of-pocket costs when they hit the gap in prescription drug coverage known as the doughnut hole.

A decade ago, when I was a Member of the House of Representatives, I voted against that Medicare plan in part because it had this huge gap in coverage. So if you have an illness or a series of illnesses and buy a lot of prescription drugs, between the second thousandth dollar and the fifth thousandth dollar, there is a gap in coverage. In other words, you continue to pay the premiums for prescription drug coverage but get no assistance from the government. Under the Affordable Care Act, we have closed that gap. We have already cut it better than half, and over the next 3 or 4 years it will be eliminated entirely. We know the Affordable Care Act is working.

In my State, 100,000 young Ohioans, a little older than these pages, between the ages of 18 and 26, are on their parents' health insurance plans right now. They would be dropped from that coverage if the Affordable Care Act were repealed.

Ohio seniors have saved $65 million in prescription drug costs by the closing of the coverage gap, the so-called doughnut hole. Those savings would end. Those with preexisting conditions would no longer be covered or would be

charged higher premiums, and 700,000 Ohioans—people in my State—now have health insurance they did not have 5 years ago.

So if we repeal the Affordable Care Act, somebody has to explain to those 700,000 people why they no longer have insurance, why those 100,000 young people are getting dropped from coverage; those families like the woman's who would lose her insurance because her child has a preexisting condition, and all the consumer protections the Affordable Care Act has been part of.

Last month I spoke with Charles McClinon, a Cincinnati resident who suffered from severe epilepsy and, as a result, was unable to work. After Ohio chose to expand Medicaid—and I give Republican Governor Kasich credit for that—Mr. McClinon qualified for health care coverage and was able to schedule surgery. Thanks to this lifesaving coverage, he has returned to work.

Isn't that what we want? If people are ill, injured, sick, don't we want to take care of them so they can return to work? Mr. McClinon never wanted to miss work, but he had to. Because of the expansion of Medicaid, because of the Affordable Care Act passed by a Democratic Senate, signed by a Democratic President, because of a Republican Governor in Ohio expanding Medicaid, unlike Republican Governors in many States, people such as Charles McClinon can now go back to work and live a healthier, more productive life and pay taxes.

Since its creation in 1965, Medicaid has been a joint Federal and State program, providing free or low-cost health coverage to qualified individuals. One of the key components of the Affordable Care Act expanded both the eligibility and the Federal funding for Medicaid. States were given the opportunity to expand Medicaid to individuals with incomes of up to 130 percent of the Federal poverty level. Many people on Medicaid who are now on the expanded Medicaid in Ohio and Kentucky and many other States hold jobs, just like the parents of the 130,000 Ohio children who now have insurance because of the Children's Health Insurance Program. Their parents are working at places such as Walmart and McDonald's, making $8, $9, $10 an hour. Those companies generally don't provide health insurance and don't pay wages high enough to be able to buy health insurance.

What kind of society do we want to be? Where people are working every bit as hard as all of us as U.S. Senators work, with very little compensation, without health insurance, generally without pensions?

Do we want to say: Well, we don't care about you? If you weren't smart enough, if you weren't educated enough, if you weren't smart enough to get a good-paying job with insurance, then we are going to turn our backs on you? Of course we are not that kind of society. That is what the Affordable Care Act is about.

The expansion of Medicaid has saved Ohio about $350 million. It also helped Ohioans who already have insurance. When people lack health insurance, someone has to pay for their care.

The Presiding Officer's State of Colorado is not much different, just smaller dollar amounts because it is a smaller State. But Ohioans spend over $2 billion on care for people who can't pay. It is a hidden tax on the insured estimated to be about $1,000 a year per insured family.

So prior to the Affordable Care Act, somebody who went to a hospital in Denver, Cleveland, Dayton or Colorado Springs or Pueblo or Youngstown—because those without insurance would go to hospitals and get care; that is what we do; we take care of people if they show up in an emergency room—because they were not paying, because they were low income, they were unemployed, and they had no insurance, the cost of their treatment got shifted onto those of us with insurance. Economists say pretty much everybody pays about $1,000 additional for their health insurance because of the problems of the uninsured. So when we expand Medicaid, when we pass the Affordable Care Act, when we get people into the health exchanges, it means we are not charging people that $1,000 hidden tax, so it is a savings to those of us with insurance. Ultimately it is better for taxpayers, ultimately it is better for our health care system, and ultimately, most importantly, it is better for a healthier society.

We should be helping Ohioans gain health care, not cutting them off. That is the importance of expanding Medicaid.

I urge the Ohio legislature to work with the Governor to include Medicaid expansion in the budget. I urge my colleagues here in this Chamber to end their grandstanding attacks on a law that is helping Americans such as Charles McClinon get the care they need. It helped him go back to work. It will help others live more healthy lives. It will help all our communities. We should be helping Ohioans gain health care, not cutting them off.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

## DEPARTMENT OF HOMELAND SECURITY APPROPRIATIONS ACT, 2015—MOTION TO PROCEED—Continued

Mr. MCCONNELL. Mr. President, I call for the regular order with respect to the motion to proceed to H.R. 240.

The PRESIDING OFFICER. The motion is pending.

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the motion to proceed to H.R. 240, making appropriations for the Department of Homeland Security for the fiscal year ending September 30, 2015.

Mitch McConnell, Thad Cochran, Tom Cotton, Roger F. Wicker, David Vitter, Jerry Moran, Daniel Coats, Michael B. Enzi, Mike Crapo, Bill Cassidy, John Boozman, John Thune, Tim Scott, John Hoeven, James Lankford, Jeff Sessions.

## MORNING BUSINESS

## CONGRESSIONAL GOLD MEDAL CEREMONY HONORING 1ST SPECIAL SERVICE FORCE, THE ''DEVIL'S BRIGADE''

Mr. MCCONNELL. Mr. President, today I had the honor of addressing the legendary World War II-era 1st Special Service Force, a joint American-Canadian special forces military unit called the Devil's Brigade, on the occasion of the surviving members of that elite unit receiving the Congressional Gold Medal. I ask for unanimous consent that my remarks be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

Sometimes, truth can be more impressive than fiction.

When it comes to the heroes we honor today, that's certainly the case.

Members of the elite ''Devil's Brigade'' excelled in rock-climbing and amphibious assault.

They advanced on skis and through the air. They survived by stealth, and trained in demolitions.

Some of their more daring mission plans would've made James Bond blush.

And through it all, they helped save a continent in chaos. They helped defeat some of the greatest menaces our world has known.

But this isn't just some Hollywood script. It's a true story about a fearless group of young Canadians and Americans—including many Kentuckians—who were willing to put their lives on the line in the truest sense of the term.

Some probably did it to protect neighbors and families. Others to defend cherished democratic ideals. Many likely fought for all these reasons.

And they volunteered for this danger. Here's how the force's recruiting slogan read:

Vigorous training.
Hazardous duty.
For those who measure up, get into the war quick.

Typical Madison Avenue spin, this was not. But it was honest.

The fighting could be fierce. Conditions could be awful. The missions, seemingly impossible.

Yet, dark masses of boot polish and young courage—fighting knives gripped tightly in hand, elements purged consciously from thought—advanced against the Wehrmacht and held strong against forces of fascism.

The Devil's Brigade, heeding Churchill's call for ''specially trained troops of the hunter class'' who might unleash ''a reign of terror'' against the Nazis, became a feared adversary.

But these ''Devils'' only rented space in the shadows. They moved within darkness in order to defeat it.

And today, here they are. Champions of freedom. Heroes in two nations. Saviors to many others.

To you, we offer our most profound gratitude for distinguished service.

To the families gathered today, know that your loved one made a difference. Know that the veteran you've loved made a contribution to history that we as a people will not soon forget.

As the son of a World War II veteran, I'm particularly determined to ensure we don't.

That's why we will soon dedicate the highest civilian honor Congress can bestow.

It may only be a piece of metal, but it carries the gratitude of a nation.

May you always remember it.

## KENTUCKIANS CELEBRATING THE VIETNAMESE LUNAR NEW YEAR

Mr. MCCONNELL. Mr. President, I wish our friends in the Vietnamese-American community in Louisville, KY, and across the Commonwealth, a very merry celebration of Tet Nguyen Dan. Tet Nguyen Dan means ''first day,'' and is the celebration of the Vietnamese Lunar New Year and the arrival of Spring. The Lunar New Year is the most important celebration in traditional Vietnamese culture. This year it falls on February 19.

The celebration of the Lunar New Year lasts for several days. It is seen as the precursor for events of the coming year, and therefore is celebrated by paying homage to one's ancestors, having family reunions, and paying old debts.

At midnight of the Lunar New Year, the event is celebrated with firecrackers, gongs, and drums. Children wear new clothes to visit their relatives, and elders offer children little red envelopes full of money.

The festival then continues for several days with special events on each day. Many traditional foods are served during the Lunar New Year celebrations, including banh chung, a dish made of sticky rice, and mung beans and pork, all wrapped in banana leaves.

Of course, one doesn't have to be in Vietnam to celebrate the Lunar New Year. Louisville has a strong and vibrant Vietnamese-American community that contributes to the mosaic that is the River City, and this year they will celebrate the Lunar New Year with great gusto. Celebrations are scheduled across the city for several days.

I know that Louisville and the Commonwealth of Kentucky are better off for the values that Vietnamese-Americans celebrate during Tet Nguyen Dan—love of family, appreciation of one's elders and ancestors, and optimism about the times ahead. I convey to my friends in Kentucky's Vietnamese-American community my best wishes and I ask my U.S. Senate colleagues to join me in wishing them a happy, healthy, and prosperous Lunar New Year.

## CLAY HUNT SUICIDE PREVENTION FOR AMERICAN VETERANS ACT

Mr. DURBIN. Mr. President, I am a proud cosponsor of the Clay Hunt Suicide Prevention for American Veterans Act and am pleased my colleagues chose to support it unanimously. The bill is designed to help reduce—and hopefully eliminate—veteran suicides by improving access to and quality of mental health care for veterans.

An estimated 22 veterans a day take their own lives. That is twice as high as the general population. Veterans of all ages and from all wars are affected by conditions that can contribute to depression and thoughts of suicide. We are learning more and more, for example, about how common post-traumatic stress disorder is among our returning heroes. PTSD can surface years—even decades—after a veteran was in combat. It is one of many factors that contribute to this disheartening problem.

The number of suicides is disproportionately high, however, for veterans returning from Iraq and Afghanistan. Young men and women just out of the service and receiving health care from the government committed suicide at nearly three times the rate of active-duty troops in 2012. We have to work harder to make sure our heroes have access to the help they need.

The Clay Hunt Suicide Prevention for American Veterans Act will create a peer support and community outreach pilot program to connect transitioning service members with programs that could help them. The bill will create a pilot program to repay the loan debt of psychiatry students so it is easier to recruit them to work at the VA. It also will improve the accountability of VA mental health and suicide-prevention programs by requiring an annual evaluation.

Today, in a bipartisan fashion, the Senate said we need to do more to make sure our heroes have access to the assistance they need. I hope the step we took here today helps many veterans regain a path to wellness and happiness.

Mr. BURR. Mr. President, I rise today to commend my colleagues for swift passage of the Clay Hunt Suicide Prevention for American Veterans Act. This act will build upon the Veterans Choice Act and put in place needed measures to improve responsiveness, reporting, oversight and accountability for mental health outreach, intervention, treatment, and counseling in the Department of Veterans Affairs. Sometimes the greatest hurdle for ailing veterans is just getting started. There is nothing more frustrating and potentially demoralizing and debilitating for a veteran in crisis to seek mental health care from the VA and be told he will have to wait weeks or months for an appointment because VA facilities lack sufficient personnel with an expertise in psychiatric medicine to provide timely care. Left to fend on their own, many veterans become depressed and feel powerless, some resort to high-risk behaviors, from isolation, self-medication with alcohol and prescription drugs, to suicide.

This bill authorizes a pilot program to expand the VA's capacity to help repay loans incurred by individuals who are eligible to practice psychiatric medicine and agree to serve the VA in that field. In doing so, we recognize that serving veterans is a noble cause that some are called to, but working in such a demanding field requires economic incentives, especially in areas where abundant career options exist or in more remote locales, where attracting talent is difficult for the VA.

The Clay Hunt Act also facilitates greater veteran's access through a consolidated interactive website, where veterans can visit from the privacy of their own home or wherever they may be when the need arises.

Most importantly, the bill directs VA to establish a pilot program for community-based support networks in the VA's Integrated Service Networks to ease the transition of veterans and provide peer-based support for those who are encountering difficulties coping with those life changes. These community outreach teams at each medical center will be aimed at getting care to the point of need with the least amount of delay and help those veterans who are unwilling or unable to seek professional help on their own.

Make no mistake, the suicides of our veterans are preventable with the right intervention and proper continuum of care. When a veteran takes their own life due to untreated mental pain, it is a stark and sobering sign that somewhere, someone who loved them was unable to reach them and recognize the warning signs to help or that the veteran just couldn't carry a heavy burden any longer and found stability or some greater peace and solace elusive. It is at these moments, with nowhere to turn and perhaps no one to trust, that some of our veterans want to escape life. The sooner we can fully transform the VA into a place where veterans in crisis at any time can find access to caregivers and peers ready to light the path to a better place in our society, the better outcomes we will see and the surer we will be that the promises we have made to them are being kept.

## RECOGNIZING BURTON SNOWBOARDS

Mr. LEAHY. Mr. President, for generations, Vermonters have contributed to the global culture of winter sports. Whether the sport is snowshoeing, cross-country skiing, snowmobiling or

snowboarding, Vermonters never pass up an opportunity to claim the first run of the day.

Almost four decades ago, Jake Burton's passion for winter sports led to the creation of Burton Snowboards, one of the leading snowboard manufacturers in the world. Jake at a young age enjoyed ''snurfing''—surfing on snow—but he never anticipated the path he would eventually take, becoming one of the pioneers in snowboard manufacturing.

In the late 1970s, Jake started exploring the idea of manufacturing snowboards, building prototypes from a barn in Londonderry, VT. At the time, most ski resorts did not allow snowboarders, as snowboarding was not yet considered a sport, and gaining recognition as a sport proved to be harder than one might expect. Jake didn't let his optimism or passion wane, and interest in the fledgling sport finally spread. Jake and his wife Donna explored the European market, eventually opening a distribution center in Austria, while maintaining their national headquarters in Burlington, VT. For a little-known sport, it quickly gained international notoriety and stature. In 1998, snowboarding debuted at the winter Olympics in Nagano.

Jake is now one of the most successful business leaders Vermont has ever known. His commitment and passion allow him to remain one with the pulse of his company, with consumers, and, most of all, with the sport, on a level unique to Burton Snowboards.

The Wall Street Journal recently chronicled the multiple ways in which Jake keeps himself healthy, in shape, and on the slopes. Jake's lifestyle is one that truly speaks to the Vermont spirit. Marcelle and I are proud to have Jake and Donna as friends.

I ask unanimous consent to have printed in the RECORD the article from The Wall Street Journal.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the Wall Street Journal, Dec. 22, 2014]

JAKE BURTON, SNOWBOARD KING, SETS MULTIPLE GOALS FOR HIS WORKOUT

(By Jen Murphy)

The founder and chairman of Burton Snowboards, finds multiple ways to keep his lower body in shape for snowboarding and surfing.

Jake Burton sets an annual goal of snowboarding 100 days a year. A snowboard pioneer, and founder and chairman of Burton Snowboards Inc. in Burlington, Vt., has hit that goal nearly every year during the past 19 years, with the exception of 2011, when he was diagnosed with testicular cancer. Mr. Burton went through three months of chemotherapy. In January 2012, his doctors gave him a cancer-free bill of health and he slowly began regaining his strength in the pool and at the gym. Today, at age 60, he is charging harder than ever on the mountain.

''I got in 114 days this season,'' he says. And when the snow is gone, he takes to the ocean for his other obsession, surfing.

Mr. Burton relies on four regular activities—hiking, yoga, swimming, and biking—to keep him fit enough to snowboard and surf. He thinks of his workouts on a point system, awarding himself one point per workout, with 10 being his target each week. ''I usually manage six.'' Some days he tries to double up on workouts by mixing business with an activity. He might bike with a colleague and discuss new snowboard gear.

Mr. Burton includes his family in as many activities as possible. He and his wife, Donna Carpenter, who is president of Burton Snowboards, have trails within minutes of their Vermont home in Stowe. They often set out together on hikes, but ''hiking with Jake is a solo sport,'' jokes Ms. Carpenter. ''He recently had a minor knee surgery and still beat me up the mountain.''

He takes about six surf trips a year. This year he brought his three sons, ages 18, 21, and 25, on a surf trip to the Maldives. Recently, he and his wife started booking bike tours when they visit cities such as Florence and Paris.

THE WORKOUT

Hiking is Mr. Burton's main form of cardio. ''I have to keep it up to keep my weight in check,'' he says. One of his favorite hikes is up the Pinnacle Trail, which is 10 minutes from his home. It takes him about 50 minutes to hike up and another 50 minutes to hike down. He will also drive to Mount Mansfield, Vermont's highest peak, and hike the Long Trail, which is nearly 5 miles round trip. Mr. Burton always takes a watch when he hikes. ''My watch is like a heart rate monitor. The times tell me how hard I'm working,'' he says.

In the winter he often hikes up the mountain with his dogs and snowboards down four or five times before the ski resort is officially open. Bigger trips, most recently to Japan, allow him to have full days snowboarding in the backcountry.

While attending New York University, he was the captain of the swim team and he continues to get in the pool every other day when he is home. He swims intervals, warming up with 800 meters and then doing a few intervals of 500 meters and 50-meter intervals for speed.

Two days a week, Mr. Burton uses weight machines at the Swimming Hole, a nonprofit pool and gym facility in Stowe that he and his wife helped fund. He does an all-body workout with a focus on legs. ''The stronger my legs, the better my snowboarding,'' he says. He says he used to lift more but scaled back when he began practicing yoga. ''I might not be as strong as I once was but I feel better doing yoga,'' he says. ''It makes surfing easier and every day things easier, like standing on one leg when you're drying your feet after you get out of the shower.''

He takes a private Ashtanga-style yoga lesson in his home once a week.

THE DIET

Mr. Burton is pescetarian and tries to eat mostly organic. He and his wife hire someone to help prepare meals, which are left in the fridge. ''We're spoiled,'' he says. In the morning Mr. Burton has a smoothie made from frozen mangos and frozen peaches or frozen berries and bananas. Lunch might be vegetable soup and an avocado and tomato sandwich with a tiny bit of mayo on whole wheat bread. They might have a squash soup with some cheese or lentils and a salad with avocado. ''I average more than two avocados a day,'' he says. His wife's vegetable garden provides many of the ingredients that go into meals. They freeze vegetables to use during the winter. His splurge is pizza.

THE GEAR

Mr. Burton estimates he has about 30 different snowboards at home. His favorites are the Burton Namedropper (retail $419.95) and the Burton Barracuda (retail $519.95). Right now he is riding with Burton EST Genesis bindings (retail $329.95) and wearing Burton Ion leather boots (retail $499.95). Mr. Burton likes to hike in Adidas trail running sneakers. In 2006, Burton purchased Channel Islands Surfboards and Mr. Burton is constantly trying out new boards. He has recently been riding the Average Joe short board (retail about $1,500) and a Waterhog longboard (retail $765) from Channel Islands.

THE PLAYLIST

''I'm hooked on hip hop,'' he says. ''It drives Donna nuts so I try not to listen to it at home but I'll put on my headphones when I hike. The music is so clean and raw. It really motivates me.'' He says he'll listen to the classics from Biggie [The Notorious B.I.G.], Tupac, and 2 Chainz or he'll put on the hip-hop channel on Sirius XM Radio. ''I also love classic rock so much that my kids now like it.''

## ADDITIONAL STATEMENTS

### RECOGNIZING THE LEGACY OF STORER COLLEGE

● Mr. MANCHIN. Mr. President, I wish to honor Storer College, a historic educational establishment that truly left a significant imprint on the history of our State and our Nation.

Located in West Virginia's Eastern Panhandle in beautiful Harpers Ferry, the legacy of Storer College began following the Civil War. It was established by the Reverend Dr. Nathan Cook Brackett and philanthropist John Storer of Sanford, ME, whose goals were to create a school that was open and accepting of all students regardless of gender, race, or religion.

Particularly now, during Black History Month, it is fitting to recognize such a tremendously important endeavor as Storer College because it had such a significant impact on civil rights in the decades following the Civil War. This educational institution was a constant refuge for former slaves who found themselves without the necessary skillsets to lead marketable lives. Attendees were taught how to read and write, but they also gained a sense of purpose.

John Brown's raid is largely considered the motivation for the school's creation in Jefferson County, as the 1859 rebellion liberated countless African Americans in the area. Frederick Douglass, also a trustee of Storer College, once spoke at the school about John Brown and the raid's significance.

On October 2, 1867, Storer Normal School opened its doors with 2 teachers and 19 attending students. Under the leadership of Henry T. McDonald, Storer converted into a college in 1938.

Storer College set the groundwork for integrated education across the rest of the Nation. For many years, it was the only school that allowed African Americans to acquire an education past elementary school.

By the end of the 19th century, our Nation faced another battle marked with Jim Crow laws and legal segregation. To combat these injustices, many brilliant leaders in the African-American community created the Niagra

Movement, a precursor to the NAACP. The second meeting of the Niagra Movement was held at Storer College in 1906. It was supported by such leaders as W.E.B. Du Bois, William Monroe Trotter, and Booker T. Washington.

In 1954, legal segregation came to an end with the Supreme Court's decision in Brown v. the Board of Education. This decision, while revolutionary across our Nation, also brought an end to Federal and State funding for Storer College, and regrettably, its doors closed a year later.

Today, though no longer a learning institution, the National Park Service continues the college's mission to welcome individuals of all backgrounds by using the campus as a training facility. It continues to serve as a staunch reminder of triumph over injustice.

As we reflect on Storer's history, it is important that we continue to pass down this legacy for future generations because it remains relevant in so many ways to this day.●

## MESSAGE FROM THE HOUSE

At 2:16 p.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 361. An act to amend the Homeland Security Act of 2002 to codify authority under existing grant guidance authorizing use of Urban Area Security Initiative and State Homeland Security Grant Program funding for enhancing medical preparedness, medical surge capacity, and mass prophylaxis capabilities.

H.R. 615. An act to amend the Homeland Security Act of 2002 to require the Under Secretary for Management of the Department of Homeland Security to take administration action to achieve and maintain interoperable communications capabilities among the components of the Department of Homeland Security, and for other purposes.

H.R. 623. An act to amend the Homeland Security Act of 2002 to authorize the Department of Homeland Security to establish a social media working group, and for other purposes.

The message also announced that the House has agreed to the following concurrent resolution, in which it requests the concurrence of the Senate:

H. Con. Res. 12. Concurrent resolution authorizing the use of the rotunda of the United States Capitol for a ceremony to present the Congressional Gold Medal to Jack Nicklaus.

## MEASURES REFERRED

The following bills were read the first and the second times by unanimous consent, and referred as indicated:

H.R. 361. An act to amend the Homeland Security Act of 2002 to codify authority under existing grant guidance authorizing use of Urban Area Security Initiative and State Homeland Security Grant Program funding for enhancing medical preparedness, medical surge capacity, and mass prophylaxis capabilities; to the Committee on Homeland Security and Governmental Affairs.

H.R. 615. An act to amend the Homeland Security Act of 2002 to require the Under Secretary for Management of the Department of Homeland Security to take administrative action to achieve and maintain interoperable communications capabilities among the components of the Department of Homeland Security, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

H.R. 623. An act to amend the Homeland Security Act of 2002 to authorize the Department of Homeland Security to establish a social media working group, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

## MEASURES PLACED ON THE CALENDAR

The following bills were read the second time, and placed on the calendar:

S. 338. A bill to permanently reauthorize the Land and Water Conservation Fund.

S. 339. A bill to repeal the Patient Protection and Affordable Care Act and the Health Care and Education Reconciliation Act of 2010 entirely.

## REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. ALEXANDER, from the Committee on Health, Education, Labor, and Pensions, without amendment:

S. 192. A bill to reauthorize the Older Americans Act of 1965, and for other purposes.

## INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. BLUNT (for himself, Mrs. SHAHEEN, Mr. PORTMAN, Ms. AYOTTE, and Mr. MERKLEY):

S. 340. A bill to make certain luggage and travel articles eligible for duty-free treatment under the Generalized System of Preferences, and for other purposes; to the Committee on Finance.

By Mr. TOOMEY (for himself, Mr. MENENDEZ, Mr. ROBERTS, and Mr. CARPER):

S. 341. A bill to amend the Internal Revenue Code of 1986 to make permanent certain small business tax provisions, and for other purposes; to the Committee on Finance.

By Mr. HATCH (for himself and Mr. RUBIO):

S. 342. A bill to promote the use of blended learning in classrooms across America; to the Committee on Health, Education, Labor, and Pensions.

By Mr. FLAKE (for himself and Mr. MANCHIN):

S. 343. A bill to ensure that individuals do not simultaneously receive unemployment compensation and disability insurance benefits; to the Committee on Finance.

By Mr. BENNET (for himself and Mr. BURR):

S. 344. A bill to amend the Internal Revenue Code of 1986 to equalize the excise tax on liquified petroleum gas and liquified natural gas; to the Committee on Finance.

By Mrs. SHAHEEN (for herself and Mr. TOOMEY):

S. 345. A bill to limit the level of premium subsidy provided by the Federal Crop Insurance Corporation to agricultural producers; to the Committee on Agriculture, Nutrition, and Forestry.

By Mr. WYDEN (for himself and Mr. MERKLEY):

S. 346. A bill to withdraw certain land located in Curry County and Josephine County, Oregon, from all forms of entry, appropriation, or disposal under the public land laws, location, entry, and patent under the mining laws, and operation under the mineral leasing and geothermal leasing laws, and for other purposes; to the Committee on Energy and Natural Resources.

By Mrs. FISCHER (for herself, Ms. AYOTTE, Mr. BARRASSO, Mr. PERDUE, Mr. ROBERTS, and Mr. WICKER):

S. 347. A bill to amend the Internal Revenue Code of 1986 to provide that the individual health insurance mandate not apply until the employer health insurance mandate is enforced without exceptions; to the Committee on Finance.

By Mr. HATCH (for himself and Mrs. FEINSTEIN):

S. 348. A bill to impose enhanced penalties for conduct relating to unlawful production of a controlled substance on Federal property or while intentionally trespassing on the property of another that causes environmental damage; to the Committee on the Judiciary.

By Mr. GRASSLEY (for himself and Mr. NELSON):

S. 349. A bill to amend title XIX of the Social Security Act to empower individuals with disabilities to establish their own supplemental needs trusts; to the Committee on Finance.

By Mrs. FISCHER (for herself, Mr. GARDNER, Mr. GRASSLEY, and Mr. CRAPO):

S. 350. A bill to amend title 31, United States Code, to provide for transparency of payments made from the Judgment Fund; to the Committee on the Judiciary.

By Mr. HELLER:

S. 351. A bill to prevent homeowners from being forced to pay taxes on forgiven mortgage loan debt; to the Committee on Finance.

By Ms. AYOTTE (for herself, Mr. SCHATZ, Ms. BALDWIN, Mr. BENNET, Mr. BLUNT, Mr. BROWN, Mrs. CAPITO, Ms. COLLINS, Mr. COONS, Mr. DURBIN, Ms. HIRONO, Mr. KAINE, Mr. KIRK, Mr. MORAN, Mr. PORTMAN, Mr. ROBERTS, and Mr. RISCH):

S. 352. A bill to amend section 5000A of the Internal Revenue Code of 1986 to provide an additional religious exemption from the individual health coverage mandate, and for other purposes; to the Committee on Finance.

By Mr. PAUL (for himself and Mr. LEAHY):

S. 353. A bill to amend title 18, United States Code, to prevent unjust and irrational criminal punishments; to the Committee on the Judiciary.

By Mr. REED (for himself and Mr. WHITEHOUSE):

S. 354. A bill to designate the facility of the United States Postal Service located at 820 Elmwood Avenue in Providence, Rhode Island, as the ''Sister Ann Keefe Post Office''; to the Committee on Homeland Security and Governmental Affairs.

By Mr. KAINE (for himself, Mrs. MCCASKILL, and Mr. BLUMENTHAL):

S. 355. A bill to support the provision of safe relationship behavior education and training; to the Committee on Health, Education, Labor, and Pensions.

## SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Ms. WARREN (for herself, Mr. MARKEY, Mr. REED, Mr. WHITEHOUSE, Mrs. SHAHEEN, Ms. AYOTTE, Mr. LEAHY, Mr. BLUMENTHAL, and Ms. COLLINS):

S. Res. 63. A resolution congratulating the New England Patriots on their victory in Super Bowl XLIX; to the Committee on Commerce, Science, and Transportation.

By Mrs. MURRAY (for herself, Ms. COLLINS, Mr. CASEY, Ms. STABENOW, Mrs. FEINSTEIN, Mr. DURBIN, Mr. ISAKSON, Mr. SCHATZ, Mr. KING, and Mr. CORNYN):

S. Res. 64. A resolution designating February 2 through 6, 2015, as ''National School Counseling Week''; considered and agreed to.

## ADDITIONAL COSPONSORS

S. 48

At the request of Mr. VITTER, the names of the Senator from Indiana (Mr. COATS) and the Senator from Arkansas (Mr. BOOZMAN) were added as cosponsors of S. 48, a bill to prohibit discrimination against the unborn on the basis of sex or gender, and for other purposes.

S. 53

At the request of Mr. VITTER, the name of the Senator from Arkansas (Mr. BOOZMAN) was added as a cosponsor of S. 53, a bill to amend the Internal Revenue Code of 1986 to clarify eligibility for the child tax credit.

S. 165

At the request of Ms. AYOTTE, the names of the Senator from Texas (Mr. CORNYN), the Senator from Arkansas (Mr. COTTON) and the Senator from Utah (Mr. LEE) were added as cosponsors of S. 165, a bill to extend and enhance prohibitions and limitations with respect to the transfer or release of individuals detained at United States Naval Station, Guantanamo Bay, Cuba, and for other purposes.

S. 183

At the request of Mr. BARRASSO, the name of the Senator from Alaska (Ms. MURKOWSKI) was added as a cosponsor of S. 183, a bill to repeal the annual fee on health insurance providers enacted by the Patient Protection and Affordable Care Act.

S. 185

At the request of Mr. HATCH, the name of the Senator from New Hampshire (Ms. AYOTTE) was added as a cosponsor of S. 185, a bill to create a limited population pathway for approval of certain antibacterial drugs.

S. 207

At the request of Mr. MORAN, the name of the Senator from Texas (Mr. CRUZ) was added as a cosponsor of S. 207, a bill to require the Secretary of Veterans Affairs to use existing authorities to furnish health care at non-Department of Veterans Affairs facilities to veterans who live more than 40 miles driving distance from the closest medical facility of the Department that furnishes the care sought by the veteran, and for other purposes.

S. 212

At the request of Mrs. BOXER, the names of the Senator from Rhode Island (Mr. WHITEHOUSE) and the Senator from New York (Mrs. GILLIBRAND) were added as cosponsors of S. 212, a bill to amend the Help America Vote Act of 2002 to ensure that voters in elections for Federal office do not wait in long lines in order to vote.

S. 228

At the request of Mr. CRAPO, the names of the Senator from South Dakota (Mr. THUNE), the Senator from Kansas (Mr. ROBERTS), the Senator from Oklahoma (Mr. INHOFE), the Senator from Alaska (Mr. SULLIVAN), the Senator from Nevada (Mr. HELLER), the Senator from West Virginia (Mrs. CAPITO), the Senator from South Carolina (Mr. GRAHAM), the Senator from Texas (Mr. CORNYN), the Senator from South Dakota (Mr. ROUNDS), the Senator from Wyoming (Mr. ENZI), the Senator from North Dakota (Mr. HOEVEN), the Senator from Utah (Mr. HATCH), the Senator from Utah (Mr. LEE) and the Senator from Alaska (Ms. MURKOWSKI) were added as cosponsors of S. 228, a bill to amend title 54, United States Code, to provide for congressional and State approval of national monuments and restrictions on the use of national monuments.

S. 240

At the request of Mr. BOOKER, the name of the Senator from Oregon (Mr. WYDEN) was added as a cosponsor of S. 240, a bill to promote competition, to preserve the ability of local governments to provide broadband capability and services, and for other purposes.

S. 257

At the request of Mr. MORAN, the names of the Senator from Arkansas (Mr. BOOZMAN) and the Senator from Minnesota (Mr. FRANKEN) were added as cosponsors of S. 257, a bill to amend title XVIII of the Social Security Act with respect to physician supervision of therapeutic hospital outpatient services.

S. 258

At the request of Mr. ROBERTS, the name of the Senator from West Virginia (Mrs. CAPITO) was added as a cosponsor of S. 258, a bill to amend title XVIII of the Social Security Act to remove the 96-hour physician certification requirement for inpatient critical access hospital services.

S. 271

At the request of Mr. REID, the name of the Senator from Connecticut (Mr. BLUMENTHAL) was added as a cosponsor of S. 271, a bill to amend title 10, United States Code, to permit certain retired members of the uniformed services who have a service-connected disability to receive both disability compensation from the Department of Veterans Affairs for their disability and either retired pay by reason of their years of military service or Combat-Related Special Compensation, and for other purposes.

S. 272

At the request of Mrs. SHAHEEN, the names of the Senator from Minnesota (Ms. KLOBUCHAR), the Senator from Connecticut (Mr. MURPHY) and the Senator from Wisconsin (Ms. BALDWIN) were added as cosponsors of S. 272, a bill making appropriations for the Department of Homeland Security for the fiscal year ending September 30, 2015, and for other purposes.

S. 275

At the request of Mr. ISAKSON, the name of the Senator from Maryland (Mr. CARDIN) was added as a cosponsor of S. 275, a bill to amend title XVIII of the Social Security Act to provide for the coverage of home as a site of care for infusion therapy under the Medicare program.

S. 309

At the request of Mr. TOOMEY, the name of the Senator from Illinois (Mr. KIRK) was added as a cosponsor of S. 309, a bill to prohibit earmarks.

S. 310

At the request of Mr. CASSIDY, the names of the Senator from Kansas (Mr. ROBERTS) and the Senator from Montana (Mr. DAINES) were added as cosponsors of S. 310, a bill to prohibit the use of Federal funds for the costs of painting portraits of officers and employees of the Federal Government.

S. 314

At the request of Mr. GRASSLEY, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 314, a bill to amend title XVIII of the Social Security Act to provide for coverage under the Medicare program of pharmacist services.

S. 326

At the request of Mr. FLAKE, the name of the Senator from Colorado (Mr. GARDNER) was added as a cosponsor of S. 326, a bill to amend the Healthy Forests Restoration Act of 2003 to provide cancellation ceilings for stewardship end result contracting projects, and for other purposes.

S. 336

At the request of Mr. CRUZ, the names of the Senator from Nevada (Mr. HELLER), the Senator from Alaska (Mr. SULLIVAN) and the Senator from Wyoming (Mr. ENZI) were added as cosponsors of S. 336, a bill to repeal the Patient Protection and Affordable Care Act and the Health Care and Education Reconciliation Act of 2010 entirely.

S. 338

At the request of Ms. AYOTTE, her name was added as a cosponsor of S. 338, a bill to permanently reauthorize the Land and Water Conservation Fund.

S. RES. 52

At the request of Mr. CARDIN, the name of the Senator from Ohio (Mr. BROWN) was added as a cosponsor of S. Res. 52, a resolution calling for the release of Ukrainian fighter pilot Nadiya Savchenko, who was captured by Russian forces in Eastern Ukraine and has been held illegally in a Russian prison since July 2014.

## STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. KAINE (for himself, Mrs. MCCASKILL, and Mr. BLUMENTHAL):

S. 355. A bill to support the provision of safe relationship behavior education and training; to the Committee on Health, Education, Labor, and Pensions.

Mr. KAINE. Mr. President, it is widely recognized that relationship violence and campus sexual assault are major issues facing our Nation. According to the Department of Justice more than 290,000 Americans are victims of rape and sexual assault each year with young women between the ages of 16 and 24 consistently experiencing the highest rate of intimate partner violence. Secondary schools can play an important role in educating young people about relationship behavior and dating violence, but comprehensive health education courses are not required to include these topics, even though similar requirements for including age appropriate content and abstinence-only education already exist.

Safe relationship behavior education is age-appropriate education that promotes safe relationships and teaches students to recognize and prevent physical and emotional relationship abuse, including teen and adolescent dating violence, domestic abuse, sexual violence and sexual harassment. This includes education regarding consent as well as emotional health and well-being in relationships. Currently there is no federal requirement that sex education courses cover topics like sexual assault prevention and discussions about communication in safe relationships.

This is why I am proud to introduce with my colleagues, Senator MCCASKILL and Senator BLUMENTHAL, the Teach Safe Relationships Act of 2015, which would build upon the Violence Against Women Reauthorization Act to develop and implement prevention and intervention policies in middle and high schools, including appropriate procedures for students who are experiencing or perpetrating domestic violence, dating violence, sexual assault, stalking, or sex trafficking.

The idea for this legislation developed as a result of a meeting at the University of Virginia with members of One Less, a sexual assault education group that advocates for survivors of rape and sexual assault. With the alarming statistics on the prevalence of sexual assault on college campuses and in communities across the country, secondary schools should play a role in promoting safe relationship behavior and teaching students about sexual assault and dating violence.

Currently, it is not mandatory for schools to offer health education. But if they do, this proposal is consistent with existing requirements in current law. This bill will amend the Elementary and Secondary Schools Act, ESEA, to include safe relationship behavior education in comprehensive health education and assists State and local educational agencies and institutions to meet the Title IX requirements of the Educational Amendments of 1972. Additionally, this legislation authorizes grant programs to enable secondary schools to educate staff and administration, and provide age appropriate educational curricula for students regarding safe relationship behavior. In addition to being age-appropriate the training and education programs must also be culturally and linguistically appropriate, reflecting the diverse circumstances and realities of young people.

I am hopeful the Teach Safe Relationships Act will be one part of the solution as lawmakers, parents, colleges and universities, and law enforcement continue working together to embrace comprehensive reforms to make our country safer. I strongly encourage my colleagues in the Health, Education, Labor, and Pensions committee to consider this legislation in any ESEA reauthorization.

## SUBMITTED RESOLUTIONS

### SENATE RESOLUTION 63—CONGRATULATING THE NEW ENGLAND PATRIOTS ON THEIR VICTORY IN SUPER BOWL XLIX

Ms. WARREN (for herself, Mr. MARKEY, Mr. REED of Rhode Island, Mr. WHITEHOUSE, Mrs. SHAHEEN, Ms. AYOTTE, Mr. LEAHY, Mr. BLUMENTHAL, and Ms. COLLINS) submitted the following resolution; which was referred to the Committee on Commerce, Science, and Transportation:

S. RES. 63

Whereas on Sunday, February 1, 2015, the New England Patriots won Super Bowl XLIX with a score of 28 to 24, defeating the Seattle Seahawks in Glendale, Arizona;

Whereas Malcolm Butler's goal line interception with 20 seconds remaining in the game clinched the Super Bowl XLIX Championship for the New England Patriots;

Whereas the Super Bowl XLIX victory is the fourth Super Bowl Championship for the New England Patriots;

Whereas quarterback Tom Brady broke, tied, or extended 9 Super Bowl records in leading the New England Patriots to their fourth Super Bowl victory and was named the ''Super Bowl Most Valuable Player'' for the third time;

Whereas Head Coach Bill Belichick, Coordinators Matt Patricia and Josh McDaniels, and the staff of the New England Patriots brilliantly created successful game plans throughout the 2014 season;

Whereas extraordinary efforts by players of the New England Patriots, including Tom Brady, Julian Edelman, Rob Gronkowski, Brandon LaFell, Danny Amendola, Shane Vereen, LeGarrette Blount, Darrelle Revis, Chandler Jones, Jamie Collins, Vince Wilfork, Rob Ninkovich, Devin McCourty, Don'ta Hightower, Sealver Siliga, Alan Branch, Ryan Allen, Stephen Gostkowski, Brandon Browner, Matthew Slater, and Malcolm Butler, significantly contributed to the Super Bowl XLIX victory;

Whereas the offensive line of the New England Patriots was crucial to their victory in Super Bowl XLIX, and strong efforts by Nate Solder, Sebastian Vollmer, Bryan Stork, Ryan Wendell, Dan Connolly, and Cameron Fleming resulted in the New England Patriots conceding only one sack out of the 51 times quarterback Tom Brady dropped back to pass during Super Bowl XLIX;

Whereas Robert Kraft, the owner of the New England Patriots, deserves great credit for his unwavering commitment and leadership, and for his gracious acknowledgment that the team's Super Bowl Championship would not have been possible without the strong support of the millions of fans who comprise ''Patriots Nation''; and

Whereas all members of the New England Patriots ''did their job'' to help deliver a fourth Vince Lombardi Trophy to New England and are now ''on to the White House'' to celebrate their victory: Now, therefore, be it

*Resolved,* That the Senate congratulates the New England Patriots on their dramatic Super Bowl XLIX victory.

### SENATE RESOLUTION 64—DESIGNATING FEBRUARY 2 THROUGH 6, 2015, AS ''NATIONAL SCHOOL COUNSELING WEEK''

Mrs. MURRAY (for herself, Ms. COLLINS, Mr. CASEY, Ms. STABENOW, Mrs. FEINSTEIN, Mr. DURBIN, Mr. ISAKSON, Mr. SCHATZ, Mr. KING, and Mr. CORNYN) submitted the following resolution; which was considered and agreed to:

S. RES. 64

Whereas the American School Counselor Association has designated February 2 through 6, 2015, as ''National School Counseling Week'';

Whereas school counselors have long advocated for equal opportunities for all students;

Whereas school counselors help develop well-rounded students by guiding students through academic, personal, social, and career development;

Whereas personal and social growth results in increased academic achievement;

Whereas school counselors play a vital role in ensuring that students are ready for college and careers;

Whereas school counselors play a vital role in making students aware of opportunities for financial aid and college scholarships;

Whereas school counselors assist with and coordinate efforts to foster a positive school climate, resulting in a safer learning environment for all students;

Whereas school counselors have been instrumental in helping students, teachers, and parents deal with personal trauma as well as tragedies in their communities and the United States;

Whereas students face myriad challenges every day, including peer pressure, bullying, mental health issues, the deployment of family members to serve in conflicts overseas, and school violence;

Whereas a school counselor is 1 of the few professionals in a school building who is trained in both education and social and emotional development;

Whereas the roles and responsibilities of school counselors are often misunderstood;

Whereas the school counselor position is often among the first to be eliminated to meet budgetary constraints;

Whereas the national average ratio of students to school counselors is 471 to 1, almost twice the 250 to 1 ratio recommended by the American School Counselor Association, the National Association for College Admission Counseling, and other organizations; and

Whereas the celebration of National School Counseling Week will increase awareness of the important and necessary role school counselors play in the lives of students in the United States: Now, therefore, be it

*Resolved*, That the Senate—

(1) designates February 2 through 6, 2015, as ''National School Counseling Week''; and

(2) encourages the people of the United States to observe National School Counseling Week with appropriate ceremonies and activities that promote awareness of the role school counselors play in schools and the community at large in preparing students for fulfilling lives as contributing members of society.

## AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ARMED SERVICES

Mr. ISAKSON. Mr. President, I ask unanimous consent that the Committee on Armed Services be authorized to meet during the session of the Senate on February 3, 2015, at 9:30 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FINANCE

Mr. ISAKSON. Mr. President, I ask unanimous consent that the Committee on Finance be authorized to meet during the session of the Senate on February 3, 2015, at 10:30 a.m., in room SD–215 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Internal Revenue Service Operations and the President's Budget for Fiscal Year 2016.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. ISAKSON. Mr. President, I ask unanimous consent that the Committee on Health, Education, Labor, and Pensions be authorized to meet during the session of the Senate on February 3, 2015, at 10 a.m., in room SH–216 of the Hart Senate Office Building to conduct a hearing entitled ''Fixing No Child Left Behind: Innovation to Better Meet the Needs of Students.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. ISAKSON. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on February 3, 2015, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON WESTERN HEMISPHERE, TRANSNATIONAL CRIME, CIVILIAN SECURITY, DEMOCRACY, HUMAN RIGHTS, AND GLOBAL WOMEN'S ISSUES

Mr. ISAKSON. Mr. President, I ask unanimous consent that the Foreign Relations Subcommittee on Western Hemisphere, Transnational Crime, Civilian Security, Democracy, Human Rights, and Global Women's Issues be authorized to meet during the session of the Senate on February 3, 2015, at 10 a.m., to conduct a hearing entitled ''Understanding the Impact of U.S. Policy Changes on Human Rights and Democracy in Cuba.''

The PRESIDING OFFICER. Without objection, it is so ordered.

## PRIVILEGES OF THE FLOOR

Mrs. SHAHEEN. Mr. President, I ask unanimous consent that Eric Bader, a detailee from the Coast Guard, be granted floor privileges for the duration of debate to consider the fiscal year 2015 Department of Homeland Security appropriations bill.

The PRESIDING OFFICER. Without objection, it is so ordered.

## APPOINTMENTS

The PRESIDING OFFICER. The Chair, on behalf of the Vice President, pursuant to Public Law 94–304, as amended by Public Law 99–7, appoints the following Senators as members of the Commission on Security and Cooperation in Europe (Helsinki) during the 114th Congress: the Honorable ROGER WICKER of Mississippi, Co-Chair; the Honorable RICHARD BURR of North Carolina; and the Honorable JOHN BOOZMAN of Arkansas.

The Chair, on behalf of the majority leader, pursuant to the provisions of Public Law 99–93, as amended by Public Law 99–151, appoints the following Senators as members of the United States Senate Caucus on International Narcotics Control during the 114th Congress: the Honorable CHUCK GRASSLEY of Iowa, Co-Chairman; the Honorable JOHN CORNYN of Texas; the Honorable JAMES E. RISCH of Idaho; and the Honorable JEFF SESSIONS of Alabama.

## NATIONAL SCHOOL COUNSELING WEEK

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of S. Res. 64, which was submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 64) designating February 2 through 6, 2015, as ''National School Counseling Week.''

There being no objection, the Senate proceeded to consider the resolution.

Mr. MCCONNELL. I further ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 64) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

## ORDERS FOR WEDNESDAY, FEBRUARY 4, 2015

Mr. MCCONNELL. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 9:30 a.m. on Wednesday, February 4; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following any leader remarks, the Senate be in a period of morning business until 12:30 p.m., equally divided, with Senators permitted to speak therein for up to 10 minutes each; and that following morning business, the Senate recess until 2 p.m. to allow for the bipartisan conference meeting.

The PRESIDING OFFICER. Without objection, it is so ordered.

## ADJOURNMENT UNTIL 9:30 A.M. TOMORROW

Mr. MCCONNELL. If there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 6:19 p.m., adjourned until Wednesday, February 4, 2015, at 9:30 a.m.

# EXTENSIONS OF REMARKS

PERSONAL EXPLANATION

## HON. RON KIND

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. KIND. Mr. Speaker, I was unable to have my votes recorded on the House floor on Monday, February 2, 2015. Weather across the Midwest delayed my flight to Washington, DC until after votes had been called. Had I been present, I would have voted in favor of H.R. 361, H.R. 615, and H.R. 623.

PERSONAL EXPLANATION

## HON. WILLIAM R. KEATING

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. KEATING. Mr. Speaker, on February 2, 2015, I missed recorded votes #51–53 due to weather-related travel delays.

I would like to reflect how I would have voted if I were present:

On Roll Call #51, I would have voted YEA (Passage of H.R. 361, the Medical Preparedness Allowable Use Act).

On Roll Call #52, I would have voted YEA (Passage of H.R. 615, the Department of Homeland Security Interoperable Communications Act).

On Roll Call #53, I would have voted YEA (Passage of H.R. 623, the Social Media Working Group Act of 2015).

CONGRATULATING KNOX COLLEGE FOR INCLUSION IN THE 2014 PRESIDENT'S HIGHER EDUCATION COMMUNITY SERVICE HONOR ROLL

## HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mrs. BUSTOS. Mr. Speaker, I rise today to congratulate Knox College in Galesburg, Illinois, on being part of the 2014 President's Higher Education Community Service Honor Roll, the highest federal award that an educational institution can receive for its commitment to community service.

Knox College was one of four finalists in the Economic Opportunity Category of the honor roll. KnoxCorps works with the Galesburg Community Foundation to place students and recent graduates with local nonprofits that help promote economic stability and vitality in Galesburg. One student club on campus, Blessings in a Backpack, collected and distributed food donations to more than 150 school children throughout the community. Knox College has also partnered with the FISH Food Pantry. The food pantry trains students to design their own service projects to help eliminate food insecurity in their community.

These are just a few of the many ways Knox College has worked diligently to better its surrounding community through innovative programs. This marks the fifth time in six years that Knox has been recognized on the President's Higher Education Community Service Honor Roll.

Mr. Speaker, I'd like to recognize Knox College for its outstanding commitment to service and thank its students, faculty and alumni for making the Galesburg community a better place.

PERSONAL EXPLANATION

## HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. HIGGINS. Mr. Speaker, inclement weather hindered my travel to Washington on February 2. Consequently I missed several votes in the House of Representatives.

I would like to submit how I intended to vote had I been present:

On Roll Call 51, the motion to suspend the rules and pass H.R. 361, I would have voted YEA.

On Roll Call 52, the motion to suspend the rules and pass H.R. 615, I would have voted YEA.

On Roll Call 53, the motion to suspend the rules and pass H.R. 623, I would have voted YEA.

THE GLOBAL MAGNITSKY HUMAN RIGHTS ACCOUNTABILITY ACT: HOLDING PERPETRATORS ACCOUNTABLE

## HON. CHRISTOPHER H. SMITH

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. SMITH of New Jersey. Mr. Speaker, on Friday my colleague Mr. MCGOVERN and I introduced the Global Magnitsky Human Rights Accountability Act.

In November of 2012, almost every Member of this House voted for the forerunner of this legislation, the Sergei Magnitsky Rule of Law Accountability Act of 2012, which was included in Public Law 112–208. The 2012 law focused on perpetrators in a single country, Russia, and authorized and required the President to list and sanction individuals who the President determined was responsible for the detention, abuse, and death of Sergei Magnitsky, as well as other gross violations of human rights.

This law sent a strong message of personal responsibility by targeting bad actors, publicly naming and shaming individuals who commit horrific abuses.

My new bill builds on these provisions and expands the law globally. It requires the President to determine when foreign persons are complicit in egregious, internationally recognized human rights abuses or major acts of corruption; and then prohibits them from coming to the United States, remaining in the U.S. if they are already here, or owning property in our country. Further, my bill will require the administration to publish their names in an annual ''Global Magnitsky List'' unless there is a compelling, national security reason not to.

Mr. Speaker, I think we can all agree that the U.S. should not provide refuge for those who commit human rights abuses. We can and should take away the privilege of U.S. visas that afford a measure of respectability as well as a quick exit for those who worry daily that they may be held accountable for their crimes against their countrymen. This bill will help bring human rights victims some justice, and deny perpetrators the respectability, mobility, and wealth they crave.

Specifically, the bill I introduced Friday expands and strengthens the Magnitsky law in several key ways, and keeps some of its key provisions:

Like the Magnitsky law, it authorizes and requires the President to sanction perpetrators of human rights violations, rather than simply allowing him to do so.

The bill prioritizes violations against people who ''seek to expose illegal activity carried out by government officials; or to obtain, exercise, defend, or promote internationally recognized human rights and freedoms, such as the freedoms of religion, expression, association, and assembly, and the rights to a fair trial and democratic elections,'' but it also allows for the sanctioning of individuals for heinous human rights abuses against other victims.

It requires the President to issue an annual report—on December 10th, Human Rights Day—with the names of persons who have been sanctioned or were removed from sanctions over the previous year, providing Congress and the public with the opportunity to review the implementation and impact of the Magnitsky List and to discuss who is or should be on the List.

If the President decides to include a sanctioned person in the classified section of the annual Global Magnitsky List for national security reasons, he will be required to list their country of citizenship and the number of people sanctioned from each country. This information will give us a better understanding of whether particular countries with many known perpetrators are being overlooked.

As introduced, the Global Magnitsky Act will also require an independent audit by the Government Accountability Office to ensure the provisions are being implemented effectively, efficiently, and as Congress intended.

I urge my colleagues to help us continue the legacy of Sergei Magnitsky—the brave man for whom this bill is named—and cosponsor this legislation. Murderers and torturers, and their money, are not welcome in this country.

● This ''bullet'' symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

## TRIBUTE TO LIEUTENANT COLONEL EARL DEVINE

### HON. MARTHA McSALLY

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Ms. MCSALLY. Mr. Speaker, I rise today to acknowledge Lieutenant Colonel Earl Devine and to congratulate him on his recently awarded title of Greater Sierra Vista Veteran of the Year for 2015.

Earl graduated from Highland High School in New York in 1953. He went on to receive a Bachelor of Science in Mathematics from Oklahoma State University in 1958. That same year, Earl was commissioned in the Army and rose to the rank of Captain in Air Defense Artillery, where he commanded a Nike Hercules missile battery.

Earl was then assigned to the US Military Assistance Command, Vietnam (MAC–V), serving as an intelligence staff officer and member of the MAC–V defense force during the Tet Offensive. He was then selected to be a test director for the newly activated Modern Army Selected Systems Test, Evaluation, and Review Activity.

Earl was selected as the Operations Officer for the Current Intelligence and Indications Center, North American Air Defense Command and was responsible for threat assessment of foreign missile launches and mission determination of foreign space launches. He completed his active duty as director of administration and logistics for an intelligence organization at Fort Bragg, North Carolina.

After military retirement, Earl spent 19 years with the US Army Communications Command and successor organizations receiving numerous sustained superior performance and special act awards.

Mr. Devine has been a member of the Sierra Vista Municipal Property Corporation for over 12 years and served as president for the last four. He is a member of the Southern Arizona Veterans' Memorial Cemetery Foundation, American Veterans (AMVETS), the Benevolent and Protective Order of Elks of the USA Lodge #2065, the Coronado Chapter of MOAA, where he served as Deputy Director for the past 19 years, and the election committee of Post 52 of the American Legion for the past ten years.

The people of Southern Arizona owe him a great deal of gratitude for all he has done for Sierra Vista and the veteran community. Earl's continued efforts to honor the brave men and women who served our country, often in times of its greatest need, are exemplary. He truly embodies the meaning of the word ''service'' and will have a lasting impact on the community for generations to come.

Through Mr. Devine's efforts to honor those who served, he continues to go above and beyond the call of duty. For that, he has unquestionably earned the title of Greater Sierra Vista Veteran of the Year for 2015.

Mr. Speaker, please join me in honoring Colonel Devine for being awarded the Sierra Vista Veteran of the Year and thanking him for his years of exemplary service to our country and Southern Arizona.

## PERSONAL EXPLANATION

### HON. STEVE KING

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. KING of Iowa. Mr. Speaker, on roll call no. 51, had I been present, I would have voted Yes.

## PERSONAL EXPLANATION

### HON. KATHERINE M. CLARK

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Ms. CLARK of Massachusetts. Mr. Speaker, last night I was regrettably detained by a snow storm and missed votes. Had I been present, I would have voted yes on H.R. 361, yes on H.R. 615, and yes on H.R. 623.

## PERSONAL EXPLANATION

### HON. FRANK C. GUINTA

OF NEW HAMPSHIRE

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. GUINTA. Mr. Speaker, on roll call no. 53 I was unable to vote because my flight was cancelled due to inclement weather. Had I been present, I would have voted yes.

## INTRODUCTION OF THE UPDATE, PROMOTE AND DEVELOP AMERICA'S TRANSPORTATION ESSENTIALS ACT OF 2015, AND THE ROAD USAGE CHARGE PILOT PROGRAM ACT OF 2015

### HON. EARL BLUMENAUER

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. BLUMENAUER. Mr. Speaker, today, I am introducing two pieces of legislation to address America's growing infrastructure funding crisis and looming transportation cliff. The reason is simple: America is falling apart and falling behind. The American Society of Civil Engineers (ASCE) rated our infrastructure as a D+ and America, which once had the finest infrastructure in the world, was ranked 25th, behind Barbados and Oman, in 2013. The funding mechanism for our transportation system has been broken for years, and the Highway Trust Fund will run dry in May. On the eve of peak construction season, the U.S. Department of Transportation will be forced to stop reimbursing states for highway and transit projects. The uncertainty is already causing states and local governments to put off or cancel much-needed maintenance, let alone new investment.

If this sounds familiar, it's because we've been here before. Since the last full six year surface transportation bill expired in 2003, Congress has passed 2 partial authorizations and 23 short-term extensions, most recently in August 2014. The federal gas tax, unchanged since 1993, has locked the Highway Trust Fund in a death spiral, and the search for necessary revenue has derailed a traditionally bipartisan, consensus-driven policy process. Just to maintain current, inadequate transportation funding, Congress has had to borrow more than $65 billion from the general fund since 2008, in an increasingly desperate search for revenue in all corners of the federal budget.

The gas tax, since it was last raised to 18.4 cents a gallon in 1993, has lost nearly 40% of its purchasing power due to inflation and rising fuel efficiency. If the gas tax had been indexed to inflation in 1993, it would be at nearly 30 cents a gallon. Instead, the gas tax is barely higher in real terms than the first federal gas tax, levied at one cent a gallon in 1932. We're trying to fund 21st Century infrastructure with a Depression Era level of investment. It's no surprise that we face Depression Era consequences.

The Highway Trust Fund will run an annual shortfall of more than $15 billion after 2017, and unless Congress acts, we face a drop in transportation funding of 30% over the next ten years. The situation is already dire—rough roads alone cost each driver an average of $324 a year, and the cost of time wasted sitting in traffic will top $1000 per family by 2020. Further, the American Society of Civil Engineers estimates that our deteriorating infrastructure will restrict our national GDP growth by nearly $900 billion by 2020.

The case for increasing our investment in infrastructure is clear. A recent S&P Ratings report suggests that every $1.3 billion invested in infrastructure would add 29,000 jobs, $2 billion in economic growth, and cut the deficit by $200 million. Two congressionally authorized commissions, the Simpson Bowles deficit reduction plan, and organizations representing business, labor, environmentalists, car advocates and cyclists, all agree on the solution to solve the Highway Trust Fund crisis and increase transportation investment: raise the federal gas tax.

The UPDATE Act, which I introduced today, would increase federal gas and diesel taxes by a nickel a year, phased in over each of the next three years, and index those taxes to inflation. This would generate $210 billion over the next ten years, enough to make up the Highway Trust Fund shortfall and increase infrastructure investment by at least $4 billion a year. It would cost the average driver roughly $70 a year over the next six years, or less than 20% of what every American is already paying in vehicle maintenance, lost travel time, and carbon pollution.

Increasing the gas tax is the only solution to our growing revenue crisis that is dedicated to transportation spending, sustainable for the long term, and is big enough to do the job. For the first time in years, it's also politically possible. World oil prices have fallen nearly 60% since June 2014, and prices at the pump were at a six year low last week. More than 12 states are now considering increasing gas taxes, taking advantage of low prices. 8 states acted to raise gas taxes in the last two years, including Wyoming and New Hampshire. A growing number of Senators from both parties and Democratic Leader NANCY PELOSI have signaled openness, if not outright support for raising the gas tax.

The UPDATE Act will stabilize the Highway Trust Fund, and make sure that our infrastructure crisis does not worsen. The legislation

also affirms the sense of the Congress that by 2024, the gas tax should be repealed and replaced with a more sustainable funding source. My second piece of legislation, the Road Usage Charge Pilot Program Act, provides research funding for states to explore a transition away from the gas tax to a system based on vehicle miles travelled (VMT). Such a Road Usage Charge system would be more fair, a more accurate reflection of road use, and more sustainable for the long term, as fuel efficiency increases and hybrid and electric vehicles rise in popularity. Questions remain about how best to implement such a system, collect revenue, and address privacy concerns. Congress should encourage states to answer these questions through pilot projects. This legislation, instead of tying America's transportation system to the past, paves the way for the future.

Addressing the infrastructure deficit, stabilizing transportation funding, and helping America's all-too-slow economic recovery is critical if we want a livable and economically prosperous country in the years to come. All we need to make it happen is a commitment to build the future together.

## RECOGNIZING MAJOR KRISTEN CLARK CASTONGUAY

### HON. MICHAEL G. FITZPATRICK

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. FITZPATRICK. Mr. Speaker, today I offer congratulations to Major Kristen Clark Castonguay on her recent promotion as an officer in the United States Air Force. A graduate of Neshaminy High School in Langhorne, Bucks County, and Syracuse University, New York, Major Castonguay also holds a master's degree in aerospace engineering from Pennsylvania State University. Kristen's father, David Clark, and her uncle, Terry Clark, an Air Force veteran, inspired her to explore her interest in rockets and space exploration. Major Castonguay believes she was called to serve for the greater good of the country and wanted to be a part of something bigger than herself. She was commissioned as an Air Force officer in 2004 and subsequently served on active duty in various Air Force bases in space propulsion and engineering supervisory positions. Major Castonguay currently teaches Rocket Propulsion and Space System Lab in the aerospace engineering department of the United States Naval Academy in Annapolis, Maryland. I gratefully acknowledge Major Kristen Clark Castonguay's dedication and many contributions to our country. She has set an example of diligence and duty and service for others to follow. Once again, I am pleased to offer my congratulations on her outstanding achievements and wish her continued success.

## PERSONAL EXPLANATION

### HON. JOSEPH CROWLEY

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. CROWLEY. Mr. Speaker, on January 28, 2015 I missed recorded votes #49–50 as I was returning from the presidential delegation to India to support this important partnership between our two countries.

I would like to reflect how I would have voted if I were here.

On Roll Call #49 I would have voted yes

On Roll Call #50 I would have voted no

## PERSONAL EXPLANATION

### HON. PETER J. ROSKAM

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. ROSKAM. Mr. Speaker, on roll call no. 51 I had an unavoidable conflict. Had I been present, I would have voted aye.

## HOUSTON, TEXAS RECOGNIZES INAUGURAL MISSING PERSONS DAY

### HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. POE of Texas. Mr. Speaker, today, February 3, 2015, we recognize Missing Persons Day in Houston, Texas.

There are few situations harder than when a family member or friend disappears.

We cannot forget each and every person missing from our community.

And help families, law enforcement, and community organizations raise awareness.

Today, we keep the hope alive that young people like Ali Lowitzer will return home.

Today is Ali's 21st birthday.

She went missing almost 5 years ago in April 2010 nearby her home in Spring, Texas.

She got off the bus after school and headed to work.

And she hasn't been heard from since.

Her family will not stop until she is found.

We join them in staying vigilant.

Citizens should report sightings and suspicious activity to law enforcement, Crime Stoppers or the National Center for Missing and Exploited Children.

All of these groups are partners in solving crimes.

One never knows when a report will end in a missing person returning to their family.

Ali's mother, Jo Ann, and her family are to be commended for raising the profile on this serious issue in Houston and providing support to other families.

We pray that Ali's mother, father, and brother and all those whose loved ones are missing will soon be reunited as a complete family.

And that's just the way it is.

## PERSONAL EXPLANATION

### HON. ANNA G. ESHOO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Ms. ESHOO. Mr. Speaker, I was not present during roll call vote numbers 51, 52, and 53 on February 2, 2015, due to a flight cancellation.

I would like to reflect how I would have voted:

On roll call vote no. 51 I would have voted YES.

On roll call vote no. 52 I would have voted YES.

On roll call vote no. 53 I would have voted YES.

## INTRODUCTION OF THE VETERANS EQUAL ACCESS ACT

### HON. EARL BLUMENAUER

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. BLUMENAUER. Mr. Speaker, today, I am introducing the bipartisan Veterans Equal Access Act along with my colleagues DANA ROHRABACHER, WALTER JONES, JUSTIN AMASH, TOM REED, RICHARD HANNA, DINA TITUS, SAM FARR and JARED POLIS, which will allow Veterans Health Administration physicians to recommend medical marijuana to their patients in states where it is legal.

Twenty-three states and the District of Columbia have passed laws that provide for legal access to medical marijuana. As a result, well over one million patients across the country, including many veterans, now use medical marijuana at the recommendation of their physician to treat conditions ranging from seizures, glaucoma, anxiety, chronic pain, and nausea.

There are also nine states and the District of Columbia that now allow physicians to recommend medical marijuana for the symptoms of Post-Traumatic Stress (PTS), due to a growing body of anecdotal evidence suggesting that marijuana offers relief when nothing else has.

While outdated federal barriers often prevent the research necessary to develop marijuana into an FDA approved drug, states have heard from their citizens, including veterans suffering from PTS, that marijuana is helping them now, and have adjusted their laws.

Despite this growing state availability of medical marijuana, the Department of Veterans Affairs (VA) prohibits VA medical providers from completing forms brought by their patients seeking recommendations or opinions regarding participation in a state marijuana program.

The Veterans Equal Access Act would require the Secretary of Veterans Affairs to authorize physicians and other health care workers employed by the VA to provide recommendations and opinions regarding the participation of a veteran in a state medical marijuana program. This includes authorizing them to fill out any forms involved in the process of recommending medical marijuana.

Veterans should not be forced outside of the VA system to seek a treatment that is legal in their state. VA physicians should not be denied the ability to offer a recommendation they think may meet the needs of their patient. I hope my colleagues will join me in supporting this effort.

PERSONAL EXPLANATION

## HON. STEVE KING

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. KING of Iowa. Mr. Speaker, on roll call no. 52, had I been present, I would have voted Yes.

HONORING THE PUBLIC SERVICE OF EULESS CITY MANAGER GARY McKAMIE

## HON. KENNY MARCHANT

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. MARCHANT. Mr. Speaker, I rise today to recognize Gary McKamie who retired as the Euless City Manager on January 31, 2015. Gary has spent the last 42 years serving the City of Euless, and I am privileged to highlight his astonishing career.

Gary McKamie began his career with the City of Euless in 1973 as a public safety dispatcher. He worked in several positions in the Euless Police Department where he rose through the ranks as a Patrol Officer, Detective, Sergeant, Lieutenant, Assistant Police Chief and, ultimately, as Chief of Police for six years beginning in 1993.

As the Chief of Police, Gary McKamie was instrumental in executing several community projects which included the passage of the criminal tax, establishment of the Citizen's Police Academy, conducting town hall meetings and assisting with the development of the police and courts facility.

In 1999, Gary McKamie became the Deputy City Manager in Euless and served in that capacity for eight years. He was then appointed City Manager in 2007. As City Manager, Gary oversaw major commercial development projects in Euless including Glade Parks and the Riverwalk. Both projects were successfully completed to maintain the charm of the community while protecting the natural scenery that defines Euless. He led significant initiatives to improve water conservation, such as the Reclaimed Water Project, which delivers recycled water for irrigation use in northeast Euless. During his tenure as City Manager, Gary was successful in maintaining a conservative budget, allowing Euless to remain in a strong financial position.

Gary McKamie and his wife, Paula, have been married for 40 years. They have three sons: Blake, Brant and Blane, and six grandchildren: Kylar, Kaylee, Kelsie, Jaxon, Addie and Annabelle.

Gary McKamie's leadership in Euless will be missed, but his impact on the city will always be remembered. Mr. Speaker, it is my honor to ask all of my distinguished colleagues to join me in thanking Gary McKamie for his 42 years of public service with the City of Euless.

PERSONAL EXPLANATION

## HON. FRANK C. GUINTA

OF NEW HAMPSHIRE

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. GUINTA. Mr. Speaker, on roll call no. 52 I was unable to vote because my flight was cancelled due to inclement weather. Had I been present, I would have voted yes.

PERSONAL EXPLANATION

## HON. PETER J. ROSKAM

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. ROSKAM. Mr. Speaker, on roll call no. 52 I had an unavoidable conflict. Had I been present, I would have voted AYE.

IN RECOGNITION OF THE 80TH BIRTHDAY OF MAJOR GENERAL [RET.] GERALD G. WATSON

## HON. MIKE ROGERS

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. ROGERS of Alabama. Mr. Speaker, I rise today to recognize my friend, Major General (Ret.) Gerald G. Watson, in honor of his 80th birthday.

Watson graduated from Trinity University with a Bachelor of Science degree in chemistry. He was designated a distinguished military graduate and received a regular Army commission in the U.S. Army Chemical Corps. He went on to earn a Master of Science in logistics systems analysis from the Air Force Institute of Technology. His military education included the Artillery Officers Basic Course, the Chemical Officers Advanced Course, the Army Command and General Staff College and the U.S. Army War College.

During Watson's extensive military career, he served as the first chemical operations officer in the Military Assistance Command in Vietnam, where he directed the U.S. Air Force ''Ranch Hand'' operations, involving the chemical defoliation program. Most of his missions were flown in a craft nicknamed ''Patches,'' due to the vessel having endured more than 500 direct hits from enemy ground fire. Under his leadership, the defoliation program successfully resulted in over a 90 percent reduction in ambushes from Vietcong forces in South Vietnam.

Watson directed the construction and operation of the first two large scale chemical weapons demilitarization facilities while serving as Commander of Rocky Mountain Arsenal. During this time, 7,000 tons of chemical warfare agents were successfully destroyed.

He oversaw the development of the Army's plan for the destruction of its biological weapons stockpile. Later, he served as Program Manager to see the plans be carried out and the biological weapons sufficiently eliminated.

In the office of the Army's deputy Chief-of-Staff for Operations, Watson spearheaded the re-establishment of the U.S. Army Chemical Corps while acting as Director of the Nuclear, Biological and Chemical Operations Division. He also served as the Deputy Inspector General for the U.S. Army, where he contributed greatly to the Army's world-wide readiness.

Following that assignment, Watson was promoted to Brigadier General, and assigned as the Commandant, U.S. Army Chemical School where he was responsible for the development of the U.S. Army Chemical Corps' operational doctrine and material requirements. As Commanding General, he was responsible for the officer and enlisted personnel training activities to include the approval of the first chemical live agent training facility in the free world. During this time, he was responsible for conducting officer and enlisted basic and advanced training for approximately 3,000 officers, 25,000 NCOs and enlisted personnel per year.

Selected to be the Director of the Defense Nuclear Agency in 1989, Watson was responsible for conducting underground nuclear weapons tests to determine the equipment and personnel's survivability and vulnerability to withstand the environment created by nuclear weapons.

Watson served as General Manager and President of Teledyne-Commodore LLC after retiring from active duty. From 1998–2009, he acted as senior advisor to the Vice President for Research at Auburn University. He has served on the Board of Directors of Science Engineering Services, Inc., as well as the Board of Directors of the Community Foundation of Calhoun County. General Watson has also completed his third term as a member of the Vestry of St. Michael's and All Angels in Anniston, Alabama.

Currently, he continues to serve as a senior consultant in a range of issues including domestic preparedness, fuel cell technology, chemical and biological sensors, automotive manufacturing technology and canine olfactory technology. Watson is engaged in support of areas relating to the domestic preparedness of first responders and to acts of terrorism involving weapons of mass destruction.

Although his birthday is on February 19th, a surprise celebration will be held on February 21st at Classic on Noble in Anniston, Alabama.

Mr. Speaker, please join me in celebrating Major General (Ret.) Gerald Watson on this milestone, and thanking him for his outstanding service to our country.

PERSONAL EXPLANATION

## HON. GENE GREEN

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. GENE GREEN of Texas. Mr. Speaker, I rise today to state that I was unable to be in Washington on February 2nd for votes due to inclement weather that impacted travel throughout the Midwest and Northeast.

If I had been able to vote yesterday, I would have voted as follows:

On passage of H.R. 361, the Medical Preparedness Allowable Use Act, I would have voted ''yea.''

On passage of H.R. 615, the Department of Homeland Security Interoperable Communications Act, I would have voted ''yea.''

On passage of H.R. 623, the Social Media Working Group Act of 2015, I would have voted ''yea.''

PERSONAL EXPLANATION

## HON. TAMMY DUCKWORTH

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Ms. DUCKWORTH. Mr. Speaker, on January 27, 2015, on Roll Call #46 on H. Res. 48, Providing for consideration of the bill (H.R. 351) to provide for expedited approval of exportation of natural gas, and for other purposes, I am not recorded because I was absent for medical reasons. Had I been present, I would have voted NAY.

On January 27, 2015, on Roll Call #47 on the Motion to Suspend the Rules and Pass H.R. 469—Strengthening Child Welfare Response to Trafficking Act of 2015, I am not recorded because I was absent for medical reasons. Had I been present, I would have voted YEA.

On January 27, 2015, on Roll Call #48 on the Motion to Suspend the Rules and Pass H.R. 246—To improve the response to victims of child sex trafficking, I am not recorded because I was absent for medical reasons. Had I been present, I would have voted YEA.

On January 28, 2015, on Roll Call #49 on the Democratic Motion to Recommit H.R. 351, I am not recorded because I was absent for medical reasons. Had I been present, I would have voted YEA.

On January 28, 2015, on Roll Call #50 on Passage of H.R. 351—LNG Permitting Certainty and Transparency Act, I am not recorded because I was absent for medical reasons. Had I been present, I would have voted NAY.

PERSONAL EXPLANATION

## HON. DAVID P. ROE

OF TENNESSEE

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. ROE of Tennessee. Mr. Speaker, I was not present for votes on February 2, 2015 because of a serious illness in my family. Had I been present, I would have voted:

Roll Call #51—Yea
Roll Call #52—Yea
Roll Call #53—Yea

HONORING THE LIFE OF LUKE WAGNER ADAMS

## HON. JOSEPH CROWLEY

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. CROWLEY. Mr. Speaker, I rise today to pay tribute to the life and service of Luke Wagner Adams. Luke was a beloved member of the Queens community, who recently passed away at 76 years of age.

A longtime Queens resident, Luke settled in Sunnyside as a young man and quickly became one of the community's most well-known activists. One of Luke's enduring legacies was his leadership at the helm of the Gateway Restoration Project, which led to the creation of Sunnyside's most iconic symbol, the Sunnyside Arch. Luke led the charge on a number of additional projects to improve Sunnyside as a prominent member of the Sunnyside Chamber of Commerce, Sunnyside/Woodside Lions Club, Sunnyside Kiwanis Club, and Sunnyside Artists. In recognition of his long list of accomplishments, the Sunnyside Chamber of Commerce and Sunnyside Artists' annual 'Luke Adams Sunnysider of the Year' award was named in his honor.

Luke will forever be known not only for his love for his community, but also for his generosity and selflessness. Luke's loyalty to his friends and community was unmatched, and he was willing to go above and beyond for those who asked him for help. Whether it was raising money for the hungry, being the first to welcome a newcomer to the neighborhood, or ensuring that others who joined him in his civic engagement received proper recognition, Luke was the most humble and genuine person one could come across.

Luke was immensely proud of his community, and dedicated his life to making his neighborhood a better place. Mr. Speaker, Luke's commitment to Queens is, and will continue to be, an inspiration to all of us. I ask my colleagues to join me in honoring the life and legacy of Luke Wagner Adams. May he rest in peace.

PERSONAL EXPLANATION

## HON. STEVE KING

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. KING of Iowa. Mr. Speaker, on roll call no. 53, had I been present, I would have voted Yes.

SANTA ANA COLLEGE CENTENNIAL ANNIVERSARY

## HON. LORETTA SANCHEZ

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Ms. LORETTA SANCHEZ of California. Mr. Speaker, I rise today in recognition of a special institution in my district, Santa Ana College, which celebrates its 100th year of being a flagship in higher education.

Through innovative teaching methods and a commitment to community involvement, Santa Ana College has proven to be a quality education to the students of Orange County.

Santa Ana College was recently chosen as one of fifteen California Community Colleges to offer a four year degree.

In addition to hosting regular community fairs aimed at providing resources for veterans, Santa Ana College was also rewarded a $250,000 grant to assist military veterans develop the academic skills needed to succeed in college-level courses.

Santa Ana College does not just boast a high involvement among veterans, but is continuously recognized as one of the top associate degree producers for minorities in the nation.

I would like to congratulate Santa Ana College for 100 years of overall excellence and service to my district.

PERSONAL EXPLANATION

## HON. GREGORY W. MEEKS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. MEEKS. Mr. Speaker, on February 2, 2015 I missed recorded votes #51–53 as I was delayed en-route to Washington by inclement weather.

I would like to reflect how I would have voted if I were here:

On Roll Call #51 I would have voted yea.
On Roll Call #52 I would have voted yea.
On Roll Call #53 I would have voted yea.

PERSONAL EXPLANATION

## HON. JACKIE WALORSKI

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mrs. WALORSKI. Mr. Speaker, on February 2, 2015, I missed several votes due to weather. I missed recorded votes #51–53.

I would like to reflect how I would have voted if I were present.

On Roll Call #51, I would have voted YEA.
On Roll Call #52, I would have voted YEA.
On Roll Call #53, I would have voted YEA.

PERSONAL EXPLANATION

## HON. BILL HUIZENGA

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. HUIZENGA of Michigan. Mr. Speaker, I rise today regarding three missed votes due to inclement weather on Monday, February 2, 2015. Had I been present for roll call vote number 51, H.R. 361, the Medical Preparedness Allowable Use Act, I would have voted "yay." Had I been present for roll call vote number 52, H.R. 615, the Department of Homeland Security Interoperable Communications Act, I would have voted "yay." Had I been present for roll call vote number 53, H.R. 623, the Social Media Working Group Act of 2015, I would have voted "yay."

IN RECOGNITION OF SACRAMENTO'S BUSINESS LEADERS

## HON. DORIS O. MATSUI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Ms. MATSUI. Mr. Speaker, I rise today to recognize the many outstanding Sacramento business leaders being honored at the Sacramento Metropolitan Chamber of Commerce's 120th annual dinner and business awards ceremony. Those being honored are dedicated to the success of the Sacramento Region and have worked tirelessly to advance the region's economic vitality. I ask all my colleagues to join me in honoring these fine Sacramentans.

Mark Friedman, President of the Fulcrum Property Group, has been named

"Sacramentan of the Year." An accomplished businessman, he has led many community oriented projects throughout the region, including the current transformation of Downtown Plaza into the new sports and entertainment complex that will help revitalize the core of our city. He is also a civic leader and an active supporter of the arts and higher education. Mr. Friedman is part of the UC Davis Chancellor's Cabinet for the $1 Billion Comprehensive Capital Campaign and serves on the boards of the UC Davis School of Education and the M.I.N.D. Institute.

Mary Rotelli, Executive Vice President and Chief Operating Officer of Teichert, Inc., has been named the "Business Woman of the Year." Ms. Rotelli is very involved in the community and was recently appointed by Governor Brown to the California Public Works Contract Arbitration Committee. She is also a member of the California Transportation Foundation and the National Readymix Concrete Association. Ms. Rotelli helped found the Capital Region Family Business Center, an organization that helps family businesses meet their unique needs.

Eric Stille, President and CEO of Nugget Markets, has been named the "Businessman of the Year." The local, family-owned chain is a grocery industry leader and the company has been recognized as being one of the "100 Best Companies to Work For" by Fortune Magazine.

California Clothing Recyclers, a company that exports used clothing thereby reducing landfills, has been named "Small Business of the Year." Erica Taylor, Vice President and Communications and Community Relations Director for Five Star Bank, who holds leadership positions in various organizations and was one of the Sacramento Business Journal's "Top 40 Under 40" in 2012, has been named "Metro Edge Young Professional of the Year." Emilie Cameron, Senior Public Relations Manager for 3fold Communications, is being recognized for her many philanthropic endeavors as "Volunteer of the Year." Ellie Shaw, President of Shaw Media Consulting, whose company helps guide online communication for small businesses and who is an avid volunteer for the Chamber, is being named "Ambassador of the Year." Warren Smith, President of Sacramento Republic FC, is being honored for his efforts to infuse professional soccer in the Sacramento area with the "Peter McCuen Award for Civic Entrepreneurs." These awards could not go to more deserving Sacramentans.

Dignity Health, Los Rios Community College District, and the Van Vleck Ranch are the inductees into the "Sacramento Business Hall of Fame" for their significant contributions to the Sacramento Region.

Mr. Speaker, I am honored to recognize these individuals and businesses for their contributions to the Sacramento Region. I ask all my colleagues to join me in honoring them for their unwavering commitment to our region.

## PERSONAL EXPLANATION

### HON. PETER J. ROSKAM

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. ROSKAM. Mr. Speaker, on roll call no. 53, I had an unavoidable conflict. Had I been present, I would have voted AYE.

## PERSONAL EXPLANATION

### HON. TAMMY DUCKWORTH

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Ms. DUCKWORTH. Mr. Speaker, on January 21, 2015, on Roll Call #38 on Ordering the Previous Question for H. Res. 38, I am not recorded because I was absent for medical reasons. Had I been present, I would have voted NAY.

On January 21, 2015, on Roll Call #39 on H. Res. 38, Providing for consideration of H.R. 161, the Natural Gas Pipeline Permitting Reform Act; and providing for consideration of H.R. 36, the Pain-Capable Unborn Child Protection Act, I am not recorded because I was absent for medical reasons. Had I been present, I would have voted NAY.

On January 21, 2015, on Roll Call #40 on the Democratic Motion to Recommit H.R. 161, I am not recorded because I was absent for medical reasons. Had I been present, I would have voted YEA.

On January 21, 2015, on Roll Call #41 on Passage of H.R. 161—Natural Gas Pipeline Permitting Reform Act, I am not recorded because I was absent for medical reasons. Had I been present, I would have voted NAY.

On January 22, 2015, on Roll Call #42 on Ordering the Previous Question for H. Res. 42, I am not recorded because I was absent for medical reasons. Had I been present, I would have voted NAY.

On January 22, 2015, on Roll Call #43 on H. Res. 42, Providing for consideration of H.R. 7, the No Taxpayer Funding for Abortion and Abortion Insurance Full Disclosure Act of 2015, I am not recorded because I was absent for medical reasons. Had I been present, I would have voted NAY.

On January 22, 2015, on Roll Call #44 on the Democratic Motion to Recommit H.R. 7, I am not recorded because I was absent for medical reasons. Had I been present, I would have voted YEA.

On January 22, 2015, on Roll Call #45 on Passage of H.R. 7—No Taxpayer Funding for Abortion and Abortion Insurance Full Disclosure Act of 2015, I am not recorded because I was absent for medical reasons. Had I been present, I would have voted NAY.

## PERSONAL EXPLANATION

### HON. FRANK C. GUINTA

OF NEW HAMPSHIRE

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. GUINTA. Mr. Speaker, on roll call no. 51 I was unable to vote because my flight to Washington was cancelled due to inclement weather. Had I been present, I would have voted yes.

## HONORING FRANK P. MATTHEWS, JR.

### HON. BRAD ASHFORD

OF NEBRASKA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. ASHFORD. Mr. Speaker, I rise today to recognize Mr. Frank P. Matthews, Jr. for his dedication and commitment to improving the Omaha community he has called home for so many years. On Friday, Mr. Matthews was named by St. Cecilia Elementary School as the first recipient of its Bernadette "Bonnie" Pryor Distinguished Alumnus Award for his continued service to the school. Mr. Matthews is the son of the late Frank P Matthews, the 49th United States Secretary of the Navy from 1949–1951 and United States Ambassador to Ireland from 1951–1952. The late Mr. Matthews installed many admirable values in his son, including service to one's country as well as the importance of giving back. Mr. Matthews took this advice, and following graduation from Creighton Preparatory High School and completion of a correspondence course, served in an Army gunnery unit from 1942–1946. During this time, Mr. Matthews studied Chinese in anticipation of his deployment there; however Japan surrendered, ending the war. After the war, Mr. Matthews earned a Juris Doctorate from Creighton University Law School. He and his partner Martin Cannon, practiced for many years, in the Matthews and Cannon Law Building. In the 1960's Mr. Matthews pooled together resources so as to buy shares in a new company led by the young Warren Buffett. Having the advantage of early participation, Mr. Matthews has echoed his father's credence of good will by giving back at least half of what he has earned from this investment. Since his retirement at 65, Mr. Matthews has spent the past 30 years with his late wife, Helen, traveling the world and experiencing new things. Throughout this time he has enriched the lives of so many Omahans through his service and commitment to the community. Mr. Speaker it is with great pleasure that I recognize Mr. Frank Matthews for his and his family's achievements and service to our great state and this great country.

## RECOGNIZING NANCY CONNER'S 30 YEARS OF SERVICE

### HON. MICHAEL G. FITZPATRICK

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. FITZPATRICK. Mr. Speaker, I rise today in recognition of Nancy Conner's 30 years of committed service to the people of Tullytown Borough.

Tullytown lays on the southern edge of Lower Bucks County along the Delaware River, between Falls and Bristol Townships, and includes part of historic Levittown—the embodiment of the American dream for families who returned home after World War II. Levittown—and Tullytown—has an important place in our local history, and one that is only strengthened by the individuals that live and work there.

For three decades, Nancy has attended to the needs of her neighbors and community through her service as Council Secretary of Tullytown Borough. Her thoughtful and dedicated work has earned the praise of her peers and added to the success of her hometown.

The continued efforts of involved individuals, like Nancy, make my District of Bucks County, Pennsylvania, a special one to represent.

I thank Nancy for dutifully executing her role as Council Secretary for the last 30 years and wish her all the best in her next 30.

## OUR UNCONSCIONABLE NATIONAL DEBT

### HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $18,085,063,837,781.82. We've added $7,455,417,108,597.12 to our debt in 6 years. This is over $7.4 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

## INTRODUCTION OF THE PRESERVING ACCESS TO MANUFACTURED HOUSING ACT

### HON. STEPHEN LEE FINCHER

OF TENNESSEE

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, February 3, 2015*

Mr. FINCHER. Mr. Speaker, I rise today to discuss my bill, the Preserving Access to Manufactured Housing Act. My legislation makes two important changes to regulations that could affect the accessibility of financing options for purchasers of manufactured homes.

Manufactured housing serves as a valuable, affordable housing option for American families all across our nation. Unfortunately, due to CFPB mortgage regulations that do not reflect the unique nature of the manufactured home sales process, access to financing for manufactured homes is in serious jeopardy. My bill would modify the definition of high-cost loans so that manufactured housing loans are not unfairly swept under the high-cost loan designation simply due to their size.

Additionally, the Act will clarify that manufactured housing retailers who are not engaged in financing loans should not be considered mortgage loan originators for purposes of heightened regulation and limitation on activity under the SAFE Act.

Mr. Speaker, I urge my colleagues in the House (and Senate) to support me in passing the Preserving Access to Manufactured Housing Act, in order to ensure continued availability of this affordable housing option.

*Tuesday, February 3, 2015*

CORRECTION

# *Daily Digest*

## HIGHLIGHTS

**Senate passed H.R. 203, Clay Hunt Suicide Prevention for American Veterans Act.**

# Senate

## *Chamber Action*

***Routine Proceedings, pages S707–S739***

**Measures Introduced:** Sixteen bills and two resolutions were introduced, as follows: S. 340–355, and S. Res. 63–64. **Pages S736–37**

**Measures Reported:**

S. 192, to reauthorize the Older Americans Act of 1965. **Page S736**

**Measures Passed:**

***Clay Hunt Suicide Prevention for American Veterans Act:*** By a unanimous vote of 99 yeas (Vote No. 50), Senate passed H.R. 203, to direct the Secretary of Veterans Affairs to provide for the conduct of annual evaluations of mental health care and suicide prevention programs of the Department of Veterans Affairs, to require a pilot program on loan repayment for psychiatrists who agree to serve in the Veterans Health Administration of the Department of Veterans Affairs. **Pages S716–20**

***National School Counseling Week:*** Senate agreed to S. Res. 64, designating February 2 through 6, 2015, as "National School Counseling Week". **Page S739**

**Measures Considered:**

**Department of Homeland Security Appropriations Act—Cloture:** Senate continued consideration of the motion to proceed to consideration of H.R. 240, making appropriations for the Department of Homeland Security for the fiscal year ending September 30, 2015. **Pages S707–08, S720–24, S733**

A motion was entered to close further debate on the motion to proceed to consideration of the bill, and, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, a vote on cloture will occur on Thursday, February 5, 2015. **Page S733**

During consideration of this measure today, Senate also took the following action:

By 51 yeas to 48 nays (Vote No. 51), three-fifths of those Senators duly chosen and sworn, not having voted in the affirmative, Senate rejected the motion to close further debate on the motion to proceed to consideration of the bill. **Page S722**

Subsequently, Senator McConnell entered a motion to reconsider the vote by which cloture was not invoked on the motion to proceed to consideration of the bill. **Page S722**

**Appointments:**

***Commission on Security and Cooperation in Europe (Helsinki):*** The Chair, on behalf of the Vice President, pursuant to Public Law 94–304, as amended by Public Law 99–7, appointed the following Senators as members of the Commission on Security and Cooperation in Europe (Helsinki) during the 114th Congress: Senator Wicker, Co-Chair, and Senators Burr and Boozman. **Page S739**

***United States Senate Caucus on International Narcotics Control:*** The Chair, on behalf of the Majority Leader, pursuant to the provisions of Public Law 99–93, as amended by Public Law 99–151, appointed the following Senators as members of the United States Senate Caucus on International Narcotics Control during the 114th Congress: Senator Grassley, Co-Chairman, and Senators Cornyn, Risch, and Sessions. **Page S739**

**Messages from the House:** **Page S736**

**Measures Referred:** **Page S736**

**Measures Placed on the Calendar:** **Pages S736, S707**

**Additional Cosponsors:** **Page S737**

**Statements on Introduced Bills/Resolutions:** **Pages S738–39**

**Additional Statements:** **Pages S735–36**

**Authorities for Committees to Meet:** **Page S739**

**Privileges of the Floor:** Page S739

**Record Votes:** Two record votes were taken today. (Total—51) Pages S720, S722

**Adjournment:** Senate convened at 10 a.m. and adjourned at 6:19 p.m., until 9:30 a.m. on Wednesday, February 4, 2015. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S739.)

## *Committee Meetings*

*(Committees not listed did not meet)*

### MILITARY COMPENSATION AND RETIREMENT MODERNIZATION COMMISSION

*Committee on Armed Services:* Committee concluded a hearing to examine the findings of the Military Compensation and Retirement Modernization Commission, after receiving testimony from Alphonso Maldon, Jr., Chairman, and former Senator Larry L. Pressler, former Senator J. Robert Kerrey, former Representative Stephen E. Buyer, former Representative Christopher P. Carney, General Peter W. Chiarelli, USA (Ret.), Dov S. Zakheim, and Michael R. Higgins, each a Commissioner, all of the Military Compensation and Retirement Modernization Commission.

### PRESIDENT'S PROPOSED BUDGET REQUEST

*Committee on the Budget:* Committee concluded a hearing to examine the President's proposed budget request for fiscal year 2016, after receiving testimony from Shaun Donovan, Director, Office of Management and Budget.

### INTERNAL REVENUE SERVICE BUDGET

*Committee on Finance:* Committee concluded a hearing to examine the Internal Revenue Service operations and the President's proposed budget request for fiscal year 2016, after receiving testimony from John A. Koskinen, Commissioner, Internal Revenue Service, Department of the Treasury.

### POLICY CHANGES IN CUBA

*Committee on Foreign Relations:* Subcommittee on Western Hemisphere Transnational Crime, Civilian Security, Democracy, Human Rights, and Global Women's Issues concluded a hearing to examine understanding Cuba policy changes, including the impact on human rights in Cuba, after receiving testimony from Roberta S. Jacobson, Assistant Secretary for Western Hemisphere Affairs, and Tom P. Malinowski, Assistant Secretary for Democracy, Human Rights, and Labor, both of the Department of State; Rosa Maria Paya, Christian Liberation Movement, Miami, Florida; Berta Soler, Cuban Ladies in White, Matanzas, Cuba; and Manuel Cuesta Morua, Progressive Arc, and Miriam Leiva, both of Havana, Cuba.

### NO CHILD LEFT BEHIND

*Committee on Health, Education, Labor, and Pensions:* Committee concluded a hearing to examine No Child Left Behind, focusing on innovation to meet the needs of students, after receiving testimony from Ken Bradford, Louisiana Assistant Superintendent of Education, Baton Rouge; Robert Balfanz, Johns Hopkins University School of Education Center for Social Organization of Schools, and Henriette Taylor, University of Maryland School of Social Work, both of Baltimore; Josh Davis, Delta Health Alliance, Stoneville, Mississippi; Katie Duffy, Democracy Prep Public Schools, New York, New York; Susan Stone Kessler, Hunter Lane High School, Nashville, Tennessee; and James P. McIntyre, Jr., Knox County Schools, Knoxville, Tennessee.

### INTELLIGENCE

*Select Committee on Intelligence:* Committee met in closed session to receive a briefing on certain intelligence matters from officials of the intelligence community.

# House of Representatives

## *Chamber Action*

**Public Bills and Resolutions Introduced: 33 public bills, H.R. 5, 666–697; 1 private bill, H.R. 698; and 11 resolutions, H.J. Res. 28; H. Con. Res. 13; and H. Res. 77–85, were introduced.** Pages H754–56

**Additional Cosponsors:** Pages H757–58

**Reports Filed:** A report was filed today as follows:

H. Res. 78, providing for consideration of the bill (H.R. 527) to amend chapter 6 of title 5, United States Code (commonly known as the Regulatory Flexibility Act), to ensure complete analysis of potential impacts on small entities of rules, and for

other purposes; and providing for consideration of the bill (H.R. 50) to provide for additional safeguards with respect to imposing Federal mandates, and for other purposes (H. Rept. 114–14). **Page H754**

**Speaker:** Read a letter from the Speaker wherein he appointed Representative Fleischmann to act as Speaker pro tempore for today. **Page H707**

**Recess:** The House recessed at 10:29 a.m. and reconvened at 12 noon. **Page H710**

**Journal:** The House agreed to the Speaker's approval of the Journal by a yea-and-nay vote of 267 yeas to 148 nays with one answering "present", Roll No. 56. **Pages H710, H722–23**

**Repealing the Patient Protection and Affordable Care Act:** The House passed H.R. 596, to repeal the Patient Protection and Affordable Care Act and health care-related provisions in the Health Care and Education Reconciliation Act of 2010, by a recorded vote of 239 ayes to 186 noes, Roll No. 58. **Pages H723–42**

Rejected the DeSaulnier motion to recommit the bill to the Committee on Ways and Means with instructions to report the same back to the House forthwith with an amendment, by a yea-and-nay vote of 179 yeas to 241 nays, Roll No. 57. **Pages H740–41**

Pursuant to the Rule, the amendment printed in H. Rept. 114–13 shall be considered as adopted. **Page H723**

H. Res. 70, the rule providing for consideration of the bill (H.R. 596), was agreed to by a recorded vote of 242 ayes to 178 noes, Roll No. 55, after the previous question was ordered by a yea-and-nay vote of 242 yeas to 176 nays, Roll No. 54. **Pages H713–22**

**Committee Elections:** The House agreed to H. Res. 77, electing Members to certain standing committees of the House of Representatives. **Page H742**

**House Democracy Partnership—Appointment:** The Chair announced the Speaker's appointment of the following Members of the House to the House Democracy Partnership: Representative Roskam, Chairman; Representatives Fortenberry, Boustany, Conaway, Buchanan, Crenshaw, Brooks (IN), Black, Ribble, Walorski, and Zeldin. **Pages H742–43**

**Senate Message:** Message received from the Senate today and appears on page H742.

**Quorum Calls—Votes:** Three yea-and-nay votes and two recorded votes developed during the proceedings of today and appear on pages H721–22, H722, H723, H741, and H741–42. There were no quorum calls.

**Adjournment:** The House met at 10 a.m. and adjourned at 7:10 p.m.

# *Committee Meetings*

## WORLD WIDE THREATS

*Committee on Armed Services:* Full Committee held a hearing entitled "World Wide Threats". Testimony was heard from the following Department of Defense officials: Mark S. Chandler, Acting Director for Intelligence, J–2, the Joint Staff; Lieutenant General William C. Mayville, USA, Director for Operations, J–3, the Joint Staff; and Lieutenant General Vincent R. Stewart, USMC, Director, Defense Intelligence Agency.

## WOUNDED WARRIOR PROGRAM UPDATE

*Committee on Armed Services:* Subcommittee on Military Personnel held a hearing entitled "Wounded Warrior Program Update". Testimony was heard from Captain Brent Breining, Director, Navy Wounded Warrior—Safe Harbor, United States Navy; Brigadier General Patrick Doherty, Director, Air Force Services, United States Air Force; James Rodriguez, Deputy Assistant Secretary of Defense, Warrior Care, Department of Defense; Colonel Chris Toner, Commander, Warrior Transition Command, United States Army; and Paul Williamson, Command Advisor, Wounded Warrior Regiment, United States Marine Corps.

## EXAMINING THE U.S. PUBLIC HEALTH RESPONSE TO SEASONAL INFLUENZA

*Committee on Energy and Commerce:* Subcommittee on Oversight and Investigations held a hearing entitled "Examining the U.S. Public Health Response to Seasonal Influenza". Testimony was heard from Anne Schuchat, Director, National Center for Immunization and Respiratory Diseases, Centers for Disease Control and Prevention; Karen Midthun, Director, Center for Biologics Evaluation and Research, Food and Drug Administration; Robin Robinson, Director, Biomedical Advanced Research and Development Authority, Office of the Assistant Secretary for Preparedness and Response, Department of Health and Human Services; and Anthony Fauci, Director, National Institute of Allergy and Infectious Diseases, National Institutes of Health.

## THE STRATEGIC IMPORTANCE OF THE WESTERN HEMISPHERE: DEFINING U.S. INTERESTS IN THE REGION

*Committee on Foreign Affairs:* Subcommittee on the Western Hemisphere held a hearing entitled "The Strategic Importance of the Western Hemisphere: Defining U.S. Interests in the Region". Testimony was heard from public witnesses.

## A REVIEW OF ACCESS CONTROL MEASURES AT OUR NATION'S AIRPORTS

*Committee on Homeland Security:* Subcommittee on Transportation Security held a hearing entitled "A Review of Access Control Measures at Our Nation's Airports". Testimony was heard from Mark Hatfield, Acting Deputy Administrator, Transportation Security Administration, Department of Homeland Security; Gary D. Perdue, Deputy Assistant Director, Counterterrorism Division, Federal Bureau of Investigation, Department of Justice; and public witnesses.

## EXAMINING THE ADEQUACY AND ENFORCEMENT OF OUR NATION'S IMMIGRATION LAWS

*Committee on the Judiciary:* Full Committee held a hearing entitled "Examining the Adequacy and Enforcement of Our Nation's Immigration Laws". Testimony was heard from Paul Babeu, Sheriff of Pinal County, Arizona; and public witnesses.

## INSPECTORS GENERAL: INDEPENDENCE, ACCESS AND AUTHORITY

*Committee on Oversight and Government Reform:* Full Committee held a hearing entitled "Inspectors General: Independence, Access and Authority". Testimony was heard from Michael E. Horowitz, Inspector General, Department of Justice; Arthur A. Elkins, Jr., Inspector General, Environmental Protection Agency; and Kathy A. Buller, Inspector General, U.S. Peace Corps.

## UNFUNDED MANDATES INFORMATION AND TRANSPARENCY ACT OF 2015; SMALL BUSINESS REGULATORY FLEXIBILITY IMPROVEMENTS ACT OF 2015

*Committee on Rules:* Full Committee held a hearing on H.R. 50, the "Unfunded Mandates Information and Transparency Act of 2015"; and H.R. 527, the "Small Business Regulatory Flexibility Improvements Act of 2015". The committee granted, by record vote of 6–2, a structured rule for H.R. 527. The rule provides one hour of general debate, with 40 minutes equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary and 20 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Small Business. The rule waives all points of order against consideration of the bill. The rule makes in order as original text for the purpose of amendment an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–3 and provides that it shall be considered as read. The rule waives all points of order against that amendment in the nature of a substitute. The rule makes in order only those further amendments printed in part A of the Rules Committee report. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendments printed in part A of the report. The rule provides one motion to recommit with or without instructions. The rule also granted a structured rule for H.R. 50. The rule provides one hour of general debate equally divided and controlled by the chair and ranking minority member of the Committee on Oversight and Government Reform. The rule waives all points of order against consideration of the bill. The rule provides that an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–4, modified by the amendment printed in part B of the Rules Committee report, shall be considered as adopted, and the bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule makes in order only those further amendments to H.R. 50 printed in part C of the Rules Committee report. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendments printed in part C of the report. The rule provides one motion to recommit with or without instructions. Testimony was heard from Chairman Chaffetz, and Representatives Marino, Johnson of Georgia, Chabot, Jackson Lee, Clay, and Meadows.

## NSF'S OVERSIGHT OF THE NEON PROJECT AND OTHER MAJOR RESEARCH FACILITIES DEVELOPED UNDER COOPERATIVE AGREEMENTS

*Committee on Science, Space, and Technology:* Subcommittee on Oversight; and Subcommittee on Research and Technology, held a joint hearing entitled "NSF's Oversight of the NEON Project and Other Major Research Facilities Developed Under Cooperative Agreements". Testimony was heard from Richard Buckius, Chief Operating Officer, National Science Foundation; Kate Manuel, Legislative Attorney, Congressional Research Service; and a public witness.

### HOW THE CHANGING ENERGY MARKETS WILL AFFECT U.S. TRANSPORTATION

*Committee on Transportation and Infrastructure:* Subcommittee on Railroads, Pipelines, and Hazardous Materials held a hearing entitled "How the Changing Energy Markets Will Affect U.S. Transportation". Testimony was heard from public witnesses.

### PRESIDENT'S FISCAL YEAR 2016 BUDGET

*Committee on Ways and Means:* Full Committee held a hearing on the President's fiscal year 2016 budget. Testimony was heard from Jacob Lew, Secretary, Department of Treasury.

## *Joint Meetings*

No joint committee meetings were held.

## COMMITTEE MEETINGS FOR WEDNESDAY, FEBRUARY 4, 2015

*(Committee meetings are open unless otherwise indicated)*

### Senate

*Committee on Armed Services:* to hold hearings to examine the nomination of Ashton B. Carter, of Massachusetts, to be Secretary of Defense, 9:30 a.m., SD–G50.

*Committee on Commerce, Science, and Transportation:* to hold hearings to examine private sector experience with the National Institute of Standards and Technology (NIST) framework, focusing on building a more secure cyber future, 10 a.m., SR–253.

Subcommittee on Oceans, Atmosphere, Fisheries, and Coast Guard, to hold hearings to examine the impacts of vessel discharge regulations on shipping and fishing industries, 2:30 p.m., SR–253.

*Committee on Environment and Public Works:* to hold a joint hearing with the House Committee on Transportation and Infrastructure to examine impacts of the proposed waters of the United States rule on state and local governments, 10 a.m., HVC–210.

*Committee on Finance:* to hold hearings to examine the President's proposed budget request for fiscal year 2016, 10 a.m., SD–215.

*Committee on Foreign Relations:* to hold hearings to examine ending modern slavery, focusing on the best way forward, 9:30 a.m., SD–419.

*Committee on Homeland Security and Governmental Affairs:* to hold hearings to examine deferred action on immigration, focusing on implications and unanswered questions, 10 a.m., SD–342.

*Committee on Indian Affairs:* business meeting to consider S. 184, to amend the Indian Child Protection and Family Violence Prevention Act to require background checks before foster care placements are ordered in tribal court proceedings, S. 209, to amend the Indian Tribal Energy Development and Self-Determination Act of 2005, S. 246, to establish the Alyce Spotted Bear and Walter Soboleff Commission on Native Children, and an original bill to amend the Indian Self-Determination and Education Assistance Act to provide further self-governance by Indian tribes; to be immediately followed by an oversight hearing to examine loan leveraging in Indian country, 2:30 p.m., SD–628.

*Select Committee on Intelligence:* to receive a closed briefing on certain intelligence matters, 2 p.m., SH–219.

*Special Committee on Aging:* to hold hearings to examine combating financial exploitation of vulnerable seniors, 2:30 p.m., SD–562.

### House

*Committee on Armed Services,* Full Committee, hearing entitled "Final Recommendations from the Military Compensation and Retirement Modernization Commission", 10 a.m., 2118 Rayburn.

*Committee on the Budget,* Full Committee, hearing entitled "The President's Fiscal Year 2016 Budget", 10:30 a.m., 210 Cannon.

*Committee on Education and the Workforce,* Full Committee, hearing entitled "Expanding Opportunity in America's Schools and Workplaces", 10 a.m., 2175 Rayburn.

*Committee on Energy and Commerce,* Subcommittee on Communications and Technology, markup on the "Federal Communications Commission Consolidated Reporting Act of 2015", 10 a.m., 2123 Rayburn.

Subcommittee on Health, markup on H.R. 639, the "Improving Regulatory Transparency for New Medical Therapies Act"; H.R. 471, the "Ensuring Patient Access and Effective Drug Enforcement Act"; the "Trauma Systems and Regionalization of Emergency Care Reauthorization Act"; and the "Access to Life-Saving Trauma Care for All Americans Act", 2 p.m., 2123 Rayburn.

*Committee on Financial Services,* Subcommittee on Oversight and Investigations, hearing entitled "Exploring Alleged Ethical and Legal Violations at the U.S. Department of Housing and Urban Development", 10 a.m., 2167 Rayburn.

*Committee on Foreign Affairs,* Full Committee, hearing entitled "Cuba: Assessing the Administration's Sudden Shift", 10 a.m., 2172 Rayburn.

Subcommittee on the Middle East and North Africa, hearing entitled "The Palestinian Authority's International Criminal Court Gambit: A True Partner for Peace?", 2 p.m., 2172 Rayburn.

*Committee on House Administration,* Full Committee, hearing on committee funding for the 114th Congress, 10 a.m., 1310 Longworth.

*Committee on the Judiciary,* Subcommittee on Immigration and Border Security, hearing on the "Legal Workforce Act", 10 a.m., 2141 Rayburn.

Subcommittee on Regulatory Reform, Commercial and Antitrust Law, hearing on H.R. 526, the "Furthering Asbestos Claim Transparency (FACT) Act of 2015", 1 p.m., 2141 Rayburn.

*Committee on Ways and Means,* Full Committee, markup on H.R. 644, to amend the Internal Revenue Code of 1986 to permanently extend and expand the charitable deduction for contributions of food inventory; H.R. 637, to amend the Internal Revenue Code of 1986 to make

permanent the rule allowing certain tax-free distributions from individual retirement accounts for charitable purposes; H.R. 641, the ''Conservation Easement Incentive Act of 2015''; H.R. 640, to amend the Internal Revenue Code of 1986 to modify the tax rate for excise tax on investment income of private foundations; H.R. 636, the ''America's Small Business Tax Relief Act of 2015''; H.R. 629, to amend the Internal Revenue Code of 1986 to make permanent the reduced recognition period for built-in gains of S corporations; H.R. 630, to amend the Internal Revenue Code of 1986 to make permanent certain rules regarding basis adjustments to stock of S corporations making charitable contributions of property, 11:15 a.m., 1334 Longworth.

*Next Meeting of the* **SENATE**

**9:30 a.m., Wednesday, February 4**

**Senate Chamber**

**Program for Wednesday:** Senate will be in a period of morning business until 12:30 p.m.

*(Senate will recess from 12:30 p.m. until 2 p.m. for a bipartisan conference meeting.)*

*Next Meeting of the* **HOUSE OF REPRESENTATIVES**

**10 a.m., Wednesday, February 4**

**House Chamber**

**Program for Wednesday:** Consideration of H.R. 50—Unfunded Mandates Information and Transparency Act of 2015 (Subject to a Rule).

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